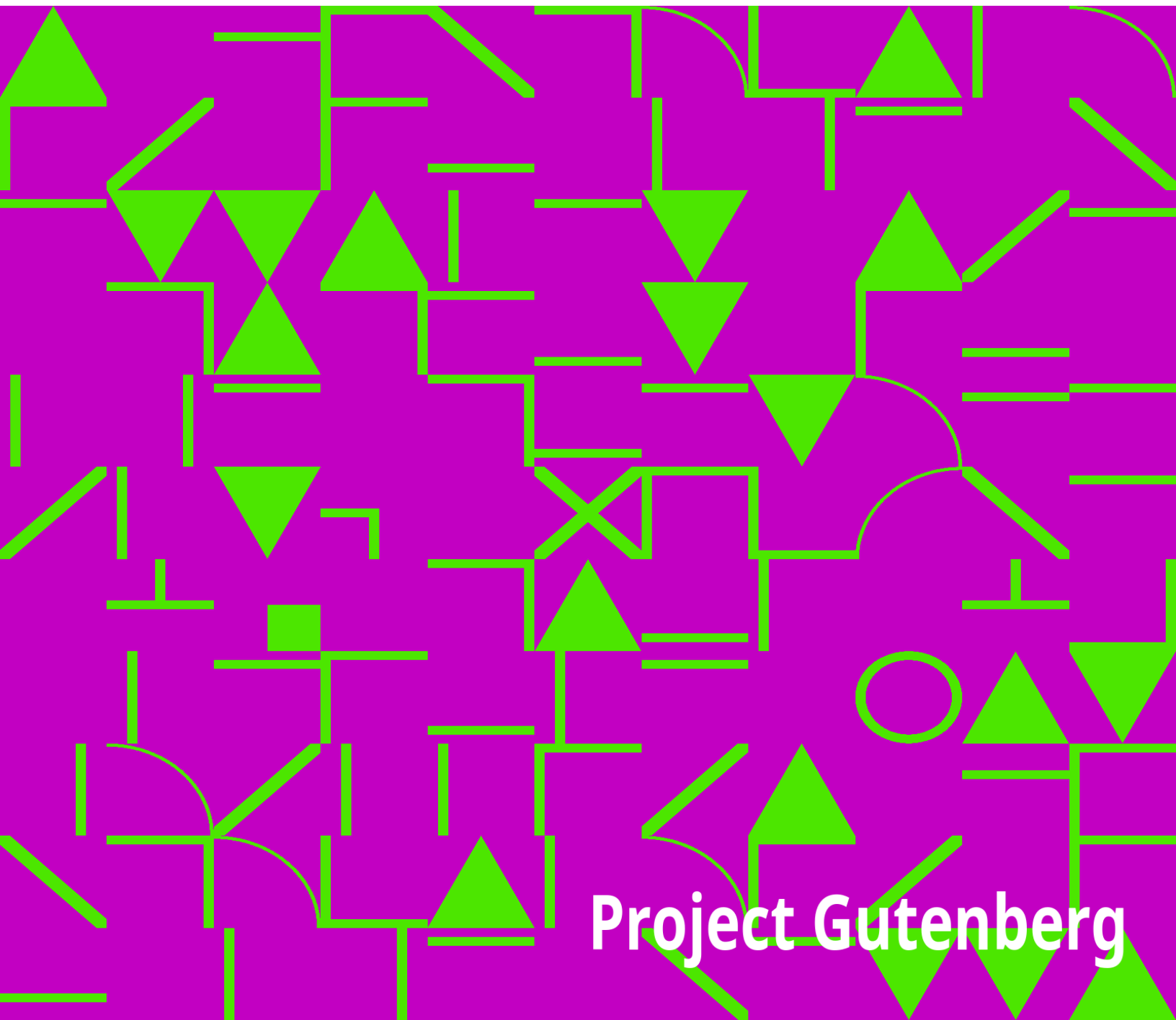


A Compilation of the Messages and Papers of the Presidents. Volume 1, part 1: George Washington

James D. Richardson



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of the Presidents. Volume 1, part 1: George
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COMPILATION OF THE MESSAGES AND PAPERS OF THE
PRESIDENTS. VOLUME 1, PART 1: GEORGE WASHINGTON ***

A COMPILATION OF THE MESSAGES AND PAPERS OF THE PRESIDENTS

BY JAMES D. RICHARDSON
A REPRESENTATIVE FROM THE STATE OF TENNESSEE

VOLUME I

PUBLISHED BY AUTHORITY OF CONGRESS

1902

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Prefatory Note

In compliance with the authorization of the Joint Committee on Printing, I have undertaken this compilation.

The messages of the several Presidents of the United States—annual, veto, and special—are among the most interesting, instructive, and valuable contributions to the public literature of our Republic. They discuss from the loftiest standpoint nearly all the great questions of national policy and many subjects of minor interest which have engaged the attention of the people from the beginning of our history, and so constitute important and often vital links in their progressive development. The proclamations, also, contain matter and sentiment no less elevating, interesting, and important. They inspire to the highest and most exalted degree the patriotic fervor and love of country in the hearts of the people.

It is believed that legislators and other public men, students of our national history, and many others will hail with satisfaction the compilation and publication of these messages and proclamations in such compact form as will render them easily accessible and of ready reference. The work can not fail to be exceedingly convenient and useful to all who have occasion to consult these documents. The Government has never heretofore authorized a like publication.

In executing the commission with which I have been charged I have sought to bring together in the several volumes of the series all Presidential proclamations, addresses, messages, and communications to Congress excepting those nominating persons to office and those which simply transmit treaties, and reports of heads of Departments which contain no recommendation from the Executive. The utmost effort has been made to render the compilation accurate and exhaustive.

Although not required by the terms of the resolution authorizing the compilation, it has been deemed wise and wholly consistent with its purpose to incorporate in the first volume authentic copies of the Declaration of Independence, the Articles of Confederation, and the

Constitution of the United States, together with steel engravings of the Capitol, the Executive Mansion, and of the historical painting the "Signing of the Declaration of Independence." Steel portraits of the Presidents will be inserted each in its appropriate place.

The compilation has not been brought even to its present stage without much labor and close application, and the end is far from view; but if it shall prove satisfactory to Congress and the country, I will feel compensated for my time and effort.

JAMES D. RICHARDSON.
WASHINGTON, D.C.,

February 22, 1896.

Declaration of Independence

July 4, 1776

Declaration of Independence

NOTE.—The words "Declaration of Independence" do not appear on the original.

IN CONGRESS, JULY 4, 1776.

The unanimous Declaration of the thirteen united States of America,

When in the Course of human events, it becomes necessary for one people to dissolve the political bands which have connected them with another, and to assume among the powers of the earth, the separate and equal station to which the Laws of Nature and of Nature's God entitle them, a decent respect to the opinions of mankind requires that they should declare the causes which impel them to the separation.—We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain unalienable Rights, that among these are Life, Liberty and the pursuit of Happiness.—That to secure these rights, Governments are instituted among Men, deriving their just powers from the consent of the governed,—That whenever any Form of Government becomes destructive of these ends, it is the Right of the People to alter or to abolish it, and to institute new Government, laying its foundation on such principles and organizing its powers in such form, as to them shall seem most likely to effect their Safety and Happiness. Prudence, indeed, will dictate that Governments long established should not be changed for light and transient causes; and accordingly all experience hath shewn, that mankind are more disposed to suffer, while evils are sufferable, than to right themselves by abolishing the forms to which they are accustomed. But when a long train of abuses and usurpations, pursuing invariably the same Object evinces a design to reduce them under absolute Despotism, it is their right, it is their duty, to throw off such Government, and to provide new Guards for their future security.—Such has been the patient sufferance of these Colonies; and such is now the necessity which constrains them to alter their former Systems of Government. The history of the present King of Great Britain is a history of repeated injuries and usurpations, all having in

direct object the establishment of an absolute Tyranny over these States. To prove this, let Facts be submitted to a candid world.—He has refused his Assent to Laws, the most wholesome and necessary for the public good.—He has forbidden his Governors to pass Laws of immediate and pressing importance, unless suspended in their operation till his Assent should be obtained; and when so suspended, he has utterly neglected to attend to them.—He has refused to pass other Laws for the accommodation of large districts of people, unless those people would relinquish the right of Representation in the Legislature, a right inestimable to them and formidable to tyrants only.—He has called together legislative bodies at places unusual, uncomfortable, and distant from the depository of their public Records, for the sole purpose of fatiguing them into compliance with his measures.—He has dissolved Representative Houses repeatedly, for opposing with manly firmness his invasions on the rights of the people.—He has refused for a long time, after such dissolutions, to cause others to be elected; whereby the Legislative powers, incapable of Annihilation, have returned to the People at large for their exercise; the State remaining in the mean time exposed to all the dangers of invasion from without, and convulsions within.—He has endeavoured to prevent the population of these States; for that purpose obstructing the Laws for Naturalization of Foreigners; refusing to pass others to encourage their migrations hither, and raising the conditions of new Appropriations of Lands.—He has obstructed the Administration of Justice, by refusing his Assent to Laws for establishing Judiciary powers.—He has made Judges dependent on his Will alone, for the tenure of their offices, and the amount and payment of their salaries.—He has erected a multitude of New Offices, and sent hither swarms of Officers to harrass our people, and eat out their substance.—He has kept among us, in times of peace, Standing Armies without the Consent of our legislatures.—He has affected to render the Military independent of and superior to the Civil power.—He has combined with others to subject us to a jurisdiction foreign to our constitution, and unacknowledged by our laws; giving his Assent to their Acts of pretended Legislation:—For quartering large bodies of armed troops among us:—For protecting them, by a mock Trial, from punishment for any Murders which they should commit on the Inhabitants of these States:—For cutting off our Trade with all parts of the world:—For imposing Taxes on us without our Consent:—For depriving us in many cases, of the benefits of Trial by Jury:—For

transporting us beyond Seas to be tried for pretended offences:—For abolishing the free System of English Laws in a neighbouring Province, establishing therein an Arbitrary government, and enlarging its Boundaries so as to render it at once an example and fit instrument for introducing the same absolute rule into these Colonies:—For taking away our Charters, abolishing our most valuable Laws, and altering fundamentally the Forms of our Governments:—For suspending our own Legislatures, and declaring themselves invested with power to legislate for us in all cases whatsoever. —He has abdicated Government here, by declaring us out of his Protection and waging War against us.—He has plundered our seas, ravaged our Coasts, burnt our towns, and destroyed the Lives of our people.—He is at this time transporting large Armies of foreign Mercenaries to compleat the works of death, desolation and tyranny, already begun with circumstances of Cruelty & perfidy scarcely paralleled in the most barbarous ages, and totally unworthy the Head of a civilized nation.—He has constrained our fellow Citizens taken Captive on the high Seas to bear Arms against their Country, to become the executioners of their friends and Brethren, or to fall themselves by their Hands.—He has excited domestic insurrections amongst us, and has endeavoured to bring on the inhabitants of our frontiers, the merciless Indian Savages, whose known rule of warfare, is an undistinguished destruction of all ages, sexes and conditions. In every stage of these Oppressions We have Petitioned for Redress in the most humble terms: Our repeated Petitions have been answered only by repeated injury. A Prince, whose character is thus marked by every act which may define a Tyrant, is unfit to be the ruler of a free people. Nor have We been wanting in attentions to our Brittish brethren. We have warned them from time to time of attempts by their legislature to extend an unwarrantable jurisdiction over us. We have reminded them of the circumstances of our emigration and settlement here. We have appealed to their native justice and magnanimity, and we have conjured them by the ties of our common kindred to disavow these usurpations, which, would inevitably interrupt our connections and correspondence They too have been deaf to the voice of justice and of consanguinity. We must, therefore, acquiesce in the necessity, which denounces our Separation, and hold them, as we hold the rest of mankind, Enemies in War, in Peace Friends.—

We, therefore, the Representatives of the **united States of America**, in General Congress, Assembled, appealing to the Supreme Judge of the world for the rectitude of our intentions, do, in the Name, and by Authority of the good People of these Colonies, solemnly publish and declare, That these United Colonies are, and of Right ought to be **Free and Independent States**; that they are Absolved from all Allegiance to the British Crown, and that all political connection between them and the State of Great Britain, is and ought to be totally dissolved; and that as Free and Independent States, they have full Power to levy War, conclude Peace, contract Alliances, establish Commerce, and to do all other Acts and Things which Independent States may of right do.—And for the support of this Declaration, with a firm reliance on the protection of divine Providence, we mutually pledge to each other our Lives, our Fortunes and our sacred Honor.

JOHN HANCOCK

JOSIAH BARTLETT, W'M WHIPPLE, SAM'L. ADAMS,
JOHN ADAMS, ROB'T. TREAT PAINE, ELBRIDGE GERRY,
STEP. HOPKINS, WILLIAM ELLERY, ROGER SHERMAN,
SAM'EL HUNTINGTON, W'M WILLIAMS, OLIVER
WOLCOTT, MATTHEW THORNTON, W'M FLOYD, PHIL.
LIVINGSTON, FRAN'S LEWIS, LEWIS MORRIS, RICH'D
STOCKTON, JN'O. WITHERSPOON, FRA'S. HOPKINSON,
JOHN HART, ABRA CLARK, ROB'T. MORRIS, BENJAMIN
RUSH, BENJ'A. FRANKLIN, JOHN MORTON, GEO
CLYMER, JA'S. SMITH, GEO. TAYLOR, JAMES WILSON,
GEO. ROSS, CAESAR RODNEY, GEO READ, THO M'KEAN,
SAMUEL CHASE, W'M. PACA, THO'S. STONE, CHARLES
CARROLL of Carrollton, GEORGE WYTHE, RICHARD
HENRY LEE, TH. JEFFERSON, BENJ'A. HARRISON, THO'S.
NELSON jr., FRANCIS LIGHTFOOT LEE, CARTER
BRAXTON, W'M. HOOPER, JOSEPH HEWES, JOHN PENN,
EDWARD RUTLEDGE, THO'S. HEYWARD Jun'r., THOMAS
LYNCH Jun'r., ARTHUR MIDDLETON, BUTTON
GWINNETT, LYMAN HALL, GEO WALTON.

Articles of Confederation

NOTE.—The original is indorsed: Act of Confederation of The United States of America.

To all to whom these Presents shall come, we the undersigned Delegates of the States affixed to our Names send greeting. Whereas the Delegates of the United States of America in Congress assembled did on the fifteenth day of November in the Year of our Lord One Thousand Seven Hundred and Seventy seven, and in the Second Year of the Independence of America agree to certain articles of Confederation and perpetual Union between the States of Newhampshire, Massachusetts-bay, Rhodeisland and Providence Plantations, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, Virginia, North-Carolina, South-Carolina and Georgia in the Words following, viz. "Articles of Confederation and perpetual Union between the states of Newhampshire, Massachusetts-bay, Rhodeisland and Providence Plantations, Connecticut, New-York, New-Jersey, Pennsylvania, Delaware, Maryland, Virginia, North-Carolina, South-Carolina and Georgia."

Article I. The Stile of this confederacy shall be "The United States of America."

Article II. Each state retains its sovereignty, freedom an independence, and every Power, Jurisdiction and right, which is not by this confederation expressly delegated to the United States, in Congress assembled.

Article III. The said states hereby severally enter into a firm league of friendship with each other, for their common defence, the security of their Liberties, and their mutual and general welfare, binding themselves to assist each other, against all force offered to, or attacks made upon them, or any of them, on account of religion, sovereignty, trade, or any other pretence whatsoever.

Article IV. The better to secure and perpetuate mutual friendship and intercourse among the people of the different states in this union, the free

inhabitants of each of these states, paupers, vagabonds and fugitives from Justice excepted, shall be entitled to all privileges and immunities of free citizens in the several states; and the people of each state shall have free ingress and regress to and from any other state, and shall enjoy therein all the privileges of trade and commerce, subject to the same duties, impositions and restrictions as the inhabitants thereof respectively, provided that such restriction shall not extend so far as to prevent the removal of property imported into any state, to any other state of which the Owner is an inhabitant; provided also that no imposition, duties or restriction shall be laid by any state, on the property of the united states, or either of them.

If any Person guilty of, or charged with treason, felony, or other high misdemeanor in any state, shall flee from Justice, and be found in any of the united states, he shall upon demand of the Governor or executive power, of the state from which he fled, be delivered up and removed to the state having jurisdiction of his offence.

Full faith and credit shall be given in each of these states to the records, acts and judicial proceedings of the courts and magistrates of every other state.

Article V. For the more convenient management of the general interests of the united states, delegates shall be annually appointed in such manner as the legislature of each state shall direct, to meet in Congress on the first Monday in November, in every year, with a power reserved to each state, to recal its delegates, or any of them, at any time within the year, and to send others in their stead, for the remainder of the Year.

No state shall be represented in Congress by less than two, nor by more than seven Members; and no person shall be capable of being a delegate for more than three years in any term of six years; nor shall any person, being a delegate, be capable of holding any office under the united states, for which he, or another for his benefit receives any salary, fees or emolument of any kind.

Each state shall maintain its own delegates in a meeting of the states, and while they act as members of the committee of the states.

In determining questions in the united states, in Congress assembled, each state shall have one vote.

Freedom of speech and debate in Congress shall not be impeached or questioned in any Court, or place out of Congress, and the members of congress shall be protected in their persons from arrests and imprisonments, during the time of their going to and from, and attendance on congress, except for treason, felony, or breach of the peace.

Article VI. No state without the Consent of the united states in congress assembled, shall send any embassy to, or receive any embassy from, or enter into any conference, agreement, alliance or treaty with any King prince or state; nor shall any person holding any office of profit or trust under the united states, or any of them, accept of any present, emolument, office or title of any kind whatever from any king, prince or foreign state; nor shall the united states in congress assembled, or any of them, grant any title of nobility.

No two or more states shall enter into any treaty, confederation or alliance whatever between them, without the consent of the united states in congress assembled, specifying accurately the purposes for which the same is to be entered into, and how long it shall continue.

No state shall lay any imposts or duties, which may interfere with any stipulations in treaties, entered into by the united states in congress assembled, with any king, prince or state, in pursuance of any treaties already proposed by congress, to the courts of France and Spain.

No vessels of war shall be kept up in time of peace by any state, except such number only, as shall be deemed necessary by the united states in congress assembled, for the defence of such state, or its trade; nor shall any body of forces be kept up by any state, in time of peace, except such number only, as in the judgment of the united states, in congress assembled, shall be deemed requisite to garrison the forts necessary for the defence of such state; but every state shall always keep up a well regulated and disciplined militia, sufficiently armed and accoutred, and shall provide and constantly have ready for use, in public stores, a due number of field pieces and tents, and a proper quantity of arms, ammunition and camp equipage.

No state shall engage in any war without the consent of the united states in congress assembled, unless such state be actually invaded by enemies, or shall have received certain advice of a resolution being formed by some nation of Indians to invade such state, and the danger is so imminent as not to admit of a delay, till the united states in congress assembled can be consulted: nor shall any state grant commissions to any ships or vessels of war, nor letters of marque or reprisal, except it be after a declaration of war by the united states in congress assembled, and then only against the kingdom or state and the subjects thereof, against which war has been so declared, and under such regulations as shall be established by the united states in congress assembled, unless such state be infested by pirates, in which case vessels of war may be fitted out for that occasion, and kept so long as the danger shall continue, or until the united states in congress assembled shall determine otherwise.

Article VII. When land-forces are raised by any state for the common defence, all officers of or under the rank of colonel, shall be appointed by the legislature of each state respectively by whom such forces shall be raised, or in such manner as such state shall direct, and all vacancies shall be filled up by the state which first made the appointment.

Article VIII. All charges of war, and all other expences that shall be incurred for the common defence or general welfare, and allowed by the united states in congress assembled, shall be defrayed out of a common treasury, which shall be supplied by the several states, in proportion to the value of all land within each state, granted to or surveyed for any Person, as such land and the buildings and improvements thereon shall be estimated according to such mode as the united states in congress assembled, shall from time to time direct and appoint. The taxes for paying that proportion shall be laid and levied by the authority and direction of the legislatures of the several states within the time agreed upon by the united states in congress assembled.

Article IX. The united states in congress assembled, shall have the sole and exclusive right and power of determining on peace and war, except in the cases mentioned in the sixth article—of sending and receiving ambassadors—entering into treaties and alliances, provided that no treaty of commerce shall be made whereby the legislative power of the respective

states shall be restrained from imposing such imposts and duties on foreigners, as their own people are subjected to, or from prohibiting the exportation or importation of any species of goods or commodities whatsoever—of establishing rules for deciding in all cases, what captures on land or water shall be legal, and in what manner prizes taken by land or naval forces in the service of the united states shall be divided or appropriated.—of granting letters of marque and reprisal in times of peace—appointing courts for the trial of piracies and felonies committed on the high seas and establishing courts for receiving and determining finally appeals in all cases of captures, provided that no member of congress shall be appointed a judge of any of the said courts.

The united states in congress assembled shall also be the last resort on appeal in all disputes and differences now subsisting or that hereafter may arise between two or more states concerning boundary, jurisdiction or any other cause whatever; which authority shall always be exercised in the manner following. Whenever the legislative or executive authority or lawful agent of any state in controversy with another shall present a petition to congress, stating the matter in question and praying for a hearing, notice thereof shall be given by order of congress to the legislative or executive authority of the other state in controversy, and a day assigned for the appearance of the parties by their lawful agents, who shall then be directed to appoint by joint consent, commissioners or judges to constitute a court for hearing and determining the matter in question: but if they cannot agree, congress shall name three persons out of each of the united states, and from the list of such persons each party shall alternately strike out one, the petitioners beginning, until the number shall be reduced to thirteen; and from that number not less than seven, nor more than nine names as congress shall direct, shall in the presence of congress be drawn out by lot, and the persons whose names shall be so drawn or any five of them, shall be commissioners or judges, to hear and finally determine the controversy, so always as a major part of the judges who shall hear the cause shall agree in the determination: and if either party shall neglect to attend at the day appointed, without shewing reasons, which congress shall judge sufficient, or being present shall refuse to strike, the congress shall proceed to nominate three persons out of each state, and the secretary of congress shall strike in behalf of such party absent or refusing; and the judgment and

sentence of the court to be appointed, in the manner before prescribed, shall be final and conclusive; and if any of the parties shall refuse to submit to the authority of such court, or to appear or defend their claim or cause, the court shall nevertheless proceed to pronounce sentence, or judgment, which shall in like manner be final and decisive, the judgment or sentence and other proceedings being in either case transmitted to congress, and lodged among the acts of congress for the security of the parties concerned: provided that every commissioner, before he sits in judgment, shall take an oath to be administered by one of the judges of the supreme or superior court of the state, where the cause shall be tried, "well and truly to hear and determine the matter in question, according to the best of his judgment, without favour, affection or hope of reward:" provided also that no state shall be deprived of territory for the benefit of the united states.

All controversies concerning the private right of soil claimed under different grants of two or more states, whose jurisdictions as they may respect such lands, and the states which passed such grants are adjusted, the said grants or either of them being at the same time claimed to have originated antecedent to such settlement of jurisdiction, shall on the petition of either party to the congress of the united states, be finally determined as near as may be in the same manner as is before prescribed for deciding disputes respecting territorial jurisdiction between different states.

The united states in congress assembled shall also have the sole and exclusive right and power of regulating the alloy and value of coin struck by their own authority, or by that of the respective states—fixing the standard of weights and measures throughout the united states.—regulating the trade and managing all affairs with the Indians, not members of any of the states, provided that the legislative right of any state within its own limits be not infringed or violated—establishing and regulating post-offices from one state to another, throughout all the united states, and exacting such postage on the papers passing thro' the same as may be requisite to defray the expences of the said office—appointing all officers of the land forces, in the service of the united states, excepting regimental officers.—appointing all the officers of the naval forces, and commissioning all officers whatever in the service of the united states—making rules for the government and regulation of the said land and naval forces, and directing their operations.

The united states in congress assembled shall have authority to appoint a committee, to sit in the recess of congress, to be denominated "A Committee of the States," and to consist of one delegate from each state; and to appoint such other committees and civil officers as may be necessary for managing the general affairs of the united states under their direction—to appoint one of their number to preside, provided that no person be allowed to serve in the office of president more than one year in any term of three years; to ascertain the necessary sums of Money to be raised for the service of the united states, and to appropriate and apply the same for defraying the public expences—to borrow money, or emit bills on the credit of the united states, transmitting every half year to the respective states an account of the sums of money so borrowed or emitted,—to build and equip a navy—to agree upon the number of land forces, and to make requisitions from each state for its quota, in proportion to the number of white inhabitants in such state; which requisition shall be binding, and thereupon the legislature of each state shall appoint the regimental officers, raise the men and cloath, arm and equip them in a soldier like manner, at the expence of the united states, and the officers and men so cloathed, armed and equipped shall march to the place appointed, and within the time agreed on by the united states in congress assembled: But if the united states in congress assembled shall, on consideration of circumstances judge proper that any state should not raise men, or should raise a smaller number than its quota, and that any other state should raise a greater number of men than the quota thereof, such extra number shall be raised, officered, cloathed, armed and equipped in the same manner as the quota of such state, unless the legislature of such state shall judge that such extra number cannot be safely spared out of the same, in which case they shall raise officer, cloath, arm and equip as many of such extra number as they judge can be safely spared. And the officers and men so cloathed, armed and equipped, shall march to the place appointed, and within the time agreed on by the united states in congress assembled.

The united states in congress assembled shall never engage in a war, nor grant letters of marque and reprisal in time of peace, nor enter into any treaties or alliances, nor coin money, nor regulate the value thereof, nor ascertain the sums and expences necessary for the defence and welfare of the united states, or any of them, nor emit bills, nor borrow money on the

credit of the united states, nor appropriate money, nor agree upon the number of vessels of war, to be built or purchased, or the number of land or sea forces to be raised, nor appoint a commander in chief of the army or navy, unless nine states assent to the same: nor shall a question on any other point, except for adjourning from day to day be determined, unless by the votes of a majority of the united states in congress assembled.

The congress of the united states shall have power to adjourn to any time within the year, and to any place within the united states, so that no period of adjournment be for a longer duration than the space of six Months, and shall publish the Journal of their proceedings monthly, except such parts thereof relating to treaties, alliances or military operations, as in their judgment require secrecy; and the yeas and nays of the delegates of each state on any question shall be entered on the Journal, when it is desired by any delegate; and the delegates of a state, or any of them, at his or their request shall be furnished with a transcript of the said Journal, except such parts as are above excepted, to lay before the legislatures of the several states.

Article X. The committee of the states, or any nine of them, shall be authorised to execute, in the recess of congress, such of the powers of congress as the united states in congress assembled, by the consent of nine states, shall from time to time think expedient to vest them with; provided that no power be delegated to the said committee, for the exercise of which, by the articles of confederation, the voice of nine states in the congress of the united states assembled is requisite.

Article XI. Canada acceding to this confederation, and joining in the measures of the united states, shall be admitted into, and entitled to all the advantages of this union: but no other colony shall be admitted into the same, unless such admission be agreed to by nine states.

Article XII. All bills of credit emitted, monies borrowed and debts contracted by, or under the authority of congress, before the assembling of the united states, in pursuance of the present confederation, shall be deemed and considered as a charge against the united states, for payment and satisfaction whereof the said united states, and the public faith are hereby solemnly pledged.

Article XIII. Every state shall abide by the determinations of the united states in congress assembled, on all questions which by this confederation are submitted to them. And the Articles of this confederation shall be inviolably observed by every state, and the union shall be perpetual; nor shall any alteration at any time hereafter be made in any of them; unless such alteration be agreed to in a congress of the united states, and be afterwards confirmed by the legislatures of every state.

And whereas it hath pleased the Great Governor of the World to incline the hearts of the legislatures we respectively represent in congress, to approve of, and to authorize us to ratify the said articles of confederation and perpetual union. **Know Ye** that we the under-signed delegates, by virtue of the power and authority to us given for that purpose, do by these presents, in the name and in behalf of our respective constituents, fully and entirely ratify and confirm each and every of the said articles of confederation and perpetual union, and all and singular the matters and things therein contained: And we do further solemnly plight and engage the faith of our respective constituents, that they shall abide by the determinations of the united states in congress assembled, on all questions, which by the said confederation are submitted to them. And that the articles thereof shall be inviolably observed by the states we respectively represent, and that the union shall be perpetual. In Witness whereof we have hereunto set our hands in Congress. Done at Philadelphia in the state of Pennsylvania the ninth Day of July in the Year of our Lord one Thousand seven Hundred and Seventy-eight, and in the third year of the independence of America.

On the part & behalf of the State of New Hampshire

JOSIAH BARTLETT, JOHN WENTWORTH Jun'r. August 8th
1778

On the part and behalf of The State of Massachusetts Bay

JOHN HANCOCK, SAMUEL ADAMS, ELBRIDGE GERRY,
FRANCIS DANA, JAMES LOVELL, SAMUEL HOLTEN

On the part and behalf of the State of Rhode-Island and Providence
Plantations

WILLIAM ELLARY, HENRY MARCHANT, JOHN COLLINS

On the part and behalf of the State of Connecticut

ROGER SHERMAN, SAMUEL HUNTINGTON, OLIVER
WOLCOTT, TITUS HOSMER, ANDREW ADAMS

On the Part and Behalf of the State of New York

JA'S. DUANE, FRA'S. LEWIS, W'M DUER., GOUV MORRIS

On the Part and in Behalf of the State of New Jersey. Nov'r. 26, 1778—

JNO. WITHERSPOON, NATHL. SCUDDER

On the part and behalf of the State of Pennsylvania

ROB'T. MORRIS, DANIEL ROBERDEAU, JON'A. BAYARD
SMITH., WILLIAM CLINGAN, JOSEPH REED 22d July 1778

On the part & behalf of the State of Delaware

THO McKEAN Feby 12 1779, JOHN DICKINSON May 5th
1779, NICHOLAS VAN DYKE

On the part and behalf of the State of Maryland

JOHN HANSON March 1 1781, DANIEL CARROLL d'o

On the Part and Behalf of the State of Virginia

RICHARD HENRY LEE, JOHN BANISTER, THOMAS
ADAMS, JN'O. HARVIE, FRANCIS LIGHTFOOT LEE

On the part and Behalf of the State of N'o Carolina

JOHN PENN July 21st 1778, CORN'S HARNETT, JN'O.
WILLIAMS

On the part & behalf of the State of South-Carolina

HENRY LAURENS., WILLIAM HENRY DRAYTON, JN'O.
MATHEWS, RICH'D. HUTSON., THO'S. HEYWARD Jun'r

On the part & behalf of the State of Georgia

JN'O. WALTON 24th July 1778, ELW'D. TELFAIR., EDW'D.
LANGWORTHY.

The Constitution

NOTE.—The words "The Constitution" do not appear on the original.

We the People of the United States, in Order to form a more perfect Union, establish Justice, insure domestic Tranquility, provide for the common defence, promote the general Welfare, and secure the Blessings of Liberty to ourselves and our Posterity, do ordain and establish this Constitution for the United States of America.

Article 1.

Section. 1. All legislative Powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.

Section. 2. The House of Representatives shall be composed of Members chosen every second Year by the People of the several States, and the Electors in each State shall have the Qualifications requisite for Electors of the most numerous Branch of the State Legislature.

No Person shall be a Representative who shall not have attained to the Age of twenty five Years, and been seven Years a Citizen of the United States, and who shall not, when elected, be an Inhabitant of that State in which he shall be chosen.

Representatives and direct Taxes shall be apportioned among the several States which may be included within this Union, according to their respective Numbers, which shall be determined by adding to the whole Number of free Persons, including those bound to Service for a Term of Years, and excluding Indians not taxed, three fifths of all other Persons. The actual Enumeration shall be made within three Years after the first Meeting of the Congress of the United States, and within every subsequent Term of

ten Years, in such Manner as they shall by Law direct. The Number of Representatives shall not exceed one for every thirty Thousand, but each State shall have at Least one Representative; and until such enumeration shall be made, the State of New Hampshire shall be entitled to chuse three, Massachusetts eight, Rhode-Island and Providence Plantations one, Connecticut five, New-York six, New Jersey four, Pennsylvania eight, Delaware one, Maryland six, Virginia ten, North Carolina five, South Carolina five, and Georgia three.

When vacancies happen in the Representation from any State, the Executive Authority thereof shall issue Writs of Election to fill such Vacancies.

The House of Representatives shall chuse their Speaker and other Officers; and shall have the sole Power of Impeachment.

Section. 3. The Senate of the United States shall be composed of two Senators from each State, chosen by the Legislature thereof, for six Years; and each Senator shall have one Vote.

Immediately after they shall be assembled in Consequence of the first Election, they shall be divided as equally as may be into three Classes. The Seats of the Senators of the first Class shall be vacated at the Expiration of the second Year, of the second Class at the Expiration of the fourth Year, and of the third Class at the Expiration of the sixth Year, so that one third may be chosen every second Year; and if Vacancies happen by Resignation, or otherwise, during the Recess of the Legislature of any State, the Executive thereof may make temporary Appointments until the next Meeting of the Legislature, which shall then fill such Vacancies.

No Person shall be a Senator who shall not have attained to the Age of thirty Years, and been nine Years a Citizen of the United States, and who shall not, when elected, be an Inhabitant of that State for which he shall be chosen.

The Vice President of the United States shall be President of the Senate, but shall have no Vote, unless they be equally divided.

The Senate shall chuse their other Officers, and also a President pro tempore, in the Absence of the Vice President, or when he shall exercise the

Office of President of the United States.

The Senate shall have the sole Power to try all Impeachments. When sitting for that Purpose, they shall be on Oath or Affirmation. When the President of the United States is tried, the Chief Justice shall preside: And no Person shall be convicted without the Concurrence of two thirds of the Members present.

Judgment in Cases of Impeachment shall not extend further than to removal from Office, and disqualification to hold and enjoy any Office of honor, Trust or Profit under the United States: but the Party convicted shall nevertheless be liable and subject to Indictment, Trial, Judgment and Punishment, according to Law.

Section. 4. The Times, Places and Manner of holding Elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by Law make or alter such Regulations, except as to the Places of chusing Senators.

The Congress shall assemble at least once in every Year, and such Meeting shall be on the first Monday in December, unless they shall by Law appoint a different Day.

Section. 5. Each House shall be the Judge of the Elections, Returns and Qualifications of its own Members, and a Majority of each shall constitute a Quorum to do Business; but a smaller Number may adjourn from day to day, and may be authorized to compel the Attendance of absent Members, in such Manner, and under such Penalties as each House may provide.

Each House may determine the Rules of its Proceedings, punish its Members for disorderly Behaviour, and, with the Concurrence of two thirds, expel a Member.

Each House shall keep a Journal of its Proceedings, and from time to time publish the same, excepting such Parts as may in their Judgment require Secrecy; and the Yeas and Nays of the Members of either House on any question shall, at the Desire of one fifth of those Present, be entered on the Journal.

Neither House, during the Session of Congress, shall, without the Consent of the other, adjourn for more than three days, nor to any other Place than that in which the two Houses shall be sitting.

Section. 6. The Senators and Representatives shall receive a Compensation for their Services, to be ascertained by Law, and paid out of the Treasury of the United States. They shall in all Cases, except Treason, Felony and Breach of the Peace, be privileged from Arrest during their Attendance at the Session of their respective Houses, and in going to and returning from the same; and for any Speech or Debate in either House, they shall not be questioned in any other Place.

No Senator or Representative shall, during the Time for which he was elected, be appointed to any civil Office under the Authority of the United States which shall have been created, or the Emoluments whereof shall have been encreased during such time; and no Person holding any Office under the United States, shall be a Member of either House during his Continuance in Office.

Section. 7. All Bills for raising Revenue shall originate in the House of Representatives; but the Senate may propose or concur with Amendments as on other Bills.

Every Bill which shall have passed the House of Representatives and the Senate, shall, before it become a Law, be presented to the President of the United States; If he approve he shall sign it, but if not he shall return it, with his Objections to that House in which it shall have originated, who shall enter the Objections at large on their Journal, and proceed to reconsider it. If after such Reconsideration two thirds of that House shall agree to pass the Bill, it shall be sent, together with the Objections, to the other House, by which it shall likewise be reconsidered, and if approved by two thirds of that House, it shall become a Law. But in all such Cases the Votes of both Houses shall be determined by yeas and Nays, and the Names of the Persons voting for and against the Bill shall be entered on the Journal of each House respectively. If any Bill shall not be returned by the President within ten Days (Sundays excepted) after it shall have been presented to him, the Same shall be a Law, in like Manner as if he had signed it, unless

the Congress by their Adjournment prevent its Return, in which Case it shall not be a Law.

Every Order, Resolution, or Vote to which the Concurrence of the Senate and House of Representatives may be necessary (except on a question of Adjournment) shall be presented to the President of the United States; and before the Same shall take Effect, shall be approved by him, or being disapproved by him, shall be repassed by two thirds of the Senate and House of Representatives, according to the Rules and Limitations prescribed in the Case of a Bill.

Section. 8. The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;

To borrow Money on the credit of the United States;

To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;

To establish an uniform Rule of Naturalization, and uniform Laws on the subject of Bankruptcies throughout the United States;

To coin Money, regulate the Value thereof, and of foreign Coin, and fix the Standard of Weights and Measures;

To provide for the Punishment of counterfeiting the Securities and current Coin of the United States;

To establish Post Offices and post Roads;

To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries;

To constitute Tribunals inferior to the supreme Court;

To define and punish Piracies and Felonies committed on the high Seas, and Offences against the Law of Nations;

To declare War, grant Letters of Marque and Reprisal, and make Rules concerning Captures on Land and Water;

To raise and support Armies, but no Appropriation of Money to that Use shall be for a longer Term than two Years;

To provide and maintain a Navy;

To make Rules for the Government and Regulation of the land and naval Forces;

To provide for calling forth the Militia to execute the Laws of the Union, suppress Insurrections and repel Invasions;

To provide for organizing, arming, and disciplining, the Militia, and for governing such Part of them as may be employed in the Service of the United States, reserving to the States respectively, the Appointment of the Officers, and the Authority of training the Militia according to the discipline prescribed by Congress;

To exercise exclusive Legislation in all Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of particular States, and the Acceptance of Congress, become the Seat of the Government of the United States, and to exercise like Authority over all Places purchased by the Consent of the Legislature of the State in which the Same shall be, for the Erection of Forts, Magazines, Arsenals, dock-Yards, and other needful Buildings;—And

To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

Section. 9. The Migration or Importation of such Persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress prior to the Year one thousand eight hundred and eight, but a Tax or duty may be imposed on such Importation, not exceeding ten dollars for each Person.

The Privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the public Safety may require it.

No Bill of Attainder or ex post facto Law shall be passed.

No Capitation, or other direct, Tax shall be laid, unless in Proportion to the Census or Enumeration herein before directed to be taken.

No Tax or Duty shall be laid on Articles exported from any State.

No Preference shall be given by any Regulation of Commerce or Revenue to the Ports of one State over those of another: nor shall Vessels bound to, or from, one State, be obliged to enter, clear, or pay Duties in another.

No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time.

No Title of Nobility shall be granted by the United States: And no Person holding any Office of Profit or Trust under them, shall, without the Consent of the Congress, accept of any present, Emolument, Office, or Title, of any kind whatever, from any King, Prince, or foreign State.

Section. 10. No State shall enter into any Treaty, Alliance, or Confederation; grant Letters of Marque and Reprisal; coin Money; emit Bills of Credit; make any Thing but gold and silver Coin a Tender in Payment of Debts; pass any Bill of Attainder, ex post facto Law, or Law impairing the Obligation of Contracts, or grant any Title of Nobility.

No State shall, without the Consent of [the] Congress, lay any Imposts or Duties on Imports or Exports, except what may be absolutely necessary for executing it's inspection Laws: and the net Produce of all Duties and Imposts, laid by any State on Imports or Exports, shall be for the Use of the Treasury of the United States; and all such Laws shall be subject to the Revision and Controul of [the] Congress.

No State shall, without the Consent of Congress, lay any Duty of Tonnage, keep Troops, or Ships of War in time of Peace, enter into any Agreement or Compact with another State, or with a foreign Power, or engage in War, unless actually invaded, or in such imminent Danger as will not admit of delay.

Article II.

Section. 1. The executive Power shall be vested in a President of the United States of America. He shall hold his Office during the Term of four Years, and, together with the Vice President, chosen for the same Term, be elected, as follows

Each State shall appoint, in such Manner as the Legislature thereof may direct, a Number of Electors, equal to the whole Number of Senators and Representatives to which the State may be entitled in the Congress: but no Senator or Representative, or Person holding an Office of Trust or Profit under the United States, shall be appointed an Elector.

The Electors shall meet in their respective States, and vote by Ballot for two Persons, of whom one at least shall not be an Inhabitant of the same State with themselves. And they shall make a List of all the Persons voted for, and of the Number of Votes for each; which List they shall sign and certify, and transmit sealed to the Seat of the Government of the United States, directed to the President of the Senate. The President of the Senate shall, in the Presence of the Senate and House of Representatives, open all the Certificates, and the Votes shall then be counted. The Person having the greatest Number of Votes shall be the President, if such Number be a Majority of the whole Number of Electors appointed; and if there be more than one who have such Majority, and have an equal Number of Votes, then the House of Representatives shall immediately chuse by Ballot one of them for President; and if no Person have a Majority, then from the five highest on the List the said House shall in like Manner chuse the President. But in chusing the President, the Votes shall be taken by States, the Representation from each State having one Vote; A quorum for this Purpose shall consist of a Member or Members from two thirds of the States, and a Majority of all the States shall be necessary to a Choice. In every Case, after the Choice of the President, the Person having the greatest Number of

Votes of the Electors shall be the Vice President. But if there should remain two or more who have equal Votes, the Senate shall chuse from them by Ballot the Vice President.

The Congress may determine the Time of chusing the Electors, and the Day on which they shall give their Votes; which Day shall be the same throughout the United States.

No Person except a natural born Citizen, or a Citizen of the United States, at the time of the Adoption of this Constitution, shall be eligible to the Office of President; neither shall any Person be eligible to that Office who shall not have attained to the Age of thirty five Years, and been fourteen Years a Resident within the United States.

In Case of the Removal of the President from Office, or of his Death, Resignation, or Inability to discharge the Powers and Duties of the said Office, the Same shall devolve on the Vice President, and the Congress may by Law provide for the Case of Removal, Death, Resignation or Inability, both of the President and Vice President, declaring what Officer shall then act as President, and such Officer shall act accordingly, until the Disability be removed, or a President shall be elected.

The President shall, at stated Times, receive for his Services, a Compensation, which shall neither be encreased nor diminished during the Period for which he shall have been elected, and he shall not receive within that Period any other Emolument from the United States, or any of them.

Before he enter on the Execution of his Office, he shall take the following Oath or Affirmation:—"I do solemnly swear (or affirm) that I will faithfully execute the Office of President of the United States, and will to the best of my Ability, preserve, protect and defend the Constitution of the United States."

Section. 2. The President shall be Commander in Chief of the Army and Navy of the United States, and of the Militia of the several States, when called into the actual Service of the United States; he may require the Opinion, in writing, of the principal Officer in each of the executive Departments, upon any Subject relating to the Duties of their respective

Offices, and he shall have Power to grant Reprieves and Pardons for Offences against the United States, except in Cases of Impeachment.

He shall have Power, by and with the Advice and Consent of the Senate, to make Treaties, provided two thirds of the Senators present concur; and he shall nominate, and by and with the Advice and Consent of the Senate, shall appoint Ambassadors, other public Ministers and Consuls, Judges of the supreme Court, and all other Officers of the United States, whose Appointments are not herein otherwise provided for, and which shall be established by Law: but the Congress may by Law vest the Appointment of such inferior Officers, as they think proper, in the President alone, in the Courts of Law, or in the Heads of Departments.

The President shall have Power to fill up all Vacancies that may happen during the Recess of the Senate, by granting Commissions which shall expire at the End of their next Session.

Section. 3. He shall from time to time give to the Congress Information of the State of the Union, and recommend to their Consideration such Measures as he shall judge necessary and expedient; he may, on extraordinary Occasions, convene both Houses, or either of them, and in Case of Disagreement between them, with Respect to the Time of Adjournment, he may adjourn them to such Time as he shall think proper; he shall receive Ambassadors and other public Ministers; he shall take Care that the Laws be faithfully executed, and shall Commission all the Officers of the United States.

Section. 4. The President, Vice President and all civil Officers of the United States, shall be removed from Office on Impeachment for, and Conviction of, Treason, Bribery, or other high Crimes and Misdemeanors.

Article III.

Section. 1. The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated

Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.

Section. 2. The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State;—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party, the supreme Court shall have original Jurisdiction. In all the other Cases before mentioned, the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make.

The Trial of all Crimes, except in Cases of Impeachment, shall be by Jury; and such Trial shall be held in the State where the said Crimes shall have been committed; but when not committed within any State, the Trial shall be at such Place or Places as the Congress may by Law have directed.

Section. 3. Treason against the United States, shall consist only in levying War against them, or in adhering to their Enemies, giving them Aid and Comfort. No Person shall be convicted of Treason unless on the Testimony of two Witnesses to the same overt Act, or on Confession in open Court.

The Congress shall have Power to declare the Punishment of Treason, but no Attainder of Treason shall work Corruption of Blood, or Forfeiture except during the Life of the Person attainted.

Article. IV.

Section. 1. Full Faith and Credit shall be given in each State to the public Acts, Records, and judicial Proceedings of every other State. And the

Congress may by general Laws prescribe the Manner in which such Acts, Records and Proceedings shall be proved, and the Effect thereof.

Section. 2. The Citizens of each State shall be entitled to all Privileges and Immunities of Citizens in the several States.

A Person charged in any State with Treason, Felony, or other Crime, who shall flee from Justice, and be found in another State, shall on Demand of the executive Authority of the State from which he fled, be delivered up, to be removed to the State having Jurisdiction of the Crime.

No Person held to Service or Labour in one State, under the Laws thereof, escaping into another, shall, in Consequence of any Law or Regulation therein, be discharged from such Service or Labour, but shall be delivered up on Claim of the Party to whom such Service or Labour may be due.

Section. 3. New States may be admitted by the Congress into this Union; but no new State shall be formed or erected within the Jurisdiction of any other State; nor any State be formed by the Junction of two or more States, or Parts of States, without the Consent of the Legislatures of the States concerned as well as of the Congress.

The Congress shall have Power to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States; and nothing in this Constitution shall be so construed as to Prejudice any Claims of the United States, or of any particular State.

Section. 4. The United States shall guarantee to every State in this Union a Republican Form of Government, and shall protect each of them against Invasion; and on Application of the Legislature, or of the Executive (when the Legislature cannot be convened) against domestic Violence.

Article. V.

The Congress, whenever two thirds of both Houses shall deem it necessary, shall propose Amendments to this Constitution, or, on the Application of the Legislatures of two thirds of the several States, shall call a Convention for proposing Amendments, which, in either Case, shall be

valid to all Intents and Purposes, as Part of this Constitution, when ratified by the Legislatures of three fourths of the several States, or by Conventions in three fourths thereof, as the one or the other Mode of Ratification may be proposed by the Congress; Provided that no Amendment which may be made prior to the Year One thousand eight hundred and eight shall in any Manner affect the first and fourth Clauses in the Ninth Section of the first Article; and that no State, without its Consent, shall be deprived of it's equal Suffrage in the Senate.

Article. VI.

All Debts contracted and Engagements entered into, before the Adoption of this Constitution, shall be as valid against the United States under this Constitution, as under the Confederation.

This Constitution, and the Laws of the United States which shall be made in Pursuance thereof; and all Treaties made, or which shall be made, under the Authority of the United States, shall be the supreme Law of the Land; and the Judges in every State shall be bound thereby, any Thing in the Constitution or Laws of any State to the Contrary notwithstanding.

The Senators and Representatives before mentioned, and the Members of the several State Legislatures, and all executive and judicial Officers, both of the United States and of the several States, shall be bound by Oath or Affirmation, to support this Constitution; but no religious Test shall ever be required as a Qualification to any Office or public Trust under the United States.

Article. VII.

The Ratification of the Conventions of nine States, shall be sufficient for the Establishment of this Constitution between the States so ratifying the Same.

The Word, "the," being
interlined between the
seventh and eighth Lines

done in Convention by the Unanimous
Consent of the States present the Seventeenth
Day of September in the Year of our Lord one
thousand seven hundred and Eighty seven and

of the first Page, The Word "Thirty" being partly written on an Erasure in the fifteenth Line of the first Page, The Words "is tried" being interlined between the thirty second and thirty third Lines of the first Page and the Word "the" being interlined between the forty third and forty fourth Lines of the second Page.—Attest WILLIAM JACKSON Secretary

of the Independance of the United States of America the Twelfth **In Witness** whereof We have hereunto subscribed our Names,

GEORGE WASHINGTON—Presidt.
and deputy from Virginia.

New Hampshire: JOHN LANGDON,
NICHOLAS GILMAN.

Massachusetts: NATHANIEL
GORHAM, RUFUS KING.

Connecticut: W'M SAM'L JOHNSON,
ROGER SHERMAN.

New York: ALEXANDER HAMILTON.

New Jersey: WIL. LIVINGSTON,
DAVID BREARLEY, W'M PATERSON, JONA. DAYTON.

Pensylvania: B FRANKLIN, THOMAS MIFFLIN, ROBT.
MORRIS, GEO. CLYMER, THO'S FITZSIMONS, JARED
INGERSOLL, JAMES WILSON, GOUV MORRIS.

Delaware: GEO. READ, GUNNING BEDFORD jun, JOHN
DICKINSON, RICHARD BASSETT, JACO. BROOM.

Maryland: JAMES McHENRY, DAN OF ST THO'S JENIFER,
DAN'L CARROLL.

Virginia: JOHN BLAIR—, JAMES MADISON Jr.

North Carolina: W'M BLOUNT, RICH'D DOBBS SPAIGHT, HU
WILLIAMSON.

South Carolina: J. RUTLEDGE, CHARLES COTESWORTH
PINCKNEY, CHARLES PINCKNEY, PIERCE BUTLER.

Georgia: WILLIAM FEW, ABR BALDWIN.

In Convention Monday September 17th 1787.

Present
The States of

New Hampshire, Massachusetts, Connecticut, Mr Hamilton from New York, New Jersey, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, South Carolina and Georgia.

That the preceding Constitution be laid before the United States in Congress assembled, and that it is the Opinion of this Convention, that it should afterwards be submitted to a Convention of Delegates, chosen in each State by the People thereof, under the Recommendation of its Legislature, for their Assent and Ratification; and that each Convention assenting to, and ratifying the Same, should give Notice thereof to the United States in Congress assembled.

Resolved,

That it is the Opinion of this Convention, that as soon as the Conventions of nine States shall have ratified this Constitution, the United States in Congress assembled should fix a Day on which Electors should be appointed by the States which shall have ratified the same, and a Day on which the Electors should assemble to vote for the President, and the Time and Place for commencing Proceedings under this Constitution. That after such Publication the Electors should be appointed, and the Senators and Representatives elected: That the Electors should meet on the Day fixed for the Election of the President, and should transmit their Votes certified, signed, sealed and directed, as the Constitution requires, to the Secretary of the United States in Congress assembled, that the Senators and Representatives should convene at the Time and Place assigned; that the Senators should appoint a President of the Senate, for the sole Purpose of receiving, opening and counting the Votes for President; and, that after he shall be chosen, the Congress, together with the President, should, without Delay, proceed to execute this Constitution.

By the Unanimous Order of the Convention

GEORGE WASHINGTON. Presid't

W. Jackson Secretary.

Articles in addition to, and Amendment of the Constitution of the United States of America, proposed by Congress, and ratified by the Legislatures of the several States, pursuant to the fifth Article of the original Constitution.

[Article I.]

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

[Article II.]

A well regulated Militia, being necessary to the security of a free State, the right of the people to keep and bear Arms, shall not be infringed.

[Article III.]

No Soldier shall, in time of peace be quartered in any house, without the consent of the Owner, nor in time of war, but in a manner to be prescribed by law.

[Article IV.]

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

[Article V.]

No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury, except in cases arising in the land or naval forces, or in the Militia, when in actual service in time of War or public danger; nor shall any person be subject for the same offence to be twice put in jeopardy of life or limb; nor shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use, without just compensation.

[Article VI.]

In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State and district wherein the crime shall have been committed, which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor, and to have the Assistance of Counsel for his defence.

[Article VII.]

In Suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved, and no fact tried by a jury, shall be otherwise re-examined in any Court of the United States, than according to the rules of the common law.

[Article VIII.]

Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

[Article IX.]

The enumeration in the Constitution, of certain rights, shall not be construed to deny or disparage others retained by the people.

[Article X.]

The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.

[Article XI.]

The Judicial power of the United States shall not be construed to extend to any suit in law or equity, commenced or prosecuted against one of the United States by Citizens of another State, or by Citizens or Subjects of any Foreign State.

[Article XII.]

The Electors shall meet in their respective states, and vote by ballot for President and Vice-President, one of whom, at least, shall not be an inhabitant of the same state with themselves; they shall name in their ballots the person voted for as President, and in distinct ballots the person voted for as Vice-President, and they shall make distinct lists of all persons voted for as President, and of all persons voted for as Vice-President, and of the number of votes for each, which lists they shall sign and certify, and transmit sealed to the seat of the government of the United States, directed to the President of the Senate;—The President of the Senate shall, in the presence of the Senate and House of Representatives, open all the certificates and the votes shall then be counted;—The person having the greatest number of votes for President, shall be the President, if such number be a majority of the whole number of Electors appointed; and if no person have such majority, then from the persons having the highest numbers not exceeding three on the list of those voted for as President, the House of Representatives shall choose immediately, by ballot, the President. But in choosing the President, the votes shall be taken by states, the representation from each state having one vote; a quorum for this purpose shall consist of a member or members from two-thirds of the states, and a majority of all the states shall be necessary to a choice. And if the House of Representatives shall not choose a President whenever the right of choice shall devolve upon them, before the fourth day of March next

following, then the Vice-President shall act as President, as in the case of the death or other constitutional disability of the President.—The person having the greatest number of votes as Vice-President, shall be the Vice-President, if such number be a majority of the whole number of Electors appointed, and if no person have a majority, then from the two highest numbers on the list, the Senate shall choose the Vice-President; a quorum for the purpose shall consist of two-thirds of the whole number of Senators, and a majority of the whole number shall be necessary to a choice. But no person constitutionally ineligible to the office of President shall be eligible to that of Vice-President of the United States.

Article XIII.

Section 1. Neither slavery nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their jurisdiction.

Section. 2. Congress shall have power to enforce this article by appropriate legislation.

Article XIV.

Section 1. All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

Section 2. Representatives shall be apportioned among the several States according to their respective numbers, counting the whole number of persons in each State, excluding Indians not taxed. But when the right to vote at any election for the choice of electors for President and Vice President of the United States, Representatives in Congress, the Executive and Judicial officers of a State, or the members of the Legislature thereof, is denied to any of the male inhabitants of such State, being twenty-one years

of age, and citizens of the United States, or in any way abridged, except for participation in rebellion, or other crime, the basis of representation therein shall be reduced in the proportion which the number of such male citizens shall bear to the whole number of male citizens twenty-one years of age in such State.

Section 3. No person shall be a Senator or Representative in Congress, or elector of President and Vice President, or hold any office, civil or military, under the United States, or under any State, who, having previously taken an oath, as a member of Congress, or as an officer of the United States, or as a member of any State legislature, or as an executive or judicial officer of any State, to support the Constitution of the United States, shall have engaged in insurrection or rebellion against the same, or given aid or comfort to the enemies thereof. But Congress may by a vote of two-thirds of each House, remove such disability.

Section 4. The validity of the public debt of the United States, authorized by law, including debts incurred for payment of pensions and bounties for services in suppressing insurrection or rebellion, shall not be questioned. But neither the United States nor any State shall assume or pay any debt or obligation incurred in aid of insurrection or rebellion against the United States, or any claim for the loss or emancipation of any slave; but all such debts, obligations and claims shall be held illegal and void.

Section 5. The Congress shall have power to enforce, by appropriate legislation, the provisions of this article.

Article XV.

Section 1. The right of citizens of the United States to vote shall not be denied or abridged by the United States or by any State on account of race, color, or previous condition of servitude—

Section 2. The Congress shall have power to enforce this article by appropriate legislation—

George Washington

April 30, 1789, to March 4, 1797

George Washington

George Washington was born at Bridges Creek, on the Potomac River, in Westmoreland County, Va., on the 22d day of February (or 11th, old style), 1732. Augustine Washington, his father, was a son of Lawrence Washington, whose father, John Washington, came to Virginia from England in 1657, and settled at Bridges Creek. Augustine Washington died in 1743, leaving several children, George being the eldest by his second wife, Mary Ball. At the early age of 19 years he was appointed adjutant-general of one of the districts of Virginia, with the rank of major. In November, 1753, he was sent by Lieutenant-Governor Dinwiddie, of Virginia, to visit the French army in the Ohio Valley on important business. War followed, and in 1754 he was promoted to the rank of lieutenant-colonel, and engaged in the war. In 1755 he acted as aid-de-camp to General Braddock. Soon after this he was appointed by the legislature commander in chief of all the forces of the Colony, and for three years devoted himself to recruiting and organizing troops for her defense. In 1758 he commanded a successful expedition to Fort Du Quesne. He then left the Army, and was married to Mrs. Martha Custis, a widow lady of Virginia. For sixteen years he resided at Mount Vernon, occasionally acting as a magistrate or as a member of the legislature. He was a delegate to the Williamsburg convention, August, 1773, which resolved that taxation and representation were inseparable. In 1774 he was sent to the Continental Congress as a delegate from Virginia. The following year he was unanimously chosen commander in chief, and assumed the command of the Continental Army July 2, 1775. He commanded the armies throughout the War for Independence. At the close he resigned his commission, December 23, 1783, and retired to private life. He was a delegate to, and president of, the National Convention which met in Philadelphia, Pa., in May, 1787, and adopted a new Constitution, that greatly increased the power of the Federal Government. He was unanimously elected the first President of the United States, and was inaugurated on the 30th of April, 1789, in New York City, and at the end of his first term was unanimously reelected. He retired March 4, 1797, having declined a third term. In September, 1796, he issued his

Farewell Address to the people. July 3, 1798, he was again appointed to the command of the armies of the United States, with the rank of lieutenant-general. He was a Freemason, and served as master of his lodge. He died at Mount Vernon, Va., after a short illness, December 14, 1799, and was buried there.

PROCEEDINGS INITIATORY TO THE FIRST PRESIDENTIAL INAUGURATION.

[From the Washington Papers (Executive Proceedings, vol. 17), Department of State.]

Charles Thomson, esq., Secretary of the late Congress, being appointed by the Senate of the United States to carry to General Washington the official information of his unanimous election to the office of President of the United States of America, arrived at Mount Vernon on the 14th day of April, A.D. 1789, when he communicated to General Washington the purport of his mission in the following words:

SIR: The President of the Senate chosen for the special purpose, having opened and counted the votes of the electors in presence of the Senate and House of Representatives, I was honored with the commands of the Senate to wait upon Your Excellency with the information of your being elected to the office of President of the United States of America. This commission was intrusted to me on account of my having been long in the confidence of the late Congress, and charged with the duties of one of the principal civil departments of Government.

I have now, sir, to inform you that the proofs you have given of your patriotism, and of your readiness to sacrifice domestic ease and private enjoyments to preserve the happiness of your country, did not permit the

two Houses to harbor a doubt of your undertaking this great and important office, to which you are called, not only by the unanimous vote of the electors, but by the voice of America.

I have it, therefore, in command to accompany you to New York, where the Senate and House of Representatives are convened for the dispatch of public business.

To which General Washington replied:

SIR: I have been accustomed to pay so much respect to the opinion of my fellow-citizens that the knowledge of their having given their unanimous suffrages in my favor scarcely leaves me the alternative for an option. I can not, I believe, give a greater evidence of my sensibility of the honor which they have done me than by accepting the appointment.

I am so much affected by this fresh proof of my country's esteem and confidence that silence can best explain my gratitude. While I realize the arduous nature of the task which is imposed upon me, and feel my own inability to perform it, I wish, however, that there may not be reason for regretting the choice, for, indeed, all I can promise is only to accomplish that which can be done by an honest zeal.

Upon considering how long time some of the gentlemen of both Houses of Congress have been at New York, how anxiously desirous they must be to proceed to business, and how deeply the public mind appears to be impressed with the necessity of doing it speedily, I can not find myself at liberty to delay my journey. I shall therefore be in readiness to set out the day after to-morrow, and shall be happy in the pleasure of your company, for you will permit me to say that it is a peculiar gratification to have received the communication from you.

**OFFICIAL INFORMATION OF THE ELECTION OF THE
PRESIDENT OF THE UNITED STATES, APRIL 6, 1789.**

Be it known that the Senate and House of Representatives of the United States of America, being convened in the city and State of New York, this 6th day of April, A.D. 1789, the underwritten, appointed President of the Senate for the sole purpose of receiving, opening, and counting the votes of the electors, did, in the presence of the said Senate and House of Representatives, open all the certificates and count all the votes of the electors for a President and Vice-President, by which it appears that His Excellency George Washington, esq., was unanimously elected, agreeably to the Constitution, to the office of President of the said United States of America.

In testimony whereof I have hereunto set my hand and seal.

JOHN LANGDON.

MOUNT VERNON, *April 14, 1789.*

To the Honorable JOHN LANGDON,
President pro tempore of the Senate of the United States.

SIR: I had the honor to receive your official communication, by the hand of Mr. Secretary Thomson, about 1 o'clock this day. Having concluded to obey the important and flattering call of my country, and having been impressed with an idea of the expediency of my being with Congress at as early a period as possible, I propose to commence my journey on Thursday morning, which will be the day after to-morrow.

I have the honor to be, with sentiments of esteem, sir, your most obedient servant,

GEORGE WASHINGTON.

**RESOLVE OF THE SENATE OF THE UNITED STATES
RESPECTING MR. OSGOOD'S PREPARING HIS HOUSE
FOR THE RECEPTION OF THE PRESIDENT OF THE
UNITED STATES.**

UNITED STATES OF AMERICA
In Senate, April 15, 1789.

The committee to whom it was referred to consider of and report to the House respecting the ceremonial of receiving the President, and to whom also was referred a letter from the chairman of a committee of the Senate to the Speaker, communicating an instruction from that House to a committee thereof to report if any and what arrangements are necessary for the reception of the Vice-President, have agreed to the following report:

That Mr. Osgood, the proprietor of the house lately occupied by the President of Congress, be requested to put the same and the furniture thereof in proper condition for the residence and use of the President of the United States, and otherwise, at the expense of the United States, to provide for his temporary accommodation.

That it will be more eligible, in the first instance, that a committee of three members from the Senate and five members from the House of Representatives, to be appointed by the two Houses respectively, attend to receive the President at such place as he shall embark from New Jersey for this city, and conduct him without form to the house lately occupied by the President of Congress, and at such time thereafter as the President shall signify it will be most convenient for him, he be formally received by both Houses.

Read and accepted.

IN SENATE, *April 16, 1789.*

The Senate proceeded by ballot to the choice of a committee, agreeably to the report of the committee of both Houses agreed to the 15th instant, when the Honorable Mr. Langdon, the Honorable Mr. Carroll, and the Honorable Mr. Johnson were chosen.

A true copy from the Journals of the Senate.

Attest:

SAM. A. OTIS, *Secretary.*

**RESOLVE OF THE HOUSE OF REPRESENTATIVES OF
THE UNITED STATES RESPECTING MR. OSGOOD'S
PREPARING HIS HOUSE FOR THE RECEPTION OF THE
PRESIDENT OF THE UNITED STATES.**

IN THE HOUSE OF REPRESENTATIVES OF THE UNITED STATES
Wednesday, April 15, 1789.

Mr. Benson reported from the committee to whom it was referred to consider of and report to the House respecting the ceremonial of receiving the President, and to whom was also referred a letter from the chairman of a committee of the Senate to the Speaker, communicating an instruction from that House to a committee thereof to report if any and what arrangements are necessary for the reception of the Vice-President, that the committee had, according to order, considered of the same, and had agreed to a report thereupon, which he delivered in at the Clerk's table, and where the same was thrice read, and the question put thereupon agreed to by the House as followeth:

That Mr. Osgood, the proprietor of the house lately occupied by the President of Congress, be requested to put the same and the furniture therein in proper order for the residence and use of the President of the United States, and otherwise, at the expense of the United States, to provide for his temporary accommodation.

That it will be most eligible, in the first instance, that a committee of three members from the Senate and five members from the House of Representatives, to be appointed by the Houses respectively, attend to receive the President at such place as he shall embark from New Jersey for this city, and conduct him without form to the house lately occupied by the President of Congress, and that at such time thereafter as the President shall signify it will be most convenient for him, he be formally received by both Houses.

Extract from the Journal.

JOHN BECKLEY, *Clerk*.

**RESOLVE OF THE HOUSE OF REPRESENTATIVES
RESPECTING A COMMITTEE TO MEET THE
PRESIDENT OF THE UNITED STATES.**

IN THE HOUSE OF REPRESENTATIVES OF THE UNITED STATES,
Wednesday, April 15, 1789.

Resolved, That it will be most eligible, in the first instance, that a committee of three members from the Senate and five members from the House of Representatives, to be appointed by the Houses respectively, attend to receive the President at such place as he shall embark from New Jersey for this city, and conduct him without form to the house lately occupied by the President of Congress, and that at such time thereafter as the President shall signify, he be formally received by both Houses.

THURSDAY, *April 16, 1789.*

The committee elected on the part of this House, Mr. Boudinot, Mr. Bland, Mr. Tucker, Mr. Benson, and Mr. Lawrance.

Extract from the Journal.

JOHN BECKLEY, *Clerk.*

**REQUEST OF THE COMMITTEE APPOINTED BY
CONGRESS TO KNOW WHEN THEY SHOULD MEET THE
PRESIDENT.**

The committee appointed in consequence of the resolutions of both Houses of Congress, and which accompany this note, most respectfully communicate their appointment to the President of the United States, with a request that he will please to have it signified to them when they shall attend, with a barge which has been prepared for that purpose, to receive him at Elizabeth Town, or at such other place as he shall choose to embark from New Jersey for this city.

NEW YORK, *April 17, 1789.*

JOHN LANGDON.
CHARGES CARROLL, of Carrollton.
WM. SAMUEL JOHNSON.
ELIAS BOUDINOT.
THEODORICK BLAND.
THOS. TUDR. TUCKER.
EGBT. BENSON.
JOHN LAWRANCE.

**TO THE COMMITTEE OF CONGRESS RESPECTING THE
TIME OF THE PRESIDENT MEETING THEM AT
ELIZABETH TOWN.**

PHILADELPHIA, *April 20, 1789.*

GENTLEMEN: Upon my arrival in this city I received your note, with the resolutions of the two Houses which accompanied it, and in answer thereto beg leave to inform you that, knowing how anxious both Houses must be to proceed to business, I shall continue my journey dispatch as possible. To-morrow evening I purpose to be at Trenton, the night following at Brunswick, and hope to have the pleasure of meeting you at Elizabeth Town point on Thursday at 12 o'clock.

GEORGE WASHINGTON.

LETTER FROM THE HONORABLE ELIAS BOUDINOT.

NEW YORK, *April 21, 1789.*

His Excellency GEORGE WASHINGTON, Esq.

SIR: The committee have just received Your Excellency's letter of the 20th, and will be at Elizabeth Town on Thursday morning.

I must beg Your Excellency will alight at my house, where the committee will attend, and where it will give me (in a particular manner) the utmost pleasure to receive you.

I have the honor to be, with the most profound respect, sir, your most obedient and very humble servant,

ELIAS BOUDINOT.

**LETTER FROM THE HONORABLE ELIAS BOUDINOT,
APRIL 23, 1789.**

ELIZABETH TOWN, *Wednesday Evening.*

His Excellency GEORGE WASHINGTON, Esq.

SIR: I have the honor of informing Your Excellency that the committees of both Houses arrived here this afternoon, and will be ready to receive Your Excellency at my house as soon as you can arrive here to-morrow morning.

If you, sir, will honor us with your company at breakfast, it will give us great pleasure. We shall wait Your Excellency's arrival in hopes of that gratification. You can have a room to dress in, if you should think it necessary, as convenient as you can have it in town.

I have the honor to be Your Excellency's most obedient humble servant,

ELIAS BOUDINOT.

**REPORT OF THE COMMITTEE OF CONGRESS
RESPECTING THE TIME OF THE INAUGURATION OF
THE PRESIDENT.**

IN THE HOUSE OF REPRESENTATIVES OF THE UNITED STATES
Saturday, April 25, 1789.

Mr. Benson, from the committee appointed to consider of the time, place, and manner in which, and of the person by whom, the oath prescribed by the Constitution shall be administered to the President of the United States, and to confer with a committee of the Senate, appointed for the purpose, reported as followeth:

That the President hath been pleased to signify to them that any time or place which both Houses may think proper to appoint and any manner which shall appear most eligible to them will be convenient and acceptable to him.

That requisite preparations can not probably be made before Thursday next; that the President be on that day formally received in the Senate Chamber; that the Representatives' Chamber being capable of receiving the greater number of persons, that therefore the President do take the oath in that place and in the presence of both Houses; that after the formal reception of the President in the Senate Chamber he be attended by both Houses to the Representatives' Chamber, and that the oath be administered by the chancellor of this State.

The committee further report it as their opinion that it will be proper that a committee of both Houses be appointed to take order for further conducting the ceremonial.

The said report was twice read, and on the question put thereupon was agreed to by the House.

Ordered, That Mr. Benson, Mr. Ames, and Mr. Carroll be a committee on the part of this House pursuant to the said report.

Extract from the Journal.

JOHN BECKLEY, *Clerk*.

REPORT OF THE COMMITTEE OF CONGRESS TO THE SENATE RESPECTING THE TIME OF THE INAUGURATION OF THE PRESIDENT.

UNITED STATES OF AMERICA,
In Senate, April 25, 1789.

The committee appointed to consider of the time, place, and manner in which and of the person by whom the oath prescribed by the Constitution shall be administered to the President of the United States, and to confer with a committee of the House appointed for that purpose, report:

That the President hath been pleased to signify to them that any time or place which both Houses may think proper to appoint and any manner which shall appear most eligible to them will be convenient and acceptable to him; that requisite preparations can not probably be made before Thursday next; that the President be on that day formally received in the Senate Chamber by both Houses; that the Representatives' Chamber being capable of receiving the greater number of persons, that therefore the President do take the oath in that place in presence of both Houses; that after the formal reception of the President in the Senate Chamber he be attended by both Houses to the Representatives' Chamber, and that the oath be administered by the chancellor of this State.

The committee further report it as their opinion that it will be proper that a committee of both Houses be appointed to take order for conducting the ceremonial.

Read and accepted.

And Mr. Lee, Mr. Izard, and Mr. Dalton, on the part of the Senate, together with the committee that may be appointed on the part of the House, are empowered to take order for conducting the business.

A true copy from the Journals of Senate.

IN SENATE, *April 27, 1789*

The committees appointed to take order for conducting the ceremonial of the formal reception, etc., of the President report that it appears to them more eligible that the oath should be administered to the President in the outer gallery adjoining the Senate Chamber than in the Representatives' Chamber, and therefore submit to the respective Houses the propriety of authorizing their committees to take order as to the place where the oath shall be administered to the President, the resolutions of Saturday assigning the Representatives' Chamber as the place notwithstanding.

Read and accepted.

A true copy from the Journals of the Senate.

SAM. A. OTIS, *Secretary*.

ORDER FOR CONDUCTING THE CEREMONIAL FOR THE INAUGURATION OF THE PRESIDENT.

The committees of both Houses of Congress appointed to take order for conducting the ceremonial for the formal reception, etc., of the President of the United States on Thursday next have agreed to the following order thereon, viz:

That General Webb, Colonel Smith, Lieutenant-Colonel Fish, Major Franks, Major L'Enfant, Major Bleeker, and Mr. John R. Livingston be requested to serve as assistants on the occasion.

That a chair be placed in the Senate Chamber for the President.

That a chair be placed in the Senate Chamber for the Vice-President, to the right of the President's chair, and that the Senators take their seats on that side of the Chamber on which the Vice-President's chair shall be placed. That a chair be placed in the Senate Chamber for the Speaker of the House of Representatives, to the left of the President's chair, and that the Representatives take their seats on that side of the Chamber on which the Speaker's chair shall be placed.

That seats be provided in the Senate Chamber sufficient to accommodate the late President of Congress, the governor of the Western Territory, the five persons being the heads of the great Departments, the minister plenipotentiary of France, the encargado de negocios of Spain, the chaplains of Congress, the persons in the suite of the President, and also to accommodate the following public officers of the State, viz: The governor, lieutenant-governor, the chancellor, the chief justice of the supreme court and other judges thereof, and the mayor of the city.

That one of the assistants wait on these gentlemen and inform them that seats are provided for their accommodation, and also to signify to them that no precedence of seats is intended, and that no salutation is expected from them on their entrance into or their departure from the Senate Chamber.

That the members of both Houses assemble in their respective chambers precisely at 12 o'clock, and that the Representatives, preceded by their Speaker and attended by their Clerk and other officers, proceed to the Senate Chamber, there to be received by the Vice-President and Senators rising.

That the committees attend the President from his residence to the Senate Chamber, and that he be there received by the Vice-President, the Senators and Representatives rising, and by the Vice-President conducted to his chair.

That after the President shall be seated in his chair and the Vice-President, Senators, and Representatives shall be again seated, the Vice-President shall announce to the President that the members of both Houses will attend him to be present at his taking the oath of office required by the Constitution.

To the end that the oath of office may be administered to the President in the most public manner and that the greatest number of the people of the United States, and without distinction, may be witnesses to the solemnity, that therefore the oath be administered in the outer gallery adjoining to the Senate Chamber.

That when the President shall proceed to the gallery to take the oath he be attended by the Vice-President, and be followed by the chancellor of the State, and pass through the middle door; that the Senators pass through the door on the right, and the Representatives pass through the door on the left, and such of the persons who may have been admitted into the Senate Chamber and may be desirous to go into the gallery are then also to pass through the door on the right.

That when the President shall have taken the oath and returned into the Senate Chamber, attended by the Vice-President, and shall be seated in his chair, that Senators and Representatives also return into the Senate

Chamber, and that the Vice-President and they resume their respective seats.

That when the President retire from the Senate Chamber he be conducted by the Vice-President to the door, the members of both Houses rising, and that he be there received by the committees and attended to his residence.

That immediately as the President shall retire the Representatives do also return from the Senate Chamber to their own.

That it be intrusted to the assistants to take proper precautions for keeping the avenues to the hall open, and for that purpose they wait on his excellency the governor of this State, and in the name of the committees request his aid by an order or recommendation to the civil officers or militia of the city to attend and serve on the occasion as he shall judge most proper,

RESOLVE OF THE HOUSE OF REPRESENTATIVES UPON THE REPORT OF THE COMMITTEE RESPECTING THE INAUGURATION OF THE PRESIDENT.

IN THE HOUSE OF REPRESENTATIVES OF THE UNITED STATES
Monday, April 27, 1789.

Mr. Benson, from the committee of both Houses appointed to take order for conducting the ceremonial of the formal reception of the President of the United States, reported as followeth:

That it appears to the committee more eligible that the oath should be administered to the President in the outer gallery adjoining the Senate Chamber than in the Representatives' Chamber, and therefore submits to the respective Houses the propriety of authorizing their committees to take order as to the place where the oath shall be administered to the President, the resolutions of Saturday assigning the Representatives' Chamber as the place notwithstanding.

The said report being twice read,

Resolved, That this House doth concur in the said report and authorize the committee to take order for the change of place thereby proposed.

Extract from the Journal.

JOHN BECKLEY, *Clerk*.

FIRST INAUGURAL ADDRESS.

IN THE CITY OF NEW YORK.
APRIL 30, 1789.

Fellow-Citizens of the Senate and of the House of Representatives:

Among the vicissitudes incident to life no event could have filled me with greater anxieties than that of which the notification was transmitted by your order, and received on the 14th day of the present month. On the one hand, I was summoned by my country, whose voice I can never hear but with veneration and love, from a retreat which I had chosen with the fondest predilection, and, in my flattering hopes, with an immutable decision, as the asylum of my declining years—a retreat which was rendered every day more necessary as well as more dear to me by the addition of habit to inclination, and of frequent interruptions in my health to the gradual waste committed on it by time. On the other hand, the magnitude and difficulty of the trust to which the voice of my country called me, being sufficient to awaken in the wisest and most experienced of her citizens a distrustful scrutiny into his qualifications, could not but overwhelm with despondence one who (inheriting inferior endowments from nature and unpracticed in the duties of civil administration) ought to be peculiarly conscious of his own deficiencies. In this conflict of emotions all I dare aver is that it has been my faithful study to collect my duty from a just appreciation of every circumstance by which it might be affected. All I dare hope is that if, in executing this task, I have been too much swayed by a grateful remembrance of former instances, or by an affectionate sensibility to this transcendent proof of the confidence of my fellow-citizens, and have thence too little consulted my incapacity as well as disinclination for the weighty and untried cares before me, my error will be palliated by the motives which mislead me, and its consequences be judged by my country with some share of the partiality in which they originated.

Such being the impressions under which I have, in obedience to the public summons, repaired to the present station, it would be peculiarly

improper to omit in this first official act my fervent supplications to that Almighty Being who rules over the universe, who presides in the councils of nations, and whose providential aids can supply every human defect, that His benediction may consecrate to the liberties and happiness of the people of the United States a Government instituted by themselves for these essential purposes, and may enable every instrument employed in its administration to execute with success the functions allotted to his charge. In tendering this homage to the Great Author of every public and private good, I assure myself that it expresses your sentiments not less than my own, nor those of my fellow-citizens at large less than either. No people can be bound to acknowledge and adore the Invisible Hand which conducts the affairs of men more than those of the United States. Every step by which they have advanced to the character of an independent nation seems to have been distinguished by some token of providential agency; and in the important revolution just accomplished in the system of their united government the tranquil deliberations and voluntary consent of so many distinct communities from which the event has resulted can not be compared with the means by which most governments have been established without some return of pious gratitude, along with an humble anticipation of the future blessings which the past seem to presage. These reflections, arising out of the present crisis, have forced themselves too strongly on my mind to be suppressed. You will join with me, I trust, in thinking that there are none under the influence of which the proceedings of a new and free government can more auspiciously commence.

By the article establishing the executive department it is made the duty of the President "to recommend to your consideration such measures as he shall judge necessary and expedient." The circumstances under which I now meet you will acquit me from entering into that subject further than to refer to the great constitutional charter under which you are assembled, and which, in defining your powers, designates the objects to which your attention is to be given. It will be more consistent with those circumstances, and far more congenial with the feelings which actuate me, to substitute, in place of a recommendation of particular measures, the tribute that is due to the talents, the rectitude, and the patriotism which adorn the characters selected to devise and adopt them. In these honorable qualifications I behold the surest pledges that as on one side no local prejudices or

attachments, no separate views nor party animosities, will misdirect the comprehensive and equal eye which ought to watch over this great assemblage of communities and interests, so, on another, that the foundation of our national policy will be laid in the pure and immutable principles of private morality, and the preeminence of free government be exemplified by all the attributes which can win the affections of its citizens and command the respect of the world. I dwell on this prospect with every satisfaction which an ardent love for my country can inspire, since there is no truth more thoroughly established than that there exists in the economy and course of nature an indissoluble union between virtue and happiness; between duty and advantage; between the genuine maxims of an honest and magnanimous policy and the solid rewards of public prosperity and felicity; since we ought to be no less persuaded that the propitious smiles of Heaven can never be expected on a nation that disregards the eternal rules of order and right which Heaven itself has ordained; and since the preservation of the sacred fire of liberty and the destiny of the republican model of government are justly considered, perhaps, as *deeply*, as *finally*, staked on the experiment intrusted to the hands of the American people.

Besides the ordinary objects submitted to your care, it will remain with your judgment to decide how far an exercise of the occasional power delegated by the fifth article of the Constitution is rendered expedient at the present juncture by the nature of objections which have been urged against the system, or by the degree of inquietude which has given birth to them. Instead of undertaking particular recommendations on this subject, in which I could be guided by no lights derived from official opportunities, I shall again give way to my entire confidence in your discernment and pursuit of the public good; for I assure myself that whilst you carefully avoid every alteration which might endanger the benefits of an united and effective government, or which ought to await the future lessons of experience, a reverence for the characteristic rights of freemen and a regard for the public harmony will sufficiently influence your deliberations on the question how far the former can be impreguably fortified or the latter be safely and advantageously promoted.

To the foregoing observations I have one to add, which will be most properly addressed to the House of Representatives. It concerns myself, and will therefore be as brief as possible. When I was first honored with a call

into the service of my country, then on the eve of an arduous struggle for its liberties, the light in which I contemplated my duty required that I should renounce every pecuniary compensation. From this resolution I have in no instance departed; and being still under the impressions which produced it, I must decline as inapplicable to myself any share in the personal emoluments which may be indispensably included in a permanent provision for the executive department, and must accordingly pray that the pecuniary estimates for the station in which I am placed may during my continuance in it be limited to such actual expenditures as the public good may be thought to require.

Having thus imparted to you my sentiments as they have been awakened by the occasion which brings us together, I shall take my present leave; but not without resorting once more to the benign Parent of the Human Race in humble supplication that, since He has been pleased to favor the American people with opportunities for deliberating in perfect tranquillity, and dispositions for deciding with unparalleled unanimity on a form of government for the security of their union and the advancement of their happiness, so His divine blessing may be equally *conspicuous* in the enlarged views, the temperate consultations, and the wise measures on which the success of this Government must depend.

ADDRESS OF THE SENATE TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

SIR: We, the Senate of the United States, return you our sincere thanks for your excellent speech delivered to both Houses of Congress, congratulate you on the complete organization of the Federal Government, and felicitate ourselves and our fellow-citizens on your elevation to the office of President, an office highly important by the powers constitutionally annexed to it and extremely honorable from the manner in which the appointment is made. The unanimous suffrage of the elective body in your favor is peculiarly expressive of the gratitude, confidence, and affection of the citizens of America, and is the highest testimonial at once of

your merit and their esteem. We are sensible, sir, that nothing but the voice of your fellow-citizens could have called you from a retreat chosen with the fondest predilection, endeared by habit, and consecrated to the repose of declining years. We rejoice, and with us all America, that in obedience to the call of our common country you have returned once more to public life. In you all parties confide; in you all interests unite; and we have no doubt that your past services, great as they have been, will be equaled by your future exertions, and that your prudence and sagacity as a statesman will tend to avert the dangers to which we were exposed, to give stability to the present Government and dignity and splendor to that country which your skill and valor as a soldier so eminently contributed to raise to independence and empire.

When we contemplate the coincidence of circumstances and wonderful combination of causes which gradually prepared the people of this country for independence; when we contemplate the rise, progress, and termination of the late war, which gave them a name among the nations of the earth, we are with you unavoidably led to acknowledge and adore the Great Arbiter of the Universe, by whom empires rise and fall. A review of the many signal instances of divine interposition in favor of this country claims our most pious gratitude; and permit us, sir, to observe that among the great events which have led to the formation and establishment of a Federal Government we esteem your acceptance of the office of President as one of the most propitious and important.

In the execution of the trust reposed in us we shall endeavor to pursue that enlarged and liberal policy to which your speech so happily directs. We are conscious that the prosperity of each State is inseparably connected with the welfare of all, and that in promoting the latter we shall effectually advance the former. In full persuasion of this truth, it shall be our invariable aim to divest ourselves of local prejudices and attachments, and to view the great assemblage of communities and interests committed to our charge with an equal eye. We feel, sir, the force and acknowledge the justness of the observation that the foundation of our national policy should be laid in private morality. If individuals be not influenced by moral principles, it is in vain to look for public virtue. It is therefore the duty of legislators to enforce, both by precept and example, the utility as well as the necessity of a strict adherence to the rules of distributive justice. We beg you to be

assured that the Senate will at all times cheerfully cooperate in every measure which may strengthen the Union, conduce to the happiness or secure and perpetuate the liberties of this great confederated Republic.

We commend you, sir, to the protection of Almighty God, earnestly beseeching Him long to preserve a life so valuable and dear to the people of the United States, and that your Administration may be prosperous to the nation and glorious to yourself.

MAY 7, 1789.

REPLY OF THE PRESIDENT.

GENTLEMEN: I thank you for your address, in which the most affectionate sentiments are expressed in the most obliging terms. The coincidence of circumstances which led to this auspicious crisis, the confidence reposed in me by my fellow-citizens, and the assistance I may expect from counsels which will be dictated by an enlarged and liberal policy seem to presage a more prosperous issue to my Administration than a diffidence of my abilities had taught me to anticipate. I now feel myself inexpressibly happy in a belief that Heaven, which has done so much for our infant nation, will not withdraw its providential influence before our political felicity shall have been completed, and in a conviction that the Senate will at all times cooperate in every measure which may tend to promote the welfare of this confederated Republic. Thus supported by a firm trust in the Great Arbiter of the Universe, aided by the collected wisdom of the Union, and imploring the divine benediction on our joint exertions in the service of our country, I readily engage with you in the arduous but pleasing task of attempting to make a nation happy.

GEORGE WASHINGTON.

MAY 18, 1789.

ADDRESS OF THE HOUSE OF REPRESENTATIVES TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

SIR: The Representatives of the people of the United States present their congratulations on the event by which your fellow-citizens have attested the preeminence of your merit. You have long held the first place in their esteem. You have often received tokens of their affection. You now possess the only proof that remained of their gratitude for your services, of their reverence for your wisdom, and of their confidence in your virtues. You enjoy the highest, because the truest, honor of being the first Magistrate by the unanimous choice of the freest people on the face of the earth.

We well know the anxieties with which you must have obeyed a summons from the repose reserved for your declining years into public scenes, of which you had taken your leave forever. But the obedience was due to the occasion. It is already applauded by the universal joy which welcomes you to your station. And we can not doubt that it will be rewarded with all the satisfaction with which an ardent love for your fellow-citizens must review successful efforts to promote their happiness.

This anticipation is not justified merely by the past experience of your signal services. It is particularly suggested by the pious impressions under which you commence your Administration and the enlightened maxims by which you mean to conduct it. We feel with you the strongest obligations to adore the Invisible Hand which has led the American people through so many difficulties, to cherish a conscious responsibility for the destiny of republican liberty, and to seek the only sure means of preserving and recommending the precious deposit in a system of legislation founded on the principles of an honest policy and directed by the spirit of a diffusive patriotism.

The question arising out of the fifth article of the Constitution will receive all the attention demanded by its importance, and will, we trust, be decided under the influence of all the considerations to which you allude.

In forming the pecuniary provisions for the executive department we shall not lose sight of a wish resulting from motives which give it a peculiar claim to our regard. Your resolution, in a moment critical to the liberties of your country, to renounce all personal emolument, was among the many presages of your patriotic services which have been amply fulfilled; and your scrupulous adherence now to the law then imposed on yourself can not fail to demonstrate the purity, whilst it increases the luster, of a character which has so many titles to admiration.

Such are the sentiments which we have thought fit to address to you. They flow from our own hearts, and we verily believe that among the millions we represent there is not a virtuous citizen whose heart will disown them.

All that remains is that we join in our fervent supplications for the blessings of Heaven on our country, and that we add our own for the choicest of these blessings on the most beloved of her citizens.

MAY 5, 1789.

REPLY OF THE PRESIDENT.

GENTLEMEN: Your very affectionate address produces emotions which I know not how to express. I feel that my past endeavors in the service of my country are far overpaid by its goodness, and I fear much that my future ones may not fulfill your kind anticipation. All that I can promise is that they will be invariably directed by an honest and an ardent zeal. Of this resource my heart assures me. For all beyond I rely on the wisdom and patriotism of those with whom I am to cooperate and a continuance of the blessings of Heaven on our beloved country.

GEORGE WASHINGTON.

MAY 8, 1789.

SPECIAL MESSAGES.

NEW YORK, *May 25, 1789.*

Gentlemen of the Senate:

In pursuance of the order of the late Congress, treaties between the United States and several nations of Indians have been negotiated and signed. These treaties, with sundry papers respecting them, I now lay before you, for your consideration and advice, by the hands of General Knox, under whose official superintendence the business was transacted, and who will be ready to communicate to you any information on such points as may appear to require it,

GEORGE WASHINGTON.

NEW YORK, *June 11, 1789.*

Gentlemen of the Senate:

A convention between His Most Christian Majesty and the United States, for the purposes of determining and fixing the functions and prerogatives of their respective consuls, vice-consuls, agents, and commissaries, was signed by their respective plenipotentiaries on the 29th of July, 1784.

It appearing to the late Congress that certain alterations in that convention ought to be made, they instructed their minister at the Court of France to endeavor to obtain them.

It has accordingly been altered in several respects, and as amended was signed by the plenipotentiaries of the contracting powers on the 14th of November, 1788.

The sixteenth article provides that it shall be in force during the term of twelve years, to be counted from the day of the exchange *of ratifications, which shall be given in proper form*, and exchanged on both sides within the space of one year, or sooner if possible.

I now lay before you the original by the hands of Mr. Jay for your consideration and advice. The papers relative to this negotiation are in his custody, and he has my orders to communicate to you whatever official papers and information on the subject he may possess and you may require.

GEORGE WASHINGTON.

NEW YORK, *June 15, 1789.*

Gentlemen of the Senate:

Mr. Jefferson, the present minister of the United States at the Court of France, having applied for permission to return home for a few months, and it appearing to me proper to comply with his request, it becomes necessary that some person be appointed *to take charge* of our affairs at that Court during his absence.

For this purpose I nominate William Short, esq., and request your advice on the propriety of appointing him.

There are in the Office for Foreign Affairs papers which will acquaint you with his character, and which Mr. Jay has my directions to lay before you at such time as you may think proper to assign.

GEORGE WASHINGTON.

NEW YORK, *August 6, 1789.*

Gentlemen of the Senate:

My nomination of Benjamin Fishbourn for the place of naval officer of the port of Savannah not having met with your concurrence, I now nominate Lachlan McIntosh for that office.

Whatever may have been the reasons which induced your dissent, I am persuaded they were such as you deemed sufficient. Permit me to submit to your consideration whether on occasions where the propriety of nominations appear questionable to you it would not be expedient to communicate that circumstance to me, and thereby avail yourselves of the information which led me to make them, and which I would with pleasure lay before you. Probably my reasons for nominating Mr. Fishbourn may tend to show that such a mode of proceeding in such cases might be useful. I will therefore detail them.

First. While Colonel Fishbourn was an officer in actual service and chiefly under my own eye, his conduct appeared to me irreproachable; nor did I ever hear anything injurious to his reputation as an officer or a gentleman. At the storm of Stony Point his behavior was represented to have been active and brave, and he was charged by his general to bring the account of that success to the headquarters of the Army.

Secondly. Since his residence in Georgia he has been repeatedly elected to the assembly as a representative of the county of Chatham, in which the port of Savannah is situated, and sometimes of the counties of Glynn and Camden; he has been chosen a member of the executive council of the State and has lately been president of the same; he has been elected by the officers of the militia in the county of Chatham lieutenant-colonel of the militia in that district, and on a very recent occasion, to wit, in the month of May last, he has been appointed by the council (on the suspension of the late collector) to an office in the port of Savannah nearly similar to that for which I nominated him, which office he actually holds at this time. To these reasons for nominating Mr. Fishbourn I might add that I received private letters of recommendation and oral testimonials in his favor from some of the most respectable characters in that State; but as they were secondary considerations with me, I do not think it necessary to communicate them to you.

It appeared, therefore, to me that Mr. Fishbourn must have enjoyed the *confidence* of the militia officers in order to have been elected to a military rank; the *confidence* of the freemen to have been elected to the assembly; the *confidence* of the assembly to have been selected for the council, and the *confidence* of the council to have been appointed collector of the port of Savannah.

GEORGE WASHINGTON.

NEW YORK, *August 7, 1789.*

Gentlemen of the Senate:

The business which has hitherto been under the consideration of Congress has been of so much importance that I was unwilling to draw their attention from it to any other subject; but the disputes which exist between some of the United States and several powerful tribes of Indians within the limits of the Union, and the hostilities which have in several instances been committed on the frontiers, seem to require the immediate interposition of the General Government.

I have therefore directed the several statements and papers which have been submitted to me on this subject by General Knox to be laid before you for your information.

While the measures of Government ought to be calculated to protect its citizens from all injury and violence, a due regard should be extended to those Indian tribes whose happiness in the course of events so materially depends on the national justice and humanity of the United States.

If it should be the judgment of Congress that it would be most expedient to terminate all differences in the Southern district, and to lay the foundation for future confidence by an amicable treaty with the Indian tribes in that quarter, I think proper to suggest the consideration of the expediency of instituting a temporary commission for that purpose, to consist of three persons, whose authority should expire with the occasion.

How far such a measure, unassisted by posts, would be competent to the establishment and preservation of peace and tranquillity on the frontiers is also a matter which merits your serious consideration.

Along with this object I am induced to suggest another, with the national importance and necessity of which I am deeply impressed; I mean some uniform and effective system for the militia of the United States. It is unnecessary to offer arguments in recommendation of a measure on which the honor, safety, and well-being of our country so evidently and so essentially depend; but it may not be amiss to observe that I am particularly anxious it should receive as early attention as circumstances will admit, because it is now in our power to avail ourselves of the military knowledge disseminated throughout the several States by means of the many well-instructed officers and soldiers of the late Army, a resource which is daily diminishing by death and other causes. To suffer this peculiar advantage to pass away unimproved would be to neglect an opportunity which will never again occur, unless, unfortunately, we should again be involved in a long and arduous war.

GEORGE WASHINGTON.

NEW YORK, *August 10, 1789.*

Gentlemen of the Senate:

I have directed a statement of the troops in the service of the United States to be laid before you for your information.

These troops were raised by virtue of the resolves of Congress of the 20th October, 1786, and the 3d of October, 1787, in order to protect the frontiers from the depredations of the hostile Indians, to prevent all intrusions on the public lands, and to facilitate the surveying and selling of the same for the purpose of reducing the public debt.

As these important objects continue to require the aid of the troops, it is necessary that the establishment thereof should in all respects be conformed

by law to the Constitution of the United States.

GEORGE WASHINGTON.

NEW YORK, *August 20, 1789.*

Gentlemen of the Senate

In consequence of an act providing for the expenses which may attend negotiations or treaties with the Indian tribes and the appointment of commissioners for managing the same, I nominate Benjamin Lincoln as one of three commissioners whom I shall propose to be employed to negotiate a treaty with the Southern Indians. My reason for nominating him at this early moment is that it will not be possible for the public to avail itself of his services on this occasion unless his appointment can be forwarded to him by the mail which will leave this place to-morrow morning.

GEORGE WASHINGTON.

NEW YORK, *August 21, 1789.*

Gentlemen of the Senate:

The President of the United States will meet the Senate in the Senate Chamber at half past 11 o'clock to-morrow, to advise with them on the terms of the treaty to be negotiated with the Southern Indians.

GEORGE WASHINGTON.

SEPTEMBER 16, 1789.

Gentlemen of the Senate:

The governor of the Western territory has made a statement to me of the reciprocal hostilities of the Wabash Indians and the people inhabiting the frontiers bordering on the river Ohio, which I herewith lay before Congress.

The United States in Congress assembled, by their acts of the 21st day of July, 1787, and of the 12th August, 1788, made a provisional arrangement for calling forth the militia of Virginia and Pennsylvania in the proportions therein specified.

As the circumstances which occasioned the said arrangement continue nearly the same, I think proper to suggest to your consideration the expediency of making some temporary provision for calling forth the militia of the United States for the purposes stated in the Constitution, which would embrace the cases apprehended by the governor of the Western territory.

GEORGE WASHINGTON.

SEPTEMBER 17, 1789.

Gentlemen of the Senate:

It doubtless is important that all treaties and compacts formed by the United States with other nations, whether civilized or not, should be made with caution and executed with fidelity.

It is said to be the general understanding and practice of nations, as a check on the mistakes and indiscretions of ministers or commissioners, not to consider any treaty negotiated and signed by such officers as final and conclusive until ratified by the sovereign or government from whom they derive their powers. This practice has been adopted by the United States respecting their treaties with European nations, and I am inclined to think it would be advisable to observe it in the conduct of our treaties with the Indians; for though such treaties, being on their part made by their chiefs or rulers, need not be ratified by them, yet, being formed on our part by the

agency of subordinate officers, it seems to be both prudent and reasonable that their acts should not be binding on the nation until approved and ratified by the Government. It strikes me that this point should be well considered and settled, so that our national proceedings in this respect may become uniform and be directed by fixed and stable principles.

The treaties with certain Indian nations, which were laid before you with my message of the 25th May last, suggested two questions to my mind, viz: First, whether those treaties were to be considered as perfected and consequently as obligatory without being ratified. If not, then secondly, whether both or either, and which, of them ought to be ratified. On these questions I request your opinion and advice.

You have, indeed, advised me "*to execute and enjoin an observance of*" the treaty with the Wyandottes, etc. You, gentlemen, doubtless intended to be clear and explicit, and yet, without further explanation, I fear I may misunderstand your meaning, for if by my *executing* that treaty you mean that I should make it (in a more particular and immediate manner than it now is) the act of Government, then it follows that I am to ratify it. If you mean by my *executing it* that I am to see that it be carried into effect and operation, then I am led to conclude either that you consider it as being perfect and obligatory in its present state, and therefore to be executed and observed, or that you consider it as to derive its completion and obligation from the silent approbation and ratification which my proclamation may be construed to imply. Although I am inclined to think that the latter is your intention, yet it certainly is best that all doubts respecting it be removed.

Permit me to observe that it will be proper for me to be informed of your sentiments relative to the treaty with the Six Nations previous to the departure of the governor of the Western territory, and therefore I recommend it to your early consideration.

GEORGE WASHINGTON.

UNITED STATES, *September 29, 1789.*

Gentlemen of the Senate:

His Most Christian Majesty, by a letter dated the 7th of June last, addressed to the President and members of the General Congress of the United States of North America, announces the much lamented death of his son, the Dauphin. The generous conduct of the French monarch and nation toward this country renders every event that may affect his or their prosperity interesting to us, and I shall take care to assure him of the sensibility with which the United States participate in the affliction which a loss so much to be regretted must have occasioned both to him and to them.

GEORGE WASHINGTON.

UNITED STATES, *September 29, 1789.*

Gentlemen of the Senate:

Agreeably to the act of Congress for adapting the establishment of the troops in public service to the Constitution of the United States, I nominate the persons specified in the inclosed list to be the commissioned officers thereof.

This nomination differs from the existing arrangement only in the following cases, to wit: Lieutenant Erkuries Beatty, promoted to a vacant captaincy in the infantry; Ensign Edward Spear, promoted to a vacant lieutenancy of artillery; Jacob Melcher, who has been serving as a volunteer, to be an ensign, vice Benjamin Lawrence, who was appointed nearly three years past and has never been mustered or joined the troops.

It is to be observed that the order in which the captains and subalterns are named is not to affect their relative rank, which has been hitherto but imperfectly settled owing to the perplexity of promotions in the State quotas conformably to the late Confederation.

GEORGE WASHINGTON.

UNITED STATES, *September 29, 1789.*

Gentlemen of the Senate:

Having been yesterday informed by a joint committee of both Houses of Congress that they had agreed to a recess to commence this day and to continue until the first Monday of January next, I take the earliest opportunity of acquainting you that, considering how long and laborious this session has been and the reasons which I presume have produced this resolution, it does not appear to me expedient to recommend any measures to their consideration at present, or now to call your attention, gentlemen, to any of those matters in my department which require your advice and consent and yet remain to be dispatched.

GEORGE WASHINGTON.

UNITED STATES, *September 29, 1789.*

Gentlemen of the House of Representatives:

Having been yesterday informed by a joint committee of both Houses of Congress that they had agreed to a recess to commence this day and to continue until the first Monday of January next, I take the earliest opportunity of acquainting you that, considering how long and laborious this session has been and the reasons which I presume have produced this resolution, it does not appear to me expedient to recommend any measures to their consideration at present.

GEORGE WASHINGTON.

PROCLAMATION.

A NATIONAL THANKSGIVING.

[From Sparks's Washington, Vol. XII, p. 119.]

Whereas it is the duty of all nations to acknowledge the providence of Almighty God, to obey His will, to be grateful for His benefits, and humbly to implore His protection and favor; and

Whereas both Houses of Congress have, by their joint committee, requested me "to recommend to the people of the United States a day of public thanksgiving and prayer, to be observed by acknowledging with grateful hearts the many and signal favors of Almighty God, especially by affording them an opportunity peaceably to establish a form of government for their safety and happiness:"

Now, therefore, I do recommend and assign Thursday, the 26th day of November next, to be devoted by the people of these States to the service of that great and glorious Being who is the beneficent author of all the good that was, that is, or that will be; that we may then all unite in rendering unto Him our sincere and humble thanks for His kind care and protection of the people of this country previous to their becoming a nation; for the signal and manifold mercies and the favorable interpositions of His providence in the course and conclusion of the late war; for the great degree of tranquillity, union, and plenty which we have since enjoyed; for the peaceable and rational manner in which we have been enabled to establish constitutions of government for our safety and happiness, and particularly the national one now lately instituted; for the civil and religious liberty with which we are blessed, and the means we have of acquiring and diffusing useful knowledge; and, in general, for all the great and various favors which He has been pleased to confer upon us.

And also that we may then unite in most humbly offering our prayers and supplications to the great Lord and Ruler of Nations, and beseech Him to pardon our national and other transgressions; to enable us all, whether in public or private stations, to perform our several and relative duties properly and punctually; to render our National Government a blessing to all the people by constantly being a Government of wise, just, and constitutional laws, discreetly and faithfully executed and obeyed; to protect and guide all sovereigns and nations (especially such as have shown kindness to us), and to bless them with good governments, peace, and

concord; to promote the knowledge and practice of true religion and virtue, and the increase of science among them and us; and, generally, to grant unto all mankind such a degree of temporal prosperity as He alone knows to be best.

Given under my hand, at the city of New York, the 3d day of October, A.D. 1789.

GEORGE WASHINGTON.

FIRST ANNUAL ADDRESS.

UNITED STATES, *January 8, 1790.*

Fellow-Citizens of the Senate and House of Representatives:

I embrace with great satisfaction the opportunity which now presents itself of congratulating you on the present favorable prospects of our public affairs. The recent accession of the important State of North Carolina to the Constitution of the United States (of which official information has been received), the rising credit and respectability of our country, the general and increasing good will toward the Government of the Union, and the concord, peace, and plenty with which we are blessed are circumstances auspicious in an eminent degree to our national prosperity.

In resuming your consultations for the general good you can not but derive encouragement from the reflection that the measures of the last session have been as satisfactory to your constituents as the novelty and difficulty of the work allowed you to hope. Still further to realize their expectations and to secure the blessings which a gracious Providence has placed within our reach will in the course of the present important session call for the cool and, deliberate exertion of your patriotism, firmness, and wisdom.

Among the many interesting objects which will engage your attention that of providing for the common defense will merit particular regard. To be prepared for war is one of the most effectual means of preserving peace.

A free people ought not only to be armed, but disciplined; to which end a uniform and well-digested plan is requisite; and their safety and interest require that they should promote such manufactories as tend to render them independent of others for essential, particularly military, supplies.

The proper establishment of the troops which may be deemed indispensable will be entitled to mature consideration. In the arrangements which may be made respecting it it will be of importance to conciliate the

comfortable support of the officers and soldiers with a due regard to economy.

There was reason to hope that the pacific measures adopted with regard to certain hostile tribes of Indians would have relieved the inhabitants of our Southern and Western frontiers from their depredations, but you will perceive from the information contained in the papers which I shall direct to be laid before you (comprehending a communication from the Commonwealth of Virginia) that we ought to be prepared to afford protection to those parts of the Union, and, if necessary, to punish aggressors.

The interests of the United States require that our intercourse with other nations should be facilitated by such provisions as will enable me to fulfill my duty in that respect in the manner which circumstances may render most conducive to the public good, and to this end that the compensations to be made to the persons who may be employed should, according to the nature of their appointments, be defined by law, and a competent fund designated for defraying the expenses incident to the conduct of our foreign affairs.

Various considerations also render it expedient that the terms on which foreigners may be admitted to the rights of citizens should be speedily ascertained by a uniform rule of naturalization.

Uniformity in the currency, weights, and measures of the United States is an object of great importance, and will, I am persuaded, be duly attended to.

The advancement of agriculture, commerce, and manufactures by all proper means will not, I trust, need recommendation; but I can not forbear intimating to you the expediency of giving effectual encouragement as well to the introduction of new and useful inventions from abroad as to the exertions of skill and genius in producing them at home, and of facilitating the intercourse between the distant parts of our country by a due attention to the post-office and post-roads.

Nor am I less persuaded that you will agree with me in opinion that there is nothing which can better deserve your patronage than the promotion of science and literature. Knowledge is in every country the surest basis of public happiness. In one in which the measures of government receive their

impressions so immediately from the sense of the community as in ours it is proportionably essential. To the security of a free constitution it contributes in various ways—by convincing those who are intrusted with the public administration that every valuable end of government is best answered by the enlightened confidence of the people, and by teaching the people themselves to know and to value their own rights; to discern and provide against invasions of them; to distinguish between oppression and the necessary exercise of lawful authority; between burthens proceeding from a disregard to their convenience and those resulting from the inevitable exigencies of society; to discriminate the spirit of liberty from that of licentiousness—cherishing the first, avoiding the last—and uniting a speedy but temperate vigilance against encroachments, with an inviolable respect to the laws.

Whether this desirable object will be best promoted by affording aids to seminaries of learning already established, by the institution of a national university, or by any other expedients will be well worthy of a place in the deliberations of the Legislature.

Gentlemen of the House of Representatives:

I saw with peculiar pleasure at the close of the last session the resolution entered into by you expressive of your opinion that an adequate provision for the support of the public credit is a matter of high importance to the national honor and prosperity. In this sentiment I entirely concur; and to a perfect confidence in your best endeavors to devise such a provision as will be truly consistent with the end I add an equal reliance on the cheerful cooperation of the other branch of the Legislature. It would be superfluous to specify inducements to a measure in which the character and permanent interests of the United States are so obviously and so deeply concerned, and which has received so explicit a sanction from your declaration.

Gentlemen of the Senate and House of Representatives:

I have directed the proper officers to lay before you, respectively, such papers and estimates as regard the affairs particularly recommended to your consideration, and necessary to convey to you that information of the state of the Union which it is my duty to afford.

The welfare of our country is the great object to which our cares and efforts ought to be directed, and I shall derive great satisfaction from a cooperation with you in the pleasing though arduous task of insuring to our fellow-citizens the blessings which they have a right to expect from a free, efficient, and equal government.

GEORGE WASHINGTON.

ADDRESS OF THE SENATE TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

The PRESIDENT OF THE UNITED STATES.

SIR: We, the Senate of the United States, return you our thanks for your speech delivered to both Houses of Congress. The accession of the State of North Carolina to the Constitution of the United States gives us much pleasure, and we offer you our congratulations on that event, which at the same time adds strength to our Union and affords a proof that the more the Constitution has been considered the more the goodness of it has appeared. The information which we have received, that the measures of the last session have been as satisfactory to our constituents as we had reason to expect from the difficulty of the work in which we were engaged, will afford us much consolation and encouragement in resuming our deliberations in the present session for the public good, and every exertion on our part shall be made to realize and secure to our country those blessings which a gracious Providence has placed within her reach. We are persuaded that one of the most effectual means of preserving peace is to be prepared for war, and our attention shall be directed to the objects of common defense and to the adoption of such plans as shall appear the most likely to prevent our dependence on other countries for essential supplies. In the arrangements to be made respecting the establishment of such troops as may be deemed indispensable we shall with pleasure provide for the comfortable support of the officers and soldiers, with a due regard to economy. We regret that the pacific measures adopted by Government with

regard to certain hostile tribes of Indians have not been attended with the beneficial effects toward the inhabitants of our Southern and Western frontiers which we had reason to hope; and we shall cheerfully cooperate in providing the most effectual means for their protection, and, if necessary, for the punishment of aggressors. The uniformity of the currency and of weights and measures, the introduction of new and useful inventions from abroad and the exertions of skill and genius in producing them at home, the facilitating the communication between the distant parts of our country by means of the post-office and post-roads, a provision for the support of the Department of Foreign Affairs, and a uniform rule of naturalization, by which foreigners may be admitted to the rights of citizens, are objects which shall receive such early attention as their respective importance requires. Literature and science are essential to the preservation of a free constitution; the measures of Government should therefore be calculated to strengthen the confidence that is due to that important truth. Agriculture, commerce, and manufactures, forming the basis of the wealth and strength of our confederated Republic, must be the frequent subject of our deliberation, and shall be advanced by all proper means in our power. Public credit being an object of great importance, we shall cheerfully cooperate in all proper measures for its support. Proper attention shall be given to such papers and estimates as you may be pleased to lay before us. Our cares and efforts shall be directed to the welfare of our country, and we have the most perfect dependence upon your cooperating with us on all occasions in such measures as will insure to our fellow-citizens the blessings which they have a right to expect from a free, efficient, and equal government.

JANUARY 11, 1790.

REPLY OF THE PRESIDENT.

GENTLEMEN: I thank you for your address, and for the assurances which it contains of attention to the several matters suggested by me to your consideration.

Relying on the continuance of your exertions for the public good, I anticipate for our country the salutary effects of upright and prudent counsels.

GEORGE WASHINGTON.

JANUARY 14, 1790.

**ADDRESS OF THE HOUSE OF REPRESENTATIVES TO
GEORGE WASHINGTON, PRESIDENT OF THE UNITED
STATES.**

SIR: The Representatives of the people of the United States have taken into consideration your speech to both Houses of Congress at the opening of the present session.

We reciprocate your congratulations on the accession of the State of North Carolina, an event which, while it is a testimony of the increasing good will toward the Government of the Union, can not fail to give additional dignity and strength to the American Republic, already rising in the estimation of the world in national character and respectability.

The information that our measures of the last session have not proved dissatisfactory to our constituents affords us much encouragement at this juncture, when we are resuming the arduous task of legislating for so extensive an empire.

Nothing can be more gratifying to the Representatives of a free people than the reflection that their labors are rewarded by the approbation of their fellow-citizens. Under this impression we shall make every exertion to realize their expectations, and to secure to them those blessings which Providence has placed within their reach. Still prompted by the same desire to promote their interests which then actuated us, we shall in the present session diligently and anxiously pursue those measures which shall appear to us conducive to that end.

We concur with you in the sentiment that agriculture, commerce, and manufactures are entitled to legislative protection, and that the promotion of science and literature will contribute to the security of a free Government; in the progress of our deliberations we shall not lose sight of objects so worthy of our regard.

The various and weighty matters which you have judged necessary to recommend to our attention appear to us essential to the tranquillity and welfare of the Union, and claim our early and most serious consideration. We shall proceed without delay to bestow on them that calm discussion which their importance requires.

We regret that the pacific arrangements pursued with regard to certain hostile tribes of Indians have not been attended with that success which we had reason to expect from them. We shall not hesitate to concur in such further measures as may best obviate any ill effects which might be apprehended from the failure of those negotiations.

Your approbation of the vote of this House at the last session respecting the provision for the public creditors is very acceptable to us. The proper mode of carrying that resolution into effect, being a subject in which the future character and happiness of these States are deeply involved, will be among the first to deserve our attention.

The prosperity of the United States is the primary object of all our deliberations, and we cherish the reflection that every measure which we may adopt for its advancement will not only receive your cheerful concurrence, but will at the same time derive from your cooperation additional efficacy, in insuring to our fellow-citizens the blessings of a free, efficient, and equal government.

JANUARY 12, 1790.

REPLY OF THE PRESIDENT.

GENTLEMEN: I receive with pleasure the assurances you give me that you will diligently and anxiously pursue such measures as shall appear to you conducive to the interest of your constituents, and that an early and serious consideration will be given to the various and weighty matters recommended by me to your attention.

I have full confidence that your deliberations will continue to be directed by an enlightened and virtuous zeal for the happiness of our country.

GEORGE WASHINGTON.

JANUARY 14, 1790.

SPECIAL MESSAGES.

UNITED STATES, *January 11, 1790.*

Gentlemen of the Senate:

Having advised with you upon the terms of a treaty to be offered to the Creek Nation of Indians, I think it proper you should be informed of the result of that business previous to its coming before you in your legislative capacity. I have therefore directed the Secretary for the Department of War to lay before you my instructions to the commissioners and their report in consequence thereof.

The apparently critical state of the Southern frontier will render it expedient for me to communicate to both Houses of Congress, with other papers, the whole of the transactions relative to the Creeks, in order that they may be enabled to form a judgment of the measures which the case may require,

GEORGE WASHINGTON.

UNITED STATES, *January 11, 1790.*

Gentlemen of the House of Representatives:

I have directed Mr. Lear, my private secretary, to lay before you a copy of the adoption and ratification of the Constitution of the United States by the State of North Carolina, together with a copy of a letter from His Excellency Samuel Johnston, president of the convention of said State, to the President of the United States.

The originals of the papers which are herewith transmitted to you will be lodged in the office of the Secretary of State.

GEORGE WASHINGTON.

UNITED STATES, *January 12, 1790.*

Gentlemen of the Senate and House of Representatives:

I lay before you a statement of the Southwestern frontiers and of the Indian Department, which have been submitted to me by the Secretary for the Department of War.

I conceive that an unreserved but confidential communication of all the papers relative to the recent negotiations with some of the Southern tribes of Indians is indispensably requisite for the information of Congress. I am persuaded that they will effectually prevent either transcripts or publications of all such circumstances as might be injurious to the public interests,

GEORGE WASHINGTON.

UNITED STATES, *January 21, 1790.*

Gentlemen of the Senate and House of Representatives:

The Secretary for the Department of War has submitted to me certain principles to serve as a plan for the general arrangement of the militia of the United States.

Conceiving the subject to be of the highest importance to the welfare of our country and liable to be placed in various points of view, I have directed him to lay the plan before Congress for their information, in order that they may make such use thereof as they may judge proper.

GEORGE WASHINGTON.

UNITED STATES, *January 25, 1790.*

Gentlemen of the Senate and House of Representatives:

I have received from His Excellency John E. Howard, governor of the State of Maryland, an act of the legislature of Maryland to ratify certain articles in addition to and amendment of the Constitution of the United States of America, proposed by Congress to the legislatures of the several States, and have directed my secretary to lay a copy of the same before you, together with the copy of a letter, accompanying the above act, from his excellency the governor of Maryland to the President of the United States.

The originals will be deposited in the office of the Secretary of State.

GEORGE WASHINGTON.

UNITED STATES, *January 28, 1790.*

Gentlemen of the Senate and House of Representatives:

I have directed my secretary to lay before you the copy of an act of the legislature of Rhode Island and Providence Plantations entitled "An act for calling a convention to take into consideration the Constitution proposed for the United States, passed on the 17th day of September, A.D. 1787, by the General Convention held at Philadelphia," together with the copy of a letter, accompanying said act, from His Excellency John Collins, governor of the State of Rhode Island and Providence Plantations, to the President of the United States.

The originals of the foregoing act and letter will be deposited in the office of the Secretary of State.

GEORGE WASHINGTON.

UNITED STATES, *February 1, 1790.*

Gentlemen of the Senate and House of Representatives:

I have received from His Excellency Alexander Martin, governor of the State of North Carolina, an act of the general assembly of that State entitled "An act for the purpose of ceding to the United States of America certain western lands therein described," and have directed my secretary to lay a copy of the same before you, together with a copy of a letter, accompanying said act, from His Excellency Governor Martin to the President of the United States.

The originals of the foregoing act and letter will be deposited in the office of the Secretary of State.

GEORGE WASHINGTON.

UNITED STATES, *February 9, 1790.*

Gentlemen of the Senate

You will perceive from the papers herewith delivered, and which are enumerated in the annexed list, that a difference subsists between Great Britain and the United States relative to the boundary line between our eastern and their territories. A plan for deciding this difference was laid before the late Congress, and whether that or some other plan of a like kind would not now be eligible is submitted to your consideration.

In my opinion, it is desirable that all questions between this and other nations be speedily and amicably settled, and in this instance I think it advisable to postpone any negotiations on the subject until I shall be informed of the result of your deliberations and receive your advice as to the propositions most proper to be offered on the part of the United States.

As I am taking measures for learning the intentions of Great Britain respecting the further detention of our posts, etc., I am the more solicitous that the business now submitted to you may be prepared for negotiation as soon as the other important affairs which engage your attention will permit.

GEORGE WASHINGTON.

UNITED STATES, *February 15, 1790.*

Gentlemen of the Senate and House of Representatives:

I have directed my secretary to lay before you the copy of a vote of the legislature of the State of New Hampshire, to accept the articles proposed in addition to and amendment of the Constitution of the United States of America, except the second article. At the same time will be delivered to you the copy of a letter from his excellency the president of the State of New Hampshire to the President of the United States.

The originals of the above-mentioned vote and letter will be lodged in the office of the Secretary of State.

GEORGE WASHINGTON.

UNITED STATES, *February 18, 1790.*

Gentlemen of the Senate:

By the mail of last evening I received a letter from His Excellency John Hancock, governor of the Commonwealth of Massachusetts, inclosing a resolve of the senate and house of representatives of that Commonwealth and sundry documents relative to the eastern boundary of the United States.

I have directed a copy of the letter and resolve to be laid before you. The documents which accompanied them being but copies of some of the papers

which were delivered to you with my communication of the 9th of this month, I have thought it unnecessary to lay them before you at this time. They will be deposited in the office of the Secretary of State, together with the originals of the above-mentioned letters and resolve.

GEORGE WASHINGTON.

UNITED STATES, *March 8, 1790.*

Gentlemen of the Senate and House of Representatives:

I have received from His Excellency Joshua Clayton, president of the State of Delaware, the articles proposed by Congress to the legislatures of the several States as amendments to the Constitution of the United States, which articles were transmitted to him for the consideration of the legislature of Delaware, and are now returned with the following resolutions annexed to them, viz:

The general assembly of Delaware having taken into their consideration the above amendments, proposed by Congress to the respective legislatures of the several States,

Resolved, That the first article be postponed;

Resolved, That the general assembly do agree to the second, third, fourth, fifth, sixth, seventh, eighth, ninth, tenth, eleventh, and twelfth articles, and we do hereby assent to, ratify, and confirm the same as part of the Constitution of the United States.

In testimony whereof we have caused the great seal of the State to be hereunto affixed this 28th day of January, A.D. 1790, and in the fourteenth year of the independence of the Delaware State.

Signed by order of council.

GEORGE MITCHELL, *Speaker.*

Signed by order of the house of assembly.

JEHU DAVIS, *Speaker.*

I have directed a copy of the letter which accompanied the said articles, from His Excellency Joshua Clayton to the President of the United States,

to be laid before you.

The before-mentioned articles and the original of the letter will be lodged in the office of the Secretary of State.

GEORGE WASHINGTON.

UNITED STATES, *March 16, 1790.*

Gentlemen of the Senate and House of Representatives:

I have directed my secretary to lay before you the copy of an act and the form of ratification of certain articles of amendment to the Constitution of the United States by the legislature of the State of Pennsylvania, together with the copy of a letter which accompanied the said act, from the speaker of the house of assembly of Pennsylvania to the President of the United States.

The originals of the above will be lodged in the office of the Secretary of State.

GEORGE WASHINGTON.

UNITED STATES, *April 1, 1790.*

Gentlemen of the Senate and House of Representatives:

I have directed my private secretary to lay before you a copy of the adoption by the legislature of South Carolina of the articles proposed by Congress to the legislatures of the several States as amendments to the Constitution of the United States, together with the copy of a letter from the governor of the State of South Carolina to the President of the United States, which have lately come to my hands.

The originals of the foregoing will be lodged in the office of the Secretary of State.

GEORGE WASHINGTON.

UNITED STATES, *April 5, 1790.*

Gentlemen of the Senate and House of Representatives:

I have directed my private secretary to lay before you copies of three acts of the legislature of the State of New York, which have been transmitted to me by the governor thereof, viz:

"An act declaring it to be the duty of the sheriffs of the several counties within this State to receive and safe keep such prisoners as shall be committed under the authority of the United States."

"An act for vesting in the United States of America the light-house and the lands thereunto belonging at Sandy Hook."

"An act ratifying certain articles in addition to and amendment of the Constitution of the United States of America, proposed by Congress."

A copy of a letter accompanying said acts, from the governor of the State of New York to the President of the United States, will at the same time be laid before you, and the originals be deposited in the office of the Secretary of State.

GEORGE WASHINGTON.

UNITED STATES, *May 31, 1790.*

Gentlemen of the Senate:

Mr. de Poiery served in the American Army for several of the last years of the late war as secretary to Major-General the Marquis de Lafayette, and might probably at that time have obtained the commission of captain from Congress upon application to that body. At present he is an officer in the French national guards, and solicits a brevet commission from the United States of America. I am authorized to add, that while the compliance will involve no expense on our part, it will be particularly grateful to that friend of America, the Marquis de Lafayette. I therefore nominate M. de Poiery to be a captain by brevet.

GEORGE WASHINGTON.

UNITED STATES, *June 1, 1790.*

Gentlemen of the Senate and House of Representatives:

Having received official information of the accession of the State of Rhode Island and Providence Plantations to the Constitution of the United States, I take the earliest opportunity of communicating the same to you, with my congratulations on this happy event, which unites under the General Government all the States which were originally confederated, and have directed my secretary to lay before you a copy of the letter from the president of the convention of the State of Rhode Island to the President of the United States.

GEORGE WASHINGTON.

UNITED STATES, *June 11, 1790.*

Gentlemen of the Senate and House of Representatives:

I have directed my secretary to lay before you a copy of the ratification of the amendments to the Constitution of the United States by the State of

North Carolina, together with an extract from a letter, accompanying said ratification, from the governor of the State of North Carolina to the President of the United States.

GEORGE WASHINGTON.

UNITED STATES, *June 16, 1790.*

Gentlemen of the Senate and House of Representatives:

The ratification of the Constitution of the United States of America by the State of Rhode Island and Providence Plantations was received by me last night, together with a letter to the President of the United States from the president of the convention. I have directed my secretary to lay before you a copy of each.

GEORGE WASHINGTON.

UNITED STATES, *June 30, 1790.*

Gentlemen of the Senate and House of Representatives:

An act of the legislature of the State of Rhode Island and Providence Plantations, for ratifying certain articles as amendments to the Constitution of the United States, was yesterday put into my hands, and I have directed my secretary to lay a copy of the same before you.

GO. WASHINGTON.

UNITED STATES, *August 4, 1790.*

Gentlemen of the Senate;

In consequence of the general principles agreed to by the Senate in August, 1789, the adjustment of the terms of a treaty is far advanced between the United States and the chiefs of the Creek Indians, now in this city, in behalf of themselves and the whole Creek Nation.

In preparing the articles of this treaty the present arrangements of the trade with the Creeks have caused much embarrassment. It seems to be well ascertained that the said trade is almost exclusively in the hands of a company of British merchants, who by agreement make their importations of goods from England into the Spanish ports.

As the trade of the Indians is a main mean of their political management, it is therefore obvious that the United States can not possess any security for the performance of treaties with the Creeks while their trade is liable to be interrupted or withheld at the caprice of two foreign powers.

Hence it becomes an object of real importance to form new channels for the commerce of the Creeks through the United States. But this operation will require time, as the present arrangements can not be suddenly broken without the greatest violation of faith and morals.

It therefore appears to be important to form a secret article of a treaty similar to the one which accompanies this message.

If the Senate should require any further explanation, the Secretary of War will attend them for that purpose.

GEORGE WASHINGTON.

The President of the United States states the following question for the consideration and advice of the Senate: If it should be found essential to a treaty for the firm establishment of peace with the Creek Nation of Indians that an article to the following effect should be inserted therein, will such an article be proper? viz:

SECRET ARTICLE.

The commerce necessary for the Creek Nation shall be carried on through the ports and by the citizens of the United States if substantial and effectual arrangements shall be made for that purpose by the United States on or before the 1st day of August, 1792. In the meantime the said commerce may be carried on through its present channels and according to its present regulations.

And whereas the trade of the said Creek Nation is now carried on wholly or principally through the territories of Spain, and obstructions thereto may happen by war or prohibitions of the Spanish Government, it is therefore agreed between the said parties that in the event of any such obstructions happening it shall be lawful for such persons as —— —— —— —— shall designate to introduce into and transport through the territories of the United States to the country of the said Creek Nation any quantity of goods, wares, and merchandise not exceeding in value in any one year \$60,000, and that free from any duties or impositions whatsoever, but subject to such regulations for guarding against abuse as the United States shall judge necessary, which privilege shall continue as long as such obstruction shall continue.

GEORGE WASHINGTON.

UNITED STATES, *August 6, 1790.*

Gentlemen of the Senate:

Considering the circumstances which prevented the late commissioners from concluding a peace with the Creek Nation of Indians, it appeared to me most prudent that all subsequent measures for disposing them to a treaty should in the first instance be informal.

I informed you on the 4th instant that the adjustment of the terms of a treaty with their chiefs, now here, was far advanced. Such further progress has since been made that I think measures may at present be taken for conducting and concluding that business in form. It therefore becomes necessary that a proper person be appointed and authorized to treat with these chiefs and to conclude a treaty with them. For this purpose I nominate to you Henry Knox.

GO. WASHINGTON.

UNITED STATES, *August 6, 1790.*

Gentlemen of the Senate and House of Representatives:

I have directed my secretary to lay before you a copy of an exemplified copy of a law to ratify on the part of the State of New Jersey certain amendments to the Constitution of the United States, together with a copy of a letter, which accompanied said ratification, from Hon. Elisha Lawrence, esq., vice-president of the State of New Jersey, to the President of the United States.

GO. WASHINGTON.

UNITED STATES, *August 7, 1790.*

Gentlemen of the Senate:

I lay before you a treaty between the United States and the chiefs of the Creek Nation, now in this city, in behalf of themselves and the whole Creek Nation, subject to the ratification of the President of the United States with the advice and consent of the Senate.

While I flatter myself that this treaty will be productive of present peace and prosperity to our Southern frontier, it is to be expected that it will also

in its consequences be the means of firmly attaching the Creeks and the neighboring tribes to the interests of the United States.

At the same time it is to be hoped that it will afford solid grounds of satisfaction to the State of Georgia, as it contains a regular, full, and definitive relinquishment on the part of the Creek Nation of the Oconee land in the utmost extent in which it has been claimed by that State, and thus extinguishes the principal cause of those hostilities from which it has more than once experienced such severe calamities.

But although the most valuable of the disputed land is included, yet there is a certain claim of Georgia, arising out of the treaty made by that State at Galphinston in November, 1785, of land to the eastward of a new temporary line from the forks of the Oconee and Oakmulgee in a southwest direction to the St. Marys River, which tract of land the Creeks in this city absolutely refuse to yield.

This land is reported to be generally barren, sunken, and unfit for cultivation, except in some instances on the margin of the rivers, on which by improvement rice might be cultivated, its chief value depending on the timber fit for the building of ships, with which it is represented as abounding.

While it is thus circumstanced on the one hand, it is stated by the Creeks on the other to be of the highest importance to them as constituting some of their most valuable winter hunting ground.

I have directed the commissioner to whom the charge of adjusting this treaty has been committed to lay before you such papers and documents and to communicate to you such information relatively to it as you may require.

GEORGE WASHINGTON.

UNITED STATES, *August 11, 1790.*

Gentlemen of the Senate:

Although the treaty with the Creeks may be regarded as the main foundation of the future peace and prosperity of the Southwestern frontier of the United States, yet in order fully to effect so desirable an object the treaties which have been entered into with the other tribes in that quarter must be faithfully performed on our parts.

During the last year I laid before the Senate a particular statement of the case of the Cherokees. By a reference to that paper it will appear that the United States formed a treaty with the Cherokees in November, 1785; that the said Cherokees thereby placed themselves under the protection of the United States and had a boundary assigned them; that the white people settled on the frontiers had openly violated the said boundary by intruding on the Indian lands; that the United States in Congress assembled did, on the 1st day of September, 1788, issue their proclamation forbidding all such unwarrantable intrusions, and enjoined all those who had settled upon the hunting grounds of the Cherokees to depart with their families and effects without loss of time, as they would answer their disobedience to the injunctions and prohibitions expressed at their peril.

But information has been received that notwithstanding the said treaty and proclamation upward of 500 families have settled on the Cherokee lands exclusively of those settled between the fork of French Broad and Holstein rivers, mentioned in the said treaty.

As the obstructions to a proper conduct on this matter have been removed since it was mentioned to the Senate on the 22d of August, 1789, by the accession of North Carolina to the present Union and the cessions of the land in question, I shall conceive myself bound to exert the powers intrusted to me by the Constitution in order to carry into faithful execution the treaty of Hopewell, unless it shall be thought proper to attempt to arrange a new boundary with the Cherokees, embracing the settlements, and compensating the Cherokees for the cessions they shall make on the occasion. On this point, therefore, I state the following questions and request the advice of the Senate thereon:

First. Is it the judgment of the Senate that overtures shall be made to the Cherokees to arrange a new boundary so as to embrace the settlements made by the white people since the treaty of Hopewell, in November, 1785?

Second. If so, shall compensation to the amount of —— dollars annually, or of —— dollars in gross, be made to the Cherokees for the land they shall relinquish, holding the occupiers of the land accountable to the United States for its value?

Third. Shall the United States stipulate solemnly to guarantee the new boundary which may be arranged?

GEORGE WASHINGTON.

PROCLAMATIONS.

[From the Gazette of the United States (New York), September 15, 1790, in
the Library of Congress.]

BY THE PRESIDENT OF THE: UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas a treaty of peace and friendship between the United States and the Creek Nation was made and concluded on the 7th day of the present month of August; and

Whereas I have, by and with the advice and consent of the Senate, in due form ratified the said treaty:

Now, therefore, to the end that the same may be observed and performed with good faith on the part of the United States, I have ordered the said treaty to be herewith published; and I do hereby enjoin and require all officers of the United States, civil and military, and all other citizens and inhabitants thereof, faithfully to observe and fulfill the same.

Given under my hand and the seal of the United States, in the city of New York, the 14th day of August, A.D. 1790, and in the fifteenth year of the Sovereignty and Independence of the United States.

[SEAL.]

GEORGE WASHINGTON.

By the President:
THOMAS JEFFERSON.

[From Miscellaneous letters, Department of State, vol. 3.]

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas it hath at this time become peculiarly necessary to warn the citizens of the United States against a violation of the treaties made at Hopewell, on the Keowee, on the 28th day of November, 1785, and on the 3d and 10th days of January, 1786, between the United States and the Cherokee, Choctaw, and Chickasaw nations of Indians, and to enforce an act entitled "An act to regulate trade and intercourse with the Indian tribes," copies of which treaties and act are hereunto annexed, I have therefore thought fit to require, and I do by these presents require, all officers of the United States, as well civil as military, and all other citizens and inhabitants thereof, to govern themselves according to the treaties and act aforesaid, as they will answer the contrary at their peril.

Given under my hand and the seal of the United States, in the city of New York, the 26th day of August, A.D. 1790, and in the fifteenth year of the Sovereignty and Independence of the United States.

[SEAL.]

GEORGE WASHINGTON.

By the President:
THOMAS JEFFERSON.

SECOND ANNUAL ADDRESS.

UNITED STATES, *December 8, 1790.*

Fellow-Citizens of the Senate and House of Representatives:

In meeting you again I feel much satisfaction in being able to repeat my congratulations on the favorable prospects which continue to distinguish our public affairs. The abundant fruits of another year have blessed our country with plenty and with the means of a flourishing commerce. The progress of public credit is witnessed by a considerable rise of American stock abroad as well as at home, and the revenues allotted for this and other national purposes have been productive beyond the calculations by which they were regulated. This latter circumstance is the more pleasing, as it is not only a proof of the fertility of our resources, but as it assures us of a further increase of the national respectability and credit, and, let me add, as it bears an honorable testimony to the patriotism and integrity of the mercantile and marine part of our citizens. The punctuality of the former in discharging their engagements has been exemplary.

In conformity to the powers vested in me by acts of the last session, a loan of 3,000,000 florins, toward which some provisional measures had previously taken place, has been completed in Holland. As well the celerity with which it has been filled as the nature of the terms (considering the more than ordinary demand for borrowing created by the situation of Europe) give a reasonable hope that the further execution of those powers may proceed with advantage and success. The Secretary of the Treasury has my directions to communicate such further particulars as may be requisite for more precise information.

Since your last sessions I have received communications by which it appears that the district of Kentucky, at present a part of Virginia, has concurred in certain propositions contained in a law of that State, in consequence of which the district is to become a distinct member of the Union, in case the requisite sanction of Congress be added. For this sanction application is now made. I shall cause the papers on this very

important transaction to be laid before you. The liberality and harmony with which it has been conducted will be found to do great honor to both the parties, and the sentiments of warm attachment to the Union and its present Government expressed by our fellow-citizens of Kentucky can not fail to add an affectionate concern for their particular welfare to the great national impressions under which you will decide on the case submitted to you.

It has been heretofore known to Congress that frequent incursions have been made on our frontier settlements by certain banditti of Indians from the northwest side of the Ohio. These, with some of the tribes dwelling on and near the Wabash, have of late been particularly active in their depredations, and being emboldened by the impunity of their crimes and aided by such parts of the neighboring tribes as could be seduced to join in their hostilities or afford them a retreat for their prisoners and plunder, they have, instead of listening to the humane invitations and overtures made on the part of the United States, renewed their violences with fresh alacrity and greater effect. The lives of a number of valuable citizens have thus been sacrificed, and some of them under circumstances peculiarly shocking, whilst others have been carried into a deplorable captivity.

These aggravated provocations rendered it essential to the safety of the Western settlements that the aggressors should be made sensible that the Government of the Union is not less capable of punishing their crimes than it is disposed to respect their rights and reward their attachments. As this object could not be effected by defensive measures, it became necessary to put in force the act which empowers the President to call out the militia for the protection of the frontiers, and I have accordingly authorized an expedition in which the regular troops in that quarter are combined with such drafts of militia as were deemed sufficient. The event of the measure is yet unknown to me. The Secretary of War is directed to lay before you a statement of the information on which it is founded, as well as an estimate of the expense with which it will be attended.

The disturbed situation of Europe, and particularly the critical posture of the great maritime powers, whilst it ought to make us the more thankful for the general peace and security enjoyed by the United States, reminds us at the same time of the circumspection with which it becomes us to preserve these blessings. It requires also that we should not overlook the tendency of

a war, and even of preparations for a war, among the nations most concerned in active commerce with this country to abridge the means, and thereby at least enhance the price, of transporting its valuable productions to their proper markets. I recommend it to your serious reflections how far and in what mode it may be expedient to guard against embarrassments from these contingencies by such encouragements to our own navigation as will render our commerce and agriculture less dependent on foreign bottoms, which may fail us in the very moments most interesting to both of these great objects. Our fisheries and the transportation of our own produce offer us abundant means for guarding ourselves against this evil.

Your attention seems to be not less due to that particular branch of our trade which belongs to the Mediterranean. So many circumstances unite in rendering the present state of it distressful to us that you will not think any deliberations misemployed which may lead to its relief and protection.

The laws you have already passed for the establishment of a judiciary system have opened the doors of justice to all descriptions of persons. You will consider in your wisdom whether improvements in that system may yet be made, and particularly whether an uniform process of execution on sentences issuing from the Federal courts be not desirable through all the States.

The patronage of our commerce, of our merchants and seamen, has called for the appointment of consuls in foreign countries. It seems expedient to regulate by law the exercise of that jurisdiction and those functions which are permitted them, either by express convention or by a friendly indulgence, in the places of their residence. The consular convention, too, with His Most Christian Majesty has stipulated in certain cases the aid of the national authority to his consuls established here. Some legislative provision is requisite to carry these stipulations into full effect.

The establishment of the militia, of a mint, of standards of weights and measures, of the post-office and post-roads are subjects which I presume you will resume of course, and which are abundantly urged by their own importance.

Gentlemen of the House of Representatives:

The sufficiency of the revenues you have established for the objects to which they are appropriated leaves no doubt that the residuary provisions will be commensurate to the other objects for which the public faith stands now pledged. Allow me, moreover, to hope that it will be a favorite policy with you, not merely to secure a payment of the interest of the debt funded, but as far and as fast as the growing resources of the country will permit to exonerate it of the principal itself. The appropriation you have made of the Western land explains your dispositions on this subject, and I am persuaded that the sooner that valuable fund can be made to contribute, along with other means, to the actual reduction of the public debt the more salutary will the measure be to every public interest, as well as the more satisfactory to our constituents.

Gentlemen of the Senate and House of Representatives:

In pursuing the various and weighty business of the present session I indulge the fullest persuasion that your consultations will be equally marked with wisdom and animated by the love of your country. In whatever belongs to my duty you shall have all the cooperation which an undiminished zeal for its welfare can inspire. It will be happy for us both, and our best reward, if, by a successful administration of our respective trusts, we can make the established Government more and more instrumental in promoting the good of our fellow-citizens, and more and more the object of their attachment and confidence.

GEORGE WASHINGTON.

ADDRESS OF THE SENATE TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

The PRESIDENT OF THE UNITED STATES OF AMERICA:

We receive, sir, with particular satisfaction the communications contained in your speech, which confirm to us the progressive state of the public credit and afford at the same time a new proof of the solidity of the

foundation on which it rests; and we cheerfully join in the acknowledgment which is due to the probity and patriotism of the mercantile and marine part of our fellow-citizens, whose enlightened attachment to the principles of good government is not less conspicuous in this than it has been in other important respects.

In confidence that every constitutional preliminary has been observed, we assure you of our disposition to concur in giving the requisite sanction to the admission of Kentucky as a distinct member of the Union; in doing which we shall anticipate the happy effects to be expected from the sentiments of attachment toward the Union and its present Government which have been expressed by the patriotic inhabitants of that district.

While we regret that the continuance and increase of the hostilities and depredations which have distressed our Northwestern frontiers should have rendered offensive measures necessary, we feel an entire confidence in the sufficiency of the motives which have produced them and in the wisdom of the dispositions which have been concerted in pursuance of the powers vested in you, and whatever may have been the event, we shall cheerfully concur in the provisions which the expedition that has been undertaken may require on the part of the Legislature, and in any other which the future peace and safety of our frontier settlements may call for.

The critical posture of the European powers will engage a due portion of our attention, and we shall be ready to adopt any measures which a prudent circumspection may suggest for the preservation of the blessings of peace. The navigation and the fisheries of the United States are objects too interesting not to inspire a disposition to promote them by all the means which shall appear to us consistent with their natural progress and permanent prosperity.

Impressed with the importance of a free intercourse with the Mediterranean, we shall not think any deliberations misemployed which may conduce to the adoption of proper measures for removing the impediments that obstruct it.

The improvement of the judiciary system and the other important objects to which you have pointed our attention will not fail to engage the consideration they respectively merit.

In the course of our deliberations upon every subject we shall rely upon that cooperation which an undiminished zeal and incessant anxiety for the public welfare on your part so thoroughly insure; and as it is our anxious desire so it shall be our constant endeavor to render the established Government more and more instrumental in promoting the good of our fellow-citizens, and more and more the object of their attachment and confidence.

DECEMBER 10, 1790.

REPLY OF THE PRESIDENT.

GENTLEMEN: These assurances of favorable attention to the subjects I have recommended and of entire confidence in my views make the impression on me which I ought to feel. I thank you for them both, and shall continue to rely much for the success of all our measures for the public good on the aid they will receive from the wisdom and integrity of your councils.

GEORGE WASHINGTON.

DECEMBER 13, 1790.

ADDRESS OF THE HOUSE OF REPRESENTATIVES TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

SIR: The Representatives of the people of the United States have taken into consideration your address to the two Houses at the opening of the present session of Congress.

We share in the satisfaction inspired by the prospects which continue to be so auspicious to our public affairs. The blessings resulting from the smiles of Heaven on our agriculture, the rise of public credit, with the further advantages promised by it, and the fertility of resources which are found so little burdensome to the community, fully authorize our mutual congratulations on the present occasion. Nor can we learn without an additional gratification that the energy of the laws for providing adequate revenues have been so honorably seconded by those classes of citizens whose patriotism and probity were more immediately concerned.

The success of the loan opened in Holland, under the disadvantages of the present moment, is the more important, as it not only denotes the confidence already placed in the United States, but as the effect of a judicious application of that aid will still further illustrate the solidity of the foundation on which the public credit rests.

The preparatory steps taken by the State of Virginia, in concert with the district of Kentucky, toward the erection of the latter into a distinct member of the Union exhibit a liberality mutually honorable to the parties. We shall bestow on this important subject the favorable consideration which it merits, and, with the national policy which ought to govern our decision, shall not fail to mingle the affectionate sentiments which are awakened by those expressed on behalf of our fellow-citizens of Kentucky.

Whilst we regret the necessity which has produced offensive hostilities against some of the Indian tribes northwest of the Ohio, we sympathize too much with our Western brethren not to behold with approbation the watchfulness and vigor which have been exerted by the executive authority for their protection, and which we trust will make the aggressors sensible that it is their interest to merit by a peaceable behavior the friendship and humanity which the United States are always ready to extend to them.

The encouragement of our own navigation has at all times appeared to us highly important. The point of view under which you have recommended it to us is strongly enforced by the actual state of things in Europe. It will be incumbent on us to consider in what mode our commerce and agriculture can be best relieved from an injurious dependence on the navigation of

other nations, which the frequency of their wars renders a too precarious resource for conveying the productions of our country to market.

The present state of our trade to the Mediterranean seems not less to demand, and will accordingly receive, the attention which you have recommended.

Having already concurred in establishing a judiciary system which opens the doors of justice to all, without distinction of persons, it will be our disposition to incorporate every improvement which experience may suggest. And we shall consider in particular how far the uniformity which in other cases is found convenient in the administration of the General Government through all the States may be introduced into the forms and rules of executing sentences issuing from the Federal courts.

The proper regulation of the jurisdiction and functions which may be exercised by consuls of the United States in foreign countries, with the provisions stipulated to those of His Most Christian Majesty established here, are subjects of too much consequence to the public interest and honor not to partake of our deliberations.

We shall renew our attention to the establishment of the militia and the other subjects unfinished at the last session, and shall proceed in them with all the dispatch which the magnitude of all and the difficulty of some of them will allow.

Nothing has given us more satisfaction than to find that the revenues heretofore established have proved adequate to the purposes to which they were allotted. In extending the provision to the residuary objects it will be equally our care to secure sufficiency and punctuality in the payments due from the Treasury of the United States. We shall also never lose sight of the policy of diminishing the public debt as fast as the increase of the public resources will permit, and are particularly sensible of the many considerations which press a resort to the auxiliary resource furnished by the public lands.

In pursuing every branch of the weighty business of the present session it will be our constant study to direct our deliberations to the public welfare. Whatever our success may be, we can at least answer for the fervent love of

our country, which ought to animate our endeavors. In your cooperation we are sure of a resource which fortifies our hopes that the fruits of the established Government will justify the confidence which has been placed in it, and recommend it more and more to the affection and attachment of our fellow-citizens.

DECEMBER 11, 1790.

REPLY OF THE PRESIDENT.

GENTLEMEN: The sentiments expressed in your address are entitled to my particular acknowledgment.

Having no object but the good of our country, this testimony of approbation and confidence from its immediate Representatives must be among my best rewards, as the support of your enlightened patriotism has been among my greatest encouragements. Being persuaded that you will continue to be actuated by the same auspicious principle, I look forward to the happiest consequences from your deliberations during the present session.

GEORGE WASHINGTON.

DECEMBER 13, 1790.

SPECIAL MESSAGES.

UNITED STATES, *December 23, 1790.*

Gentlemen of the Senate and House of Representatives:

It appearing by the report of the secretary of the government northwest of the Ohio that there are certain cases respecting grants of land within that territory which require the interference of the Legislature of the United States, I have directed a copy of said report and the papers therein referred to to be laid before you, together with a copy of the report of the Secretary of State upon the same subject.

GEORGE WASHINGTON.

UNITED STATES, *December 30, 1790.*

Gentlemen of the Senate and House of Representatives:

I lay before you a report of the Secretary of State on the subject of the citizens of the United States in captivity at Algiers, that you may provide on their behalf what to you shall seem most expedient.

GEORGE WASHINGTON.

UNITED STATES, *January 3, 1791.*

Gentlemen of the Senate and House of Representatives:

I lay before you a copy of an exemplified copy of an act passed by the legislature of the State of New Jersey for vesting in the United States of

America the jurisdiction of a lot of land at Sandy Hook, in the county of Monmouth, and a copy of a letter which accompanied said act, from the governor of the State of New Jersey to the President of the United States.

GEORGE WASHINGTON.

UNITED STATES, *January 17, 1791.*

Gentlemen of the Senate and House of Representatives:

I lay before you an official statement of the appropriation of \$10,000, granted to defray the contingent expenses of Government by an act of the 26th March, 1790.

A copy of two resolutions of the legislature of Virginia, and a petition of sundry officers and assignees of officers and soldiers of the Virginia line on continental establishment, on the subject of bounty lands allotted to them on the northwest side of the Ohio; and

A copy of an act of the legislature of Maryland to empower the wardens of the port of Baltimore to levy and collect the duty therein mentioned.

GEORGE WASHINGTON.

UNITED STATES, *January 17, 1791.*

Gentlemen of the Senate:

I lay before you a letter from His Most Christian Majesty, addressed to the President and Members of Congress of the United States of America.

GEORGE WASHINGTON.

To our very dear friends and allies, the President and Members of the General Congress of the United States of North America.

VERY DEAR GREAT FRIENDS AND ALLIES: We have received the letter by which you inform us of the new mark of confidence that you have shown to Mr. Jefferson, and which puts a period to his appointment of minister plenipotentiary at our Court.

The manner in which he conducted during his residence with us has merited our esteem and entire approbation, and it is with pleasure that we now give him this testimony of it.

It is with the most sincere pleasure that we embrace this opportunity of renewing these assurances of regard and friendship which we feel for the United States in general and for each of them in particular. Under their influence we pray God that He will keep you, very dear friends and allies, under His holy and beneficent protection.

Done at Paris this 11th September, 1790.

Your good friend and ally,

LOUIS.

MONTMORIN. [SEAL.]

The UNITED STATES OF NORTH AMERICA.

UNITED STATES, *January 10, 1791.*

Gentlemen of the Senate:

I lay before you a representation of the chargé d'affaires of France, made by order of his Court, on the acts of Congress of the 20th of July, 1789 and 1790, imposing an extra tonnage on foreign vessels, not excepting those of that country, together with the report of the Secretary of State thereon, and I

recommend the same to your consideration, that I may be enabled to give to it such answer as may best comport with the justice and the interests of the United States.

GEORGE WASHINGTON.

DOCUMENTS.

JANUARY 18, 1791.

The Secretary of State having received from the chargé d'affaires of France a note on the tonnage payable by French vessels in the ports of the United States, has had the same under his consideration, and thereupon makes the following report to the President of the United States:

The chargé d'affaires of France, by a note of the 13th of December, represents, by order of his Court, that they consider so much of the acts of Congress of July 20, 1789 and 1790, as imposes an extraordinary tonnage on foreign vessels without excepting those of France, to be in contravention of the fifth article of the treaty of amity and commerce between the two nations; that this would have authorized on their part a proportional modification in the favors granted to the American navigation, but that his Sovereign had thought it more conformable to his principles of friendship and attachment to the United States to order him to make representations thereon, and to ask in favor of French vessels a modification of the acts which impose an extraordinary tonnage on foreign vessels.

The Secretary of State, in giving in this paper to the President of the United States, thinks it his duty to accompany it with the following observations:

The third and fourth articles of the treaty of amity and commerce between France and the United States subject the vessels of each nation to pay in the ports of the other only such duties as are paid by the most favored nation, and give them reciprocally all the privileges and exemptions

in navigation and commerce which are given by either to the most favored nations. Had the contracting parties stopped here, they would have been free to raise or lower their tonnage as they should find it expedient, only taking care to keep the other on the footing of the most favored nation. The question, then, is whether the fifth article cited in the note is anything more than an application of the principle comprised in the third and fourth to a particular object, or whether it is an additional stipulation of something not so comprised.

I. That it is merely an application of a principle comprised in the preceding articles is declared by the express words of the article, to wit: "*Dans l'exemption ci-dessus est nommément compris,*" etc., "*in the above exemption is particularly comprised,* the imposition of 100 sols per ton established in France on foreign vessels." Here, then, is at once an express declaration that the exemption from the duty of 100 sols is *comprised* in the third and fourth articles; that is to say, it was one of the exemptions enjoyed by the most favored nations, and as such extended to us by those articles. If the exemption spoken of in this first member of the fifth article was *comprised* in the third and fourth articles, as is expressly declared, then the reservation by France out of that exemption (which makes the second member of the same article) *was also comprised*; that is to say, if *the whole* was comprised, *the part* was comprised. And if this reservation of France in the second member was comprised in the third and fourth articles, then the counter reservation by the United States (which constitutes the third and last member of the same article) was also comprised, because it is but a corresponding portion of a similar whole on our part, which had been comprised by the same terms with theirs.

In short, the whole article relates to a particular duty of 100 sols, laid by some antecedent law of France on the vessels of foreign nations, relinquished as to the most favored, and consequently to us. It is not a new and additional stipulation, then, but a declared application of the stipulations comprised in the preceding articles to a particular case by way of greater caution.

The doctrine laid down generally in the third and fourth articles, and exemplified specially in the fifth, amounts to this: "The vessels of the most favored nations coming from foreign ports are exempted from the duty of

100 sols; therefore you are exempted from it by the third and fourth articles. The vessels of the most favored nations coming coastwise pay that duty; therefore you are to pay it by the third and fourth articles. We shall not think it unfriendly in you to lay a like duty on coasters, because it will be no more than we have done ourselves. You are free also to lay that or any other duty on vessels coming from foreign ports, provided they apply to all other nations, even the most favored. We are free to do the same under the same restriction. Our exempting you from a duty which the most favored nations do not pay does not exempt you from one which they do pay."

In this view, it is evident that the fifth article neither enlarges nor abridges the stipulations of the third and fourth. The effect of the treaty would have been precisely the same had it been omitted altogether; consequently it may be truly said that the reservation by the United States in this article is completely useless. And it may be added with equal truth that the equivalent reservation by France is completely useless, as well as her previous abandonment of the same duty, and, in short, the whole article. Each party, then, remains free to raise or lower its tonnage, provided the change operates on all nations, even the most favored.

Without undertaking to affirm, we may obviously conjecture that this article has been inserted on the part of the United States from an overcaution to guard, *nommément, by name*, against a particular aggrievance, which they thought they could never be too well secured against; and that has happened which generally happens—doubts have been produced by the too great number of words used to prevent doubt.

II. The Court of France, however, understands this article as intended to introduce something to which the preceding articles had not reached, and not merely as an application of them to a particular case. Their opinion seems to be founded on the general rule in the construction of instruments, to leave no words merely useless for which any rational meaning can be found. They say that the reservation by the United States of a right to lay a duty equivalent to that of the 100 sols, reserved by France, would have been completely useless if they were left free by the preceding articles to lay a tonnage to any extent whatever; consequently, that the reservation of a part proves a relinquishment of the residue.

If some meaning, and such a one, is to be given to the last member of the article, some meaning, and a similar one, must be given to the corresponding member. If the reservation by the United States of a right to lay an equivalent duty implies a relinquishment of their right to lay any other, the reservation by France of a right to continue the specified duty to which it is an equivalent must imply a relinquishment of the right on her part to lay or continue any other. Equivalent reservations by both must imply equivalent restrictions on both. The exact reciprocity stipulated in the preceding articles, and which pervades every part of the treaty, insures a counter right to each party for every right ceded to the other.

Let it be further considered that the duty called *tonnage* in the United States is in lieu of the duties for anchorage, for the support of buoys, beacons, and light-houses, to guide the mariner into harbor and along the coast, which are provided and supported at the expense of the United States, and for fees to measurers, weighers, gangers, etc., who are paid by the United States, for which articles, among many others (light-house money excepted), duties are paid by us in the ports of France under their specific names. That Government has hitherto thought these duties consistent with the treaty, and consequently the same duties under a general instead of specific names, with us, must be equally consistent with it. It is not the name, but the thing, which is essential. If we have renounced the right to lay any port duties, they must be understood to have equally renounced that of either laying new or continuing the old. If we ought to refund the port duties received from their vessels since the date of the act of Congress, they should refund the port duties they have received from our vessels since the date of the treaty, for nothing short of this is the reciprocity of the treaty.

If this construction be adopted, then each party has forever renounced the right of laying any duties on the vessels of the other coming from any foreign port, or more than 100 sols on those coming coastwise. Could this relinquishment be confined to the two contracting parties alone, the United States would be the gainers, for it is well known that a much greater number of American than of French vessels are employed in the commerce between the two countries; but the exemption once conceded by the one nation to the other becomes immediately the property of all others who are on the footing of the most favored nations. It is true that those others would be obliged to yield the same compensation, that is to say, to receive our vessels duty free.

Whether we should gain or lose in the exchange of the measure with them is not easy to say.

Another consequence of this construction will be that the vessels of the most favored nations paying no duties will be on a better footing than those of natives which pay a moderate duty; consequently either the duty on these also must be given up or they will be supplanted by foreign vessels in our own ports.

The resource, then, of duty on vessels for the purposes either of revenue or regulation will be forever lost to both. It is hardly conceivable that either party looking forward to all these consequences would see their interest in them.

III. But if France persists in claiming this exemption, what is to be done? The claim, indeed, is couched in mild and friendly terms; but the idea leaks out that a refusal would authorize them to modify proportionally the favors granted by the same article to our navigation. Perhaps they may do what we should feel much more severely, they may turn their eyes to the favors granted us by their arrets of December 29, 1787, and December 7, 1788, which hang on their will alone, unconnected with the treaty. Those arrets, among other advantages, admit our whale oils to the exclusion of that of all other foreigners. And this monopoly procures a vent for seven-twelfths of the produce of that fishery, which experience has taught us could find no other market. Near two-thirds of the produce of our cod fisheries, too, have lately found a free vent in the colonies of France. This, indeed, has been an irregularity growing out of the anarchy reigning in those colonies. Yet the demands of the colonists, even of the Government party among them (if an auxiliary disposition can be excited by some marks of friendship and distinction on our part), may perhaps produce a constitutional concession to them to procure their provisions at the cheapest market; that is to say, at ours.

Considering the value of the interests we have at stake and considering the smallness of difference between foreign and native tonnage on French vessels alone, it might perhaps be thought advisable to make the sacrifice asked, and especially if it can be so done as to give no title to other the most favored nations to claim it. If the act should put French vessels on the

footing of those of natives, and declare it to be in consideration of the favors granted us by the arrets of December 29, 1787, and December 7, 1788 (and perhaps this would satisfy them), no nation could then demand the same favor without offering an equivalent compensation. It might strengthen, too, the tenure by which those arrets are held, which must be precarious so long as they are gratuitous.

It is desirable in many instances to exchange mutual advantages by legislative acts rather than by treaty, because the former, though understood to be in consideration of each other, and therefore greatly respected, yet when they become too inconvenient can be dropped at the will of either party; whereas stipulations by treaty are forever irrevocable but by joint consent, let a change of circumstances render them ever so burdensome.

On the whole, if it be the opinion that the first construction is to be insisted on as ours, in opposition to the second urged by the Court of France, and that no relaxation is to be admitted, an answer shall be given to that Court defending that construction, and explaining in as friendly terms as possible the difficulties opposed to the exemption they claim.

2. If it be the opinion that it is advantageous for us to close with France in her interpretation of a reciprocal and perpetual exemption from tonnage, a repeal of so much of the tonnage law will be the answer.

3. If it be thought better to waive rigorous and nice discussions of right and to make the modification an act of friendship and of compensation for favors received, the passage of such a bill will then be the answer.

TH. JEFFERSON.

[Translation.]

L.G. Otto to the Secretary of State.

PHILADELPHIA, *December 13, 1790.*

SIR: During the long stay you made in France you had opportunities of being satisfied of the favorable dispositions of His Majesty to render

permanent the ties that united the two nations and to give stability to the treaties of alliance and of commerce which form the basis of this union. These treaties were so well maintained by the Congress formed under the ancient Confederation that they thought it their duty to interpose their authority whenever any laws made by individual States appeared to infringe their stipulations, and particularly in 1785, when the States of New Hampshire and of Massachusetts had imposed an extraordinary tonnage on foreign vessels without exempting those of the French nation. The reflections that I have the honor to address to you in the subjoined note being founded on the same principles, I flatter myself that they will merit on the part of the Government of the United States the most serious attention.

I am, with respect, etc.,

L.G. OTTO.

[Translation.]

L.G. Otto to the Secretary of State.

PHILADELPHIA, *December 13, 1790.*

NOTE.—The underwritten, chargé d'affaires of France, has received the express order of his Court to represent to the United States that the act passed by Congress the 20th July, 1789, and renewed the 20th July of the present year, which imposes an extraordinary tonnage on foreign vessels without excepting French vessels, is directly contrary to the spirit and to the object of the treaty of commerce which unites the two nations, and of which His Majesty has not only scrupulously observed the tenor, but of which he has extended the advantages by many regulations very favorable to the commerce and navigation of the United States.

By the fifth article of this treaty the citizens of these States are declared exempt from the tonnage duty imposed in France on foreign vessels, and they are not subject to that duty but in the coasting business. Congress has reserved the privilege of establishing *a duty equivalent to this last*, a

stipulation founded on the state in which matters were in America at the time of the signature of the treaty. There did not exist at that epoch any duty on tonnage in the United States.

It is evident that it was the nonexistence of this duty and the motive of a perfect reciprocity stipulated in the preamble of the treaty that had determined the King to grant the exemption contained in the article fifth; and a proof that Congress had no intention to contravene this reciprocity is that *it only reserves a privilege of establishing on the coasting business a duty equivalent to that which is levied in France*. This reservation would have been completely useless if by the words of the treaty Congress thought themselves at liberty to lay *any* tonnage they should think proper on French vessels.

The undersigned has the honor to observe that this contravention of the fifth article of the treaty of commerce might have authorized His Majesty to modify proportionately the favors granted by the same article to the American navigation; but the King, always faithful to the principles of friendship and attachment to the United States, and desirous of strengthening more and more the ties which subsist so happily between the French nation and these States, thinks it more conformable to these views to order the undersigned to make representations on this subject, and to ask in favor of French vessels a modification of the act which imposes an extraordinary tonnage on foreign vessels. His Majesty does not doubt but that the United States will acknowledge the justice of this claim, and will be disposed to restore things to the footing on which they were at the signature of the treaty of the 6th February, 1778.

L.G. OTTO.

[Translation.]

L.G. Otto to the Secretary of State.

NEW YORK, *January 8, 1791.*

His Excellency M. JEFFERSON,
Secretary of State.

SIR: I have the honor herewith to send you a letter from the King to Congress, and one which M. de Montmorin has written to yourself. You will find therein the sincere sentiments with which you have inspired our Government, and the regret of the minister in not having a more near relation of correspondence with you. In these every person who has had the advantage of knowing you in France participates.

At the same time, it gives me pain, sir, to be obliged to announce to you that the complaints of our merchants on the subject of the tonnage duty increase, and that they have excited not only the attention of the King but that of several departments of the Kingdom. I have received new orders to request of the United States a decision on this matter and to solicit in favor of the aggrieved merchants the restitution of the duties which have already been paid. I earnestly beg of you, sir, not to lose sight of an object which, as I have already had the honor to tell you verbally, is of the greatest importance for cementing the future commercial connections between the two nations.

In more particularly examining this question you will perhaps find that motives of convenience are as powerful as those of justice to engage the United States to give to His Majesty the satisfaction which he requires. At least twice as many American vessels enter the ports of France as do those of France the ports of America. The exemption of the tonnage of duty, then, is evidently less advantageous for the French than for the navigators of the United States. Be this as it may, I can assure you, sir, that the delay of a decision in this respect by augmenting the just complaints of the French merchants will only augment the difficulties.

I therefore beg of you to enable me before the sailing of the packet, which will take place toward the last of this month, to give to my Court a satisfactory answer.

I have the honor to be, etc.,

L.G. OTTO.

UNITED STATES, *January 24, 1791.*

Gentlemen of the Senate and House of Representatives:

I lay before you a statement relative to the frontiers of the United States, which has been submitted to me by the Secretary for the Department of War.

I rely upon your wisdom to make such arrangements as may be essential for the preservation of good order and the effectual protection of the frontiers.

GEORGE WASHINGTON.

UNITED STATES, *January 24, 1791.*

Gentlemen of the Senate and House of Representatives:

In execution of the powers with which Congress were pleased to invest me by their act entitled "An act for establishing the temporary and permanent seat of Government of the United States," and on mature consideration of the advantages and disadvantages of the several positions within the limits prescribed by the said act, I have by a proclamation bearing date this day (a copy of which is herewith transmitted) directed commissioners, appointed in pursuance of the act, to survey and limit a part of the territory of 10 miles square on both sides of the river Potomac, so as to comprehend Georgetown, in Maryland, and extend to the Eastern Branch.

I have not by this first act given to the said territory the whole extent of which it is susceptible in the direction of the river, because I thought it important that Congress should have an opportunity of considering whether by an amendatory law they would authorize the location of the residue at the lower end of the present, so as to comprehend the Eastern Branch itself and some of the country on its lower side, in the State of Maryland, and the

town of Alexandria, in Virginia. If, however, they are of opinion that the Federal territory should be bounded by the water edge of the Eastern Branch, the location of the residue will be to be made at the upper end of what is now directed.

I have thought best to await a survey of the territory before it is decided on what particular spot on the northeastern side of the river the public buildings shall be erected.

GEORGE WASHINGTON.

UNITED STATES, *January 26, 1791.*

Gentlemen of the Senate and House of Representatives:

I lay before you the copy of a letter from the President of the National Assembly of France to the President of the United States, and of a decree of that Assembly, which was transmitted with the above-mentioned letter.

GEORGE WASHINGTON.

UNITED STATES, *January 27, 1791.*

Gentlemen of the Senate and House of Representatives:

In order that you may be fully informed of the situation of the frontiers and the prospect of hostility in that quarter, I lay before you the intelligence of some recent depredations, received since my message to you upon this subject of the 24th instant.

GEORGE WASHINGTON.

UNITED STATES, *February 9, 1791.*

Gentlemen of the Senate and House of Representatives:

I have received from the governor of Vermont authentic documents, expressing the consent of the legislatures of New York and of the Territory of Vermont that the said Territory shall be admitted to be a distinct member of our Union; and a memorial of Nathaniel Chipman and Lewis R. Morris, commissioners from the said Territory, praying the consent of Congress to that admission, by the name and style of the State of Vermont, copies of which I now lay before Congress, with whom the Constitution has vested the object of these proceedings.

GEORGE WASHINGTON.

UNITED STATES, *February 14, 1791.*

Gentlemen of the Senate and House of Representatives:

Soon after I was called to the administration of the Government I found it important to come to an understanding with the Court of London on several points interesting to the United States, and particularly to know whether they were disposed to enter into arrangements by mutual consent which might fix the commerce between the two nations on principles of reciprocal advantage. For this purpose I authorized informal conferences with their ministers, and from these I do not infer any disposition on their part to enter into any arrangements merely commercial. I have thought it proper to give you this information, as it might at some time have influence on matters under your consideration.

GEORGE WASHINGTON.

UNITED STATES, *February 14, 1791.*

Gentlemen of the Senate:

Conceiving that in the possible event of a refusal of justice on the part of Great Britain we should stand less committed should it be made to a private rather than to a public person, I employed Mr. Gouverneur Morris, who was on the spot, and without giving him any definite character, to enter informally into the conferences before mentioned. For your more particular information I lay before you the instructions I gave him and those parts of his communications wherein the British ministers appear either in conversation or by letter. These are two letters from the Duke of Leeds to Mr. Morris, and three letters of Mr. Morris giving an account of two conferences with the Duke of Leeds and one with him and Mr. Pitt. The sum of these is that they declare without scruple they do not mean to fulfill what remains of the treaty of peace to be fulfilled on their part (by which we are to understand the delivery of the posts and payment for property carried off) till performance on our part, and compensation where the delay has rendered the performance now impracticable; that on the subject of a treaty of commerce they avoided direct answers, so as to satisfy Mr. Morris they did not mean to enter into one unless it could be extended to a treaty of alliance offensive and defensive, or unless in the event of a rupture with Spain.

As to the sending a minister here, they made excuses at the first conference, seemed disposed to it in the second, and in the last express an intention of so doing.

Their views being thus sufficiently ascertained, I have directed Mr. Morris to discontinue his communications with them.

GEORGE WASHINGTON.

UNITED STATES, *February 18, 1791.*

Gentlemen of the Senate:

The aspect of affairs in Europe during the last summer, and especially between Spain and England, gave reason to expect a favorable occasion for pressing to accommodation the unsettled matters between them and us. Mr. Carmichael, our charge d'affaires at Madrid, having been long absent from his country, great changes having taken place in our circumstances and sentiments during that interval, it was thought expedient to send some person, in a private character, fully acquainted with the present state of things here, to be the bearer of written and confidential instructions to him, and at the same time to possess him in full and frequent conversations of all those details of facts and topics of argument which could not be conveyed in writing, but which would be necessary to enable him to meet the reasonings of that Court with advantage. Colonel David Humphreys was therefore sent for these purposes.

An additional motive for this confidential mission arose in the same quarter. The Court of Lisbon had on several occasions made the most amicable advances for cultivating friendship and intercourse with the United States. The exchange of a diplomatic character had been informally, but repeatedly, suggested on their part. It was our interest to meet this nation in its friendly dispositions and to concur in the exchange proposed. But my wish was at the same time that the character to be exchanged should be of the lowest and most economical grade. To this it was known that certain rules of long standing at that Court would produce obstacles. Colonel Humphreys was charged with dispatches to the prime minister of Portugal and with instructions to endeavor to arrange this to our views. It happened, however, that previous to his arrival at Lisbon the Queen had appointed a minister *resident* to the United States. This embarrassment seems to have rendered the difficulty completely insurmountable. The minister of that Court in his conferences with Colonel Humphreys, professing every wish to accommodate, yet expresses his regrets that circumstances do not permit them to concur in the grade of chargé d'affaires, a grade of little privilege or respectability by the rules of their Court and held in so low estimation with them that no proper character would accept it to go abroad. In a letter to the Secretary of State he expresses the same sentiments, and announces the appointment on their part of a minister *resident* to the United States, and the pleasure with which the Queen will receive one from us at her Court. A copy of his letter, and also

of Colonel Humphreys's giving the details of this transaction, will be delivered to you.

On consideration of all circumstances I have determined to accede to the desire of the Court of Lisbon in the article of grade. I am aware that the consequences will not end here, and that this is not the only instance in which a like change may be pressed. But should it be necessary to yield elsewhere also, I shall think it a less evil than to disgust a government so friendly and so interesting to us as that of Portugal.

I do not mean that the change of grade shall render the mission more expensive.

I have therefore nominated David Humphreys minister resident from the United States to Her Most Faithful Majesty the Queen of Portugal.

GEORGE WASHINGTON.

UNITED STATES, *February 22, 1791.*

Gentlemen of the Senate:

I will proceed to take measures for the ransom of our citizens in captivity at Algiers, in conformity with your resolution of advice of the 1st instant, so soon as the moneys necessary shall be appropriated by the Legislature and shall be in readiness.

The recognition of our treaty with the new Emperor of Morocco requires also previous appropriation and provision. The importance of this last to the liberty and property of our citizens induces me to urge it on your earliest attention.

GEORGE WASHINGTON.

UNITED STATES, *February 23, 1791.*

Gentlemen of the Senate:

Information having been received from Thomas Auldjo, who was appointed vice-consul of the United States at Cowes, in Great Britain, that his commission has not been recognized by that Government because it is a port at which no foreign consul has yet been received, and that it has been intimated to him that his appointment to the port of Poole and parts nearer to that than to the residence of any other consul of the United States would be recognized and his residence at Cowes not noticed, I have therefore thought it expedient to nominate Thomas Auldjo to be vice-consul for the United States at the port of Poole, in Great Britain, and such parts within the allegiance of His Britannic Majesty as shall be nearer thereto than to the residence of any other consul or vice-consul of the United States within the same allegiance.

I also nominate James Yard, of Pennsylvania, to be consul for the United States in the island of Santa Cruz and such other parts within the allegiance of His Danish Majesty as shall be nearer thereto than to the residence of any other consul or vice-consul of the United States within the same allegiance.

GEORGE WASHINGTON.

UNITED STATES, *March 4, 1791.*

Gentlemen of the Senate:

The act for the admission of the State of Vermont into this Union having fixed on this as the day of its admission, it was thought that this would also be the first day on which any officer of the Union might legally perform any act of authority relating to that State. I therefore required your attendance to receive nominations of the several officers necessary to put the Federal Government into motion in that State.[\[1\]](#)

For this purpose I nominate Nathaniel Chipman to be judge of the district of Vermont; Stephen Jacobs to be attorney for the United States in the

district of Vermont; Lewis R. Morris to be marshal of the district of Vermont, and Stephen Keyes to be collector of the port of Allburgh, in the State of Vermont.

GEORGE WASHINGTON.

UNITED STATES, *March 4, 1791.*

Gentlemen of the Senate:

Pursuant to the powers vested in me by the act entitled "An act repealing after the last day of June next the duties heretofore laid upon distilled spirits imported from abroad and laying others in their stead, and also upon spirits distilled within the United States, and for appropriating the same," I have thought fit to divide the United States into the following districts, namely:

The district of New Hampshire, to consist of the State of New Hampshire; the district of Massachusetts, to consist of the State of Massachusetts; the district of Rhode Island and Providence Plantations, to consist of the State of Rhode Island and Providence Plantations; the district of Connecticut, to consist of the State of Connecticut; the district of Vermont, to consist of the State of Vermont; the district of New York, to consist of the State of New York; the district of New Jersey, to consist of the State of New Jersey; the district of Pennsylvania, to consist of the State of Pennsylvania; the district of Delaware, to consist of the State of Delaware; the district of Maryland, to consist of the State of Maryland; the district of Virginia, to consist of the State of Virginia; the district of North Carolina, to consist of the State of North Carolina; the district of South Carolina, to consist of the State of South Carolina; and the district of Georgia, to consist of the State of Georgia.

And I hereby nominate as supervisors of the said districts, respectively, the following persons, viz:

For the district of New Hampshire, Joshua Wentworth; for the district of Massachusetts, Nathaniel Gorham; for the district of Rhode Island and

Providence Plantations, John S. Dexter; for the district of Connecticut, John Chester; for the district of Vermont, Noah Smith; for the district of New York, William S. Smith; for the district of New Jersey, Aaron Dunham; for the district of Pennsylvania, George Clymer; for the district of Delaware, Henry Latimer; for the district of Maryland, George Gale; for the district of Virginia, Edward Carrington; for the district of North Carolina, William Polk; for the district of South Carolina, Daniel Stevens; for the district of Georgia, John Mathews.

GEORGE WASHINGTON.

PROCLAMATIONS.

[From a broadside in the archives of the Department of State.]

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas the general assembly of the State of Maryland, by an act passed on the 23d day of December, A.D. 1788, intituled "An act to cede to Congress a district of 10 miles square in this State for the seat of the Government of the United States," did enact that the Representatives of the said State in the House of Representatives of the Congress of the United States, appointed to assemble at New York on the first Wednesday of March then next ensuing, should be, and they were thereby, authorized and required on the behalf of the said State to cede to the Congress of the United States any district in the said State not exceeding 10 miles square which the Congress might fix upon and accept for the seat of Government of the United States;

And the general assembly of the Commonwealth of Virginia, by an act passed on the 3d day of December, 1789, and intituled "An act for the cession of 10 miles square, or any lesser quantity, of territory within this State to the United States in Congress assembled, for the permanent seat of the General Government," did enact that a tract of country not exceeding 10 miles square, or any lesser quantity, to be located within the limits of the said State, and in any part thereof, as Congress might by law direct, should be, and the same was thereby, forever ceded and relinquished to the Congress and Government of the United States, in full and absolute right and exclusive jurisdiction, as well of soil as of persons residing or to reside thereon, pursuant to the tenor and effect of the eighth section of the first article of the Constitution of Government of the United States;

And the Congress of the United States, by their act passed the 16th day of July, 1790, and intituled "An act for establishing the temporary and permanent seat of the Government of the United States," authorized the President of the United States to appoint three commissioners to survey under his direction and by proper metes and bounds to limit a district of territory, not exceeding 10 miles square, on the river Potomac, at some place between the mouths of the Eastern Branch and Connogochegue, which district, so to be located and limited, was accepted by the said act of Congress as the district for the permanent seat of the Government of the United States:

Now, therefore, in pursuance of the powers to me confided, and after duly examining and weighing the advantages and disadvantages of the several situations within the limits aforesaid, I do hereby declare and make known that the location of one part of the said district of 10 miles square shall be found by running four lines of experiment in the following manner, that is to say: Running from the court-house of Alexandria, in Virginia, due southwest half a mile, and thence a due southeast course till it shall strike Hunting Creek, to fix the beginning of the said four lines of experiment.

Then beginning the first of the said four lines of experiment at the point on Hunting Creek where the said southeast course shall have struck the same, and running the said first line due northwest 10 miles; thence the second line into Maryland due northeast 10 miles; thence the third line due southeast 10 miles, and thence the fourth line due southwest 10 miles to the beginning on Hunting Creek.

And the said four lines of experiment being so run, I do hereby declare and make known that all that part within the said four lines of experiment which shall be within the State of Maryland and above the Eastern Branch, and all that part within the same four lines of experiment which shall be within the Commonwealth of Virginia and above a line to be run from the point of land forming the upper cape of the mouth of the Eastern Branch due southwest, and no more, is now fixed upon and directed to be surveyed, defined, limited, and located for a part of the said district accepted by the said act of Congress for the permanent seat of the Government of the United States (hereby expressly reserving the direction of the survey and location of the remaining part of the said district to be made hereafter

contiguous to such part or parts of the present location as is or shall be agreeable to law).

And I do accordingly direct the said commissioners, appointed agreeably to the tenor of the said act, to proceed forthwith to run the said lines of experiment, and the same being run, to survey and by proper metes and bounds to define and limit the part within the same which is hereinbefore directed for immediate location and acceptance, and thereof to make due report to me under their hands and seals.

In testimony whereof I have caused the seal of the United States to be affixed to these presents and signed the same with my hand.

[SEAL.]

Done at the city of Philadelphia, the 24th day of January, A.D. 1791, and of the Independence of the United States the fifteenth.

GEORGE WASHINGTON.

By the President:
TH: JEFFERSON.

[From a broadside in the archives of the Department of State.]

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas it hath been represented to me that James O'Fallon is levying an armed force in that part of the State of Virginia which is called Kentucky, disturbs the public peace, and sets at defiance the treaties of the United States with the Indian tribes, the act of Congress intituled "An act to regulate trade and intercourse with the Indian tribes," and my proclamations

of the 14th and 26th days of August last founded thereon; and it is my earnest desire that those who have incautiously associated themselves with the said James O'Fallon may be warned of their danger, I have therefore thought fit to publish this proclamation, hereby declaring that all persons violating the treaties and act aforesaid shall be prosecuted with the utmost rigor of the law.

And I do, moreover, require all officers of the United States whom it may concern to use their best exertions to bring to justice any persons offending in the premises.

In testimony whereof I have caused the seal of the United States to be affixed to these presents and signed the same with my hand.

[SEAL.]

Done at the city of Philadelphia, the 19th day of March, A.D. 1791, and of the Independence of the United States the fifteenth.

GEORGE WASHINGTON.

By the President:
TH: JEFFERSON.

[From the Washington Papers (Executive Proceedings), vol. 20, p. 191.]

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas by a proclamation bearing date the 24th day of January of this present year, and in pursuance of certain acts of the States of Maryland and Virginia and of the Congress of the United States, therein mentioned, certain lines of experiment were directed to be run in the neighborhood of

Georgetown, in Maryland, for the purpose of determining the location of a part of the territory of 10 miles square for the permanent seat of the Government of the United States, and a certain part was directed to be located within the said lines of experiment on both sides of the Potomac and above the limit of the Eastern Branch prescribed by the said act of Congress;

And Congress by an amendatory act passed on the 3d day of the present month of March have given further authority to the President of the United States "to make any part of the territory below the said limit and above the mouth of Hunting Creek a part of the said district, so as to include a convenient part of the Eastern Branch and of the lands lying on the lower side thereof, and also the town of Alexandria":

Now, therefore, for the purpose of amending and completing the location of the whole of the said territory of 10 miles square in conformity with the said amendatory act of Congress, I do hereby declare and make known that the whole of the said territory shall be located and included within the four lines following, that is to say:

Beginning at Jones's Point, being the upper cape of Hunting Creek, in Virginia, and at an angle in the outset of 45 degrees west of the north, and running in a direct line 10 miles for the first line; then beginning again at the same Jones's Point and running another direct line at a right angle with the first across the Potomac 10 miles for the second line; then from the termination of the said first and second lines running two other direct lines of 10 miles each, the one crossing the Eastern Branch aforesaid and the other the Potomac, and meeting each other in a point.

And I do accordingly direct the commissioners named under the authority of the said first-mentioned act of Congress to proceed forthwith to have the said four lines run, and by proper metes and bounds defined and limited, and thereof to make due report under their hands and seals; and the territory so to be located, defined, and limited shall be the whole territory accepted by the said acts of Congress as the district for the permanent seat of the Government of the United States.

In testimony whereof I have caused the seal of the United States to be affixed to these presents and signed the same with my hand.

[SEAL.]

Done at Georgetown aforesaid, the 30th day of March, A.D. 1791, and of
the Independence of the United States the fifteenth.

GEORGE WASHINGTON.

THIRD ANNUAL ADDRESS.

UNITED STATES, *October 25, 1791.*

Fellow-Citizens of the Senate and of the House of Representatives:

I meet you upon the present occasion with the feelings which are naturally inspired by a strong impression of the prosperous situation of our common country, and by a persuasion equally strong that the labors of the session which has just commenced will, under the guidance of a spirit no less prudent than patriotic, issue in measures conducive to the stability and increase of national prosperity.

Numerous as are the providential blessings which demand our grateful acknowledgments, the abundance with which another year has again rewarded the industry of the husbandman is too important to escape recollection.

Your own observations in your respective situations will have satisfied you of the progressive state of agriculture, manufactures, commerce, and navigation. In tracing their causes you will have remarked with particular pleasure the happy effects of that revival of confidence, public as well as private, to which the Constitution and laws of the United States have so eminently contributed; and you will have observed with no less interest new and decisive proofs of the increasing reputation and credit of the nation. But you nevertheless can not fail to derive satisfaction from the confirmation of these circumstances which will be disclosed in the several official communications that will be made to you in the course of your deliberations.

The rapid subscriptions to the Bank of the United States, which completed the sum allowed to be subscribed in a single day, is among the striking and pleasing evidences which present themselves, not only of confidence in the Government, but of resource in the community.

In the interval of your recess due attention has been paid to the execution of the different objects which were specially provided for by the laws and resolutions of the last session.

Among the most important of these is the defense and security of the Western frontiers. To accomplish it on the most humane principles was a primary wish.

Accordingly, at the same time that treaties have been provisionally concluded and other proper means used to attach the wavering and to confirm in their friendship the well-disposed tribes of Indians, effectual measures have been adopted to make those of a hostile description sensible that a pacification was desired upon terms of moderation and justice.

Those measures having proved unsuccessful, it became necessary to convince the refractory of the power of the United States to punish their depredations. Offensive operations have therefore been directed, to be conducted, however, as consistently as possible with the dictates of humanity. Some of these have been crowned with full success and others are yet depending. The expeditions which have been completed were carried on under the authority and at the expense of the United States by the militia of Kentucky, whose enterprise, intrepidity, and good conduct are entitled to peculiar commendation.

Overtures of peace are still continued to the deluded tribes, and considerable numbers of individuals belonging to them have lately renounced all further opposition, removed from their former situations, and placed themselves under the immediate protection of the United States.

It is sincerely to be desired that all need of coercion in future may cease and that an intimate intercourse may succeed, calculated to advance the happiness of the Indians and to attach them firmly to the United States.

In order to this it seems necessary—

That they should experience the benefits of an impartial dispensation of justice.

That the mode of alienating their lands, the main source of discontent and war, should be so defined and regulated as to obviate imposition and as far

as may be practicable controversy concerning the reality and extent of the alienations which are made.

That commerce with them should be promoted under regulations tending to secure an equitable deportment toward them, and that such rational experiments should be made for imparting to them the blessings of civilization as may from time to time suit their condition.

That the Executive of the United States should be enabled to employ the means to which the Indians have been long accustomed for uniting their immediate interests with the preservation of peace.

And that efficacious provision should be made for inflicting adequate penalties upon all those who, by violating their rights, shall infringe the treaties and endanger the peace of the Union.

A system corresponding with the mild principles of religion and philanthropy toward an unenlightened race of men, whose happiness materially depends on the conduct of the United States, would be as honorable to the national character as conformable to the dictates of sound policy.

The powers specially vested in me by the act laying certain duties on distilled spirits; which respect the subdivisions of the districts into surveys, the appointment of officers, and the assignment of compensations, have likewise been carried into effect. In a matter in which both materials and experience were wanting to guide the calculation it will be readily conceived that there must have been difficulty in such an adjustment of the rates of compensation as would conciliate a reasonable competency with a proper regard to the limits prescribed by the law. It is hoped that the circumspection which has been used will be found in the result to have secured the last of the two objects; but it is probable that with a view to the first in some instances a revision of the provision will be found advisable.

The impressions with which this law has been received by the community have been upon the whole such as were to be expected among enlightened and well-disposed citizens from the propriety and necessity of the measure. The novelty, however, of the tax in a considerable part of the United States and a misconception of some of its provisions have given

occasion in particular places to some degree of discontent; but it is satisfactory to know that this disposition yields to proper explanations and more just apprehensions of the true nature of the law, and I entertain a full confidence that it will in all give way to motives which arise out of a just sense of duty and a virtuous regard to the public welfare.

If there are any circumstances in the law which consistently with its main design may be so varied as to remove any well-intentioned objections that may happen to exist, it will consist with a wise moderation to make the proper variations. It is desirable on all occasions to unite with a steady and firm adherence to constitutional and necessary acts of Government the fullest evidence of a disposition as far as may be practicable to consult the wishes of every part of the community and to lay the foundations of the public administration in the affections of the people.

Pursuant to the authority contained in the several acts on that subject, a district of 10 miles square for the permanent seat of the Government of the United States has been fixed and announced by proclamation, which district will comprehend lands on both sides of the river Potomac and the towns of Alexandria and Georgetown. A city has also been laid out agreeably to a plan which will be placed before Congress, and as there is a prospect, favored by the rate of sales which have already taken place, of ample funds for carrying on the necessary public buildings, there is every expectation of their due progress.

The completion of the census of the inhabitants, for which provision was made by law, has been duly notified (excepting one instance in which the return has been informal, and another in which it has been omitted or miscarried), and the returns of the officers who were charged with this duty, which will be laid before you, will give you the pleasing assurance that the present population of the United States borders on 4,000,000 persons.

It is proper also to inform you that a further loan of 2,500,000 florins has been completed in Holland, the terms of which are similar to those of the one last announced, except as to a small reduction of charges. Another, on like terms, for 6,000,000 florins, had been set on foot under circumstances that assured an immediate completion.

Gentlemen of the Senate:

Two treaties which have been provisionally concluded with the Cherokees and Six Nations of Indians will be laid before you for your consideration and ratification.

Gentlemen of the House of Representatives:

In entering upon the discharge of your legislative trust you must anticipate with pleasure that many of the difficulties necessarily incident to the first arrangements of a new government for an extensive country have been happily surmounted by the zealous and judicious exertions of your predecessors in cooperation with the other branch of the Legislature. The important objects which remain to be accomplished will, I am persuaded, be conducted upon principles equally comprehensive and equally well calculated for the advancement of the general weal.

The time limited for receiving subscriptions to the loans proposed by the act making provision for the debt of the United States having expired, statements from the proper department will as soon as possible apprise you of the exact result. Enough, however, is known already to afford an assurance that the views of that act have been substantially fulfilled. The subscription in the domestic debt of the United States has embraced by far the greatest proportion of that debt, affording at the same time proof of the general satisfaction of the public creditors with the system which has been proposed to their acceptance and of the spirit of accommodation to the convenience of the Government with which they are actuated. The subscriptions in the debts of the respective States as far as the provisions of the law have permitted may be said to be yet more general. The part of the debt of the United States which remains unsubscribed will naturally engage your further deliberations.

It is particularly pleasing to me to be able to announce to you that the revenues which have been established promise to be adequate to their objects, and may be permitted, if no unforeseen exigency occurs, to supersede for the present the necessity of any new burthens upon our constituents.

An object which will claim your early attention is a provision for the current service of the ensuing year, together with such ascertained demands upon the Treasury as require to be immediately discharged, and such

casualties as may have arisen in the execution of the public business, for which no specific appropriation may have yet been made; of all which a proper estimate will be laid before you.

Gentlemen of the Senate and of the House of Representatives:

I shall content myself with a general reference to former communications for several objects upon which the urgency of other affairs has hitherto postponed any definitive resolution. Their importance will recall them to your attention, and I trust that the progress already made in the most arduous arrangements of the Government will afford you leisure to resume them with advantage.

There are, however, some of them of which I can not forbear a more particular mention. These are the militia, the post-office and post-roads, the mint, weights and measures, a provision for the sale of the vacant lands of the United States.

The first is certainly an object of primary importance whether viewed in reference to the national security to the satisfaction of the community or to the preservation of order. In connection with this the establishment of competent magazines and arsenals and the fortification of such places as are peculiarly important and vulnerable naturally present themselves to consideration. The safety of the United States under divine protection ought to rest on the basis of systematic and solid arrangements, exposed as little as possible to the hazards of fortuitous circumstances.

The importance of the post-office and post-roads on a plan sufficiently liberal and comprehensive, as they respect the expedition, safety, and facility of communication, is increased by their instrumentality in diffusing a knowledge of the laws and proceedings of the Government, which, while it contributes to the security of the people, serves also to guard them against the effects of misrepresentation and misconception. The establishment of additional cross posts, especially to some of the important points in the Western and Northern parts of the Union, can not fail to be of material utility.

The disorders in the existing currency, and especially the scarcity of small change, a scarcity so peculiarly distressing to the poorer classes,

strongly recommend the carrying into immediate effect the resolution already entered into concerning the establishment of a mint. Measures have been taken pursuant to that resolution for procuring some of the most necessary artists, together with the requisite apparatus.

An uniformity in the weights and measures of the country is among the important objects submitted to you by the Constitution, and if it can be derived from a standard at once invariable and universal, must be no less honorable to the public councils than conducive to the public convenience.

A provision for the sale of the vacant lands of the United States is particularly urged, among other reasons, by the important considerations that they are pledged as a fund for reimbursing the public debt; that if timely and judiciously applied they may save the necessity of burthening our citizens with new taxes for the extinguishment of the principal; and that being free to discharge the principal but in a limited proportion, no opportunity ought to be lost for availing the public of its right.

GEORGE WASHINGTON.

ADDRESS OF THE SENATE TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

The PRESIDENT OF THE UNITED STATES.

SIR: The Senate of the United States have received with the highest satisfaction the assurances of public prosperity contained in your speech to both Houses. The multiplied blessings of Providence have not escaped our notice or failed to excite our gratitude.

The benefits which flow from the restoration of public and private confidence are conspicuous and important, and the pleasure with which we contemplate them is heightened by your assurance of those further communications which shall confirm their existence and indicate their source.

While we rejoice in the success of those military operations which have been directed against the hostile Indians, we lament with you the necessity that has produced them, and we participate the hope that the present prospect of a general peace on terms of moderation and justice may be wrought into complete and permanent effect, and that the measures of Government may equally embrace the security of our frontiers and the general interests of humanity, our solicitude to obtain which will insure our zealous attention to an object so warmly espoused by the principles of benevolence and so highly interesting to the honor and welfare of the nation.

The several subjects which you have particularly recommended and those which remain of former sessions will engage our early consideration. We are encouraged to prosecute them with alacrity and steadiness by the belief that they will interest no passion but that for the general welfare, by the assurance of concert, and by a view of those arduous and important arrangements which have been already accomplished.

We observe, sir, the constancy and activity of your zeal for the public good. The example will animate our efforts to promote the happiness of our country.

OCTOBER 28, 1791.

REPLY OF THE PRESIDENT.

GENTLEMEN: This manifestation of your zeal for the honor and the happiness of our country derives its full value from the share which your deliberations have already had in promoting both.

I thank you for the favorable sentiments with which you view the part I have borne in the arduous trust committed to the Government of the United States, and desire you to be assured that all my zeal will continue to second those further efforts for the public good which are insured by the spirit in which you are entering on the present session.

GEORGE WASHINGTON.

OCTOBER 31, 1791.

**ADDRESS OF THE HOUSE OF REPRESENTATIVES TO
GEORGE WASHINGTON, PRESIDENT OF THE UNITED
STATES.**

SIR: In receiving your address at the opening of the present session the House of Representatives have taken an ample share in the feelings inspired by the actual prosperity and flattering prospects of our country, and whilst with becoming gratitude to Heaven we ascribe this happiness to the true source from which it flows, we behold with an animating pleasure the degree in which the Constitution and laws of the United States have been instrumental in dispensing it.

It yields us particular satisfaction to learn the success with which the different important measures of the Government have proceeded, as well those specially provided for at the last session as those of preceding date. The safety of our Western frontier, in which the lives and repose of so many of our fellow-citizens are involved, being peculiarly interesting, your communications on that subject are proportionally grateful to us. The gallantry and good conduct of the militia, whose services were called for, is an honorable confirmation of the efficacy of that precious resource of a free state, and we anxiously wish that the consequences of their successful enterprises and of the other proceedings to which you have referred may leave the United States free to pursue the most benevolent policy toward the unhappy and deluded race of people in our neighborhood.

The amount of the population of the United States, determined by the returns of the census, is a source of the most pleasing reflections whether it be viewed in relation to our national safety and respectability or as a proof of that felicity in the situation of our country which favors so unexampled a rapidity in its growth. Nor ought any to be insensible to the additional

motive suggested by this important fact to perpetuate the free Government established, with a wise administration of it, to a portion of the earth which promises such an increase of the number which is to enjoy those blessings within the limits of the United States.

We shall proceed with all the respect due to your patriotic recommendations and with a deep sense of the trust committed to us by our fellow-citizens to take into consideration the various and important matters falling within the present session; and in discussing and deciding each we shall feel every disposition whilst we are pursuing the public welfare, which must be the supreme object with all our constituents, to accommodate as far as possible the means of attaining it to the sentiments and wishes of every part of them.

OCTOBER 27, 1791.

REPLY OF THE PRESIDENT.

GENTLEMEN: The pleasure I derive from an assurance of your attention to the objects I have recommended to you is doubled by your concurrence in the testimony I have borne to the prosperous condition of our public affairs.

Relying on the sanctions of your enlightened judgment and on your patriotic aid, I shall be the more encouraged in all my endeavors for the public weal, and particularly in those which may be required on my part for executing the salutary measures I anticipate from your present deliberations.

GEORGE WASHINGTON.

OCTOBER 28, 1791.

SPECIAL MESSAGES.

UNITED STATES, *October 26, 1791.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you copies of the following acts, which have been transmitted to me during the recess of Congress, viz:

An act passed by the legislature of New Hampshire for ceding to the United States the fort and light-house belonging to the said State.

An act of the legislature of Pennsylvania ratifying on behalf of said State the first article of amendment to the Constitution of the United States as proposed by Congress; and

An act of the legislature of North Carolina granting the use of the jails within that State to the United States.

GEORGE WASHINGTON.

UNITED STATES, *October 26, 1791.*

Gentlemen of the Senate:

I have directed the Secretary of War to lay before you for your consideration all the papers relative to the late negotiations with the Cherokee Indians, and the treaty concluded with that tribe on the 2d day of July last by the superintendent of the southern district, and I request your advice whether I shall ratify the same.

I also lay before you the instructions to Colonel Pickering and his conferences with the Six Nations of Indians. These conferences were for the purpose of conciliation, and at a critical period, to withdraw those Indians

to a greater distance from the theater of war, in order to prevent their being involved therein.

It might not have been necessary to have requested your opinion on this business had not the commissioner, with good intentions, but incautiously, made certain ratifications of lands unauthorized by his instructions and unsupported by the Constitution.

It therefore became necessary to disavow the transaction explicitly in a letter written by my orders to the governor of New York on the 17th of August last.

The speeches to the Complanter and other Seneca chiefs, the instructions to Colonel Proctor, and his report, and other messages and directions are laid before you for your information and as evidences that all proper lenient measures preceded the exercise of coercion.

The letters to the chief of the Creeks are also laid before you, to evince that the requisite steps have been taken to produce a full compliance with the treaty made with that nation on the 7th of August, 1790.

GEORGE WASHINGTON.

UNITED STATES, *October 27, 1791.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you a copy of a letter and of sundry documents which I have received from the governor of Pennsylvania, respecting certain persons who are said to have fled from justice out of the State of Pennsylvania into that of Virginia, together with a report of the Attorney-General of the United States upon the same subject.

I have received from the governor of North Carolina a copy of an act of the general assembly of that State, authorizing him to convey to the United States the right and jurisdiction of the said State over 1 acre of land in Occacock Island and 10 acres on the Cape Island, within the said State, for

the purpose of erecting light-houses thereon, together with the deed of the governor in pursuance thereof and the original conveyances made to the State by the individual proprietors, which original conveyances contain conditions that the light-house on Occacock shall be built before the 1st day of January, 1801, and that on the Cape Island before the 8th day of October, 1800. And I have caused these several papers to be deposited in the office of the Secretary of State.

A statement of the returns of the enumeration of the inhabitants of the United States which have been received will at this time be laid before you.

GEORGE WASHINGTON.

UNITED STATES, *October 27, 1791.*

Gentlemen of the Senate and of the House of Representatives:

I have directed the Secretary of War to lay before you, for your information, the reports of Brigadier-General Scott and Lieutenant-Colonel Commandant Wilkinson, the officers who commanded the two expeditions against the Wabash Indians in the months of June and August last, together with the instructions by virtue of which the said expeditions were undertaken. When the operations now depending shall be terminated, the reports relative thereto shall also be laid before you.

GEORGE WASHINGTON.

UNITED STATES, *October 31, 1791.*

Gentlemen of the Senate and of the House of Representatives:

I send you herewith the arrangement which has been made by me, pursuant to the act entitled "An act repealing after the last day of June next the duties heretofore laid upon distilled spirits imported from abroad and

laying others in their stead, and also upon spirits distilled within the United States, and for appropriating the same," in respect to the subdivision of the several districts created by the said act into surveys of inspection, the appointment of officers for the same, and the assignment of compensations.

GEORGE WASHINGTON.

UNITED STATES, *November 1, 1791.*

Gentlemen of the Senate and of the House of Representatives:

I received yesterday from the judge of the district of South Carolina a letter, inclosing the presentments of the grand jury to him, and stating the causes which have prevented the return of the census from that district, copies of which are now laid before you.

GEORGE WASHINGTON.

UNITED STATES, *November 10, 1791.*

Gentlemen of the Senate and of the House of Representatives:

The resolution passed at the last session of Congress, requesting the President of the United States to cause an estimate to be laid before Congress at their next session of the quantity and situation of the lands not claimed by the Indians nor granted to nor claimed by any of the citizens of the United States within the territory ceded to the United States by the State of North Carolina and within the territory of the United States northwest of the river Ohio, has been referred to the Secretary of State, a copy of whose report on that subject I now lay before you, together with the copy of a letter accompanying it.

GEORGE WASHINGTON.

UNITED STATES, *November 11, 1791.*

Gentlemen of the Senate and of the House of Representatives:

I have received from the governor of Virginia a resolution of the general assembly of that Commonwealth, ratifying the first article of the amendments proposed by Congress to the Constitution of the United States, a copy of which and of the letter accompanying it I now lay before you.

Sundry papers relating to the purchase by Judge Symmes of the lands on the Great Miami having been communicated to me, I have thought it proper to lay the same before you for your information on that subject.

GEORGE WASHINGTON.

UNITED STATES, *December 12, 1791.*

Gentlemen of the Senate and of the House of Representatives:

It is with great concern that I communicate to you the information received from Major-General St. Clair of the misfortune which has befallen the troops under his command.

Although the national loss is considerable according to the scale of the event, yet it may be repaired without great difficulty, excepting as to the brave men who have fallen on the occasion, and who are a subject of public as well as private regret.

A further communication will shortly be made of all such matters as shall be necessary to enable the Legislature to judge of the future measures which it may be proper to pursue.

GEORGE WASHINGTON.

UNITED STATES, *December 13, 1791.*

Gentlemen of the Senate and of the House of Representatives:

I place before you the plan of a city that has been laid out within the district of 10 miles square, which was fixed upon for the permanent seat of the Government of the United States.

GEORGE WASHINGTON.

UNITED STATES, *December 20, 1791.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you the copy of a letter which I have received from the governor of the Commonwealth of Pennsylvania, and of sundry documents which accompanied it, relative to a contract for the purchase of a certain tract of land bounding on Lake Erie, together with a copy of a report of the Secretary of State on the same subject.

GEORGE WASHINGTON.

UNITED STATES, *December 30, 1791.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you a copy of the ratification by the Commonwealth of Virginia of the articles of amendment proposed by Congress to the Constitution of the United States, and a copy of a letter which accompanied said ratification from the governor of Virginia.

GEORGE WASHINGTON.

UNITED STATES, *January 11, 1792.*

Gentlemen of the Senate:

I lay before you the following report, which has been made to me by the Secretary of State:

DECEMBER 22, 1791.

The Secretary of State reports to the President of the United States that one of the commissioners of Spain, in the name of both, has lately communicated to him verbally, by order of his Court, that His Catholic Majesty, apprised of our solicitude to have some arrangements made respecting our free navigation of the river Mississippi and the use of a port thereon, is ready to enter into treaty thereon at Madrid.

The Secretary of State is of opinion that this overture should be attended to without delay, and that the proposal of treating at Madrid, though not what might have been desired, should yet be accepted, and a commission plenipotentiary made out for the purpose.

That Mr. Carmichael, the present chargé d'affaires of the United States at Madrid, from the local acquaintance which he must have acquired with persons and circumstances, would be an useful and proper member of the commission, but that it would be useful also to join with him some person more particularly acquainted with the circumstances of the navigation to be treated of.

That the fund appropriated by the act providing the means of intercourse between the United States and foreign nations will insufficiently furnish the ordinary and regular demands on it, and is consequently inadequate to the mission of an additional commissioner express from hence.

That therefore it will be advisable on this account, as well as for the sake of dispatch, to constitute some one of the ministers of the United States in Europe, jointly with Mr. Carmichael, commissioners plenipotentiary for the special purpose of negotiating and concluding with any person or persons duly authorized by His Catholic Majesty a convention or treaty for the free navigation of the river Mississippi by the citizens of the United States under such accommodations with respect to a port and other circumstances as may render the said navigation practicable, useful, and free from dispute, saving to the President and Senate their respective rights as to the ratification of the same, and that the said negotiation be at Madrid, or such other place in Spain as shall be desired by His Catholic Majesty.

TH. JEFFERSON.

In consequence of the communication from the Court of Spain, as stated in the preceding report, I nominate William Carmichael, present chargé d'affaires of the United States at Madrid, and William Short, present chargé d'affaires of the United States at Paris, to be commissioners plenipotentiary for negotiating and concluding with any person or persons who shall be duly authorized by His Catholic Majesty a convention or treaty concerning the navigation of the river Mississippi by the citizens of the United States, saving to the President and Senate their respective rights as to the ratification of the same.

GEORGE WASHINGTON.

UNITED STATES, *January 11, 1792.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you, in confidence, two reports, made to me by the Secretary for the Department of War, relatively to the present state of affairs on the Western frontiers of the United States.

In these reports the causes of the present war with the Indians, the measures taken by the Executive to terminate it amicably, and the military preparations for the late campaign are stated and explained, and also a plan suggested of such further measures on the occasion as appear just and expedient.

I am persuaded, gentlemen, that you will take this important subject into your immediate and serious consideration, and that the result of your deliberations will be the adoption of such wise and efficient measures as will reflect honor on our national councils and promote the welfare of our country.

GEORGE WASHINGTON.

UNITED STATES, *January 18, 1792.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you a copy of an exemplified copy of an act of the legislature of Vermont, ratifying on behalf of that State the articles of amendment proposed by Congress to the Constitution of the United States together with a copy of a letter which accompanied said ratification.

GEORGE WASHINGTON.

UNITED STATES, *January 18, 1792.*

Gentlemen of the Senate:

I lay before you the communications of a deputation from the Cherokee Nation of Indians now in this city, and I request your advice whether an additional article shall be made to the Cherokee treaty to the following effect, to wit:

That the sum to be paid annually by the United States to the Cherokee Nation of Indians in consideration of the relinquishment of lands as stated in the treaty made with them on the 2d day of July, 1791, shall be \$1,500 instead of \$1,000 mentioned in the said treaty.

GEORGE WASHINGTON.

UNITED STATES, *January 23, 1792.*

Gentlemen of the Senate and of the House of Representatives:

Having received from the governor of Virginia a letter, inclosing a resolution of the general assembly of that State and a report of a committee

of the House of Delegates respecting certain lands located by the officers and soldiers of the Virginia line under the laws of that State, and since ceded to the Chickasaw Indians, I lay copies of the same before you, together with a report of the Secretary of State on this subject.

GEORGE WASHINGTON.

UNITED STATES, *February 8, 1792.*

Gentlemen of the Senate and of the House of Representatives:

An article of expense having occurred in the Department of Foreign Affairs for which no provision has been made by law, I lay before you a letter from the Secretary of State explaining the same, in order that you may do thereon what you shall find to be right.

GEORGE WASHINGTON.

UNITED STATES, *March 3, 1792.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you a copy of a return of the number of inhabitants in the district of South Carolina as made to me by the marshal thereof, and a copy of a letter which accompanied said return.

GEORGE WASHINGTON.

UNITED STATES, *March 5, 1792.*

Gentlemen of the Senate and of the House of Representatives:

Knowing the friendly interest you take in whatever may promote the happiness and prosperity of the French nation, it is with pleasure that I lay before you the translation of a letter which I have received from His Most Christian Majesty, announcing to the United States of America his acceptance of the constitution presented to him by his nation.

GEORGE WASHINGTON.

Very Dear Great Friends and Allies:

We make it our duty to inform you that we have accepted the constitution which has been presented to us in the name of the nation, and according to which France will be henceforth governed.

We do not doubt that you take an interest in an event so important to our Kingdom and to us, and it is with real pleasure we take this occasion to renew to you assurances of the sincere friendship we bear you. Whereupon we pray God to have you, very dear great friends and allies, in His just and holy keeping.

Written at Paris the 19th of September, 1791.

Your good friend and ally,

LOUIS.

MONTMORIN.

The UNITED STATES OF NORTH AMERICA.

UNITED STATES, *March 6, 1792.*

Gentlemen of the Senate:

I lay before you the following report, which has been submitted to me by the Secretary of State:

JANUARY 10, 1792.

The Secretary of State having received information that the merchants and merchandise of the United States are subject in Copenhagen and other ports of Denmark to considerable extra duties, from which they might probably be relieved by the presence of a consul there

Reports to the President of the United States that it would be expedient to name a consul to be resident in the port of Copenhagen; that he has not been able to find that there is any citizen of the United States residing there; that there is a certain Hans Rudolph Saaby, a Danish subject and merchant of that place, of good character, of wealth and distinction, and well qualified and disposed to act there for the United States, who would probably accept the commission of consul; but that that of vice-consul, hitherto given by the President to foreigners in ports where there was no proper American citizen, would probably not be accepted because in this, as in some other ports of Europe, usage has established it as a subordinate grade.

And that he is therefore of the opinion that the said Hans Rudolph Saaby should be nominated consul of the United States of America for the port of Copenhagen and such other places within the allegiance of His Danish Majesty as shall be nearer to the said port than to the residence of any other consul or vice-consul of the United States within the same allegiance.

THOMAS JEFFERSON.

With a view to relieve the merchants and merchandise of the United States from the extra duties to which they are or may be subjected in the ports of Denmark, I have thought it for the interest of the United States that a consul be appointed to reside at Copenhagen. I therefore nominate Hans Rudolph Saaby, a Danish subject and merchant of Copenhagen, to be consul for the United States of America at the port of Copenhagen and for such other places within the allegiance of His Danish Majesty as shall be nearer to the said port than to the residence of any other consul or vice-consul of the United States within the same allegiance.

GEORGE WASHINGTON.

UNITED STATES, *March 7, 1792.*

Gentlemen of the Senate:

I submit to your consideration the report of the Secretary of State, which accompanies this, stating the reasons for extending the negotiation proposed at Madrid to the subject of commerce, and explaining, under the form of instructions to the commissioners lately appointed to that Court, the principles on which commercial arrangements with Spain might, if desired on her part, be acceded to on ours; and I have to request your decision whether you will advise and consent to the extension of the powers of the commissioners as proposed, and to the ratification of a treaty which shall conform to those instructions should they enter into such a one with that Court.

GEORGE WASHINGTON.

MARCH 7, 1792.

The Secretary of State having understood from communications with the commissioners of His Catholic Majesty, subsequent to that which he reported to the President on the 22d of December last, that though they considered the navigation of the Mississippi as the principal object of negotiation between the two countries, yet it was expected by their Court that the conferences would extend to all the matters which were under negotiation on the former occasion with Mr. Gardoqui, and particularly to some arrangements of commerce, is of opinion that to renew the conferences on this subject also, since they desire it, will be but friendly and respectful, and can lead to nothing without our own consent, and that to refuse it might obstruct the settlement of the questions of navigation and boundary; and therefore reports to the President of the United States the following observations and instructions to the commissioners of the United States appointed to negotiate with the Court of Spain a treaty or convention relative to the navigation of the Mississippi, which observations and instructions he is of opinion should be laid before the Senate of the United States, and their decision be desired whether they will advise and consent that a treaty be entered into by the commissioners of the United States with Spain conformably thereto.

After stating to our commissioners the foundation of our rights to navigate the Mississippi and to hold our southern boundary at the thirty-first degree of latitude, and that each of these is to be a *sine qua non*, it is proposed to add as follows:

On the former conferences on the navigation of the Mississippi, Spain chose to blend with it the subject of commerce, and accordingly specific propositions thereon passed between the negotiators. Her object then was to obtain our renunciation of the navigation and to hold out commercial arrangements perhaps as a lure to us. Perhaps, however, she might then, and may now, really set a value on commercial arrangements with us, and may receive them as a consideration for accommodating us in the navigation, or may wish for them to have the appearance of receiving a consideration. Commercial arrangements, if

acceptable in themselves, will not be the less so if coupled with those relating to navigation and boundary. We have only to take care that they be acceptable in themselves.

There are two principles which may be proposed as the basis of a commercial treaty: First, that of exchanging the privileges of native citizens, or, second, those of the most favored nation.

First. With the nations holding important possessions in America we are ready to exchange the rights of native citizens, provided they be extended through the whole possessions of both parties; but the propositions of Spain made on the former occasion (a copy of which accompanies this) were that we should give their merchants, vessels, and productions the privileges of native merchants, vessels, and productions through the whole of our possessions, and they give the same to ours only in Spain and the Canaries. This is inadmissible, because unequal; and as we believe that Spain is not ripe for an equal exchange on this basis, we avoid proposing it.

Second. Though treaties which merely exchange the rights of the most favored nations are not without all inconvenience, yet they have their conveniences also. It is an important one that they leave each party free to make what internal regulations they please, and to give what preferences they find expedient to native merchants, vessels, and productions; and as we already have treaties on this basis with France, Holland, Sweden, and Prussia, the two former of which are perpetual, it will be but small additional embarrassment to extend it to Spain. On the contrary, we are sensible it is right to place that nation on the most favored footing, whether we have a treaty with them or not, and it can do us no harm to secure by treaty a reciprocation of the right.

Of the four treaties before mentioned, either the French or the Prussian might be taken as a model; but it would be useless to propose the Prussian, because we have already supposed that Spain would never consent to those articles which give to each party access to all the dominions of the other; and without this equivalent we would not agree to tie our own hands so materially in war as would be done by the twenty-third article, which renounces the right of fitting out privateers or of capturing merchant vessels. The French treaty, therefore, is proposed as the model. In this, however, the following changes are to be made:

We should be admitted to all the dominions of Spain to which any other foreign nation is or may be admitted.

Article 5, being an exemption from a particular duty in France, will of course be omitted as inapplicable to Spain.

Article 8 to be omitted as unnecessary with Morocco, and inefficacious and little honorable with any of the Barbary powers; but it may furnish occasion to sound Spain on the project of a convention of the powers at war with the Barbary States to keep up by rotation a constant cruise of a given force on their coasts till they shall be compelled to renounce forever and against all nations their predatory practices. Perhaps the infidelities of the Algerines to their treaty of peace with Spain, though the latter does not choose to break openly, may induce her to subsidize us to cruise against them with a given force.

Articles 9 and 10, concerning fisheries, to be omitted as inapplicable.

Article 11. The first paragraph of this article respecting the *droit d'aubaine* to be omitted, that law being supposed peculiar to France.

Article 17, giving asylum in the ports of either to the armed vessels of the other with the prizes taken from the enemies of that other, must be qualified as it is in the nineteenth article of the Prussian treaty, as the stipulation in the latter part of the article that "no shelter or refuge shall be given in the ports of the one to such as shall have made prize on the subjects of the other of the parties" would forbid us, in case of a war between France and Spain, to give shelter in our ports to prizes made by the latter on the former, while the first part of the article would oblige us to shelter those made by the former on the latter—a very dangerous covenant, and which ought never to be repeated in any other instance.

Article 29. Consuls should be received at all the ports at which the vessels of either party may be received.

Article 30, concerning free ports in Europe and America, free ports in the Spanish possessions in America, and particularly at The Havannah, are more to be desired than expected. It can therefore only be recommended to the best endeavors of the commissioners to obtain them. It will be something to obtain for our vessels, flour, etc., admission to those ports during their pleasure. In like manner, if they could be prevailed on to reestablish our right of cutting logwood in the Bay of Campeachy on the footing on which it stood before the treaty of 1763, it would be desirable and not endanger to us any contest with the English, who by the revolution treaty are restrained to the southeastern parts of Yucatan.

Article 31. The *act* of ratification on our part may require a twelvemonth from the date of the treaty, as the Senate meets regularly but once a year; and to return it to Madrid for *exchange* may require four months more.

The treaty must not exceed —— years' duration, except the clauses relating to boundary and the navigation of the Mississippi, which must be perpetual and final. Indeed, these two subjects had better be in a separate instrument.

There might have been mentioned a third species of arrangement—that of making special agreements on every special subject of commerce, and of settling a tariff of duty to be paid on each side on every particular article; but this would require in our commissioners a very minute knowledge of our commerce, as it is impossible to foresee every proposition of this kind which might be brought into discussion and to prepare them for it by information and instruction from hence. Our commerce, too, is as yet rather in a course of experiment, and the channels in which it will ultimately flow are not sufficiently known to enable us to provide for it by special agreement; nor have the exigencies of our new Government as yet so far developed themselves as that we can know to what degree we may or must have recourse to commerce for the purposes of revenue. No common consideration, therefore, ought to induce us as yet to arrangements of this kind. Perhaps nothing should do it with any nation short of the privileges of natives in all their possessions, foreign and domestic.

It were to be wished, indeed, that some positively favorable stipulations respecting our grain, flour, and fish could be obtained, even on our giving reciprocal advantages to some of the commodities of Spain, say her wines and brandies; but,

First. If we quit the ground of the *most favored nation* as to certain articles for our convenience, Spain may insist on doing the same for other articles for her convenience, and thus our commissioners will get themselves on the ground of *a treaty of detail*, for which they will not be prepared.

Second. If we grant favor to the wines and brandies of Spain, then Portugal and France will demand the same; and in order to create an equivalent Portugal may lay a duty on our fish and grain, and France a prohibition on our whale oils, the removal of which will be proposed as an equivalent.

Thus much, however, as to grain and flour may be attempted. There has not long since been a considerable duty laid on them in Spain. This was while a treaty on the subject of commerce was pending between us and Spain, as that Court considers the matter. It is not generally thought right to change the state of things pending a treaty concerning them. On this consideration and on the motive of cultivating our friendship, perhaps the commissioners may induce them to restore this commodity to the footing on which it was on opening the conferences with Mr. Gardoqui, on the 26th day of July, 1785. If Spain says, "Do the same by your tonnage on our vessels," the answer may be that "Our foreign tonnage affects Spain very little and other nations very much; whereas the duty on flour in Spain affects us very much and other nations very little; consequently there would be no equality in reciprocal relinquishment, as there had been none in the reciprocal innovation; and Spain, by insisting on this, would in fact only be aiding the interests of her rival nations, to whom we should be forced to extend the same indulgence." At the time of opening the conferences, too, we had as yet not erected any system, our Government itself being not yet erected. Innovation then was unavoidable on our part, if it be innovation to establish a system. We did it on fair and general ground, on ground favorable to Spain; but they had a system, and therefore innovation was avoidable on their part.

THOMAS JEFFERSON.

ARTICLES PROPOSED BY DON DIEGO GARDOQUI TO BE INSERTED IN THE TREATY WITH THE UNITED STATES.

First. That all commercial regulations affecting each other shall be founded in perfect reciprocity. Spanish merchants shall enjoy all the commercial privileges of native merchants in the United States, and American merchants shall enjoy all the commercial privileges of native merchants in the Kingdom of Spain and in the Canaries and other islands belonging to and adjacent thereto. The same privileges shall extend to their respective vessels and merchandise consisting of the manufactures and products of their respective countries.

Second. Each party may establish consuls in the countries of the other (excepting such provinces in Spain into which none have heretofore been admitted, viz, Bilboa and Guipusca), with such powers and privileges as shall be ascertained by a particular convention.

Third. That the bona fide manufactures and productions of the United States (tobacco only excepted, which shall continue under its present regulation) may be imported in American or Spanish vessels into any parts of His Majesty's European dominions and islands aforesaid in like manner as if they were the productions of Spain, and, on the other hand, that the bona fide manufactures and productions of His Majesty's dominions may be imported into the United States in Spanish or American vessels in like manner as if they were the manufactures and productions of the said States. And further, that all such duties and imposts as may mutually be thought necessary to lay on them by either party shall be ascertained and regulated on principles of exact reciprocity by a tariff, to be formed by a convention for that purpose, to be negotiated and made within *one* year after the exchange of the ratification of this treaty; and in the meantime that no other duties or imposts shall be exacted from each other's merchants and ships than such as may be payable by natives in like cases.

Fourth. That inasmuch as the United States, from not having mines of gold and silver, may often want supplies of specie for a circulating medium, His Catholic Majesty, as a proof of his good will, agrees to order the masts and timber which may from time to time be wanted for his royal navy to be purchased and paid for in specie in the United States, provided the said masts and timber shall be of equal quality and when brought to Spain shall not cost more than the like may there be had for from other countries.

Fifth. It is agreed that the articles commonly inserted in other treaties of commerce for mutual and reciprocal convenience shall be inserted in this, and that this treaty and every article and stipulation therein shall continue in full force for —— years, to be computed from the day of the date hereof.

UNITED STATES, *March 9, 1792.*

Gentlemen of the Senate and of the House of Representatives:

I now lay before you a general account rendered by the bankers of the United States at Amsterdam of the payments they had made between the 1st of July, 1790 and 1791, from the fund deposited in their hands for the purposes of the act providing the means of intercourse between the United States and foreign nations, and of the balance remaining in their hands, together with a letter from the Secretary of State on the subject.

GEORGE WASHINGTON.

UNITED STATES, *March 20, 1792.*

Gentlemen of the Senate and of the House of Representatives:

The several acts which have been passed relatively to the military establishment of the United States and the protection of the frontiers do not appear to have made provision for more than one brigadier-general. It is incumbent upon me to observe that, with a view merely to the organization of the troops designated by those acts, a greater number of officers of that grade would, in my opinion, be conducive to the good of the public service. But an increase of the number becomes still more desirable in reference to a different organization which is contemplated, pursuant to the authority vested in me for that purpose, and which, besides other advantages expected from it, is recommended by considerations of economy. I therefore request that you will be pleased to take this subject into your early consideration and to adopt such measures thereon as you shall judge proper.

GEORGE WASHINGTON.

UNITED STATES, *March 23, 1792.*

Gentlemen of the Senate:

At the conferences which Colonel Pickering had with the Five Nations at the Painted Post the last year ideas were then held out of introducing among them some of the primary principles of civilization, in consequence of which, as well as more firmly to attach them to the interests of the United States, they have been invited to the seat of the General Government.

As the representation now here is respectable for its character and influence, it is of some importance that the chiefs should be well satisfied of the entire good faith and liberality of the United States.

In managing the affairs of the Indian tribes generally it appears proper to teach them to expect annual presents, conditioned on the evidence of their attachment to the interests of the United States. The situation of the Five Nations and the present crisis of affairs would seem to render the extension of this measure to them highly judicious. I therefore request the advice of the Senate whether an article shall be stipulated with the Five Nations to the following purport, to wit:

The United States, in order to promote the happiness of the Five Nations of Indians, will cause to be expended annually the amount of \$1,500 in purchasing for them clothing, domestic animals, and implements of husbandry, and for encouraging useful artificers to reside in their villages,

GEORGE WASHINGTON.

APRIL 13, 1792.

Gentlemen of the Senate and of the House of Representatives:

I have thought it proper to lay before you a communication of the 11th instant from the minister plenipotentiary of Great Britain to the Secretary of State, relative to the commerce of the two countries, together with their explanatory correspondence and the Secretary of State's letter to me on the subject,

GEORGE WASHINGTON.

UNITED STATES, *April 16, 1792.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you a copy of a letter from the judges of the circuit court of the United States held for the New York district, and of their opinion and agreement respecting the "Act to provide for the settlement of the claims of widows and orphans barred by the limitations heretofore established, and to regulate the claims to invalid pensions."

GEORGE WASHINGTON.

UNITED STATES, *April 21, 1792.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you the copy of a letter which I have received from the judges of the circuit court of the United States held for the Pennsylvania district relatively to the "Act to provide for the settlement of the claims of widows and orphans barred by the limitations heretofore established, and to regulate the claims to invalid pensions."

GEORGE WASHINGTON.

UNITED STATES, *May 8, 1792.*

Gentlemen of the Senate:

If the President of the United States should conclude a convention or treaty with the Government of Algiers for the ransom of the thirteen Americans in captivity there for a sum not exceeding \$40,000, all expenses

included, will the Senate approve the same? Or is there any, and what, greater or lesser sum which they would fix on as the limit beyond which they would not approve the ransom?

If the President of the United States should conclude a treaty with the Government of Algiers for the establishment of peace with them, at an expense not exceeding \$25,000, paid at the signature, and a like sum to be paid annually afterwards during the continuance of the treaty, would the Senate approve the same? Or are there any greater or lesser sums which they would fix on as the limits beyond which they would not approve of such treaty?

GEORGE WASHINGTON.

VETO MESSAGE.

UNITED STATES, *April 5, 1792.*

Gentlemen of the House of Representatives:

I have maturely considered the act passed by the two Houses entitled "An act for an apportionment of Representatives among the several States according to the first enumeration," and I return it to your House, wherein it originated, with the following objections:

First. The Constitution has prescribed that Representatives shall be apportioned among the several States according to their respective numbers, and there is no one proportion or divisor which, applied to the respective numbers of the States, will yield the number and allotment of Representatives proposed by the bill.

Second. The Constitution has also provided that the number of Representatives shall not exceed 1 for every 30,000, which restriction is by the context and by fair and obvious construction to be applied to the separate and respective numbers of the States; and the bill has allotted to eight of the States more than 1 for every 30,000.

GEORGE WASHINGTON.

PROCLAMATION.

[From Sparks's Washington, Vol. X, p. 532.]

Whereas certain violent and unwarrantable proceedings have lately taken place tending to obstruct the operation of the laws of the United States for raising a revenue upon spirits distilled within the same, enacted pursuant to express authority delegated in the Constitution of the United States, which proceedings are subversive of good order, contrary to the duty that every citizen owes to his country and to the laws, and of a nature dangerous to the very being of a government; and

Whereas such proceedings are the more unwarrantable by reason of the moderation which has been heretofore shown on the part of the Government and of the disposition which has been manifested by the Legislature (who alone have authority to suspend the operation of laws) to obviate causes of objection and to render the laws as acceptable as possible; and

Whereas it is the particular duty of the Executive "to take care that the laws be faithfully executed," and not only that duty but the permanent interests and happiness of the people require that every legal and necessary step should be pursued as well to prevent such violent and unwarrantable proceedings as to bring to justice the infractors of the laws and secure obedience thereto:

Now, therefore, I, George Washington, President of the United States, do by these presents most earnestly admonish and exhort all persons whom it may concern to refrain and desist from all unlawful combinations and proceedings whatsoever having for object or tending to obstruct the operation of the laws aforesaid, inasmuch as all lawful ways and means will be strictly put in execution for bringing to justice the infractors thereof and securing obedience thereto.

And I do moreover charge and require all courts, magistrates, and officers whom it may concern, according to the duties of their several offices, to exert the powers in them respectively vested by law for the

purposes aforesaid, hereby also enjoining and requiring all persons whomsoever, as they tender the welfare of their country, the just and due authority of Government, and the preservation of the public peace, to be aiding and assisting therein according to law.

In testimony whereof I have caused the seal of the United States to be affixed to these presents, and signed the same with my hand.

[SEAL.]

Done this 15th of September, A.D. 1792, and of the Independence of the United States the seventeenth.

GEORGE WASHINGTON.

FOURTH ANNUAL ADDRESS.

UNITED STATES, *November 6, 1792.*

Fellow-Citizens of the Senate and of the House of Representatives:

It is some abatement of the satisfaction with which I meet you on the present occasion that, in felicitating you on a continuance of the national prosperity generally, I am not able to add to it information that the Indian hostilities which have for some time past distressed our Northwestern frontier have terminated.

You will, I am persuaded, learn with no less concern than I communicate it that reiterated endeavors toward effecting a pacification have hitherto issued only in new and outrageous proofs of persevering hostility on the part of the tribes with whom we are in contest. An earnest desire to procure tranquillity to the frontier, to stop the further effusion of blood, to arrest the progress of expense, to forward the prevalent wish of the nation for peace has led to strenuous efforts through various channels to accomplish these desirable purposes; in making which efforts I consulted less my own anticipations of the event, or the scruples which some considerations were calculated to inspire, than the wish to find the object attainable, or if not attainable, to ascertain unequivocally that such is the case.

A detail of the measures which have been pursued and of their consequences, which will be laid before you, while it will confirm to you the want of success thus far, will, I trust, evince that means as proper and as efficacious as could have been devised have been employed. The issue of some of them, indeed, is still depending, but a favorable one, though not to be despaired of, is not promised by anything that has yet happened.

In the course of the attempts which have been made some valuable citizens have fallen victims to their zeal for the public service. A sanction commonly respected even among savages has been found in this instance insufficient to protect from massacre the emissaries of peace. It will, I

presume, be duly considered whether the occasion does not call for an exercise of liberality toward the families of the deceased.

It must add to your concern to be informed that, besides the continuation of hostile appearances among the tribes north of the Ohio, some threatening symptoms have of late been revived among some of those south of it.

A part of the Cherokees, known by the name of Chickamaugas, inhabiting five villages on the Tennessee River, have long been in the practice of committing depredations on the neighboring settlements.

It was hoped that the treaty of Holston, made with the Cherokee Nation in July, 1791, would have prevented a repetition of such depredations; but the event has not answered this hope. The Chickamaugas, aided by some banditti of another tribe in their vicinity, have recently perpetrated wanton and unprovoked hostilities upon the citizens of the United States in that quarter. The information which has been received on this subject will be laid before you. Hitherto defensive precautions only have been strictly enjoined and observed.

It is not understood that any breach of treaty or aggression whatsoever on the part of the United States or their citizens is even alleged as a pretext for the spirit of hostility in this quarter.

I have reason to believe that every practicable exertion has been made (pursuant to the provision by law for that purpose) to be prepared for the alternative of a prosecution of the war in the event of a failure of pacific overtures. A large proportion of the troops authorized to be raised have been recruited, though the number is still incomplete, and pains have been taken to discipline and put them in condition for the particular kind of service to be performed. A delay of operations (besides being dictated by the measures which were pursuing toward a pacific termination of the war) has been in itself deemed preferable to immature efforts. A statement from the proper department with regard to the number of troops raised, and some other points which have been suggested, will afford more precise information as a guide to the legislative consultations, and among other things will enable Congress to judge whether some additional stimulus to the recruiting service may not be advisable.

In looking forward to the future expense of the operations which may be found inevitable I derive consolation from the information I receive that the product of the revenues for the present year is likely to supersede the necessity of additional burthens on the community for the service of the ensuing year. This, however, will be better ascertained in the course of the session, and it is proper to add that the information alluded to proceeds upon the supposition of no material extension of the spirit of hostility.

I can not dismiss the subject of Indian affairs without again recommending to your consideration the expediency of more adequate provision for giving energy to the laws throughout our interior frontier and for restraining the commission of outrages upon the Indians, without which all pacific plans must prove nugatory. To enable, by competent rewards, the employment of qualified and trusty persons to reside among them as agents would also contribute to the preservation of peace and good neighborhood. If in addition to these expedients an eligible plan could be devised for promoting civilization among the friendly tribes and for carrying on trade with them upon a scale equal to their wants and under regulations calculated to protect them from imposition and extortion, its influence in cementing their interest with ours could not but be considerable.

The prosperous state of our revenue has been intimated. This would be still more the case were it not for the impediments which in some places continue to embarrass the collection of the duties on spirits distilled within the United States. These impediments have lessened and are lessening in local extent, and, as applied to the community at large, the contentment with the law appears to be progressive.

But symptoms of increased opposition having lately manifested themselves in certain quarters, I judged a special interposition on my part proper and advisable, and under this impression have issued a proclamation warning against all unlawful combinations and proceedings having for their object or tending to obstruct the operation of the law in question, and announcing that all lawful ways and means would be strictly put in execution for bringing to justice the infractors thereof and securing obedience thereto.

Measures have also been taken for the prosecution of offenders, and Congress may be assured that nothing within constitutional and legal limits which may depend upon me shall be wanting to assert and maintain the just authority of the laws. In fulfilling this trust I shall count entirely upon the full cooperation of the other departments of the Government and upon the zealous support of all good citizens.

I can not forbear to bring again into the view of the Legislature the subject of a revision of the judiciary system. A representation from the judges of the Supreme Court, which will be laid before you, points out some of the inconveniences that are experienced. In the course of the execution of the laws considerations arise out of the structure of that system which in some cases tend to relax their efficacy. As connected with this subject, provisions to facilitate the taking of bail upon processes out of the courts of the United States and a supplementary definition of offenses against the Constitution and laws of the Union and of the punishment for such offenses will, it is presumed, be found worthy of particular attention.

Observations on the value of peace with other nations are unnecessary. It would be wise, however, by timely provisions to guard against those acts of our own citizens which might tend to disturb it, and to put ourselves in a condition to give that satisfaction to foreign nations which we may sometimes have occasion to require from them. I particularly recommend to your consideration the means of preventing those aggressions by our citizens on the territory of other nations, and other infractions of the law of nations, which, furnishing just subject of complaint, might endanger our peace with them; and, in general, the maintenance of a friendly intercourse with foreign powers will be presented to your attention by the expiration of the law for that purpose, which takes place, if not renewed, at the close of the present session.

In execution of the authority given by the Legislature measures have been taken for engaging some artists from abroad to aid in the establishment of our mint. Others have been employed at home. Provision has been made of the requisite buildings, and these are now putting into proper condition for the purposes of the establishment. There has also been a small beginning in the coinage of half dimes, the want of small coins in circulation calling the first attention to them.

The regulation of foreign coins in correspondence with the principles of our national coinage, as being essential to their due operation and to order in our money concerns, will, I doubt not, be resumed and completed.

It is represented that some provisions in the law which establishes the post-office operate, in experiment, against the transmission of newspapers to distant parts of the country. Should this, upon due inquiry, be found to be the fact, a full conviction of the importance of facilitating the circulation of political intelligence and information will, I doubt not, lead to the application of a remedy.

The adoption of a constitution for the State of Kentucky has been notified to me. The Legislature will share with me in the satisfaction which arises from an event interesting to the happiness of the part of the nation to which it relates and conducive to the general order.

It is proper likewise to inform you that since my last communication on the subject, and in further execution of the acts severally making provision for the public debt and for the reduction thereof, three new loans have been effected, each for 3,000,000 florins—one at Antwerp, at the annual interest of 4-1/2 per cent, with an allowance of 4 per cent in lieu of all charges, and the other two at Amsterdam, at the annual interest of 4 per cent, with an allowance of 5-1/2 per cent in one case and of 5 per cent in the other in lieu of all charges. The rates of these loans and the circumstances under which they have been made are confirmations of the high state of our credit abroad.

Among the objects to which these funds have been directed to be applied, the payment of the debts due to certain foreign officers, according to the provision made during the last session, has been embraced.

Gentlemen of the House of Representatives:

I entertain a strong hope that the state of the national finances is now sufficiently matured to enable you to enter upon a systematic and effectual arrangement for the regular redemption and discharge of the public debt, according to the right which has been reserved to the Government. No measure can be more desirable, whet her viewed with an eye to its intrinsic importance or to the general sentiment and wish of the nation.

Provision is likewise requisite for the reimbursement of the loan which has been made of the Bank of the United States, pursuant to the eleventh section of the act by which it is incorporated. In fulfilling the public stipulations in this particular it is expected a valuable saving will be made.

Appropriations for the current service of the ensuing year and for such extraordinaries as may require provision will demand, and I doubt not will engage, your early attention.

Gentlemen of the Senate and of the House of Representatives:

I content myself with recalling your attention generally to such objects, not particularized in my present, as have been suggested in my former communications to you.

Various temporary laws will expire during the present session. Among these, that which regulates trade and intercourse with the Indian tribes will merit particular notice.

The results of your common deliberations hitherto will, I trust, be productive of solid and durable advantages to our constituents, such as, by conciliating more and more their ultimate suffrage, will tend to strengthen and confirm their attachment to that Constitution of Government upon which, under Divine Providence, materially depend their union, their safety, and their happiness.

Still further to promote and secure these inestimable ends there is nothing which can have a more powerful tendency than the careful cultivation of harmony, combined with a due regard to stability, in the public councils.

GEORGE WASHINGTON.

ADDRESS OF THE SENATE TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

The PRESIDENT OF THE UNITED STATES:

Accept, sir, our grateful acknowledgments for your address at the opening of the present session. We participate with you in the satisfaction arising from the continuance of the general prosperity of the nation, but it is not without the most sincere concern that we are informed that the reiterated efforts which have been made to establish peace with the hostile Indians have hitherto failed to accomplish that desired object. Hoping that the measures still depending may prove more successful than those which have preceded them, we shall nevertheless concur in every necessary preparation for the alternative, and should the Indians on either side of the Ohio persist in their hostilities, fidelity to the Union, as well as affection for our fellow-citizens on the frontiers, will insure our decided cooperation in every measure which shall be deemed requisite for their protection and safety.

At the same time that we avow the obligation of the Government to afford its protection to every part of the Union, we can not refrain from expressing our regret that even a small portion of our fellow-citizens in any quarter of it should have combined to oppose the operation of the law for the collection of duties on spirits distilled within the United States, a law repeatedly sanctioned by the authority of the nation, and at this juncture materially connected with the safety and protection of those who oppose it. Should the means already adopted fail in securing obedience to this law, such further measures as may be thought necessary to carry the same into complete operation can not fail to receive the approbation of the Legislature and the support of every patriotic citizen.

It yields us particular pleasure to learn that the productiveness of the revenue of the present year will probably supersede the necessity of any additional tax for the service of the next.

The organization of the government of the State of Kentucky being an event peculiarly interesting to a part of our fellow-citizens and conducive to the general order, affords us particular satisfaction.

We are happy to learn that the high state of our credit abroad has been evinced by the terms on which the new loans have been negotiated.

In the course of the session we shall proceed to take into consideration the several objects which you have been pleased to recommend to our

attention, and keeping in view the importance of union and stability in the public councils, we shall labor to render our decisions conducive to the safety and happiness of our country.

We repeat with pleasure our assurances of confidence in your Administration and our ardent wish that your unabated zeal for the public good may be rewarded by the durable prosperity of the nation, and every ingredient of personal happiness.

JOHN LANGDON,
President pro tempore.

NOVEMBER 9, 1792.

REPLY OF THE PRESIDENT.

I derive much pleasure, gentlemen, from your very satisfactory address. The renewed assurances of your confidence in my Administration and the expression of your wish for my personal happiness claim and receive my particular acknowledgments. In my future endeavor for the public welfare, to which my duty may call me, I shall not cease to count upon the firm, enlightened, and patriotic support of the Senate.

GEORGE WASHINGTON.

NOVEMBER 9, 1792.

ADDRESS OF THE HOUSE OF REPRESENTATIVES TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

SIR: The House of Representatives, who always feel a satisfaction in meeting you, are much concerned that the occasion for mutual felicitation afforded by the circumstances favorable to the national prosperity should be abated by a continuance of the hostile spirit of many of the Indian tribes, and particularly that the reiterated efforts for effecting a general pacification with them should have issued in new proofs of their persevering enmity and the barbarous sacrifice of citizens who, as the messengers of peace, were distinguishing themselves by their zeal for the public service. In our deliberations on this important department of our affairs we shall be disposed to pursue every measure that may be dictated by the sincerest desire, on one hand, of cultivating peace and manifesting by every practicable regulation our benevolent regard for the welfare of those misguided people, and by the duty we feel, on the other, to provide effectually for the safety and protection of our fellow-citizens.

While with regret we learn that symptoms of opposition to the law imposing duties on spirits distilled within the United States have manifested themselves, we reflect with consolation that they are confined to a small portion of our fellow-citizens. It is not more essential to the preservation of true liberty that a government should be always ready to listen to the representations of its constituents and to accommodate its measures to the sentiments and wishes of every part of them, as far as will consist with the good of the whole, than it is that the just authority of the laws should be steadfastly maintained. Under this impression every department of the Government and all good citizens must approve the measures you have taken and the purpose you have formed to execute this part of your trust with firmness and energy; and be assured, sir, of every constitutional aid and cooperation which may become requisite on our part. And we hope that, while the progress of contentment under the law in question is as obvious as it is rational, no particular part of the community may be permitted to withdraw from the general burthens of the country by a conduct as irreconcilable to national justice as it is inconsistent with public decency.

The productive state of the public revenue and the confirmation of the credit of the United States abroad, evinced by the loans at Antwerp and Amsterdam, are communications the more gratifying as they enforce the obligation to enter on systematic and effectual arrangements for discharging

the public debt as fast as the conditions of it will permit, and we take pleasure in the opportunity to assure you of our entire concurrence in the opinion that no measure can be more desirable, whether viewed with an eye to the urgent wish of the community or the intrinsic importance of promoting so happy a change in our situation.

The adoption of a constitution for the State of Kentucky is an event on which we join in all the satisfaction you have expressed. It may be considered as particularly interesting since, besides the immediate benefits resulting from it, it is another auspicious demonstration of the facility and success with which an enlightened people is capable of providing, by free and deliberate plans of government, for their own safety and happiness.

The operation of the law establishing the post-office, as it relates to the transmission of newspapers, will merit our particular inquiry and attention, the circulation of political intelligence through these vehicles being justly reckoned among the surest means of preventing the degeneracy of a free government, as well as of recommending every salutary public measure to the confidence and cooperation of all virtuous citizens.

The several other matters which you have communicated and recommended will in their order receive the attention due to them, and our discussions will in all cases, we trust, be guided by a proper respect for harmony and stability in the public councils and a desire to conciliate more and more the attachment of our constituents to the Constitution, by measures accommodated to the true ends for which it was established.

NOVEMBER 10, 1792.

REPLY OF THE PRESIDENT.

GENTLEMEN: It gives me pleasure to express to you the satisfaction which your address affords me. I feel, as I ought, the approbation you manifest of the measures I have taken and the purpose I have formed to maintain, pursuant to the trust reposed in me by the Constitution, the

respect which is due to the laws, and the assurance which you at the same time give me of every constitutional aid and cooperation that may become requisite on your part.

This is a new proof of that enlightened solicitude for the establishment and confirmation of public order which, embracing a zealous regard for the principles of true liberty, has guided the deliberations of the House of Representatives, a perseverance in which can alone secure, under the divine blessing, the real and permanent felicity of our common country.

GEORGE WASHINGTON.

NOVEMBER 12, 1792.

SPECIAL MESSAGES.

UNITED STATES, *November 7, 1792.*

Gentlemen of the Senate and of the House of Representatives:

In pursuance of the law, I now lay before you a statement of the administration of the funds appropriated to certain foreign purposes, together with a letter from the Secretary of State explaining the same.

I also lay before you a copy of a letter and representation from the Chief Justice and associate judges of the Supreme Court of the United States, stating the difficulties and inconveniences which attend the discharge of their duties according to the present judiciary system.

A copy of a letter from the judges attending the circuit court of the United States for the North Carolina district in June last, containing their observations on an act, passed during the last session of Congress, entitled "An act to provide for the settlement of the claims of widows and orphans barred by the limitations heretofore established, and to regulate the claims to invalid pensions;" and

A copy of the constitution formed for the State of Kentucky.

GEORGE WASHINGTON.

UNITED STATES, *November 9, 1792.*

Gentlemen of the Senate and of the House of Representatives:

I now lay before you a letter from the Secretary of State, covering the copy of one from the governor of Virginia, with the several papers therein referred to, on the subject of the boundary between that State and the territory of the United States south of the Ohio. It will remain with the

Legislature to take such measures as it shall think best for settling the said boundary with that State, and at the same time, if it thinks proper, for extending the settlement to the State of Kentucky, between which and the same territory the boundary is as yet undetermined.

GEORGE WASHINGTON.

UNITED STATES, *November 22, 1792.*

Gentlemen of the Senate and of the House of Representatives:

I send you herewith the abstract of a supplementary arrangement which has been made by me, pursuant to the acts of the 3d day of March, 1791, and the 8th day of May, 1792, for raising a revenue upon foreign and domestic distilled spirits, in respect to the subdivisions and officers which have appeared to me necessary and to the allowances for their respective services to the supervisors, inspectors, and other officers of inspection, together with the estimates of the amount of compensations and charges.

GEORGE WASHINGTON.

UNITED STATES, *December 6, 1792.*

Gentlemen of the Senate and of the House of Representatives:

The several measures which have been pursued to induce the hostile Indian tribes north of the Ohio to enter into a conference or treaty with the United States at which all causes of difference might be fully understood and justly and amicably arranged have already been submitted to both Houses of Congress.

The papers herewith sent will inform you of the result.

GEORGE WASHINGTON.

UNITED STATES, *December 7, 1792.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you two letters, with their inclosures, from the governor of the Southwestern territory, and an extract of a letter to him from the Department of War.

These and a letter of the 9th of October last, which has been already communicated to you, from the same Department to the governor, will shew in what manner the first section of the act of the last session which provides for calling out the militia for the repelling of Indian invasions has been executed. It remains to be considered by Congress whether in the present situation of the United States it be advisable or not to pursue any further or other measures than those which have been already adopted. The nature of the subject does of itself call for your immediate attention to it, and I must add that upon the result of your deliberations the future conduct of the Executive will on this occasion materially depend.

GEORGE WASHINGTON.

UNITED STATES, *January 23, 1793.*

Gentlemen of the Senate and of the House of Representatives:

Since my last communication to you on the subject of the revenue on distilled spirits it has been found necessary, on experience, to revise and amend the arrangements relative thereto in regard to certain surveys and the officers thereof in the district of North Carolina, which I have done accordingly in the manner following:

First. The several counties of the said district originally and heretofore contained within the first, second, and third surveys have been allotted into

and are now contained in two surveys, one of which (to be hereafter denominated the first) comprehends the town of Wilmington and the counties of Onslow, New Hanover, Brunswick, Robertson, Sampson, Craven, Jones, Lenox, Glasgow, Johnston, and Wayne, and the other of which (to be hereafter denominated the second) comprehends the counties of Kurrituck, Camden, Pasquotank, Perquimans, Chowan, Gates, Hartford, Tyrrel, Bertie, Carteret, Hyde, Beaufort, and Pitt.

Secondly. The several counties of the said district originally and heretofore contained within the fifth survey of the district aforesaid has been allotted into and is contained in two surveys, one of which (to be hereafter denominated the third) comprehends the counties of Mecklenburg, Rowan, Iredell, Montgomery, Guilford, Rockingham, Stokes, and Surrey, and the other of which (to be hereafter denominated the fifth) comprehends the counties of Lincoln, Rutherford, Burke, Buncombe, and Wilkes.

Thirdly. The duties of the inspector of the revenue in and for the third survey as constituted above is to be performed for the present by the supervisor.

Fourthly. The compensations of the inspector of the revenue for the first survey as above constituted are to be a salary of \$250 per annum and commissions and other emoluments similar to those heretofore allowed to the inspector of the late first survey as it was originally constituted.

Fifthly. The compensations of the inspector of the revenue for the second survey as above constituted are to be a salary of \$100 per annum and the commissions and other emoluments heretofore allowed to the inspector of the late third survey as it was originally constituted.

Sixthly. The compensations of the inspector of the revenue for the fifth survey as above constituted are to be a salary of \$120 per annum and the commissions and other emoluments similar to those heretofore allowed to the inspector of the late fifth survey as it was originally constituted.

GEORGE WASHINGTON.

UNITED STATES, *January 25, 1793.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you an official statement of the expenditure to the year 1792 from the sum of \$10,000, granted to defray the contingent expenses of Government by an act passed on the 26th of March, 1790.

Also an abstract of a supplementary arrangement made in the district of North Carolina in regard to certain surveys to facilitate the execution of the law laying a duty on distilled spirits.

GEORGE WASHINGTON.

UNITED STATES, *February 13, 1793.*

Gentlemen of the Senate:

I lay before you for your consideration and advice a treaty of peace and friendship made and concluded on the 27th day of September, 1792, by Brigadier-General Rufus Putnam, in behalf of the United States, with the Wabash and Illinois tribes of Indians, and also the proceedings attending the said treaty, the explanation of the fourth article thereof, and a map explanatory of the reservation to the French inhabitants and the general claim of the said Indians.

In connection with this subject I also lay before the Senate the copy of a paper which has been delivered by a man by the name of John Baptiste Mayeé, who has accompanied the Wabash Indians at present in this city.

It will appear by the certificate of Brigadier-General Putnam that the Wabash Indians disclaimed the validity of the said paper, excepting a certain tract upon the Wabash, as mentioned in the proceedings.

The instructions to Brigadier-General Putnam of the 22d of May, together with a letter to him of the 7th of August, 1792, were laid before the Senate on the 7th of November, 1792.

After the Senate shall have considered this treaty, I request that they would give me their advice whether the same shall be ratified and confirmed; and if to be ratified and confirmed, whether it would not be proper, in order to prevent any misconception hereafter of the fourth article, to guard in the ratification the exclusive preemption of the United States to the lands of the said Indians.

GEORGE WASHINGTON.

UNITED STATES, *February 18, 1793.*

Gentlemen of the Senate and of the House of Representatives:

I now lay before you a report and plat of the territory of the United States on the Potomac as given in by the commissioners of that territory, together with a letter from the Secretary of State which accompanied them. These papers, being original, are to be again deposited with the records of the Department of State after having answered the purpose of your information.

GEORGE WASHINGTON.

UNITED STATES, *February 19, 1793.*

Gentlemen of the House of Representatives:

It has been agreed on the part of the United States that a treaty or conference shall be held at the ensuing season with the hostile Indians northwest of the Ohio, in order to remove, if possible, all causes of difference and to establish a solid peace with them.

As the estimates heretofore presented to the House for the current year did not contemplate this object, it will be proper that an express provision be made by law as well for the general expenses of the treaty as to establish

the compensation to be allowed the commissioners who shall be appointed for the purpose.

I shall therefore direct the Secretary of War to lay before you an estimate of the expenses which may probably attend this measure.

GEORGE WASHINGTON.

UNITED STATES, *February 27, 1793.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you a copy of an exemplification of an act of the legislature of New York ceding to the United States the jurisdiction of certain lands on Montauk Point for the purpose mentioned in said act, and the copy of a letter from the governor of New York to the Secretary of State, which accompanied said exemplification.

GEORGE WASHINGTON.

UNITED STATES, *February 28, 1793.*

Gentlemen of the Senate:

I was led by a consideration of the qualifications of William Patterson, of New Jersey, to nominate him an associate justice of the Supreme Court of the United States. It has since occurred that he was a member of the Senate when the law creating that office was passed, and that the time for which he was elected is not yet expired. I think it my duty, therefore, to declare that I deem the nomination to have been null by the Constitution.

GEORGE WASHINGTON.

PROCLAMATIONS.

[From Freneau's National Gazette of December 15, 1792.]

BY THE PRESIDENT OF THE UNITED STATES.

Whereas I have received authentic information that certain lawless and wicked persons of the western frontier in the State of Georgia did lately invade, burn, and destroy a town belonging to the Cherokee Nation, although in amity with the United States, and put to death several Indians of that nation; and

Whereas such outrageous conduct not only violates the rights of humanity, but also endangers the public peace, and it highly becomes the honor and good faith of the United States to pursue all legal means for the punishment of those atrocious offenders:

I have therefore thought fit to issue this my proclamation, hereby exhorting all the citizens of the United States and requiring all the officers thereof, according to their respective stations, to use their utmost endeavors to apprehend and bring those offenders to justice. And I do moreover offer a reward of \$500 for each and every of the above-named persons who shall be so apprehended and brought to justice and shall be proved to have assumed or exercised any command or authority among the perpetrators of the crimes aforesaid at the time of committing the same.

In testimony whereof I have caused the seal of the United States to be affixed to these presents, and signed the same with my hand.

[SEAL.]

Done at the city of Philadelphia, the 12th day of December, A.D. 1792, and of the Independence of the United States the seventeenth.

GEORGE WASHINGTON.

By the President:
THOMAS JEFFERSON.

[From Annals of Congress, Second Congress, 666.]

MARCH 1, 1793.

The President of the United States to the President of the Senate:

Certain matters touching the public good requiring that the Senate shall be convened on Monday, the 4th instant, I have desired their attendance, as I do yours, by these presents, at the Senate Chamber, in Philadelphia, on that day, then and there to receive and deliberate on such communications as shall be made to you on my part.

GEORGE WASHINGTON.

SECOND INAUGURAL ADDRESS.

IN THE CITY OF PHILADELPHIA, PA.

Fellow-citizens: I am again called upon by the voice of my country to execute the functions of its Chief Magistrate. When the occasion proper for it shall arrive, I shall endeavor to express the high sense I entertain of this distinguished honor, and of the confidence which has been reposed in me by the people of united America.

Previous to the execution of any official act of the President the Constitution requires an oath of office. This oath I am now about to take, and in your presence: That if it shall be found during my administration of the Government I have in any instance violated willingly or knowingly the injunctions thereof, I may (besides incurring constitutional punishment) be subject to the upbraidings of all who are now witnesses of the present solemn ceremony.

MARCH 4, 1793.

FIFTH ANNUAL ADDRESS.

PHILADELPHIA, *December 3, 1793.*

Fellow-Citizens of the Senate and of the House of Representatives:

Since the commencement of the term for which I have been again called into office no fit occasion has arisen for expressing to my fellow-citizens at large the deep and respectful sense which I feel of the renewed testimony of public approbation. While on the one hand it awakened my gratitude for all those instances of affectionate partiality with which I have been honored by my country, on the other it could not prevent an earnest wish for that retirement from which no private consideration should ever have torn me. But influenced by the belief that my conduct would be estimated according to its real motives, and that the people, and the authorities derived from them, would support exertions having nothing personal for their object, I have obeyed the suffrage which commanded me to resume the Executive power; and I humbly implore that Being on whose will the fate of nations depends to crown with success our mutual endeavors for the general happiness.

As soon as the war in Europe had embraced those powers with whom the United States have the most extensive relations there was reason to apprehend that our intercourse with them might be interrupted and our disposition for peace drawn into question by the suspicions too often entertained by belligerent nations. It seemed, therefore, to be my duty to admonish our citizens of the consequences of a contraband trade and of hostile acts to any of the parties, and to obtain by a declaration of the existing legal state of things an easier admission of our right to the immunities belonging to our situation. Under these impressions the proclamation which will be laid before you was issued.

In this posture of affairs, both new and delicate, I resolved to adopt general rules which should conform to the treaties and assert the privileges of the United States. These were reduced into a system, which will be communicated to you. Although I have not thought myself at liberty to

forbid the sale of the prizes permitted by our treaty of commerce with France to be brought into our ports, I have not refused to cause them to be restored when they were taken within the protection of our territory, or by vessels commissioned or equipped in a warlike form within the limits of the United States.

It rests with the wisdom of Congress to correct, improve, or enforce this plan of procedure; and it will probably be found expedient to extend the legal code and the jurisdiction of the courts of the United States to many cases which, though dependent on principles already recognized, demand some further provisions.

Where individuals shall, within the United States, array themselves in hostility against any of the powers at war, or enter upon military expeditions or enterprises within the jurisdiction of the United States, or usurp and exercise judicial authority within the United States, or where the penalties on violations of the law of nations may have been indistinctly marked, or are inadequate—these offenses can not receive too early and close an attention, and require prompt and decisive remedies.

Whatsoever those remedies may be, they will be well administered by the judiciary, who possess a long-established course of investigation, effectual process, and officers in the habit of executing it.

In like manner, as several of the courts have doubted, under particular circumstances, their power to liberate the vessels of a nation at peace, and even of a citizen of the United States, although seized under a false color of being hostile property, and have denied their power to liberate certain captures within the protection of our territory, it would seem proper to regulate their jurisdiction in these points. But if the Executive is to be the resort in either of the two last-mentioned cases, it is hoped that he will be authorized by law to have facts ascertained by the courts when for his own information he shall request it.

I can not recommend to your notice measures for the fulfillment of our duties to the rest of the world without again pressing upon you the necessity of placing ourselves in a condition of complete defense and of exacting from them the fulfillment of their duties toward us. The United States ought not to indulge a persuasion that, contrary to the order of human events, they

will forever keep at a distance those painful appeals to arms with which the history of every other nation abounds. There is a rank due to the United States among nations which will be withheld, if not absolutely lost, by the reputation of weakness. If we desire to avoid insult, we must be able to repel it; if we desire to secure peace, one of the most powerful instruments of our rising prosperity, it must be known that we are at all times ready for war. The documents which will be presented to you will shew the amount and kinds of arms and military stores now in our magazines and arsenals; and yet an addition even to these supplies can not with prudence be neglected, as it would leave nothing to the uncertainty of procuring of warlike apparatus in the moment of public danger.

Nor can such arrangements, with such objects, be exposed to the censure or jealousy of the warmest friends of republican government. They are incapable of abuse in the hands of the militia, who ought to possess a pride in being the depository of the force of the Republic, and may be trained to a degree of energy equal to every military exigency of the United States. But it is an inquiry which can not be too solemnly pursued, whether the act "more effectually to provide for the national defense by establishing an uniform militia throughout the United States" has organized them so as to produce their full effect; whether your own experience in the several States has not detected some imperfections in the scheme, and whether a material feature in an improvement of it ought not to be to afford an opportunity for the study of those branches of the military art which can scarcely ever be attained by practice alone.

The connection of the United States with Europe has become extremely interesting. The occurrences which relate to it and have passed under the knowledge of the Executive will be exhibited to Congress in a subsequent communication.

When we contemplate the war on our frontiers, it may be truly affirmed that every reasonable effort has been made to adjust the causes of dissension with the Indians north of the Ohio. The instructions given to the commissioners evince a moderation and equity proceeding from a sincere love of peace, and a liberality having no restriction but the essential interests and dignity of the United States. The attempt, however, of an amicable negotiation having been frustrated, the troops have marched to act

offensively. Although the proposed treaty did not arrest the progress of military preparation, it is doubtful how far the advance of the season, before good faith justified active movements, may retard them during the remainder of the year. From the papers and intelligence which relate to this important subject you will determine whether the deficiency in the number of troops granted by law shall be compensated by succors of militia, or additional encouragements shall be proposed to recruits.

An anxiety has been also demonstrated by the Executive for peace with the Creeks and the Cherokees. The former have been relieved with corn and with clothing, and offensive measures against them prohibited during the recess of Congress. To satisfy the complaints of the latter, prosecutions have been instituted for the violences committed upon them. But the papers which will be delivered to you disclose the critical footing on which we stand in regard to both those tribes, and it is with Congress to pronounce what shall be done.

After they shall have provided for the present emergency, it will merit their most serious labors to render tranquillity with the savages permanent by creating ties of interest. Next to a rigorous execution of justice on the violators of peace, the establishment of commerce with the Indian nations in behalf of the United States is most likely to conciliate their attachment. But it ought to be conducted without fraud, without extortion, with constant and plentiful supplies, with a ready market for the commodities of the Indians and a stated price for what they give in payment and receive in exchange. Individuals will not pursue such a traffic unless they be allured by the hope of profit; but it will be enough for the United States to be reimbursed only. Should this recommendation accord with the opinion of Congress, they will recollect that it can not be accomplished by any means yet in the hands of the Executive.

Gentlemen of the House of Representatives:

The commissioners charged with the settlement of accounts between the United States and individual States concluded their important functions within the time limited by law, and the balances struck in their report, which will be laid before Congress, have been placed on the books of the Treasury.

On the 1st day of June last an installment of 1,000,000 florins became payable on the loans of the United States in Holland. This was adjusted by a prolongation of the period of reimbursement in nature of a new loan at an interest of 5 per cent for the term of ten years, and the expenses of this operation were a commission of 3 per cent.

The first installment of the loan of \$2,000,000 from the Bank of the United States has been paid, as was directed by law. For the second it is necessary that provision should be made.

No pecuniary consideration is more urgent than the regular redemption and discharge of the public debt. On none can delay be more injurious or an economy of time more valuable.

The productiveness of the public revenues hitherto has continued to equal the anticipations which were formed of it, but it is not expected to prove commensurate with all the objects which have been suggested. Some auxiliary provisions will therefore, it is presumed, be requisite, and it is hoped that these may be made consistently with a due regard to the convenience of our citizens, who can not but be sensible of the true wisdom of encountering a small present addition to their contributions to obviate a future accumulation of burthens.

But here I can not forbear to recommend a repeal of the tax on the transportation of public prints. There is no resource so firm for the Government of the United States as the affections of the people, guided by an enlightened policy; and to this primary good nothing can conduce more than a faithful representation of public proceedings, diffused without restraint throughout the United States.

An estimate of the appropriations necessary for the current service of the ensuing year and a statement of a purchase of arms and military stores made during the recess will be presented to Congress.

Gentlemen of the Senate and of the House of Representatives:

The several subjects to which I have now referred open a wide range to your deliberations and involve some of the choicest interests of our common country. Permit me to bring to your remembrance the magnitude of your task. Without an unprejudiced coolness the welfare of the

Government may be hazarded; without harmony as far as consists with freedom of sentiment its dignity may be lost. But as the legislative proceedings of the United States will never, I trust, be reproached for the want of temper or of candor, so shall not the public happiness languish from the want of my strenuous and warmest cooperation.

GEORGE WASHINGTON.

ADDRESS OF THE SENATE TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

The PRESIDENT OF THE UNITED STATES:

Accept, sir, the thanks of the Senate for your speech delivered to both Houses of Congress at the opening of the session. Your reelection to the Chief Magistracy of the United States gives us sincere pleasure. We consider it as an event every way propitious to the happiness of our country, and your compliance with the call as a fresh instance of the patriotism which has so repeatedly led you to sacrifice private inclination to the public good. In the unanimity which a second time marks this important national act we trace with particular satisfaction, besides the distinguished tribute paid to the virtues and abilities which it recognizes, another proof of that just discernment and constancy of sentiments and views which have hitherto characterized the citizens of the United States.

As the European powers with whom the United States have the most extensive relations were involved in war, in which we had taken no part, it seemed necessary that the disposition of the nation for peace should be promulgated to the world, as well for the purpose of admonishing our citizens of the consequences of a contraband trade and of acts hostile to any of the belligerent parties as to obtain by a declaration of the existing legal state of things an easier admission of our right to the immunities of our situation. We therefore contemplate with pleasure the proclamation by you issued, and give it our hearty approbation. We deem it a measure well timed

and wise, manifesting a watchful solicitude for the welfare of the nation and calculated to promote it.

The several important matters presented to our consideration will, in the course of the session, engage all the attention to which they are respectively entitled, and as the public happiness will be the sole guide of our deliberations, we are perfectly assured of receiving your strenuous and most zealous cooperation.

JOHN ADAMS,
Vice-President of the United States and President of the Senate.

DECEMBER 9, 1793.

REPLY OF THE PRESIDENT.

GENTLEMEN: The pleasure expressed by the Senate on my reelection to the station which I fill commands my sincere and warmest acknowledgments. If this be an event which promises the smallest addition to the happiness of our country, as it is my duty so shall it be my study to realize the expectation.

The decided approbation which the proclamation now receives from your House, by completing the proofs that this measure is considered as manifesting a vigilant attention to the welfare of the United States, brings with it a peculiar gratification to my mind.

The other important subjects which have been communicated to you will, I am confident, receive a due discussion, and the result will, I trust, prove fortunate to the United States.

GEORGE WASHINGTON.

DECEMBER 10, 1793.

ADDRESS OF THE HOUSE OF REPRESENTATIVES TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

SIR: The Representatives of the people of the United States, in meeting you for the first time since you have been again called by an unanimous suffrage to your present station, find an occasion which they embrace with no less sincerity than promptitude for expressing to you their congratulations on so distinguished a testimony of public approbation, and their entire confidence in the purity and patriotism of the motives which have produced this obedience to the voice of your country. It is to virtues which have commanded long and universal reverence and services from which have flowed great and lasting benefits that the tribute of praise may be paid without the reproach of flattery, and it is from the same sources that the fairest anticipations may be derived in favor of the public happiness.

The United States having taken no part in the war which had embraced in Europe the powers with whom they have the most extensive relations, the maintenance of peace was justly to be regarded as one of the most important duties of the Magistrate charged with the faithful execution of the laws. We accordingly witness with approbation and pleasure the vigilance with which you have guarded against an interruption of that blessing by your proclamation admonishing our citizens of the consequences of illicit or hostile acts toward the belligerent parties, and promoting by a declaration of the existing legal state of things an easier admission of our right to the immunities belonging to our situation.

The connection of the United States with Europe has evidently become extremely interesting. The communications which remain to be exhibited to us will no doubt assist in giving us a fuller view of the subject and in guiding our deliberations to such results as may comport with the rights and true interests of our country.

We learn with deep regret that the measures, dictated by love of peace, for obtaining an amicable termination of the afflicting war on our frontiers have been frustrated, and that a resort to offensive measures should have

again become necessary. As the latter, however, must be rendered more satisfactory in proportion to the solicitude for peace manifested by the former, it is to be hoped they will be pursued under the better auspices on that account, and be finally crowned with more happy success.

In relation to the particular tribes of Indians against whom offensive measures have been prohibited, as well as on all the other important subjects which you have presented to our view, we shall bestow the attention which they claim. We can not, however, refrain at this time from particularly expressing our concurrence in your anxiety for the regular discharge of the public debts as fast as circumstances and events will permit and in the policy of removing any impediments that may be found in the way of a faithful representation of public proceedings throughout the United States, being persuaded with you that on no subject more than the former can delay be more injurious or an economy of time more valuable, and that with respect to the latter no resource is so firm for the Government of the United States as the affections of the people, guided by an enlightened policy.

Throughout our deliberations we shall endeavor to cherish every sentiment which may contribute to render them conducive to the dignity as well as to the welfare of the United States; and we join with you in imploring that Being on whose will the fate of nations depends to crown with success our mutual endeavors.

DECEMBER 6, 1793.

REPLY OF THE PRESIDENT.

GENTLEMEN: I shall not affect to conceal the cordial satisfaction which I derive from the address of the House of Representatives. Whatsoever those services may be which you have sanctioned by your favor, it is a sufficient reward that they have been accepted as they were meant. For the fulfillment of your anticipations of the future I can give no other assurance than that the motives which you approve shall continue unchanged.

It is truly gratifying to me to learn that the proclamation has been considered as a seasonable guard against the interruption of the public peace. Nor can I doubt that the subjects which I have recommended to your attention as depending on legislative provisions will receive a discussion suited to their importance. With every reason, then, it may be expected that your deliberations, under the divine blessing, will be matured to the honor and happiness of the United States.

GEORGE WASHINGTON.

DECEMBER 7, 1793.

SPECIAL MESSAGES.

UNITED STATES, *December 5, 1793.*

Gentlemen of the Senate and of the House of Representatives:

As the present situation of the several nations of Europe, and especially of those with which the United States have important relations, can not but render the state of things between them and us matter of interesting inquiry to the Legislature, and may indeed give rise to deliberations to which they alone are competent, I have thought it my duty to communicate to them certain correspondences which have taken place.

The representative and executive bodies of France have manifested generally a friendly attachment to this country; have given advantages to our commerce and navigation, and have made overtures for placing these advantages on permanent ground. A decree, however, of the National Assembly subjecting vessels laden with provisions to be carried into their ports and making enemy goods lawful prize in the vessel of a friend, contrary to our treaty, though revoked at one time as to the United States, has been since extended to their vessels also, as has been recently stated to us. Representations on this subject will be immediately given in charge to our minister there, and the result shall be communicated to the Legislature.

It is with extreme concern I have to inform you that the proceedings of the person whom they have unfortunately appointed their minister plenipotentiary here have breathed nothing of the friendly spirit of the nation which sent him. Their tendency, on the contrary, has been to involve us in war abroad and discord and anarchy at home. So far as his acts or those of his agents have threatened our immediate commitment in the war, or flagrant insult to the authority of the laws, their effect has been counteracted by the ordinary cognizance of the laws and by an exertion of the powers confided to me. Where their danger was not imminent they have been borne with from sentiments of regard to his nation, from a sense of their friendship toward us, from a conviction that they would not suffer us to remain long exposed to the action of a person who has so little respected

our mutual dispositions, and, I will add, from a reliance on the firmness of my fellow-citizens in their principles of peace and order. In the meantime I have respected and pursued the stipulations of our treaties according to what I judged their true sense, and have withheld no act of friendship which their affairs have called for from us, and which justice to others left us free to perform. I have gone farther. Rather than employ force for the restitution of certain vessels which I deemed the United States bound to restore, I thought it more advisable to satisfy the parties by avowing it to be my opinion that if restitution were not made it would be incumbent on the United States to make compensation. The papers now communicated will more particularly apprise you of these transactions.

The vexations and spoliation understood to have been committed on our vessels and commerce by the cruisers and officers of some of the belligerent powers appear to require attention. The proofs of these, however, not having been brought forward, the descriptions of citizens supposed to have suffered were notified that, on furnishing them to the Executive, due measures would be taken to obtain redress of the past and more effectual provisions against the future. Should such documents be furnished, proper representations will be made thereon, with a just reliance on a redress proportioned to the exigency of the case.

The British Government having undertaken, by orders to the commanders of their armed vessels, to restrain generally our commerce in corn and other provisions to their own ports and those of their friends, the instructions now communicated were immediately forwarded to our minister at that Court. In the meantime some discussions on the subject took place between him and them. These are also laid before you, and I may expect to learn the result of his special instructions in time to make it known to the Legislature during their present session.

Very early after the arrival of a British minister here mutual explanations on the inexecution of the treaty of peace were entered into with that minister. These are now laid before you for your information.

On the subjects of mutual interest between this country and Spain negotiations and conferences are now depending. The public good requiring that the present state of these should be made known to the Legislature *in*

confidence only, they shall be the subject of a separate and subsequent communication.

GEORGE WASHINGTON.

UNITED STATES, *December 16, 1793.*

Gentlemen of the Senate and of the House of Representatives:

The situation of affairs in Europe in the course of the year 1790 having rendered it possible that a moment might arrive favorable for the arrangement of our unsettled matters with Spain, it was thought proper to prepare our representative at that Court to avail us of it. A confidential person was therefore dispatched to be the bearer of instructions to him, and to supply, by verbal communications, any additional information of which he might find himself in need. The Government of France was at the same time applied to for its aid and influence in this negotiation. Events, however, took a turn which did not present the occasion hoped for.

About the close of the ensuing year I was informed through the representatives of Spain here that their Government would be willing to renew at Madrid the former conferences on these subjects. Though the transfer of scene was not what would have been desired, yet I did not think it important enough to reject the proposition, and therefore, with the advice and consent of the Senate, I appointed commissioners plenipotentiary for negotiating and concluding a treaty with that country on the several subjects of boundary, navigation, and commerce, and gave them the instructions now communicated. Before these negotiations, however, could be got into train the new troubles which had arisen in Europe had produced new combinations among the powers there, the effects of which are but too visible in the proceedings now laid before you.

In the meantime some other points of discussion had arisen with that country, to wit, the restitution of property escaping into the territories of each other, the mutual exchange of fugitives from justice, and, above all the mutual interferences with the Indians lying between us. I had the best

reason to believe that the hostilities threatened and exercised by the Southern Indians on our border were excited by the agents of that Government. Representations were thereon directed to be made by our commissioners to the Spanish Government, and a proposal to cultivate with good faith the peace of each other with those people. In the meantime corresponding suspicions were entertained, or pretended to be entertained, on their part of like hostile excitements by our agents to disturb their peace with the same nations. These were brought forward by the representatives of Spain here in a style which could not fail to produce attention. A claim of patronage and protection of those Indians was asserted; a mediation between them and us by that sovereign assumed; their boundaries with us made a subject of his interference, and at length, at the very moment when these savages were committing daily inroads upon our frontier, we were informed by them that "the continuation of the peace, good harmony, and perfect friendship of the two nations was very problematical for the future, unless the United States should take more convenient measures and of greater energy than those adopted for a long time past."

If their previous correspondence had worn the appearance of a desire to urge on a disagreement, this last declaration left no room to evade it, since it could not be conceived we would submit to the scalping knife and tomahawk of the savage without any resistance. I thought it time, therefore, to know if these were the views of their sovereign, and dispatched a special messenger with instructions to our commissioners, which are among the papers now communicated. Their last letter gives us reason to expect very shortly to know the result. I must add that the Spanish representatives here, perceiving that their last communication had made considerable impression, endeavored to abate this by some subsequent professions, which, being also among the communications to the Legislature, they will be able to form their own conclusions.

GEORGE WASHINGTON.

UNITED STATES, *December 16, 1793.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you a report of the Secretary of State on the measures which have been taken on behalf of the United States for the purpose of obtaining a recognition of our treaty with Morocco and for the ransom of our citizens and establishment of peace with Algiers.

While it is proper our citizens should know that subjects which so much concern their interest and their feelings have duly engaged the attention of their Legislature and Executive, it would still be improper that some particulars of this communication should be made known. The confidential conversation stated in one of the last letters sent herewith is one of these. Both justice and policy require that the source of that information should remain secret. So a knowledge of the sums meant to have been given for peace and ransom might have a disadvantageous influence on future proceedings for the same objects.

GEORGE WASHINGTON.

UNITED STATES, *December 23, 1793.*

Gentlemen of the Senate and of the House of Representatives:

Since the communications which were made to you on the affairs of the United States with Spain and on the truce between Portugal and Algiers some other papers have been received, which, making a part of the same subjects, are now communicated for your information.

GEORGE WASHINGTON.

UNITED STATES, *December 30, 1793.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you, for your consideration, a letter from the Secretary of State, informing me of certain impediments which have arisen to the coinage of the precious metals at the Mint, as also a letter from the same officer relative to certain advances of money which have been made on public account. Should you think proper to sanction what has been done, or be of opinion that anything more shall be done in the same way, you will judge whether there are not circumstances which would render secrecy expedient.

GEORGE WASHINGTON.

UNITED STATES, *January 7, 1794.*

Gentlemen of the Senate and of the House of Representatives:

Experience has shewn that it would be useful to have an officer particularly charged, under the direction of the Department of War, with the duties of receiving, safe-keeping, and distributing the public supplies in all cases in which the laws and the course of service do not devolve them upon other officers, and also with that of superintending in all cases the issues in detail of supplies, with power for that purpose to bring to account all persons intrusted to make such issues in relation thereto.

An establishment of this nature, by securing a regular and punctual accountability for the issues of public supplies, would be a great guard against abuse, would tend to insure their due application and to give public satisfaction on that point.

I therefore recommend to the consideration of Congress the expediency of an establishment of this nature, under such regulations as shall appear to them advisable,

GEORGE WASHINGTON.

UNITED STATES, *January 20, 1794.*

Gentlemen of the Senate and of the House of Representatives:

Having already laid before you a letter of the 16th of August, 1793, from the Secretary of State to our minister at Paris, stating the conduct and urging the recall of the minister plenipotentiary of the Republic of France, I now communicate to you that his conduct has been unequivocally disapproved, and that the strongest assurances have been given that his recall should be expedited without delay.

GEORGE WASHINGTON.

UNITED STATES, *January 21, 1794.*

Gentlemen of the Senate and of the House of Representatives:

It is with satisfaction I announce to you that the alterations which have been made by law in the original plan for raising a duty on spirits distilled within the United States, and on stills, cooperating with better information, have had a considerable influence in obviating the difficulties which have embarrassed that branch of the public revenue. But the obstacles which have been experienced, though lessened, are not yet entirely surmounted, and it would seem that some further legislative provisions may usefully be superadded, which leads me to recall the attention of Congress to the subject. Among the matters which may demand regulation is the effect, in point of organization, produced by the separation of Kentucky from the State of Virginia, and the situation with regard to the law of the territories northwest and southwest of the Ohio.

The laws respecting light-house establishments require, as a condition of their permanent maintenance at the expense of the United States, a complete cession of soil and jurisdiction. The cessions of different States having been qualified with a reservation of the right of serving legal process within the ceded jurisdiction are understood to be inconclusive as annexing a qualification not consonant with the terms of the law. I present this

circumstance to the view of Congress, that they may judge whether any alteration ought to be made.

As it appears to be conformable with the intention of the "ordinance for the government of the territory of the United States northwest of the river Ohio," although it is not expressly directed that the laws of that territory should be laid before Congress, I now transmit to you a copy of such as have been passed from July to December, 1792, inclusive. being the last which have been received by the Secretary of State.

GEORGE WASHINGTON.

UNITED STATES, *January 30, 1794.*

Gentlemen of the Senate and of the House of Representatives:

Communications have been made to Congress during the present session with the intention of affording a full view of the posture of affairs on the Southwestern frontiers. By the information which has lately been laid before Congress it appeared that the difficulties with the Creeks had been amicably and happily terminated; but it will be perceived with regret by the papers herewith transmitted that the tranquillity has, unfortunately, been of short duration, owing to the murder of several friendly Indians by some lawless white men.

The condition of things in that quarter requires the serious and immediate consideration of Congress, and the adoption of such wise and vigorous laws as will be competent to the preservation of the national character and of the peace made under the authority of the United States with the several Indian tribes. Experience demonstrates that the existing legal provisions are entirely inadequate to those great objects.

GEORGE WASHINGTON.

UNITED STATES, *February 7, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I transmit to you an act and three ordinances passed by the government of the territory of the United States south of the river Ohio on the 13th and 21st of March and the 7th of May, 1793, and also certain letters from the minister plenipotentiary of the French Republic to the Secretary of State, inclosing dispatches from the general and extraordinary commission of Guadaloupe.

GEORGE WASHINGTON.

UNITED STATES, *February 19, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you the copy of a letter which I have received from the Chief Justice and associate justices of the Supreme Court of the United States, and, at their desire, the representation mentioned in the said letter, pointing out certain defects in the judiciary system.

GEORGE WASHINGTON.

UNITED STATES, *February 24, 1794.*

Gentlemen of the Senate and of the House of Representatives:

The extracts which I now lay before you, from a letter of our minister at London, are supplementary to some of my past communications, and will appear to be of a confidential nature.

I also transmit to you copies of a letter from the Secretary of State to the minister plenipotentiary of His Britannic Majesty, and of the answer

thereto, upon the subject of the treaty between the United States and Great Britain, together with the copy of a letter from Messrs. Carmichael and Short, relative to our affairs with Spain, which letter is connected with a former confidential message,

GEORGE WASHINGTON.

UNITED STATES, *February 26, 1794.*

Gentlemen of the Senate:

I have caused the correspondence which is the subject of your resolution of the 24th day of January last to be laid before me. After an examination of it I directed copies and translations to be made, except in those particulars which, in my judgment, for public considerations, ought not to be communicated.

These copies and translations are now transmitted to the Senate; but the nature of them manifests the propriety of their being received as confidential.

GEORGE WASHINGTON.

UNITED STATES, *March 3, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I transmit to you an extract from a letter of Mr. Short, relative to our affairs with Spain, and copies of two letters from our minister at Lisbon, with their inclosures, containing intelligence from Algiers. The whole of these communications are made in confidence, except the passage in Mr. Short's letter which respects the Spanish convoy.

GEORGE WASHINGTON.

UNITED STATES, *March 5, 1794.*

Gentlemen of the Senate and of the House of Representatives:

The Secretary of State having reported to me upon the several complaints which have been lodged in his office against the vexations and spoliations on our commerce since the commencement of the European war, I transmit to you a copy of his statement, together with the documents upon which it is founded.

GEORGE WASHINGTON.

UNITED STATES, *March 18, 1794.*

Gentlemen of the Senate and of the House of Representatives:

The minister plenipotentiary of the French Republic having requested an advance of money, I transmit to Congress certain documents relative to that subject.

GEORGE WASHINGTON.

UNITED STATES, *March 28, 1794.*

Gentlemen of the Senate and of the House of Representatives;

In the execution of the resolution of Congress bearing date the 26th of March, 1794, and imposing an embargo, I have requested the governors of the several States to call forth the force of their militia, if it should be necessary, for the detention of vessels. This power is conceived to be incidental to an embargo.

It also deserves the attention of Congress how far the clearances from one district to another, under the law as it now stands, may give rise to evasions of the embargo. As one security the collectors have been instructed to refuse to receive the surrender of coasting licenses for the purpose of taking out registers, and to require bond from registered vessels bound from one district to another, for the delivery of the cargo within the United States.

It is not understood that the resolution applies to fishing vessels, although their occupations lie generally in parts beyond the United States. But without further restrictions there is an opportunity of their privileges being used as means of eluding the embargo.

All armed vessels possessing public commissions from any foreign power (letters of marque excepted) are considered as not liable to the embargo.

These circumstances are transmitted to Congress for their consideration.

GEORGE WASHINGTON.

UNITED STATES, *April 4, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you three letters from our minister in London, advices concerning the Algerine mission from our minister at Lisbon and others, and a letter from the minister plenipotentiary of the French Republic to the Secretary of State, with his answer.

GEORGE WASHINGTON.

UNITED STATES, *April 15, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you a letter from the minister plenipotentiary of His Britannic Majesty to the Secretary of State; a letter from the secretary of the territory south of the river Ohio, inclosing an ordinance and proclamation of the governor thereof; the translation of so much of a petition of the inhabitants of Post Vincennes, addressed to the President, as relates to Congress, and certain dispatches lately received from our commissioners at Madrid. These dispatches from Madrid being a part of the business which has been hitherto deemed confidential, they are forwarded under that view.

GEORGE WASHINGTON.

UNITED STATES, *April 16, 1794.*

Gentlemen of the Senate:

The communications which I have made to you during your present session from the dispatches of our minister in London contain a serious aspect of our affairs with Great Britain. But as peace ought to be pursued with unremitted zeal before the last resource, which has so often been the scourge of nations, and can not fail to check the advanced prosperity of the United States, is contemplated, I have thought proper to nominate, and do hereby nominate, John Jay as envoy extraordinary of the United States to His Britannic Majesty.

My confidence in our minister plenipotentiary in London continues undiminished. But a mission like this, while it corresponds with the solemnity of the occasion, will announce to the world a solicitude for a friendly adjustment of our complaints and a reluctance to hostility. Going immediately from the United States, such an envoy will carry with him a full knowledge of the existing temper and sensibility of our country, and will thus be taught to vindicate our rights with firmness and to cultivate peace with sincerity.

GEORGE WASHINGTON.

UNITED STATES, *May 12, 1794.*

Gentlemen of the Senate and of the House of Representatives:

As the letter which I forwarded to Congress on the 15th day of April last, from the minister plenipotentiary of His Britannic Majesty to the Secretary of State, in answer to a memorial of our minister in London, related to a very interesting subject, I thought it proper not to delay its communication. But since that time the memorial itself has been received in a letter from our minister, and a reply has been made to that answer by the Secretary of State. Copies of them are therefore now transmitted.

I also send the copy of a letter from the governor of Rhode Island, inclosing an act of the legislature of that State empowering the United States to hold lands within the same for the purpose of erecting fortifications, and certain papers concerning patents for the donation lands to the ancient settlers of Vincennes upon the Wabash.

GEORGE WASHINGTON.

UNITED STATES, *May 20, 1794.*

Gentlemen of the Senate and of the House of Representatives:

In the communications which I have made to Congress during the present session relative to foreign nations I have omitted no opportunity of testifying my anxiety to preserve the United States in peace. It is peculiarly, therefore, my duty at this time to lay before you the present state of certain hostile threats against the territories of Spain in our neighborhood.

The documents which accompany this message develop the measures which I have taken to suppress them, and the intelligence which has been lately received.

It will be seen from thence that the subject has not been neglected; that every power vested in the Executive on such occasions has been exerted, and that there was reason to believe that the enterprise projected against the Spanish dominions was relinquished.

But it appears to have been revived upon principles which set public order at defiance and place the peace of the United States in the discretion of unauthorized individuals. The means already deposited in the different departments of Government are shewn by experience not to be adequate to these high exigencies, although such of them as are lodged in the hands of the Executive shall continue to be used with promptness, energy, and decision proportioned to the case. But I am impelled by the position of our public affairs to recommend that provision be made for a stronger and more vigorous opposition than can be given to such hostile movements under the laws as they now stand.

GEORGE WASHINGTON.

UNITED STATES, *May 21, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you in confidence sundry papers, by which you will perceive the state of affairs between us and the Six Nations, and the probable cause to which it is owing, and also certain information whereby it would appear that some encroachment was about to be made on our territory by an officer and party of British troops. Proceeding upon a supposition of the authenticity of this information, although of a private nature, I have caused the representation to be made to the British minister a copy of which accompanies this message.

It can not be necessary to comment upon the very serious nature of such an encroachment, nor to urge that this new state of things suggests the propriety of placing the United States in a posture of effectual preparation for an event which, notwithstanding the endeavors making to avert it, may by circumstances beyond our control be forced upon us.

GEORGE WASHINGTON.

UNITED STATES, *May 26, 1794.*

Gentlemen of the Senate and of the House of Representatives:

The commissioners of His Catholic Majesty having communicated to the Secretary of State the form of a certificate without which the vessels of the United States can not be admitted into the ports of Spain, I think it proper to lay it before Congress.

GEORGE WASHINGTON.

UNITED STATES, *May 27, 1794.*

Gentlemen of the Senate:

The Executive Provisory Council of the French Republic having requested me to recall Gouverneur Morris, our minister plenipotentiary in France, I have thought proper, in pursuance of that request, to recall him. I therefore nominate James Monroe, of Virginia, as minister plenipotentiary of the United States to the said Republic.

I also nominate William Short, now minister resident for the United States with Their High Mightinesses the States-General of the United Netherlands, to be minister resident for the United States to His Catholic Majesty, in the room of William Carmichael, who is recalled.

GEORGE WASHINGTON.

UNITED STATES, *June 2, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I send you certain communications, recently received from Georgia, which materially change the prospect of affairs in that quarter, and seem to render a war with the Creek Nations more probable than it has been at any antecedent period. While the attention of Congress will be directed to the consideration of measures suited to the exigency, it can not escape their observation that this intelligence brings a fresh proof of the insufficiency of the existing provisions of the laws toward the effectual cultivation and preservation of peace with our Indian neighbors.

GEORGE WASHINGTON.

PROCLAMATIONS.

[From a broadside in the archives of the Department of State.]

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas it appears that a state of war exists between Austria, Prussia, Sardinia, Great Britain, and the United Netherlands of the one part and France on the other, and the duty and interest of the United States require that they should with sincerity and good faith adopt and pursue a conduct friendly and impartial toward the belligerent powers:

I have therefore thought fit by these presents to declare the disposition of the United States to observe the conduct aforesaid toward those powers respectively, and to exhort and warn the citizens of the United States carefully to avoid all acts and proceedings whatsoever which may in any manner tend to contravene such disposition.

And I do hereby also make known that whosoever of the citizens of the United States shall render himself liable to punishment or forfeiture under the law of nations by committing, aiding, or abetting hostilities against any of the said powers, or by carrying to any of them those articles which are deemed contraband by the modern usage of nations, will not receive the protection of the United States against such punishment or forfeiture; and further, that I have given instructions to those officers to whom it belongs to cause prosecutions to be instituted against all persons who shall, within the cognizance of the courts of the United States, violate the law of nations with respect to the powers at war, or any of them.

In testimony whereof I have caused the seal of the United States of America to be affixed to these presents, and signed the same with my hand.

[SEAL.]

Done at the city of Philadelphia, the 22d day of April, 1793, and of the Independence of the United States of America the seventeenth.

GEORGE WASHINGTON.

By the President:
THOMAS JEFFERSON.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas I have received information that certain persons, in violation of the laws, have presumed, under color of a foreign authority, to enlist citizens of the United States and others within the State of Kentucky, and have there assembled an armed force for the purpose of invading and plundering the territories of a nation at peace with the said United States; and

Whereas such unwarrantable measures, being contrary to the laws of nations and to the duties incumbent on every citizen of the United States, tend to disturb the tranquillity of the same, and to involve them in the calamities of war; and

Whereas it is the duty of the Executive to take care that such criminal proceedings should be suppressed, the offenders brought to justice, and all good citizens cautioned against measures likely to prove so pernicious to their country and themselves, should they be seduced into similar infractions of the laws:

I have therefore thought proper to issue this proclamation, hereby solemnly warning every person, not authorized by the laws, against enlisting any citizen or citizens of the United States, or levying troops, or assembling any persons within the United States for the purposes aforesaid, or proceeding in any manner to the execution thereof, as they will answer for the same at their peril; and I do also admonish and require all citizens to refrain from enlisting, enrolling, or assembling themselves for such unlawful purposes and from being in anywise concerned, aiding, or abetting therein, as they tender their own welfare, inasmuch as all lawful means will be strictly put in execution for securing obedience to the laws and for punishing such dangerous and daring violations thereof.

And I do moreover charge and require all courts, magistrates, and other officers whom it may concern, according to their respective duties, to exert the powers in them severally vested to prevent and suppress all such unlawful assemblages and proceedings, and to bring to condign punishment those who may have been guilty thereof, as they regard the due authority of Government and the peace and welfare of the United States.

In testimony whereof I have caused the seal of the United States of America to be affixed to these presents, and signed the same with my hand.

[SEAL.]

Done at the city of Philadelphia, the 24th day of March, 1794, and of the Independence of the United States of America the eighteenth.

GEORGE WASHINGTON.

By the President:
EDM. RANDOLPH.

[From Annals of Congress, Fourth Congress, second session, 2796.]

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas combinations to defeat the execution of the laws laying duties upon spirits distilled within the United States and upon stills have from the time of the commencement of those laws existed in some of the western parts of Pennsylvania; and

Whereas the said combinations, proceeding in a manner subversive equally of the just authority of government and of the rights of individuals, have hitherto effected their dangerous and criminal purpose by the influence of certain irregular meetings whose proceedings have tended to encourage and uphold the spirit of opposition by misrepresentations of the laws calculated to render them odious; by endeavors to deter those who might be so disposed from accepting offices under them through fear of public resentment and of injury to person and property, and to compel those who had accepted such offices by actual violence to surrender or forbear the execution of them; by circulating vindictive menaces against all those who should otherwise, directly or indirectly, aid in the execution of the said laws, or who, yielding to the dictates of conscience and to a sense of obligation, should themselves comply therewith; by actually injuring and destroying the property of persons who were understood to have so complied; by inflicting cruel and humiliating punishments upon private citizens for no other cause than that of appearing to be the friends of the laws; by intercepting the public officers on the highways, abusing, assaulting, and otherwise ill treating them; by going to their houses in the night, gaining admittance by force, taking away their papers, and committing other outrages, employing for these unwarrantable purposes the agency of armed banditti disguised in such manner as for the most part to escape discovery; and

Whereas the endeavors of the Legislature to obviate objections to the said laws by lowering the duties and by other alterations conducive to the convenience of those whom they immediately affect (though they have given satisfaction in other quarters), and the endeavors of the executive

officers to conciliate a compliance with the laws by explanations, by forbearance, and even by particular accommodations founded on the suggestion of local considerations, have been disappointed of their effect by the machinations of persons whose industry to excite resistance has increased with every appearance of a disposition among the people to relax in their opposition and to acquiesce in the laws, insomuch that many persons in the said western parts of Pennsylvania have at length been hardy enough to perpetrate acts which I am advised amount to treason, being overt acts of levying war against the United States, the said persons having on the 16th and 17th July last past proceeded in arms (on the second day amounting to several hundreds) to the house of John Neville, inspector of the revenue for the fourth survey of the district of Pennsylvania; having repeatedly attacked the said house with the persons therein, wounding some of them; having seized David Lenox, marshal of the district of Pennsylvania, who previous thereto had been fired upon while in the execution of his duty by a party of armed men, detaining him for some time prisoner, till for the preservation of his life and the obtaining of his liberty he found it necessary to enter into stipulations to forbear the execution of certain official duties touching processes issuing out of a court of the United States; and having finally obliged the said inspector of the said revenue and the said marshal from considerations of personal safety to fly from that part of the country, in order, by a circuitous route, to proceed to the seat of Government, avowing as the motives of these outrageous proceedings an intention to prevent by force of arms the execution of the said laws, to oblige the said inspector of the revenue to renounce his said office, to withstand by open violence the lawful authority of the Government of the United States, and to compel thereby an alteration in the measures of the Legislature and a repeal of the laws aforesaid; and

Whereas by a law of the United States entitled "An act to provide for calling forth the militia to execute the laws of the Union, suppress insurrections, and repel invasions," it is enacted "that whenever the laws of the United States shall be opposed or the execution thereof obstructed in any State by combinations too powerful to be suppressed by the ordinary course of judicial proceedings or by the powers vested in the marshals by that act, the same being notified by an associate justice or the district judge, it shall be lawful for the President of the United States to call forth the

militia of such State to suppress such combinations and to cause the laws to be duly executed. And if the militia of a State where such combinations may happen shall refuse or be insufficient to suppress the same, it shall be lawful for the President, if the Legislature of the United States shall not be in session, to call forth and employ such numbers of the militia of any other State or States most convenient thereto as may be necessary; and the use of the militia so to be called forth may be continued, if necessary, until the expiration of thirty days after the commencement of the ensuing session: *Provided always*, That whenever it may be necessary in the judgment of the President to use the military force hereby directed to be called forth, the President shall forthwith, and previous thereto, by proclamation, command such insurgents to disperse and retire peaceably to their respective abodes within a limited time;" and

Whereas James Wilson, an associate justice, on the 4th instant, by writing under his hand, did from evidence which had been laid before him notify to me that "in the counties of Washington and Allegany, in Pennsylvania, laws of the United States are opposed and the execution thereof obstructed by combinations too powerful to be suppressed by the ordinary course of judicial proceedings or by the powers vested in the marshal of that district;" and

Whereas it is in my judgment necessary under the circumstances of the case to take measures for calling forth the militia in order to suppress the combinations aforesaid, and to cause the laws to be duly executed; and I have accordingly determined so to do, feeling the deepest regret for the occasion, but withal the most solemn conviction that the essential interests of the Union demand it, that the very existence of Government and the fundamental principles of social order are materially involved in the issue, and that the patriotism and firmness of all good citizens are seriously called upon, as occasions may require, to aid in the effectual suppression of so fatal a spirit:

Wherefore, and in pursuance of the proviso above recited, I, George Washington, President of the United States, do hereby command all persons being insurgents as aforesaid, and all others whom it may concern, on or before the 1st day of September next to disperse and retire peaceably to their respective abodes. And I do moreover warn all persons whomsoever

against aiding, abetting, or comforting the perpetrators of the aforesaid treasonable acts, and do require all officers and other citizens, according to their respective duties and the laws of the land, to exert their utmost endeavors to prevent and suppress such dangerous proceedings.

In testimony whereof I have caused the seal of the United States of America to be affixed to these presents, and signed the same with my hand.

[SEAL.]

Done at the city of Philadelphia, the 7th day of August, 1794, and of the Independence of the United States of America the nineteenth.

GEORGE WASHINGTON.

By the President:
EDM. RANDOLPH.

[From Annals of Congress, Third Congress, 1413.]

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas from a hope that the combinations against the Constitution and laws of the United States in certain of the western counties of Pennsylvania would yield to time and reflection I thought it sufficient in the first instance rather to take measures for calling forth the militia than immediately to embody them, but the moment is now come when the overtures of forgiveness, with no other condition than a submission to law, have been only partially accepted; when every form of conciliation not inconsistent with the being of Government has been adopted without effect; when the well-disposed in those counties are unable by their influence and example

to reclaim the wicked from their fury, and are compelled to associate in their own defense; when the proffered lenity has been perversely misinterpreted into an apprehension that the citizens will march with reluctance; when the opportunity of examining the serious consequences of a treasonable opposition has been employed in propagating principles of anarchy, endeavoring through emissaries to alienate the friends of order from its support, and inviting its enemies to perpetrate similar acts of insurrection; when it is manifest that violence would continue to be exercised upon every attempt to enforce the laws; when, therefore, Government is set at defiance, the contest being whether a small portion of the United States shall dictate to the whole Union, and, at the expense of those who desire peace, indulge a desperate ambition:

Now, therefore, I, George Washington, President of the United States, in obedience to that high and irresistible duty consigned to me by the Constitution "to take care that the laws be faithfully executed," deploring that the American name should be sullied by the outrages of citizens on their own Government, commiserating such as remain obstinate from delusion, but resolved, in perfect reliance on that gracious Providence which so signally displays its goodness towards this country, to reduce the refractory to a due subordination to the law, do hereby declare and make known that, with a satisfaction which can be equaled only by the merits of the militia summoned into service from the States of New Jersey, Pennsylvania, Maryland, and Virginia, I have received intelligence of their patriotic alacrity in obeying the call of the present, though painful, yet commanding necessity; that a force which, according to every reasonable expectation, is adequate to the exigency is already in motion to the scene of disaffection; that those who have confided or shall confide in the protection of Government shall meet full succor under the standard and from the arms of the United States; that those who, having offended against the laws, have since entitled themselves to indemnity will be treated with the most liberal good faith if they shall not have forfeited their claim by any subsequent conduct, and that instructions are given accordingly.

And I do moreover exhort all individuals, officers, and bodies of men to contemplate with abhorrence the measures leading directly or indirectly to those crimes which produce this resort to military coercion; to check in their respective spheres the efforts of misguided or designing men to

substitute their misrepresentation in the place of truth and their discontents in the place of stable government, and to call to mind that, as the people of the United States have been permitted, under the Divine favor, in perfect freedom, after solemn deliberation, and in an enlightened age, to elect their own government, so will their gratitude for this inestimable blessing be best distinguished by firm exertions to maintain the Constitution and the laws.

And, lastly, I again warn all persons whomsoever and wheresoever not to abet, aid, or comfort the insurgents aforesaid, as they will answer the contrary at their peril; and I do also require all officers and other citizens, according to their several duties, as far as may be in their power, to bring under the cognizance of the laws all offenders in the premises. In testimony whereof I have caused the seal of the United States of America to be affixed to these presents, and signed the same with my hand.

[SEAL.]

Done at the city of Philadelphia, the 25th day of September, 1794, and of the Independence of the United States of America the nineteenth.

GEORGE WASHINGTON.

By the President:
EDM. RANDOLPH.

SIXTH ANNUAL ADDRESS.

UNITED STATES, *November 19, 1794.*

Fellow-Citizens of the Senate and of the House of Representatives;

When we call to mind the gracious indulgence of Heaven by which the American people became a nation; when we survey the general prosperity of our country, and look forward to the riches, power, and happiness to which it seems destined, with the deepest regret do I announce to you that during your recess some of the citizens of the United States have been found capable of an insurrection. It is due, however, to the character of our Government and to its stability, which can not be shaken by the enemies of order, freely to unfold the course of this event.

During the session of the year 1790 it was expedient to exercise the legislative power granted by the Constitution of the United States "to lay and collect excises." In a majority of the States scarcely an objection was heard to this mode of taxation. In some, indeed, alarms were at first conceived, until they were banished by reason and patriotism. In the four western counties of Pennsylvania a prejudice, fostered and imbittered by the artifice of men who labored for an ascendancy over the will of others by the guidance of their passions, produced symptoms of riot and violence. It is well known that Congress did not hesitate to examine the complaints which were presented, and to relieve them as far as justice dictated or general convenience would permit. But the impression which this moderation made on the discontented did not correspond with what it deserved. The arts of delusion were no longer confined to the efforts of designing individuals. The very forbearance to press prosecutions was misinterpreted into a fear of urging the execution of the laws, and associations of men began to denounce threats against the officers employed. From a belief that by a more formal concert their operation might be defeated, certain self-created societies assumed the tone of condemnation. Hence, while the greater part of Pennsylvania itself were conforming themselves to the acts of excise, a few counties were resolved to frustrate them. It was now perceived that

every expectation from the tenderness which had been hitherto pursued was unavailing, and that further delay could only create an opinion of impotency or irresolution in the Government. Legal process was therefore delivered to the marshal against the rioters and delinquent distillers.

No sooner was he understood to be engaged in this duty than the vengeance of armed men was aimed at *his* person and the person and property of the inspector of the revenue. They fired upon the marshal, arrested him, and detained him for some time as a prisoner. He was obliged, by the jeopardy of his life, to renounce the service of other process on the west side of the Allegheny Mountain, and a deputation was afterwards sent to him to demand a surrender of that which he *had* served. A numerous body repeatedly attacked the house of the inspector, seized his papers of office, and finally destroyed by fire his buildings and whatsoever they contained. Both of these officers, from a just regard to their safety, fled to the seat of Government, it being avowed that the motives to such outrages were to compel the resignation of the inspector, to withstand by force of arms the authority of the United States, and thereby to extort a repeal of the laws of excise and an alteration in the conduct of Government.

Upon the testimony of these facts an associate justice of the Supreme Court of the United States notified to me that "in the counties of Washington and Allegheny, in Pennsylvania, laws of the United States were opposed, and the execution thereof obstructed, by combinations too powerful to be suppressed by the ordinary course of judicial proceedings or by the powers vested in the marshal of that district." On this call, momentous in the extreme, I sought and weighed what might best subdue the crisis. On the one hand the judiciary was pronounced to be stripped of its capacity to enforce the laws; crimes which reached the very existence of social order were perpetrated without control; the friends of Government were insulted, abused, and overawed into silence or an apparent acquiescence; and to yield to the treasonable fury of so small a portion of the United States would be to violate the fundamental principle of our Constitution, which enjoins that the will of the majority shall prevail. On the other, to array citizen against citizen, to publish the dishonor of such excesses, to encounter the expense and other embarrassments of so distant an expedition, were steps too delicate, too closely interwoven with many affecting considerations, to be lightly adopted. I postponed, therefore, the

summoning the militia immediately into the field, but I required them to be held in readiness, that if my anxious endeavors to reclaim the deluded and to convince the malignant of their danger should be fruitless, military force might be prepared to act before the season should be too far advanced.

My proclamation of the 7th of August last was accordingly issued, and accompanied by the appointment of commissioners, who were charged to repair to the scene of insurrection. They were authorized to confer with any bodies of men or individuals. They were instructed to be candid and explicit in stating the sensations which had been excited in the Executive, and his earnest wish to avoid a resort to coercion; to represent, however, that, without submission, coercion *must* be the resort; but to invite them, at the same time, to return to the demeanor of faithful citizens, by such accommodations as lay within the sphere of Executive power. Pardon, too, was tendered to them by the Government of the United States and that of Pennsylvania, upon no other condition than a satisfactory assurance of obedience to the laws.

Although the report of the commissioners marks their firmness and abilities, and must unite all virtuous men, by shewing that the means of conciliation have been exhausted, all of those who had committed or abetted the tumults did not subscribe the mild form which was proposed as the atonement, and the indications of a peaceable temper were neither sufficiently general nor conclusive to recommend or warrant the further suspension of the march of the militia.

Thus the painful alternative could not be discarded. I ordered the militia to march, after once more admonishing the insurgents in my proclamation of the 25th of September last.

It was a task too difficult to ascertain with precision the lowest degree of force competent to the quelling of the insurrection. From a respect, indeed, to economy and the ease of my fellow-citizens belonging to the militia, it would have gratified me to accomplish such an estimate. My very reluctance to ascribe too much importance to the opposition, had its extent been accurately seen, would have been a decided inducement to the smallest efficient numbers. In this uncertainty, therefore, I put into motion 15,000 men, as being an army which, according to all human calculation,

would be prompt and adequate in every view, and might, perhaps, by rendering resistance desperate, prevent the effusion of blood. Quotas had been assigned to the States of New Jersey, Pennsylvania, Maryland, and Virginia, the governor of Pennsylvania having declared on this occasion an opinion which justified a requisition to the other States.

As commander in chief of the militia when called into the actual service of the United States, I have visited the places of general rendezvous to obtain more exact information and to direct a plan for ulterior movements. Had there been room for a persuasion that the laws were secure from obstruction; that the civil magistrate was able to bring to justice such of the most culpable as have not embraced the proffered terms of amnesty, and may be deemed fit objects of example; that the friends to peace and good government were not in need of that aid and countenance which they ought always to receive, and, I trust, ever will receive, against the vicious and turbulent, I should have caught with avidity the opportunity of restoring the militia to their families and homes. But succeeding intelligence has tended to manifest the necessity of what has been done, it being now confessed by those who were not inclined to exaggerate the ill conduct of the insurgents that their malevolence was not pointed merely to a particular law, but that a spirit inimical to all order has actuated many of the offenders. If the state of things had afforded reason for the continuance of my presence with the army, it would not have been withholden. But every appearance assuring such an issue as will redound to the reputation and strength of the United States, I have judged it most proper to resume my duties at the seat of Government, leaving the chief command with the governor of Virginia.

Still, however, as it is probable that in a commotion like the present, whatsoever may be the pretense, the purposes of mischief and revenge may not be laid aside, the stationing of a small force for a certain period in the four western counties of Pennsylvania will be indispensable, whether we contemplate the situation of those who are connected with the execution of the laws or of others who may have exposed themselves by an honorable attachment to them. Thirty days from the commencement of this session being the legal limitation of the employment of the militia, Congress can not be too early occupied with this subject.

Among the discussions which may arise from this aspect of our affairs, and from the documents which will be submitted to Congress, it will not escape their observation that not only the inspector of the revenue, but other officers of the United States in Pennsylvania have, from their fidelity in the discharge of their functions, sustained material injuries to their property. The obligation and policy of indemnifying them are strong and obvious. It may also merit attention whether policy will not enlarge this provision to the retribution of other citizens who, though not under the ties of office, may have suffered damage by their generous exertions for upholding the Constitution and the laws. The amount, even if all the injured were included, would not be great, and on future emergencies the Government would be amply repaid by the influence of an example that he who incurs a loss in its defense shall find a recompense in its liberality.

While there is cause to lament that occurrences of this nature should have disgraced the name or interrupted the tranquillity of any part of our community, or should have diverted to a new application any portion of the public resources, there are not wanting real and substantial consolations for the misfortune. It has demonstrated that our prosperity rests on solid foundations, by furnishing an additional proof that my fellow-citizens understand the true principles of government and liberty; that they feel their inseparable union; that notwithstanding all the devices which have been used to sway them from their interest and duty, they are now as ready to maintain the authority of the laws against licentious invasions as they were to defend their rights against usurpation. It has been a spectacle displaying to the highest advantage the value of republican government to behold the most and the least wealthy of our citizens standing in the same ranks as private soldiers, preeminently distinguished by being the army of the Constitution—undeterred by a march of 300 miles over rugged mountains, by the approach of an inclement season, or by any other discouragement. Nor ought I to omit to acknowledge the efficacious and patriotic cooperation which I have experienced from the chief magistrates of the States to which my requisitions have been addressed.

To every description of citizens, indeed, let praise be given. But let them persevere in their affectionate vigilance over that precious depository of American happiness, the Constitution of the United States. Let them cherish it, too, for the sake of those who, from every clime, are daily seeking a

dwelling in our land. And when in the calm moments of reflection they shall have retraced the origin and progress of the insurrection, let them determine whether it has not been fomented by combinations of men who, careless of consequences and disregarding the unerring truth that those who rouse can not always appease a civil convulsion, have disseminated, from an ignorance or perversion of facts, suspicions, jealousies, and accusations of the whole Government.

Having thus fulfilled the engagement which I took when I entered into office, "to the best of my ability to preserve, protect, and defend the Constitution of the United States," on you, gentlemen, and the people by whom you are deputed, I rely for support.

In the arrangements to which the possibility of a similar contingency will naturally draw your attention it ought not to be forgotten that the militia laws have exhibited such striking defects as could not have been supplied but by the zeal of our citizens, Besides the extraordinary expense and waste, which are not the least of the defects, every appeal to those laws is attended with a doubt on its success.

The devising and establishing of a well-regulated militia would be a genuine source of legislative honor and a perfect title to public gratitude. I therefore entertain a hope that the present session will not pass without carrying to its full energy the power of organizing, arming, and disciplining the militia, and thus providing, in the language of the Constitution, for calling them forth to execute the laws of the Union, suppress insurrections, and repel invasions.

As auxiliary to the state of our defense, to which Congress can never too frequently recur, they will not omit to inquire whether the fortifications which have been already licensed by law be commensurate with our exigencies.

The intelligence from the army under the command of General Wayne is a happy presage to our military operations against the hostile Indians north of the Ohio. From the advices which have been forwarded, the advance which he has made must have damped the ardor of the savages and weakened their obstinacy in waging war against the United States, And yet, even at this late hour, when our power to punish them can not be

questioned, we shall not be unwilling to cement a lasting peace upon terms of candor, equity, and good neighborhood.

Toward none of the Indian tribes have overtures of friendship been spared. The Creeks in particular are covered from encroachment by the interposition of the General Government and that of Georgia. From a desire also to remove the discontents of the Six Nations, a settlement meditated at Presque Isle, on Lake Erie, has been suspended, and an agent is now endeavoring to rectify any misconception into which they may have fallen. But I can not refrain from again pressing upon your deliberations the plan which I recommended at the last session for the improvement of harmony with all the Indians within our limits by the fixing and conducting of trading houses upon the principles then expressed.

Gentlemen of the House of Representatives:

The time which has elapsed since the commencement of our fiscal measures has developed our pecuniary resources so as to open the way for a definite plan for the redemption of the public debt. It is believed that the result is such as to encourage Congress to consummate this work without delay. Nothing can more promote the permanent welfare of the nation and nothing would be more grateful to our constituents. Indeed, whatsoever is unfinished of our system of public credit can not be benefited by procrastination; and as far as may be practicable we ought to place that credit on grounds which can not be disturbed, and to prevent that progressive accumulation of debt which must ultimately endanger all governments.

An estimate of the necessary appropriations, including the expenditures into which we have been driven by the insurrection, will be submitted to Congress.

Gentlemen of the Senate and of the House of Representatives.

The Mint of the United States has entered upon the coinage of the precious metals, and considerable sums of defective coins and bullion have been lodged with the Director by individuals. There is a pleasing prospect that the institution will at no remote day realize the expectation which was originally formed of its utility.

In subsequent communications certain circumstances of our intercourse with foreign nations will be transmitted to Congress. However, it may not be unseasonable to announce that my policy in our foreign transactions has been to cultivate peace with all the world; to observe treaties with pure and absolute faith; to check every deviation from the line of impartiality; to explain what may have been misapprehended and correct what may have been injurious to any nation, and having thus acquired the right, to lose no time in acquiring the ability to insist upon justice being done to ourselves.

Let us unite, therefore, in imploring the Supreme Ruler of Nations to spread his holy protection over these United States; to turn the machinations of the wicked to the confirming of our Constitution; to enable us at all times to root out internal sedition and put invasion to flight; to perpetuate to our country that prosperity which His goodness has already conferred, and to verify the anticipations of this Government being a safeguard to human rights.

GEORGE WASHINGTON.

ADDRESS OF THE SENATE TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

SIR: We receive with pleasure your speech to the two Houses of Congress. In it we perceive renewed proofs of that vigilant and paternal concern for the prosperity, honor, and happiness of our country which has uniformly distinguished your past Administration.

Our anxiety arising from the licentious and open resistance to the laws in the western counties of Pennsylvania has been increased by the proceedings of certain self-created societies relative to the laws and administration of the Government; proceedings, in our apprehension, founded in political error, calculated, if not intended, to disorganize our Government, and which, by inspiring delusive hopes of support, have been influential in misleading our fellow-citizens in the scene of insurrection.

In a situation so delicate and important the lenient and persuasive measures which you adopted merit and receive our affectionate approbation. These failing to procure their proper effect, and coercion having become inevitable, we have derived the highest satisfaction from the enlightened patriotism and animating zeal with which the citizens of New Jersey, Pennsylvania, Maryland, and Virginia have rallied around the standard of Government in opposition to anarchy and insurrection.

Our warm and cordial acknowledgments are due to you, sir, for the wisdom and decision with which you arrayed the militia to execute the public will, and to them for the disinterestedness and alacrity with which they obeyed your summons.

The example is precious to the theory of our Government, and confers the brightest honor upon the patriots who have given it.

We shall readily concur in such further provisions for the security of internal peace and a due obedience to the laws as the occasion manifestly requires.

The effectual organization of the militia and a prudent attention to the fortifications of our ports and harbors are subjects of great national importance, and, together with the other measures you have been pleased to recommend, will receive our deliberate consideration.

The success of the troops under the command of General Wayne can not fail to produce essential advantages. The pleasure with which we acknowledge the merits of that gallant general and army is enhanced by the hope that their victories will lay the foundation of a just and durable peace with the Indian tribes.

At a period so momentous in the affairs of nations the temperate, just, and firm policy that you have pursued in respect to foreign powers has been eminently calculated to promote the great and essential interest of our country, and has created the fairest title to the public gratitude and thanks.

JOHN ADAMS,
Vice-President of the United States and President of the Senate.

NOVEMBER 21, 1794.

REPLY OF THE PRESIDENT.

GENTLEMEN: Among the occasions which have been afforded for expressing my sense of the zealous and steadfast cooperation of the Senate in the maintenance of Government, none has yet occurred more forcibly demanding my unqualified acknowledgments than the present.

Next to the consciousness of upright intentions, it is the highest pleasure to be approved by the enlightened representatives of a free nation. With the satisfaction, therefore, which arises from an unalterable attachment to public order do I learn that the Senate discountenance those proceedings which would arrogate the direction of our affairs without any degree of authority derived from the people.

It has been more than once the lot of our Government to be thrown into new and delicate situations, and of these the insurrection has not been the least important. Having been compelled at length to lay aside my repugnance to resort to arms, I derive much happiness from being confirmed by your judgment in the necessity of decisive measures, and from the support of my fellow-citizens of the militia, who were the patriotic instruments of that necessity.

With such demonstrations of affection for our Constitution; with an adequate organization of the militia; with the establishment of necessary fortifications; with a continuance of those judicious and spirited exertions which have brought victory to our Western army; with a due attention to public credit, and an unsullied honor toward all nations, we may meet, under every assurance of success, our enemies from within and from without.

GEORGE WASHINGTON.

NOVEMBER 22, 1794.

ADDRESS OF THE HOUSE OF REPRESENTATIVES TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

SIR: The House of Representatives, calling to mind the blessings enjoyed by the people of the United States, and especially the happiness of living under constitutions and laws which rest on their authority alone, could not learn with other emotions than those you have expressed that any part of our fellow-citizens should have shewn themselves capable of an insurrection. And we learn with the greatest concern that any misrepresentations whatever of the Government and its proceedings, either by individuals or combinations of men, should have been made and so far credited as to foment the flagrant outrage which has been committed on the laws. We feel with you the deepest regret at so painful an occurrence in the annals of our country. As men regardful of the tender interests of humanity, we look with grief at scenes which might have stained our land with civil blood; as lovers of public order, we lament that it has suffered so flagrant a violation; as zealous friends of republican government, we deplore every occasion which in the hands of its enemies may be turned into a calumny against it.

This aspect of the crisis, however, is happily not the only one which it presents. There is another, which yields all the consolations which you have drawn from it. It has demonstrated to the candid world, as well as to the American people themselves, that the great body of them everywhere are equally attached to the luminous and vital principle of our Constitution, which enjoins that the will of the majority shall prevail; that they understand the indissoluble union between true liberty and regular government; that they feel their duties no less than they are watchful over their rights; that they will be as ready at all times to crush licentiousness as they have been to defeat usurpation. In a word, that they are capable of carrying into execution that noble plan of self-government which they have chosen as the guaranty of their own happiness and the asylum for that of all, from every clime, who may wish to unite their destiny with ours.

These are the just inferences flowing from the promptitude with which the summons to the standard of the laws has been obeyed, and from the sentiments which have been witnessed in every description of citizens in every quarter of the Union. The spectacle, therefore, when viewed in its true light, may well be affirmed to display in equal luster the virtues of the American character and the value of republican government. All must particularly acknowledge and applaud the patriotism of that portion of citizens who have freely sacrificed everything less dear than the love of their country to the meritorious task of defending its happiness.

In the part which you have yourself borne through this delicate and distressing period we trace the additional proofs it has afforded of your solicitude for the public good. Your laudable and successful endeavors to render lenity in executing the laws conducive to their real energy, and to convert tumult into order without the effusion of blood, form a particular title to the confidence and praise of your constituents. In all that may be found necessary on our part to complete this benevolent purpose, and to secure the ministers and friends of the laws against the remains of danger, our due cooperation will be afforded.

The other subjects which you have recommended or communicated, and of which several are peculiarly interesting, will all receive the attention which they demand. We are deeply impressed with the importance of an effectual organization of the militia. We rejoice at the intelligence of the advance and success of the army under the command of General Wayne, whether we regard it as a proof of the perseverance, prowess, and superiority of our troops, or as a happy presage to our military operations against the hostile Indians, and as a probable prelude to the establishment of a lasting peace upon terms of candor, equity, and good neighborhood. We receive it with the greater pleasure as it increases the probability of sooner restoring a part of the public resources to the desirable object of reducing the public debt.

We shall on this, as on all occasions, be disposed to adopt any measures which may advance the safety and prosperity of our country. In nothing can we more cordially unite with you than in imploring the Supreme Ruler of Nations to multiply his blessings on these United States; to guard our free and happy Constitution against every machination and danger, and to make

it the best source of public happiness, by verifying its character of being the best safeguard of human rights,

NOVEMBER 28, 1794.

REPLY OF THE PRESIDENT.

GENTLEMEN: I anticipated with confidence the concurrence of the House of Representatives in the regret produced by the insurrection. Every effort ought to be used to discountenance what has contributed to foment it, and thus discourage a repetition of like attempts; for notwithstanding the consolations which may be drawn from the issue of this event, it is far better that the artful approaches to such a situation of things should be checked by the vigilant and duly admonished patriotism of our fellow-citizens than that the evil should increase until it becomes necessary to crush it by the strength of their arm.

I am happy that the part which I have myself borne on this occasion receives the approbation of your House. For the discharge of a constitutional duty it is a sufficient reward to me to be assured that you will unite in consummating what remains to be done.

I feel also great satisfaction in learning that the other subjects which I have communicated or recommended will meet with due attention; that you are deeply impressed with the importance of an effectual organization of the militia, and that the advance and success of the army under the command of General Wayne is regarded by you, no less than myself, as a proof of the perseverance, prowess, and superiority of our troops.

GEORGE WASHINGTON.

NOVEMBER 29, 1794.

SPECIAL MESSAGES.

UNITED STATES, *November 21, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I lay before Congress copies of a letter from the governor of the State of New York and of the exemplification of an act of the legislature thereof ratifying the amendment of the Constitution of the United States proposed by the Senate and House of Representatives at their last session, respecting the judicial power.

GEORGE WASHINGTON.

UNITED STATES, *November 21, 1794.*

Gentlemen of the Senate:

In the negotiation between the United States and His Catholic Majesty I have received satisfactory proofs of attention and ability exerted in behalf of the United States to bring it to a happy and speedy issue. But it is probable that by complying with an intimation made to the Secretary of State by the commissioners of His Catholic Majesty much further delay in concluding it may be prevented. Notwithstanding, therefore, I retain full confidence in our minister resident at Madrid, who is charged with powers as commissioner plenipotentiary, I nominate Thomas Pinckney to be envoy extraordinary of the United States to His Catholic Majesty, for the purpose of negotiating of and concerning the navigation of the river Mississippi, and such other matters relative to the confines of their territories, and the intercourse to be had thereon, as the mutual interests and general harmony of neighboring and friendly nations require should be precisely adjusted and regulated, and of and concerning the general commerce between the United States and the kingdoms and dominions of his said Catholic Majesty.

It is believed that by his temporary absence from London in the discharge of these new functions no injury will arise to the United States.

I also nominate:

John Miller Russell, of Massachusetts, to be consul of the United States of America for the port of St. Petersburg, in Russia, and for such other places as shall be nearer to the said port than to the residence of any other consul or vice-consul of the United States within the same allegiance;

Joseph Pitcairn, of New York, to be vice-consul of the United States of America at Paris, vice Alexander Duvernet, superseded; and

Nathaniel Brush, of Vermont, to be supervisor for the United States in the district of Vermont, vice Noah Smith, who has resigned.

GEORGE WASHINGTON.

UNITED STATES, *November 25, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you a statement of the troops in the service of the United States, which has been submitted to me by the Secretary of War. It will rest with Congress to consider and determine whether further inducements shall be held out for entering into the military service of the United States in order to complete the establishment authorized by law.

GEORGE WASHINGTON.

UNITED STATES, *December 17, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I lay before Congress copies of the journal of the proceedings of the executive department of the government of the United States south of the river Ohio to the 1st of September, 1794.

GEORGE WASHINGTON.

UNITED STATES, *December 30, 1794.*

Gentlemen of the Senate and of the House of Representatives:

I lay before you a report, made to me by the Secretary of War, respecting the frontiers of the United States. The disorders and the great expenses which incessantly arise upon the frontiers are of a nature and magnitude to excite the most serious considerations.

I feel a confidence that Congress will devise such constitutional and efficient measures as shall be equal to the great objects of preserving our treaties with the Indian tribes and of affording an adequate protection to our frontiers.

GEORGE WASHINGTON.

UNITED STATES, *January 2, 1795.*

Gentlemen of the Senate:

A spirit of discontent, from several causes, arose in the early part of the present year among the Six Nations of Indians, and particularly on the ground of a projected settlement by Pennsylvania, at Presque Isle, upon Lake Erie. The papers upon this point have already been laid before Congress. It was deemed proper on my part to endeavor to tranquillize the Indians by pacific measures. Accordingly a time and place was appointed at which a free conference should be had upon all the causes of discontent,

and an agent was appointed with the instructions of which No. 1, herewith transmitted, is a copy.

A numerous assembly of Indians was held in Canandaigua, in the State of New York the proceedings whereof accompany this message, marked No. 2.

The two treaties, the one with the Six Nations and the other with the Oneida, Tuscorora, and Stockbridge Indians dwelling in the country of the Oneidas, which have resulted from the mission of the agent, are herewith laid before the Senate for their consideration and advice.

The original engagement of the United States to the Oneidas is also sent herewith.

GEORGE WASHINGTON.

UNITED STATES, *January 8, 1795.*

Gentlemen of the Senate and of the House of Representatives:

I lay before Congress copies of acts passed by the legislatures of the States of Vermont, Massachusetts, and New York, ratifying the amendment proposed by the Senate and House of Representatives at their last session to the Constitution of the United States respecting the judicial power thereof.

The minister of the French Republic having communicated to the Secretary of State certain proceedings of the committee of public safety respecting weights and measures, I lay these also before Congress.

The letter from the governor of the Western territory, copies of which are now transmitted, refers to a defect in the judicial system of that territory deserving the attention of Congress.

The necessary absence of the judge of the district of Pennsylvania upon business connected with the late insurrection is stated by him in a letter of which I forward copies to have produced certain interruptions in the judicial

proceedings of that district which can not be removed without the interposition of Congress.

GEORGE WASHINGTON.

UNITED STATES, *February 4, 1795.*

Gentlemen of the Senate and of the House of Representatives:

I lay before Congress, for their consideration, a letter from the Secretary of State upon the subject of a loan which is extremely interesting and urgent.

GEORGE WASHINGTON.

UNITED STATES, *February 17, 1795.*

Gentlemen of the Senate and of the House of Representatives:

I transmit to Congress copies of a letter from the governor of the State of New Hampshire and of an act of the legislature thereof "ratifying the article proposed in amendment to the Constitution of the United States respecting the judicial power."

I also lay before Congress copies of a letter from the governor of the State of North Carolina and of an act of the legislature thereof ceding to the United States certain lands upon the conditions therein mentioned.

GEORGE WASHINGTON.

UNITED STATES, *February 17, 1795.*

Gentlemen of the Senate and of the House of Representatives:

I have received copies of two acts of the legislature of Georgia, one passed on the 28th day of December and the other on the 7th day of January last, for appropriating and selling the Indian lands within the territorial limits claimed by that State. These copies, though not officially certified, have been transmitted to me in such a manner as to leave no room to doubt their authenticity. These acts embrace an object of such magnitude, and in their consequences may so deeply affect the peace and welfare of the United States, that I have thought it necessary now to lay them before Congress.

In *confidence*, I also forward copies of several documents and papers received from the governor of the Southwestern territory. By these it seems that hostilities with the Cherokees have ceased, and that there is a pleasing prospect of a permanent peace with that nation; but from all the communications of the governor it appears that the Creeks, in small parties, continue their depredations, and it is uncertain to what they may finally lead.

The several papers now communicated deserve the immediate attention of Congress, who will consider how far the subjects of them may require their cooperation.

GEORGE WASHINGTON.

UNITED STATES, *February 25, 1795.*

Gentlemen of the Senate and of the House of Representatives:

I communicate to Congress copies of a letter from the governor of the State of Georgia and of an act of the legislature thereof "to ratify the resolution of Congress explanatory of the judicial power of the United States."

GEORGE WASHINGTON.

UNITED STATES, *February 28, 1795.*

Gentlemen of the Senate and of the House of Representatives:

In my first communication to Congress during their present session I gave them reason to expect that "certain circumstances of our intercourse with foreign nations" would be transmitted to them. There was at that time every assurance for believing that some of the most important of our foreign affairs would have been concluded and others considerably matured before they should rise. But notwithstanding I have waited until this moment, it has so happened that, either from causes unknown to me or from events which could not be controlled, I am yet unable to execute my original intention. That I may, however, fulfill the expectation given as far as the actual situation of things will in my judgment permit, I now, *in confidence*', lay before Congress the following general statement:

Our minister near the French Republic has urged compensation for the injuries which our commerce has sustained from captures by French cruisers, from the nonfulfillment of the contracts of the agents of that Republic with our citizens, and from the embargo at Bordeaux. He has also pressed an allowance for the money voted by Congress for relieving the inhabitants of St. Domingo. It affords me the highest pleasure to inform Congress that perfect harmony reigns between the two Republics, and that those claims are in a train of being discussed with candor and of being amicably adjusted.

So much of our relation to Great Britain may depend upon the result of our late negotiations in London that until that result shall arrive I can not undertake to make any communication upon this subject.

After the negotiation with Spain had been long depending unusual and unexpected embarrassments were raised to interrupt its progress. But the commissioner of His Catholic Majesty near the United States having declared to the Secretary of State that if a particular accommodation should be made in the *conducting* of the business no further delay would ensue, I thought proper, under all circumstances, to send to His Catholic Majesty an

envoy extraordinary specially charged to bring to a conclusion the discussions which have been formerly announced to Congress.

The friendship of Her Most Faithful Majesty has been often manifested in checking the passage of the Algerine corsairs into the Atlantic Ocean. She has also furnished occasional convoys to the vessels of the United States, even when bound to other ports than her own. We may therefore promise ourselves that, as in the ordinary course of things few causes can exist for dissatisfaction between the United States and Portugal, so the temper with which accidental difficulties will be met on each side will speedily remove them.

Between the Executive of the United States and the Government of the United Netherlands but little intercourse has taken place during the last year. It may be acceptable to Congress to learn that our credit in Holland is represented as standing upon the most respectable footing.

Upon the death of the late Emperor of Morocco an agent was dispatched to renew with his successor the treaty which the United States had made with *him*. The agent, unfortunately, died after he had reached Europe in the prosecution of his mission. But until lately it was impossible to determine with any degree of probability who of the competitors for that Empire would be ultimately fixed in the supreme power. Although the measures which have been since adopted for the renewal of the treaty have been obstructed by the disturbed situation of Amsterdam, there are good grounds for presuming as yet upon the pacific disposition of the Emperor, in fact, toward the United States, and that the past miscarriage will be shortly remedied.

Congress are already acquainted with the failure of the loan attempted in Holland for the relief of our unhappy fellow-citizens in Algiers. This subject, than which none deserves a more affectionate zeal, has constantly commanded my best exertions. I am happy, therefore, in being able to say that from the last authentic accounts the Dey was disposed to treat for a peace and ransom, and that both would in all probability have been accomplished had we not been disappointed in the means. Nothing which depends upon the Executive shall be left undone for carrying into immediate effect the supplementary act of Congress.

GEORGE WASHINGTON.

UNITED STATES, *March 2, 1795.*

Gentlemen of the Senate and of the House of Representatives:

It appears from the information which I have lately received that it may be probably necessary to the more successful conduct of our affairs on the coast of Barbary that one consul should reside in Morocco, another in Algiers, and a third in Tunis or Tripoli. As no appointment for these offices will be accepted without some emolument annexed, I submit to the consideration of Congress whether it may not be advisable to authorize a stipend to be allowed to two consuls for that coast in addition to the one already existing.

GEORGE WASHINGTON.

UNITED STATES, *March 2, 1795.*

Gentlemen of the Senate and of the House of Representatives:

I transmit to you copies of a letter from the governor of the State of Delaware and of an act inclosed "declaring the assent of that State to an amendment therein mentioned to the Constitution of the United States."

GEORGE WASHINGTON.

UNITED STATES, *June 8, 1795.*[\[2\]](#)

[Footnote 2: For proclamation convening Senate in extraordinary session see p. 587.]

Gentlemen of the Senate:

In pursuance of my nomination of John Jay as envoy extraordinary to His Britannic Majesty on the 16th day of April, 1794, and of the advice and consent of the Senate thereto on the 19th, a negotiation was opened in London. On the 7th of March, 1795, the treaty resulting therefrom was delivered to the Secretary of State. I now transmit to the Senate that treaty and other documents connected with it. They will, therefore, in their wisdom decide whether they will advise and consent that the said treaty be made between the United States and His Britannic Majesty.

GEORGE WASHINGTON.

UNITED STATES, *June 25, 1795.*

Gentlemen of the Senate:

It has been represented by our minister plenipotentiary near the French Republic that such of our commercial relations with France as may require the support of the United States in *detail* can not be well executed without a consul-general. Of this I am satisfied when I consider the extent of the mercantile claims now depending before the French Government, the necessity of bringing into the hands of one agent the various applications to the several committees of administration residing at Paris, the attention which must be paid to the conduct of consuls, and vice-consuls, and the nature of the services which are the peculiar objects of a minister's care, and leave no leisure for his intervention in business to which consular functions are competent. I therefore nominate Fulwar Skipwith to be consul-general of the United States in France.

GEORGE WASHINGTON.

UNITED STATES, *June 25, 1795.*

Gentlemen of the Senate:

Just at the close of the last session of Congress I received from one of the Senators and one of the Representatives of the State of Georgia an application for a treaty to be held with the tribes or nations of Indians claiming the right of soil to certain lands lying beyond the present temporary boundary line of that State, and which were described in an act of the legislature of Georgia passed on the 28th of December last, which has already been laid before the Senate. This application and the subsequent correspondence with the governor of Georgia are herewith transmitted. The subject being very important, I thought proper to postpone a decision upon that application. The views I have since taken of the matter, with the information received of a more pacific disposition on the part of the Creeks, have induced me now to accede to the request, but with this explicit declaration, that neither my assent nor the treaty which may be made shall be considered as affecting any question which may arise upon the supplementary act passed by the legislature of the State of Georgia on the 7th of January last, upon which inquiries have been instituted in pursuance of a resolution of the Senate and House of Representatives, and that any cession or relinquishment of the Indian claims shall be made in the general terms of the treaty of New York, which are contemplated as the form proper to be generally used on such occasions, and on the condition that one-half of the expense of the supplies of provisions for the Indians assembled at the treaty be borne by the State of Georgia.

Having concluded to hold the treaty requested by that State, I was willing to embrace the opportunity it would present of inquiring into the causes of the dissatisfaction of the Creeks which has been manifested since the treaty of New York by their numerous and distressing depredations on our Southwestern frontiers. Their depredations on the Cumberland have been so frequent and so peculiarly destructive as to lead me to think they must originate in some claim to the lands upon that river. But whatever may have been the cause, it is important to trace it to its source; for, independent of the destruction of lives and property, it occasions a very serious annual expense to the United States. The commissioners for holding the proposed treaty will, therefore, be instructed to inquire into the causes of the hostilities to which I have referred, and to enter into such reasonable

stipulations as will remove them and give permanent peace to those parts of the United States.

I now nominate Benjamin Hawkins, of North Carolina: George Clymer, of Pennsylvania, and Andrew Pickens, of South Carolina, to be commissioners to hold a treaty with the Creek Nation of Indians, for the purposes hereinbefore expressed.

GEORGE WASHINGTON.

PROCLAMATIONS.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

When we review the calamities which afflict so many other nations, the present condition of the United States affords much matter of consolation and satisfaction. Our exemption hitherto from foreign war, an increasing prospect of the continuance of that exemption, the great degree of internal tranquillity we have enjoyed, the recent confirmation of that tranquillity by the suppression of an insurrection which so wantonly threatened it, the happy course of our public affairs in general, the unexampled prosperity of all classes of our citizens, are circumstances which peculiarly mark our situation with indications of the Divine beneficence toward us. In such a state of things it is in an especial manner our duty as a people, with devout reverence and affectionate gratitude, to acknowledge our many and great obligations to Almighty God and to implore Him to continue and confirm the blessings we experience.

Deeply penetrated with this sentiment, I, George Washington, President of the United States, do recommend to all religious societies and denominations, and to all persons whomsoever, within the United States to set apart and observe Thursday, the 19th day of February next, as a day of public thanksgiving and prayer, and on that day to meet together and render their sincere and hearty thanks to the Great Ruler of Nations for the manifold and signal mercies which distinguish our lot as a nation, particularly for the possession of constitutions of government which unite and by their union establish liberty with order; for the preservation of our peace, foreign and domestic; for the seasonable control which has been given to a spirit of disorder in the suppression of the late insurrection, and generally, for the prosperous course of our affairs, public and private; and at the same time humbly and fervently to beseech the kind Author of these

blessings graciously to prolong them to us; to imprint on our hearts a deep and solemn sense of our obligations to Him for them; to teach us rightly to estimate their immense value; to preserve us from the arrogance of prosperity, and from hazarding the advantages we enjoy by delusive pursuits; to dispose us to merit the continuance of His favors by not abusing them; by our gratitude for them, and by a correspondent conduct as citizens and men; to render this country more and more a safe and propitious asylum for the unfortunate of other countries; to extend among us true and useful knowledge; to diffuse and establish habits of sobriety, order, morality, and piety, and finally, to impart all the blessings we possess, or ask for ourselves, to the whole family of mankind.

In testimony whereof I have caused the seal of the United States of America to be affixed to these presents, and signed the same with my hand.

[SEAL.]

Done at the city of Philadelphia, the 1st day of January, 1795, and of the Independence of the United States of America the nineteenth.

GEORGE WASHINGTON.

By the President:
EDM. RANDOLPH.

[From Sparks's Washington, Vol. XII, p. 134.]

PROCLAMATION.

Whereas the commissioners appointed by the President of the United States to confer with the citizens in the western counties of Pennsylvania during the late insurrection which prevailed therein, by their act and agreement bearing date the 2d day of September last, in pursuance of the powers in them vested, did promise and engage that, if assurances of submission to the laws of the United States should be bona fide given by

the citizens resident in the fourth survey of Pennsylvania, in the manner and within the time in the said act and agreement specified, a general pardon should be granted on the 10th day of July then next ensuing of all treasons and other indictable offenses against the United States committed within the said survey before the 22d day of August last, excluding therefrom, nevertheless, every person who should refuse or neglect to subscribe such assurance and engagement in manner aforesaid, or who should after such subscription violate the same, or willfully obstruct or attempt to obstruct the execution of the acts for raising a revenue on distilled spirits and stills, or be aiding or abetting therein; and

Whereas I have since thought proper to extend the said pardon to all persons guilty of the said treasons, misprisions of treasons, or otherwise concerned in the late insurrection within the survey aforesaid who have not since been indicted or convicted thereof, or of any other offense against the United States:

Therefore be it known that I, George Washington, President of the said United States, have granted, and by these presents do grant, a full, free, and entire pardon to all persons (excepting as is hereinafter excepted) of all treasons, misprisions of treason, and other indictable offenses against the United States committed within the fourth survey of Pennsylvania before the said 22d day of August last past, excepting and excluding therefrom, nevertheless, every person who refused or neglected to give and subscribe the said assurances in the manner aforesaid (or having subscribed hath violated the same) and now standeth indicted or convicted of any treason, misprision of treason, or other offense against the said United States, hereby remitting and releasing unto all persons, except as before excepted, all penalties incurred, or supposed to be incurred, for or on account of the premises.

In testimony whereof I have hereunto set my hand and caused the seal of the United States to be affixed, this 10th day of July, A.D. 1795, and the twentieth year of the Independence of the said United States.

[SEAL.]

GEORGE WASHINGTON.

SEVENTH ANNUAL ADDRESS.

UNITED STATES, *December 8, 1795.*

Fellow-Citizens of the Senate and of the House of Representatives:

I trust I do not deceive myself when I indulge the persuasion that I have never met you at any period when more than at the present the situation of our public affairs has afforded just cause for mutual congratulation, and for inviting you to join with me in profound gratitude to the Author of all Good for the numerous and extraordinary blessings we enjoy.

The termination of the long, expensive, and distressing war in which we have been engaged with certain Indians northwest of the Ohio is placed in the option of the United States by a treaty which the commander of our army has concluded provisionally with the hostile tribes in that region.

In the adjustment of the terms the satisfaction of the Indians was deemed an object worthy no less of the policy than of the liberality of the United States as the necessary basis of durable tranquillity. The object, it is believed, has been fully attained. The articles agreed upon will immediately be laid before the Senate for their consideration.

The Creek and Cherokee Indians, who alone of the Southern tribes had annoyed our frontiers, have lately confirmed their preexisting treaties with us, and were giving evidence of a sincere disposition to carry them into effect by the surrender of the prisoners and property they had taken. But we have to lament that the fair prospect in this quarter has been once more clouded by wanton murders, which some citizens of Georgia are represented to have recently perpetrated on hunting parties of the Creeks, which have again subjected that frontier to disquietude and danger, which will be productive of further expense, and may occasion more effusion of blood. Measures are pursuing to prevent or mitigate the usual consequences of such outrages, and with the hope of their succeeding at least to avert general hostility.

A letter from the Emperor of Morocco announces to me his recognition of our treaty made with his father, the late Emperor, and consequently the continuance of peace with that power. With peculiar satisfaction I add that information has been received from an agent deputed on our part to Algiers importing that the terms of the treaty with the Dey and Regency of that country had been adjusted in such a manner as to authorize the expectation of a speedy peace and the restoration of our unfortunate fellow-citizens from a grievous captivity.

The latest advices from our envoy at the Court of Madrid give, moreover, the pleasing information that he had received assurances of a speedy and satisfactory conclusion of his negotiation. While the event depending upon unadjusted particulars can not be regarded as ascertained, it is agreeable to cherish the expectation of an issue which, securing amicably very essential interests of the United States, will at the same time lay the foundation of lasting harmony with a power whose friendship we have uniformly and sincerely desired to cultivate.

Though not before officially disclosed to the House of Representatives, you, gentlemen, are all apprised that a treaty of amity, commerce, and navigation has been negotiated with Great Britain, and that the Senate have advised and consented to its ratification upon a condition which excepts part of one article. Agreeably thereto, and to the best judgment I was able to form of the public interest after full and mature deliberation, I have added my sanction. The result on the part of His Britannic Majesty is unknown. When received, the subject will without delay be placed before Congress.

This interesting summary of our affairs with regard to the foreign powers between whom and the United States controversies have subsisted, and with regard also to those of our Indian neighbors with whom we have been in a state of enmity or misunderstanding, opens a wide field for consoling and gratifying reflections. If by prudence and moderation on every side the extinguishment of all the causes of external discord which have heretofore menaced our tranquillity, on terms compatible with our national rights and honor, shall be the happy result, how firm and how precious a foundation will have been laid for accelerating, maturing, and establishing the prosperity of our country.

Contemplating the internal situation as well as the external relations of the United States, we discover equal cause for contentment and satisfaction. While many of the nations of Europe, with their American dependencies, have been involved in a contest unusually bloody, exhausting, and calamitous, in which the evils of foreign war have been aggravated by domestic convulsion and insurrection; in which many of the arts most useful to society have been exposed to discouragement and decay; in which scarcity of subsistence has imbibited other sufferings; while even the anticipations of a return of the blessings of peace and repose are alloyed by the sense of heavy and accumulating burthens, which press upon all the departments of industry and threaten to clog the future springs of government, our favored country, happy in a striking contrast, has enjoyed general tranquillity—a tranquillity the more satisfactory because maintained at the expense of no duty. Faithful to ourselves, we have violated no obligation to others. Our agriculture, commerce, and manufactures prosper beyond former example, the molestations of our trade (to prevent a continuance of which, however, very pointed remonstrances have been made) being overbalanced by the aggregate benefits which it derives from a neutral position. Our population advances with a celerity which, exceeding the most sanguine calculations, proportionally augments our strength and resources, and guarantees our future security. Every part of the Union displays indications of rapid and various improvement; and with burthens so light as scarcely to be perceived, with resources fully adequate to our present exigencies, with governments founded on the genuine principles of rational liberty, and with mild and wholesome laws, is it too much to say that our country exhibits a spectacle of national happiness never surpassed, if ever before equaled?

Placed in a situation every way so auspicious, motives of commanding force impel us, with sincere acknowledgment to Heaven and pure love to our country, to unite our efforts to preserve, prolong, and improve our immense advantages. To cooperate with you in this desirable work is a fervent and favorite wish of my heart.

It is a valuable ingredient in the general estimate of our welfare that the part of our country which was lately the scene of disorder and insurrection now enjoys the blessings of quiet and order. The misled have abandoned their errors, and pay the respect to our Constitution and laws which is due

from good citizens to the public authorities of the society. These circumstances have induced me to pardon generally the offenders here referred to, and to extend forgiveness to those who had been adjudged to capital punishment. For though I shall always think it a sacred duty to exercise with firmness and energy the constitutional powers with which I am vested, yet it appears to me no less consistent with the public good than it is with my personal feelings to mingle in the operations of Government every degree of moderation and tenderness which the national justice, dignity, and safety may permit.

GENTLEMEN: Among the objects which will claim your attention in the course of the session, a review of our military establishment is not the least important. It is called for by the events which have changed, and maybe expected still further to change, the relative situation of our frontiers. In this review you will doubtless allow due weight to the considerations that the questions between us and certain foreign powers are not yet finally adjusted, that the war in Europe is not yet terminated, and that our Western posts, when recovered, will demand provision for garrisoning and securing them. A statement of our present military force will be laid before you by the Department of War.

With the review of our Army establishment is naturally connected that of the militia. It will merit inquiry what imperfections in the existing plan further experience may have unfolded. The subject is of so much moment in my estimation as to excite a constant solicitude that the consideration of it may be renewed until the greatest attainable perfection shall be accomplished. Time is wearing away some advantages for forwarding the object, while none better deserves the persevering attention of the public councils.

While we indulge the satisfaction which the actual condition of our Western borders so well authorizes, it is necessary that we should not lose sight of an important truth which continually receives new confirmations, namely, that the provisions heretofore made with a view to the protection of the Indians from the violences of the lawless part of our frontier inhabitants are insufficient. It is demonstrated that these violences can now be perpetrated with impunity, and it can need no argument to prove that unless the murdering of Indians can be restrained by bringing the murderers to

condign punishment, all the exertions of the Government to prevent destructive retaliations by the Indians will prove fruitless and all our present agreeable prospects illusory. The frequent destruction of innocent women and children, who are chiefly the victims of retaliation, must continue to shock humanity, and an enormous expense to drain the Treasury of the Union.

To enforce upon the Indians the observance of justice it is indispensable that there shall be competent means of rendering justice to them. If these means can be devised by the wisdom of Congress, and especially if there can be added an adequate provision for supplying the necessities of the Indians on reasonable terms (a measure the mention of which I the more readily repeat, as in all the conferences with them they urge it with solicitude), I should not hesitate to entertain a strong hope of rendering our tranquillity permanent. I add with pleasure that the probability even of their civilization is not diminished by the experiments which have been thus far made under the auspices of Government. The accomplishment of this work, if practicable, will reflect undecaying luster on our national character and administer the most grateful consolations that virtuous minds can know.

Gentlemen of the House of Representatives:

The state of our revenue, with the sums which have been borrowed and reimbursed pursuant to different acts of Congress, will be submitted from the proper Department, together with an estimate of the appropriations necessary to be made for the service of the ensuing year.

Whether measures may not be advisable to reenforce the provision for the redemption of the public debt will naturally engage your examination. Congress have demonstrated their sense to be, and it were superfluous to repeat mine, that whatsoever will tend to accelerate the honorable extinction of our public debt accords as much with the true interest of our country as with the general sense of our constituents.

Gentlemen of the Senate and of the House of Representatives:

The statements which will be laid before you relative to the Mint will shew the situation of that institution and the necessity of some further legislative provisions for carrying the business of it more completely into

effect, and for checking abuses which appear to be arising in particular quarters.

The progress in providing materials for the frigates and in building them, the state of the fortifications of our harbors, the measures which have been pursued for obtaining proper sites for arsenals and for replenishing our magazines with military stores, and the steps which have been taken toward the execution of the law for opening a trade with the Indians will likewise be presented for the information of Congress.

Temperate discussion of the important subjects which may arise in the course of the session and mutual forbearance where there is a difference of opinion are too obvious and necessary for the peace, happiness, and welfare of our country to need any recommendation of mine.

GEORGE WASHINGTON.

ADDRESS OF THE SENATE TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

SIR: It is with peculiar satisfaction that we are informed by your speech to the two Houses of Congress that the long and expensive war in which we have been engaged with the Indians northwest of the Ohio is in a situation to be finally terminated; and though we view with concern the danger of an interruption of the peace so recently confirmed with the Creeks, we indulge the hope that the measures that you have adopted to prevent the same, if followed by those legislative provisions that justice and humanity equally demand, will succeed in laying the foundation of a lasting peace with the Indian tribes on the Southern as well as on the Western frontiers.

The confirmation of our treaty with Morocco, and the adjustment of a treaty of peace with Algiers, in consequence of which our captive fellow-citizens shall be delivered from slavery, are events that will prove no less interesting to the public humanity than they will be important in extending and securing the navigation and commerce of our country.

As a just and equitable conclusion of our depending negotiations with Spain will essentially advance the interest of both nations, and thereby cherish and confirm the good understanding and friendship which we have at all times desired to maintain, it will afford us real pleasure to receive an early confirmation of our expectations on this subject.

The interesting prospect of our affairs with regard to the foreign powers between whom and the United States controversies have subsisted is not more satisfactory than the review of our internal situation. If from the former we derive an expectation of the extinguishment of all the causes of external discord that have heretofore endangered our tranquillity, and on terms consistent with our national honor and safety, in the latter we discover those numerous and widespread tokens of prosperity which in so peculiar a manner distinguish our happy country.

Circumstances thus every way auspicious demand our gratitude and sincere acknowledgments to Almighty God, and require that we should unite our efforts in imitation of your enlightened, firm, and persevering example to establish and preserve the peace, freedom, and prosperity of our country.

The objects which you have recommended to the notice of the Legislature will in the course of the session receive our careful attention, and with a true zeal for the public welfare we shall cheerfully cooperate in every measure that shall appear to us best calculated to promote the same.

JOHN ADAMS,
Vice-President of the United States and President of the Senate.

DECEMBER 11, 1795.

REPLY OF THE PRESIDENT.

GENTLEMEN: With real pleasure I receive your address, recognizing the prosperous situation of our public affairs, and giving assurances of your

careful attention to the objects demanding legislative consideration, and that with a true zeal for the public welfare you will cheerfully cooperate in every measure which shall appear to you best calculated to promote the same.

But I derive peculiar satisfaction from your concurrence with me in the expressions of gratitude to Almighty God, which a review of the auspicious circumstances that distinguish our happy country have excited, and I trust the sincerity of our acknowledgments will be evinced by a union of efforts to establish and preserve its peace, freedom, and prosperity.

GEORGE WASHINGTON.

DECEMBER 12, 1795.

ADDRESS OF THE HOUSE OF REPRESENTATIVES TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

The PRESIDENT OF THE UNITED STATES.

SIR: As the Representatives of the people of the United States, we cannot but participate in the strongest sensibility to every blessing which they enjoy, and cheerfully join with you in profound gratitude to the Author of all Good for the numerous and extraordinary blessings which He has conferred on our favored country.

A final and formal termination of the distressing war which has ravaged our Northwestern frontier will be an event which must afford a satisfaction proportionate to the anxiety with which it has long been sought, and in the adjustment of the terms we perceive the true policy of making them satisfactory to the Indians as well as to the United States as the best basis of a durable tranquillity. The disposition of such of the Southern tribes as had also heretofore annoyed our frontier is another prospect in our situation so important to the interest and happiness of the United States that it is much

to be lamented that any clouds should be thrown over it, more especially by excesses on the part of our own citizens.

While our population is advancing with a celerity which exceeds the most sanguine calculations; while every part of the United States displays indications of rapid and various improvement; while we are in the enjoyment of protection and security by mild and wholesome laws, administered by governments founded on the genuine principles of rational liberty, a secure foundation will be laid for accelerating, maturing, and establishing the prosperity of our country if, by treaty and amicable negotiation, all those causes of external discord which heretofore menaced our tranquillity shall be extinguished on terms compatible with our national rights and honor and with our Constitution and great commercial interests.

Among the various circumstances in our internal situation none can be viewed with more satisfaction and exultation than that the late scene of disorder and insurrection has been completely restored to the enjoyment of order and repose. Such a triumph of reason and of law is worthy of the free Government under which it happened, and was justly to be hoped from the enlightened and patriotic spirit which pervades and actuates the people of the United States.

In contemplating that spectacle of national happiness which our country exhibits, and of which you, sir, have been pleased to make an interesting summary, permit us to acknowledge and declare the very great share which your zealous and faithful services have contributed to it, and to express the affectionate attachment which we feel for your character.

The several interesting subjects which you recommend to our consideration will receive every degree of attention which is due to them; and whilst we feel the obligation of temperance and mutual indulgence in all our discussions, we trust and pray that the result to the happiness and welfare of our country may correspond with the pure affection we bear to it.

DECEMBER 16, 1795.

REPLY OF THE PRESIDENT.

GENTLEMEN: Coming as you do from all parts of the United States, I receive great satisfaction from the concurrence of your testimony in the justness of the interesting summary of our national happiness which, as the result of my inquiries, I presented to your view. The sentiments we have mutually expressed of profound gratitude to the source of those numerous blessings, the Author of all Good, are pledges of our obligations to unite our sincere and zealous endeavors, as the instruments of Divine Providence, to preserve and perpetuate them.

Accept, gentlemen, my thanks for your declaration that to my agency you ascribe the enjoyment of a great share of these benefits. So far as my services contribute to the happiness of my country, the acknowledgment thereof by my fellow-citizens and their affectionate attachment will ever prove an abundant reward.

GEORGE WASHINGTON.

DECEMBER 17, 1795.

SPECIAL MESSAGES.

UNITED STATES, *December 9, 1795.*

Gentlemen of the Senate:

I lay before you, for your consideration, a treaty of peace which has been negotiated by General Wayne, on behalf of the United States, with all the late hostile tribes of Indians northwest of the river Ohio, together with the instructions which were given to General Wayne and the proceedings at the place of treaty.

GEORGE WASHINGTON.

UNITED STATES, *December 21, 1795.*

Gentlemen of the Senate:

Herewith I transmit, for your information and consideration, the original letter from the Emperor of Morocco, recognizing the treaty of peace and friendship between the United States and his father, the late Emperor, accompanied with a translation thereof, and various documents relating to the negotiation by which the recognition was effected.

GEORGE WASHINGTON.

UNITED STATES, *January 4, 1796.*

Gentlemen of the Senate and of the House of Representatives:

A letter from the minister plenipotentiary of the French Republic, received on the 22d of the last month, covered an address, dated the 21st of October, 1794, from the committee of public safety to the Representatives of the United States in Congress, and also informed me that he was instructed by the committee to present to the United States the colors of France. I thereupon proposed to receive them last Friday, the first day of the new year, a day of general joy and congratulation. On that day the minister of the French Republic delivered the colors, with an address, to which I returned an answer. By the latter Congress will see that I have informed the minister that the colors will be deposited with the archives of the United States. But it seemed to me proper previously to exhibit to the two Houses of Congress these evidences of the continued friendship of the French Republic, together with the sentiments expressed by me on the occasion in behalf of the United States. They are herewith communicated.

GEORGE WASHINGTON.

UNITED STATES, *January 8, 1796.*

Gentlemen of the Senate and of the House of Representatives:

I transmit to you a memorial of the commissioners appointed by virtue of an act entitled "An act for establishing the temporary and permanent seat of the Government of the United States," on the subject of the public buildings under their direction.

Since locating a district for the permanent seat of the Government of the United States, as heretofore announced to both Houses of Congress, I have accepted the grants of money and of land stated in the memorial of the commissioners. I have directed the buildings therein mentioned to be commenced on plans which I deemed consistent with the liberality of the grants and proper for the purposes intended.

I have not been inattentive to this important business intrusted by the Legislature to my care. I have viewed the resources placed in my hands, and observed the manner in which they have been applied. The progress is

pretty fully detailed in the memorial from the commissioners, and one of them attends to give further information if required. In a case new and arduous, like the present, difficulties might naturally be expected. Some have occurred, but they are in a great degree surmounted, and I have no doubt, if the remaining resources are properly cherished, so as to prevent the loss of property by hasty and numerous sales, that all the buildings required for the accommodation of the Government of the United States may be completed in season without aid from the Federal Treasury. The subject is therefore recommended to the consideration of Congress, and the result will determine the measures which I shall cause to be pursued with respect to the property remaining unsold.

GEORGE WASHINGTON.

UNITED STATES, *January 29, 1796.*

Gentlemen of the Senate and of the House of Representatives:

I send herewith for the information of Congress:

First. An act of the legislature of the State of Rhode Island, ratifying an amendment to the Constitution of the United States to prevent suits in certain cases against a State.

Second. An act of the State of North Carolina making the like ratification.

Third. An act of the State of North Carolina, assenting to the purchase by the United States of a sufficient quantity of land on Shell Castle Island for the purpose of erecting a beacon thereon, and ceding the jurisdiction thereof to the United States.

Fourth. A copy from the journal of proceedings of the governor in his executive department of the territory of the United States northwest of the river Ohio from July 1 to December 31, 1794.

Fifth. A copy from the records of the executive proceedings of the same governor from January 1 to June 30, 1795; and

Sixth and seventh. A copy of the journal of the proceedings of the governor in his executive department of the territory of the United States south of the river Ohio from September 1, 1794, to September 1, 1795.

Eighth. The acts of the first and second sessions of the general assembly of the same territory.

GEORGE WASHINGTON.

UNITED STATES, *January 29, 1796.*

Gentlemen of the Senate and of the House of Representatives:

In pursuance of the authority vested in the President of the United States by an act of Congress passed the 3d of March last, to reduce the weights of the copper coin of the United States whenever he should think it for the benefit of the United States, provided that the reduction should not exceed 2 pennyweights in each cent, and in the like proportion in a half cent, I have caused the same to be reduced since the 27th of last December, to wit, 1 pennyweight and 16 grains in each cent, and in the like proportion in a half cent; and I have given notice thereof by proclamation.

By the letter of the judges of the circuit court of the United States, held at Boston in June last, and the inclosed application of the underkeeper of the jail at that place, of which copies are herewith transmitted, Congress will perceive the necessity of making a suitable provision for the maintenance of prisoners committed to the jails of the several States under the authority of the United States.

GEORGE WASHINGTON.

UNITED STATES, *February 2, 1796.*

Gentlemen of the Senate and of the House of Representatives:

I transmit herewith the copy of a letter, dated the 19th of December last, from Governor Blount to the Secretary of War, stating the avowed and daring designs of certain persons to take possession of the lands belonging to the Cherokees, and which the United States have by treaty solemnly guaranteed to that nation. The injustice of such intrusions and the mischievous consequences which must necessarily result therefrom demand that effectual provision be made to prevent them.

GEORGE WASHINGTON.

UNITED STATES, *February 15, 1796.*

Gentlemen of the Senate:

Herewith I transmit, for your consideration and advice, a treaty of peace and amity, concluded on the 5th day of last September by Joseph Donaldson, Jr., on the part of the United States, with the Dey of Algiers, for himself, his Divan, and his subjects.

The instructions and other necessary papers relative to this negotiation are also sent herewith, for the information of the Senate.

GEORGE WASHINGTON.

UNITED STATES, *February 26, 1796.*

Gentlemen of the Senate:

I send herewith the treaty concluded on the 27th of October last between the United States and Spain by their respective plenipotentiaries.

The communications to the Senate referred to in my message of the 16th of December, 1793, contain the instructions to the commissioners of the United States, Messrs. Carmichael and Short, and various details relative to the negotiations with Spain. Herewith I transmit copies of the documents authorizing Mr. Pinckney, the envoy extraordinary from the United States to the Court of Spain, to conclude the negotiation agreeably to the original instructions above mentioned, and to adjust the claims of the United States for the spoliations committed by the armed vessels of His Catholic Majesty on the commerce of our citizens.

The numerous papers exhibiting the progress of the negotiation under the conduct of Mr. Pinckney, being in the French and Spanish languages, will be communicated to the Senate as soon as the translations which appear necessary shall be completed.

GEORGE WASHINGTON.

UNITED STATES, *March 1, 1796.*

Gentlemen of the Senate and of the House of Representatives:

The treaty of amity, commerce, and navigation concluded between the United States of America and His Britannic Majesty having been duly ratified, and the ratifications having been exchanged at London on the 28th day of October, 1795, I have directed the same to be promulgated, and herewith transmit a copy thereof for the information of Congress.

GEORGE WASHINGTON.

UNITED STATES, *March 8, 1796.*

Gentlemen of the Senate and of the House of Representatives:

I send herewith, for the information of Congress, the treaty concluded between the United States and the Dey and Regency of Algiers.

GEORGE WASHINGTON.

UNITED STATES, *March 15, 1796.*

Gentlemen of the Senate and of the House of Representatives:

By the ninth section of the act entitled "An act to provide a naval armament" it is enacted "that if a peace shall take place between the United States and the Regency of Algiers, that no further proceedings be had under this act."

The peace which is here contemplated having taken place, it is incumbent upon the Executive to suspend all orders respecting the building of the frigates, procuring materials for them, or preparing materials already obtained, which may be done without intrenching upon contracts or agreements made and entered into before this event.

But inasmuch as the loss which the public would incur might be considerable from dissipation of workmen, from certain works or operations being suddenly dropped or left unfinished, and from the derangement in the whole system consequent upon an immediate suspension of all proceedings under it, I have therefore thought advisable, before taking such a step, to submit the subject to the Senate and House of Representatives, that such measures may be adopted in the premises as may best comport with the public interest.

GEORGE WASHINGTON.

UNITED STATES, *March 25, 1796.*

Gentlemen of the Senate and of the House of Representatives:

I send herewith, for your information, the translation of a letter from the minister plenipotentiary of the French Republic to the Secretary of State, announcing the peace made by the Republic with the Kings of Prussia and Spain, the Grand Duke of Tuscany, and the Landgrave of Hesse Cassel, and that the republican constitution decreed by the National Convention had been accepted by the people of France and was in operation. I also send you a copy of the answer given by my direction to this communication from the French minister. My sentiments therein expressed I am persuaded will harmonize with yours and with those of all my fellow-citizens.

GEORGE WASHINGTON.

UNITED STATES, *March 29, 1796.*

Gentlemen of the House of Representatives:

I send herewith a copy of the treaty of friendship, limits, and navigation, concluded on the 27th of October last, between the United States and His Catholic Majesty. This treaty has been ratified by me agreeably to the Constitution, and the ratification has been dispatched for Spain, where it will doubtless be immediately ratified by His Catholic Majesty.

This early communication of the treaty with Spain has become necessary because it is stipulated in the third article that commissioners for running the boundary line between the territory of the United States and the Spanish colonies of East and West Florida shall meet at the Natchez before the expiration of six months from the ratification; and as that period will undoubtedly arrive before the next meeting of Congress, the House will see the necessity of making provision in their present session for the object here mentioned. It will also be necessary to provide for the expense to be incurred in executing the twenty-first article of the treaty, to enable our fellow-citizens to obtain with as little delay as possible compensation for the losses they have sustained by the capture of their vessels and cargoes by the subjects of His Catholic Majesty during the late war between France and Spain.

Estimates of the moneys necessary to be provided for the purposes of this and several other treaties with foreign nations and the Indian tribes will be laid before you by the proper Department.

GEORGE WASHINGTON.

UNITED STATES, *March 30, 1796.*

To the House of Representatives of the United States:

With the utmost attention I have considered your resolution of the 24th instant, requesting me to lay before your House a copy of the instructions to the minister of the United States who negotiated the treaty with the King of Great Britain, together with the correspondence and other documents relative to that treaty, excepting such of the said papers as any existing negotiation may render improper to be disclosed.

In deliberating upon this subject it was impossible for me to lose sight of the principle which some have avowed in its discussion, or to avoid extending my views to the consequences which must flow from the admission of that principle.

I trust that no part of my conduct has ever indicated a disposition to withhold any information which the Constitution has enjoined upon the President as a duty to give, or which could be required of him by either House of Congress as a right; and with truth I affirm that it has been, as it will continue to be while I have the honor to preside in the Government, my constant endeavor to harmonize with the other branches thereof so far as the trust delegated to me by the people of the United States and my sense of the obligation it imposes to "preserve, protect, and defend the Constitution" will permit.

The nature of foreign negotiations requires caution, and their success must often depend on secrecy; and even when brought to a conclusion a full disclosure of all the measures, demands, or eventual concessions which may have been proposed or contemplated would be extremely impolitic; for

this might have a pernicious influence on future negotiations, or produce immediate inconveniences, perhaps danger and mischief, in relation to other powers. The necessity of such caution and secrecy was one cogent reason for vesting the power of making treaties in the President, with the advice and consent of the Senate, the principle on which that body was formed confining it to a small number of members. To admit, then, a right in the House of Representatives to demand and to have as a matter of course all the papers respecting a negotiation with a foreign power would be to establish a dangerous precedent.

It does not occur that the inspection of the papers asked for can be relative to any purpose under the cognizance of the House of Representatives, except that of an impeachment, which the resolution has not expressed. I repeat that I have no disposition to withhold any information which the duty of my station will permit or the public good shall require to be disclosed; and, in fact, all the papers affecting the negotiation with Great Britain were, laid before the Senate when the treaty itself was communicated for their consideration and advice.

The course which the debate has taken on the resolution of the House leads to some observations on the mode of making treaties under the Constitution of the United States.

Having been a member of the General Convention, and knowing the principles on which the Constitution was formed, I have ever entertained but one opinion on this subject; and from the first establishment of the Government to this moment my conduct has exemplified that opinion—that the power of making treaties is exclusively vested in the President, by and with the advice and consent of the Senate, provided two-thirds of the Senators present concur; and that every treaty so made and promulgated thenceforward became the law of the land. It is thus that the treaty-making power has been understood by foreign nations, and in all the treaties made with them we have declared and *they* have believed that, when ratified by the President, with the advice and consent of the Senate, they became obligatory. In this construction of the Constitution every House of Representatives has heretofore acquiesced, and until the present time not a doubt or suspicion has appeared, to my knowledge, that this construction was not the true one. Nay, they have more than acquiesced; for till now,

without controverting the obligation of such treaties, they have made all the requisite provisions for carrying them into effect.

There is also reason to believe that this construction agrees with the opinions entertained by the State conventions when they were deliberating on the Constitution, especially by those who objected to it because there was not required in *commercial treaties* the consent of two-thirds of the whole number of the members of the Senate instead of two-thirds of the Senators present, and because in treaties respecting territorial and certain other rights and claims the concurrence of three-fourths of the whole number of the members of both Houses, respectively, was not made necessary.

It is a fact declared by the General Convention and universally understood that the Constitution of the United States was the result of a spirit of amity and mutual concession; and it is well known that under this influence the smaller States were admitted to an equal representation in the Senate with the larger States, and that this branch of the Government was invested with great powers, for on the equal participation of those powers the sovereignty and political safety of the smaller States were deemed essentially to depend.

If other proofs than these and the plain letter of the Constitution itself be necessary to ascertain the point under consideration, they may be found in the journals of the General Convention, which I have deposited in the office of the Department of State. In those journals it will appear that a proposition was made "that no treaty should be binding on the United States which was not ratified by a law," and that the proposition was explicitly rejected.

As, therefore, it is perfectly clear to my understanding that the assent of the House of Representatives is not necessary to the validity of a treaty; as the treaty with Great Britain exhibits in itself all the objects requiring legislative provision, and on these the papers called for can throw no light, and as it is essential to the due administration of the Government that the boundaries fixed by the Constitution between the different departments should be preserved, a just regard to the Constitution and to the duty of my

office, under all the circumstances of this case, forbids a compliance with your request.

GEORGE WASHINGTON.

UNITED STATES, *March 31, 1776.*

Gentlemen of the Senate:

The treaty of amity, commerce, and navigation between the United States and Great Britain requiring that commissioners should be appointed to fix certain boundaries between the territories of the contracting parties, and to ascertain the losses and damages represented to have been sustained by their respective citizens and subjects, as set forth in the fifth, sixth, and seventh articles of the treaty, in order to carry those articles into execution I nominate as commissioners on the part of the United States:

For the purpose mentioned in the fifth article, Henry Knox, of Massachusetts;

For the purpose mentioned in the sixth article, Thomas Fitzsimons, of Pennsylvania, and James Innes, of Virginia; and

For the purposes mentioned in the seventh article, Christopher Gore, of Massachusetts, and William Pinckney, of Maryland.

GEORGE WASHINGTON.

UNITED STATES, *April 8, 1796.*

Gentlemen of the Senate and of the House of Representatives:

By an act of Congress passed on the 26th of May, 1790, it was declared that the inhabitants of the territory of the United States south of the river

Ohio should enjoy all the privileges, benefits, and advantages set forth in the ordinance of Congress for the government of the territory of the United States northwest of the river Ohio, and that the government of the said territory south of the Ohio should be similar to that which was then exercised in the territory northwest of the Ohio, except so far as was otherwise provided in the conditions expressed in an act of Congress passed the 2d of April, 1790, entitled "An act to accept a cession of the claims of the State of North Carolina to a certain district of western territory."

Among the privileges, benefits, and advantages thus secured to the inhabitants of the territory south of the river Ohio appear to be the right of forming a permanent constitution and State government, and of admission as a State, by its Delegates, into the Congress of the United States, on an equal footing with the original States in all respects whatever, when it should have therein 60,000 free inhabitants; provided the constitution and government so to be formed should be republican, and in conformity to the principles contained in the articles of the said ordinance.

As proofs of the several requisites to entitle the territory south of the river Ohio to be admitted as a State into the Union, Governor Blount has transmitted a return of the enumeration of its inhabitants and a printed copy of the constitution and form of government on which they have agreed, which, with his letters accompanying the same, are herewith laid before Congress.

GEORGE WASHINGTON.

UNITED STATES, *April 28, 1796.*

Gentlemen of the Senate and of the House of Representatives:

Herewith I lay before you a letter from the Attorney-General of the United States, relative to compensation to the attorneys of the United States in the several districts, which is recommended to your consideration.

GEORGE WASHINGTON.

UNITED STATES, *May 2, 1796.*

Gentlemen of the Senate:

Some time last year Jeremiah Wadsworth was authorized to hold a treaty with the Cohnawaga Indians, styling themselves the Seven Nations of Canada, to enable the State of New York to extinguish, by purchase, a claim which the said Indians had set up to a parcel of land lying within that State. The negotiation having issued without effecting its object, and the State of New York having requested a renewal of the negotiation, and the Indians having come forward with an application on the same subject, I now nominate Jeremiah Wadsworth to be a commissioner to hold a treaty with the Cohnawaga Indians, styling themselves the Seven Nations of Canada, for the purpose of enabling the State of New York to extinguish the aforesaid claim.

GEORGE WASHINGTON.

UNITED STATES, *May 5, 1796.*

Gentlemen of the Senate:

I lay before you, for your consideration and advice, an explanatory article proposed to be added to the treaty of amity, commerce, and navigation between the United States and Great Britain, together with a copy of the full power to the Secretary of State to negotiate the same.

GEORGE WASHINGTON.

UNITED STATES, *May 25, 1796.*

Gentlemen of the Senate and of the House of Representatives:

The measures now in operation for taking possession of the posts of Detroit and Michilimackinac render it proper that provision should be made for extending to these places and any others alike circumstanced the civil authority of the Northwestern Territory. To do this will require an expense to defray which the ordinary salaries of the governor and secretary of that Territory appear to be incompetent.

The forming of a new county, or new counties, and the appointment of the various officers, which the just exercise of government must require, will oblige the governor and secretary to visit those places, and to spend considerable time in making the arrangements necessary for introducing and establishing the Government of the United States. Congress will consider what provision will in this case be proper.

GEORGE WASHINGTON.

UNITED STATES, *May 28, 1796.*

Gentlemen of the Senate and of the House of Representatives:

The extraordinary expenses to be incurred in the present year in supporting our foreign intercourse I find will require a provision beyond the ordinary appropriation and the additional \$20,000 already granted.

I have directed an estimate to be made, which is sent herewith, and will exhibit the deficiency for which an appropriation appears to be necessary.

GEORGE WASHINGTON.

EIGHTH ANNUAL ADDRESS.

UNITED STATES, *December 7, 1796.*

Fellow-Citizens of the Senate and of the House of Representatives:

In recurring to the internal situation of our country since I had last the pleasure to address you, I find ample reason for a renewed expression of that gratitude to the Ruler of the Universe which a continued series of prosperity has so often and so justly called forth.

The acts of the last session which required special arrangements have been as far as circumstances would admit carried into operation.

Measures calculated to insure a continuance of the friendship of the Indians and to preserve peace along the extent of our interior frontier have been digested and adopted. In the framing of these care has been taken to guard on the one hand our advanced settlements from the predatory incursions of those unruly individuals who can not be restrained by their tribes, and on the other hand to protect the rights secured to the Indians by treaty—to draw them nearer to the civilized state and inspire them with correct conceptions of the power as well as justice of the Government.

The meeting of the deputies from the Creek Nation at Colerain, in the State of Georgia, which had for a principal object the purchase of a parcel of their land by that State, broke up without its being accomplished, the nation having previous to their departure instructed them against making any sale. The occasion, however, has been improved to confirm by a new treaty with the Creeks their preexisting engagements with the United States, and to obtain their consent to the establishment of trading houses and military posts within their boundary, by means of which their friendship and the general peace may be more effectually secured.

The period during the late session at which the appropriation was passed for carrying into effect the treaty of amity, commerce, and navigation between the United States and His Britannic Majesty necessarily

procrastinated the reception of the posts stipulated to be delivered beyond the date assigned for that event. As soon, however, as the Governor-General of Canada could be addressed with propriety on the subject, arrangements were cordially and promptly concluded for their evacuation, and the United States took possession of the principal of them, comprehending Oswego, Niagara, Detroit, Michilimackinac, and Fort Miami, where such repairs and additions have been ordered to be made as appeared indispensable.

The commissioners appointed on the part of the United States and of Great Britain to determine which is the river St. Croix mentioned in the treaty of peace of 1783, agreed in the choice of Egbert Benson, esq., of New York, for the third commissioner. The whole met at St. Andrews, in Passamaquoddy Bay, in the beginning of October, and directed surveys to be made of the rivers in dispute; but deeming it impracticable to have these surveys completed before the next year, they adjourned to meet at Boston in August, 1797, for the final decision of the question.

Other commissioners appointed on the part of the United States, agreeably to the seventh article of the treaty with Great Britain, relative to captures and condemnation of vessels and other property, met the commissioners of His Britannic Majesty in London in August last, when John Trumbull, esq., was chosen by lot for the fifth commissioner. In October following the board were to proceed to business. As yet there has been no communication of commissioners on the part of Great Britain to unite with those who have been appointed on the part of the United States for carrying into effect the sixth article of the treaty.

The treaty with Spain required that the commissioners for running the boundary line between the territory of the United States and His Catholic Majesty's provinces of East and West Florida should meet at the Natchez before the expiration of six months after the exchange of the ratifications, which was effected at Aranjuez on the 25th day of April; and the troops of His Catholic Majesty occupying any posts within the limits of the United States were within the same period to be withdrawn. The commissioner of the United States therefore commenced his journey for the Natchez in September, and troops were ordered to occupy the posts from which the Spanish garrisons should be withdrawn. Information has been recently received of the appointment of a commissioner on the part of His Catholic

Majesty for running the boundary line, but none of any appointment for the adjustment of the claims of our citizens whose vessels were captured by the armed vessels of Spain.

In pursuance of the act of Congress passed in the last session for the protection and relief of American seamen, agents were appointed, one to reside in Great Britain and the other in the West Indies. The effects of the agency in the West Indies are not yet fully ascertained, but those which have been communicated afford grounds to believe the measure will be beneficial. The agent destined to reside in Great Britain declining to accept the appointment, the business has consequently devolved on the minister of the United States in London, and will command his attention until a new agent shall be appointed.

After many delays and disappointments arising out of the European war, the final arrangements for fulfilling the engagements made to the Dey and Regency of Algiers will in all present appearance be crowned with success, but under great, though inevitable, disadvantages in the pecuniary transactions occasioned by that war, which will render further provision necessary. The actual liberation of all our citizens who were prisoners in Algiers, while it gratifies every feeling heart, is itself an earnest of a satisfactory termination of the whole negotiation. Measures are in operation for effecting treaties with the Regencies of Tunis and Tripoli.

To an active external commerce the protection of a naval force is indispensable. This is manifest with regard to wars in which a State is itself a party. But besides this, it is in our own experience that the most sincere neutrality is not a sufficient guard against the depredations of nations at war. To secure respect to a neutral flag requires a naval force organized and ready to vindicate it from insult or aggression. This may even prevent the necessity of going to war by discouraging belligerent powers from committing such violations of the rights of the neutral party as may, first or last, leave no other option. From the best information I have been able to obtain it would seem as if our trade to the Mediterranean without a protecting force will always be insecure and our citizens exposed to the calamities from which numbers of them have but just been relieved.

These considerations invite the United States to look to the means, and to set about the gradual creation of a navy. The increasing progress of their navigation promises them at no distant period the requisite supply of seamen, and their means in other respects favor the undertaking. It is an encouragement, likewise, that their particular situation will give weight and influence to a moderate naval force in their hands. Will it not, then, be advisable to begin without delay to provide and lay up the materials for the building and equipping of ships of war, and to proceed in the work by degrees, in proportion as our resources shall render it practicable without inconvenience, so that a future war of Europe may not find our commerce in the same unprotected state in which it was found by the present?

Congress have repeatedly, and not without success, directed their attention to the encouragement of manufactures. The object is of too much consequence not to insure a continuance of their efforts in every way which shall appear eligible. As a general rule, manufactures on public account are inexpedient; but where the state of things in a country leaves little hope that certain branches of manufacture will for a great length of time obtain, when these are of a nature essential to the furnishing and equipping of the public force in time of war, are not establishments for procuring them on public account to the extent of the ordinary demand for the public service recommended by strong considerations of national policy as an exception to the general rule? Ought our country to remain in such cases dependent on foreign supply, precarious because liable to be interrupted? If the necessary article should in this mode cost more in time of peace, will not the security and independence thence arising form an ample compensation? Establishments of this sort, commensurate only with the calls of the public service in time of peace, will in time of war easily be extended in proportion to the exigencies of the Government, and may even perhaps be made to yield a surplus for the supply of our citizens at large, so as to mitigate the privations from the interruption of their trade. If adopted, the plan ought to exclude all those branches which are already, or likely soon to be, established in the country, in order that there may be no danger of interference with pursuits of individual industry.

It will not be doubted that with reference either to individual or national welfare agriculture is of primary importance. In proportion as nations advance in population and other circumstances of maturity this truth

becomes more apparent, and renders the cultivation of the soil more and more an object of public patronage. Institutions for promoting it grow up, supported by the public purse; and to what object can it be dedicated with greater propriety? Among the means which have been employed to this end none have been attended with greater success than the establishment of boards (composed of proper characters) charged with collecting and diffusing information, and enabled by premiums and small pecuniary aids to encourage and assist a spirit of discovery and improvement. This species of establishment contributes doubly to the increase of improvement by stimulating to enterprise and experiment, and by drawing to a common center the results everywhere of individual skill and observation, and spreading them thence over the whole nation. Experience accordingly has shewn that they are very cheap instruments of immense national benefits.

I have heretofore proposed to the consideration of Congress the expediency of establishing a national university and also a military academy. The desirableness of both these institutions has so constantly increased with every new view I have taken of the subject that I can not omit the opportunity of once for all recalling your attention to them.

The assembly to which I address myself is too enlightened not to be fully sensible how much a flourishing state of the arts and sciences contributes to national prosperity and reputation.

True it is that our country, much to its honor, contains many seminaries of learning highly respectable and useful; but the funds upon which they rest are too narrow to command the ablest professors in the different departments of liberal knowledge for the institution contemplated, though they would be excellent auxiliaries.

Amongst the motives to such an institution, the assimilation of the principles, opinions, and manners of our countrymen by the common education of a portion of our youth from every quarter well deserves attention. The more homogeneous our citizens can be made in these particulars the greater will be our prospect of permanent union; and a primary object of such a national institution should be the education of our youth in the science of *government*. In a republic what species of knowledge can be equally important and what duty more pressing on its

legislature than to patronize a plan for communicating it to those who are to be the future guardians of the liberties of the country?

The institution of a military academy is also recommended by cogent reasons. However pacific the general policy of a nation may be, it ought never to be without an adequate stock of military knowledge for emergencies. The first would impair the energy of its character, and both would hazard its safety or expose it to greater evils when war could not be avoided; besides that, war might often not depend upon its own choice. In proportion as the observance of pacific maxims might exempt a nation from the necessity of practicing the rules of the military art ought to be its care in preserving and transmitting, by proper establishments, the knowledge of that art. Whatever argument may be drawn from particular examples superficially viewed, a thorough examination of the subject will evince that the art of war is at once comprehensive and complicated, that it demands much previous study, and that the possession of it in its most improved and perfect state is always of great moment to the security of a nation. This, therefore, ought to be a serious care of every government, and for this purpose an academy where a regular course of instruction is given is an obvious expedient which different nations have successfully employed.

The compensations to the officers of the United States in various instances, and in none more than in respect to the most important stations, appear to call for legislative revision. The consequences of a defective provision are of serious import to the Government. If private wealth is to supply the defect of public retribution, it will greatly contract the sphere within which the selection of character for office is to be made, and will proportionally diminish the probability of a choice of men able as well as upright. Besides that, it would be repugnant to the vital principles of our Government virtually to exclude from public trusts talents and virtue unless accompanied by wealth.

While in our external relations some serious inconveniences and embarrassments have been overcome and others lessened, it is with much pain and deep regret I mention that circumstances of a very unwelcome nature have lately occurred. Our trade has suffered and is suffering extensive injuries in the West Indies from the cruisers and agents of the French Republic, and communications have been received from its minister

here which indicate the danger of a further disturbance of our commerce by its authority, and which are in other respects far from agreeable.

It has been my constant, sincere, and earnest wish, in conformity with that of our nation, to maintain cordial harmony and a perfectly friendly understanding with that Republic. This wish remains unabated, and I shall persevere in the endeavor to fulfill it to the utmost extent of what shall be consistent with a just and indispensable regard to the rights and honor of our country; nor will I easily cease to cherish the expectation that a spirit of justice, candor, and friendship on the part of the Republic will eventually insure success.

In pursuing this course, however, I can not forget what is due to the character of our Government and nation, or to a full and entire confidence in the good sense, patriotism, self-respect, and fortitude of my countrymen.

I reserve for a special message a more particular communication on this interesting subject.

Gentlemen of the House of Representatives:

I have directed an estimate of the appropriations necessary for the service of the ensuing year to be submitted from the proper Department, with a view of the public receipts and expenditures to the latest period to which an account can be prepared.

It is with satisfaction I am able to inform you that the revenues of the United States continue in a state of progressive improvement.

A reenforcement of the existing provisions for discharging our public debt was mentioned in my address at the opening of the last session. Some preliminary steps were taken toward it, the maturing of which will no doubt engage your zealous attention during the present. I will only add that it will afford me a heartfelt satisfaction to concur in such further measures as will ascertain to our country the prospect of a speedy extinguishment of the debt. Posterity may have cause to regret if from any motive intervals of tranquillity are left unimproved for accelerating this valuable end.

Gentlemen of the Senate and of the House of Representatives:

My solicitude to see the militia of the United States placed on an efficient establishment has been so often and so ardently expressed that I shall but barely recall the subject to your view on the present occasion, at the same time that I shall submit to your inquiry whether our harbors are yet sufficiently secured.

The situation in which I now stand for the last time, in the midst of the representatives of the people of the United States, naturally recalls the period when the administration of the present form of government commenced, and I can not omit the occasion to congratulate you and my country on the success of the experiment, nor to repeat my fervent supplications to the Supreme Ruler of the Universe and Sovereign Arbiter of Nations that His providential care may still be extended to the United States, that the virtue and happiness of the people may be preserved, and that the Government which they have instituted for the protection of their liberties may be perpetual,

GEORGE WASHINGTON.

ADDRESS OF THE SENATE TO GEORGE WASHINGTON, PRESIDENT OF THE UNITED STATES.

We thank you, sir, for your faithful and detailed exposure of the existing situation of our country, and we sincerely join in sentiments of gratitude to an overruling Providence for the distinguished share of public prosperity and private happiness which the people of the United States so peculiarly enjoy.

We are fully sensible of the advantages that have resulted from the adoption of measures (which you have successfully carried into effect) to preserve peace, cultivate friendship, and promote civilization amongst the Indian tribes on the Western frontiers. Feelings of humanity and the most solid political interests equally encourage the continuance of this system.

We observe with pleasure that the delivery of the military posts lately occupied by the British forces within the territory of the United States was made with cordiality and promptitude as soon as circumstances would admit, and that the other provisions of our treaties with Great Britain and Spain that were objects of eventual arrangement are about being carried into effect with entire harmony and good faith.

The unfortunate but unavoidable difficulties that opposed a timely compliance with the terms of the Algerine treaty are much to be lamented, as they may occasion a temporary suspension of the advantages to be derived from a solid peace with that power and a perfect security from its predatory warfare. At the same time, the lively impressions that affected the public mind on the redemption of our captive fellow-citizens afford the most laudable incentive to our exertions to remove the remaining obstacles.

We perfectly coincide with you in opinion that the importance of our commerce demands a naval force for its protection against foreign insult and depredation, and our solicitude to attain that object will be always proportionate to its magnitude.

The necessity of accelerating the establishment of certain useful manufactures by the intervention of legislative aid and protection and the encouragement due to agriculture by the creation of boards (composed of intelligent individuals) to patronize this primary pursuit of society are subjects which will readily engage our most serious attention.

A national university may be converted to the most useful purposes. The science of legislation being so essentially dependent on the endowments of the mind, the public interests must receive effectual aid from the general diffusion of knowledge, and the United States will assume a more dignified station among the nations of the earth by the successful cultivation of the higher branches of literature.

A military academy may be likewise rendered equally important. To aid and direct the physical force of the nation by cherishing a military spirit, enforcing a proper sense of discipline, and inculcating a scientific system of tactics is consonant to the soundest maxims of public policy. Connected with and supported by such an establishment a well-regulated militia,

constituting the natural defense of the country, would prove the most effectual as well as economical preservative of peace.

We can not but consider with serious apprehensions the inadequate compensations of the public officers, especially of those in the more important stations. It is not only a violation of the spirit of a public contract, but is an evil so extensive in its operation and so destructive in its consequences that we trust it will receive the most pointed legislative attention.

We sincerely lament that, whilst the conduct of the United States has been uniformly impressed with the character of equity, moderation, and love of peace in the maintenance of all their foreign relationships, our trade should be so harassed by the cruisers and agents of the Republic of France throughout the extensive departments of the West Indies.

Whilst we are confident that no cause of complaint exists that could authorize an interruption of our tranquillity or disengage that Republic from the bonds of amity, cemented by the faith of treaties, we can not but express our deepest regrets that official communications have been made to you indicating a more serious disturbance of our commerce. Although we cherish the expectation that a sense of justice and a consideration of our mutual interests will moderate their councils, we are not unmindful of the situation in which events may place us, nor unprepared to adopt that system of conduct which, compatible with the dignity of a respectable nation, necessity may compel us to pursue.

We cordially acquiesce in the reflection that the United States, under the operation of the Federal Government, have experienced a most rapid aggrandizement and prosperity as well political as commercial.

Whilst contemplating the causes that produce this auspicious result, we must acknowledge the excellence of the constitutional system and the wisdom of the legislative provisions; but we should be deficient in gratitude and justice did we not attribute a great portion of these advantages to the virtue, firmness, and talents of your Administration, which have been conspicuously displayed in the most trying time and on the most critical occasions. It is therefore with the sincerest regret that we now receive an

official notification of your intentions to retire from the public employments of your country.

When we review the various scenes of your public life, so long and so successfully devoted to the most arduous services, civil and military, as well during the struggles of the American Revolution as the convulsive periods of a recent date, we can not look forward to your retirement without our warmest affections and most anxious regards accompanying you, and without mingling with our fellow-citizens at large in the sincerest wishes for your personal happiness that sensibility and attachment can express.

The most effectual consolation that can offer for the loss we are about to sustain arises from the animating reflection that the influence of your example will extend to your successors, and the United States thus continue to enjoy an able, upright, and energetic administration.

JOHN ADAMS,
Vice-President of the United States and President of the Senate.

DECEMBER 10, 1796.

REPLY OF THE PRESIDENT.

GENTLEMEN: It affords me great satisfaction to find in your address a concurrence in sentiment with me on the various topics which I presented for your information and deliberation, and that the latter will receive from you an attention proportioned to their respective importance.

For the notice you take of my public services, civil and military, and your kind wishes for my personal happiness, I beg you to accept my cordial thanks. Those services, and greater had I possessed ability to render them, were due to the unanimous calls of my country, and its approbation is my abundant reward.

When contemplating the period of my retirement, I saw virtuous and enlightened men among whom I relied on the discernment and patriotism of

my fellow-citizens to make the proper choice of, a successor—men who would require no influential example to insure to the United States "an able, upright, and energetic administration." To such men I shall cheerfully yield the palm of genius and talents to serve our common country; but at the same time I hope I may be indulged in expressing the consoling reflection (which consciousness suggests), and to bear it with me to my grave, that none can serve it with purer intentions than I have done or with a more disinterested zeal.

GEORGE WASHINGTON.

DECEMBER 12, 1796.

**ADDRESS OF THE HOUSE OF REPRESENTATIVES TO
GEORGE WASHINGTON, PRESIDENT OF THE UNITED
STATES.**

SIR: The House of Representatives have attended to your communication respecting the state of our country with all the sensibility that the contemplation of the subject and a sense of duty can inspire.

We are gratified by the information that measures calculated to insure a continuance of the friendship of the Indians and to maintain the tranquillity of the Western frontier have been adopted, and we indulge the hope that these, by impressing the Indian tribes with more correct conceptions of the justice as well as power of the United States, will be attended with success.

While we notice with satisfaction the steps that you have taken in pursuance of the late treaties with several foreign nations, the liberation of our citizens who were prisoners at Algiers is a subject of peculiar felicitation. We shall cheerfully cooperate in any further measures that shall appear on consideration to be requisite.

We have ever concurred with you in the most sincere and uniform disposition to preserve our neutral relations inviolate, and it is of course

with anxiety and deep regret we hear that any interruption of our harmony with the French Republic has occurred, for we feel with you and with our constituents the cordial and unabated wish to maintain a perfectly friendly understanding with that nation. Your endeavors to fulfill that wish, and by all honorable means to preserve peace, and to restore that harmony and affection which have heretofore so happily subsisted between the French Republic and the United States, can not fail, therefore, to interest our attention. And while we participate in the full reliance you have expressed on the patriotism, self-respect, and fortitude of our countrymen, we cherish the pleasing hope that a mutual spirit of justice and moderation will insure the success of your perseverance.

The various subjects of your communication will respectively meet with the attention that is due to their importance.

When we advert to the internal situation of the United States, we deem it equally natural and becoming to compare the present period with that immediately antecedent to the operation of the Government, and to contrast it with the calamities in which the state of war still involves several of the European nations, as the reflections deduced from both tend to justify as well as to excite a warmer admiration of our free Constitution, and to exalt our minds to a more fervent and grateful sense of piety toward Almighty God for the beneficence of His providence, by which its administration has been hitherto so remarkably distinguished. And while we entertain a grateful conviction that your wise, firm, and patriotic Administration has been signally conducive to the success of the present form of government, we can not forbear to express the deep sensations of regret with which we contemplate your intended retirement from office.

As no other suitable occasion may occur, we can not suffer the present to pass without attempting to disclose some of the emotions which it can not fail to awaken.

The gratitude and admiration of your countrymen are still drawn to the recollection of those resplendent virtues and talents which were so eminently instrumental to the achievement of the Revolution, and of which that glorious event will ever be the memorial. Your obedience to the voice of duty and your country when you quitted reluctantly a second time the

retreat you had chosen and first accepted the Presidency afforded a new proof of the devotedness of your zeal in its service and an earnest of the patriotism and success which have characterized your Administration. As the grateful confidence of the citizens in the virtues of their Chief Magistrate has essentially contributed to that success, we persuade ourselves that the millions whom we represent participate with us in the anxious solicitude of the present occasion.

Yet we can not be unmindful that your moderation and magnanimity, twice displayed by retiring from your exalted stations, afford examples no less rare and instructive to mankind than valuable to a republic.

Although we are sensible that this event of itself completes the luster of a character already conspicuously unrivaled by the coincidence of virtue, talents, success, and public estimation, yet we conceive we owe it to you, sir, and still more emphatically to ourselves and to our nation (of the language of whose hearts we presume to think ourselves at this moment the faithful interpreters), to express the sentiments with which it is contemplated.

The spectacle of a free and enlightened nation offering, by its Representatives, the tribute of unfeigned approbation to its first citizen, however novel and interesting it may be, derives all its luster (a luster which accident or enthusiasm could not bestow, and which adulation would tarnish) from the transcendent merit of which it is the voluntary testimony.

May you long enjoy that liberty which is so dear to you, and to which your name will ever be so dear. May your own virtues and a nation's prayers obtain the happiest sunshine for the decline of your days and the choicest of future blessings. For our country's sake, for the sake of republican liberty, it is our earnest wish that your example may be the guide of your successors, and thus, after being the ornament and safeguard of the present age, become the patrimony of our descendants.

DECEMBER 15, 1796.

REPLY OF THE PRESIDENT.

GENTLEMEN: To a citizen whose views were unambitious, who preferred the shade and tranquillity of private life to the splendor and solicitude of elevated stations, and whom the voice of duty and his country could alone have drawn from his chosen retreat, no reward for his public services can be so grateful as public approbation, accompanied by a consciousness that to render those services useful to that country has been his single aim; and when this approbation is expressed by the Representatives of a free and enlightened nation, the reward will admit of no addition. Receive, gentlemen, my sincere and affectionate thanks for this signal testimony that my services have been acceptable and useful to my country. The strong confidence of my fellow-citizens, while it animated all my actions, insured their zealous cooperation, which rendered those services successful. The virtue and wisdom of my successors, joined with the patriotism and intelligence of the citizens who compose the other branches of Government, I firmly trust will lead them to the adoption of measures which, by the beneficence of Providence, will give stability to our system of government, add to its success, and secure to ourselves and to posterity that liberty which is to all of us so dear.

While I acknowledge with pleasure the sincere and uniform disposition of the House of Representatives to preserve our neutral relations inviolate, and with them deeply regret any degree of interruption of our good understanding with the French Republic, I beg you, gentlemen, to rest assured that my endeavors will be earnest and unceasing by all honorable means to preserve peace and to restore that harmony and affection which have heretofore so happily subsisted between our two nations; and with you I cherish the pleasing hope that a mutual spirit of justice and moderation will crown those endeavors with success.

I shall cheerfully concur in the beneficial measures which your deliberations shall mature on the various subjects demanding your attention; and while directing your labors to advance the real interests of our country, you receive its blessings. With perfect sincerity my individual wishes will be offered for your present and future felicity.

GEORGE WASHINGTON.

DECEMBER 16, 1796.

SPECIAL MESSAGES.

UNITED STATES, *January 4, 1797.*

Gentlemen of the Senate:

I lay before you for your consideration a treaty which has been negotiated and concluded on the 29th day of June last by Benjamin Hawkins, Andrew Pickens, and George Clymer, commissioners on behalf of the United States, with the Creek Indians, together with the instructions which were given to the said commissioners and the proceedings at the place of treaty.

I submit also the proceedings and result of a treaty, held at the city of New York, on behalf of the State of New York, with certain nations or tribes of Indians denominating themselves the Seven Nations of Canada.

GEORGE WASHINGTON.

UNITED STATES, *January 9, 1797.*

Gentlemen of the Senate and of the House of Representatives:

Herewith I lay before you in confidence reports from the Departments of State and the Treasury, by which you will see the present situation of our affairs with the Dey and Regency of Algiers.

GEORGE WASHINGTON.

UNITED STATES, *January 19, 1797.*

Gentlemen of the Senate and of the House of Representatives:

At the opening of the present session of Congress I mentioned that some circumstances of an unwelcome nature had lately occurred in relation to France; that our trade had suffered, and was suffering, extensive injuries in the West Indies from the cruisers and agents of the French Republic, and that communications had been received from its minister here which indicated danger of a further disturbance of our commerce by its authority, and that were in other respects far from agreeable, but that I reserved for a special message a more particular communication on this interesting subject. This communication I now make.

The complaints of the French minister embraced most of the transactions of our Government in relation to France from an early period of the present war, which, therefore, it was necessary carefully to review. A collection has been formed of letters and papers relating to those transactions, which I now lay before you, with a letter to Mr. Pinckney, our minister at Paris, containing an examination of the notes of the French minister and such information as I thought might be useful to Mr. Pinckney in any further representations he might find necessary to be made to the French Government. The immediate object of his mission was to make to that Government such explanations of the principles and conduct of our own as, by manifesting our good faith, might remove all jealousy and discontent and maintain that harmony and good understanding with the French Republic which it has been my constant solicitude to preserve. A government which required only a knowledge of the *truth* to justify its measures could not but be anxious to have this fully and frankly displayed.

GEORGE WASHINGTON.

UNITED STATES, *March 2, 1797.*

Gentlemen of the Senate:

Application having been made to me to permit a treaty to be held with the Seneca Nation of Indians to effect the purchase of a parcel of their land

under a preemption right derived from the State of Massachusetts and situated within the State of New York, and it appearing to me reasonable that such opportunity should be afforded, provided the negotiation shall be conducted at the expense of the applicant, and at the desire and with the consent of the Indians, always considering these as prerequisites, I now nominate Isaac Smith to be a commissioner to hold a treaty with the Seneca Nation for the aforesaid purpose.

GEORGE WASHINGTON.

VETO MESSAGE.

UNITED STATES, *February 28, 1797.*

Gentlemen of the House of Representatives:

Having maturely considered the bill to alter and amend an act entitled "An act to ascertain and fix the military establishment of the United States," which was presented to me on the 22d day of this month, I now return it to the House of Representatives, in which it originated, with my objections:

First. If the bill passes into a law, the two companies of light dragoons will be from that moment *legally* out of service, though they will afterwards continue *actually* in service; and for their services during this interval, namely, from the time of *legal* to the time of *actual* discharge, it will not be lawful to pay them, unless some future provision be made by law. Though they may be discharged at the pleasure of Congress, in justice they ought to receive their pay, not only to the time of passing the law, but at least to the time of their actual discharge.

Secondly. It will be inconvenient and injurious to the public to dismiss the light dragoons as soon as notice of the law can be conveyed to them, one of the companies having been lately destined to a necessary and important service.

Thirdly. The companies of light dragoons consist of 126 noncommissioned officers and privates, who are bound to serve as dismounted dragoons when ordered so to do. They have received in bounties about \$2,000. One of them is completely equipped, and above half of the noncommissioned officers and privates have yet to serve more than one-third of the time of their enlistment; and besides, there will in the course of the year be a considerable deficiency in the complement of infantry intended to be continued. Under these circumstances, to discharge the dragoons does not seem to comport with economy.

Fourthly. It is generally agreed that some cavalry, either militia or regular, will be necessary; and according to the best information I have been able to obtain, it is my opinion that the latter will be less expensive and more useful than the former in preserving peace between the frontier settlers and the Indians, and therefore a part of the military establishment should consist of cavalry.

GEORGE WASHINGTON.

PROCLAMATION.

[From Senate Journal, vol. 2, p. 397.]

MARCH 1, 1797.

To the Vice-President and Senators of the United States, respectively.

SIR: It appearing to me proper that the Senate of the United States should be convened on Saturday, the 4th of March instant, you are desired to attend in the Chamber of the Senate on that day, at 10 o'clock in the forenoon, to receive any communications which the President of the United States may then lay before you touching their interests.

GEORGE WASHINGTON.

FAREWELL ADDRESS.

UNITED STATES, *September 17, 1796.*

Friends and Fellow-Citizens:

The period for a new election of a citizen to administer the Executive Government of the United States being not far distant, and the time actually arrived when your thoughts must be employed in designating the person who is to be clothed with that important trust, it appears to me proper, especially as it may conduce to a more distinct expression of the public voice, that I should now apprise you of the resolution I have formed to decline being considered among the number of those out of whom a choice is to be made.

I beg you at the same time to do me the justice to be assured that this resolution has not been taken without a strict regard to all the considerations appertaining to the relation which binds a dutiful citizen to his country; and that in withdrawing the tender of service, which silence in my situation might imply, I am influenced by no diminution of zeal for your future interest, no deficiency of grateful respect for your past kindness, but am supported by a full conviction that the step is compatible with both.

The acceptance of and continuance hitherto in the office to which your suffrages have twice called me have been a uniform sacrifice of inclination to the opinion of duty and to a deference for what appeared to be your desire. I constantly hoped that it would have been much earlier in my power, consistently with motives which I was not at liberty to disregard, to return to that retirement from which I had been reluctantly drawn. The strength of my inclination to do this previous to the last election had even led to the preparation of an address to declare it to you; but mature reflection on the then perplexed and critical posture of our affairs with foreign nations and the unanimous advice of persons entitled to my confidence impelled me to abandon the idea. I rejoice that the state of your concerns, external as well as internal, no longer renders the pursuit of inclination incompatible with the sentiment of duty or propriety, and am

persuaded, whatever partiality may be retained for my services, that in the present circumstances of our country you will not disapprove my determination to retire.

The impressions with which I first undertook the arduous trust were explained on the proper occasion. In the discharge of this trust I will only say that I have, with good intentions, contributed toward the organization and administration of the Government the best exertions of which a very fallible judgment was capable. Not unconscious in the outset of the inferiority of my qualifications, experience in my own eyes, perhaps still more in the eyes of others, has strengthened the motives to diffidence of myself; and every day the increasing weight of years admonishes me more and more that the shade of retirement is as necessary to me as it will be welcome. Satisfied that if any circumstances have given peculiar value to my services they were temporary, I have the consolation to believe that, while choice and prudence invite me to quit the political scene, patriotism does not forbid it.

In looking forward to the moment which is intended to terminate the career of my political life my feelings do not permit me to suspend the deep acknowledgment of that debt of gratitude which I owe to my beloved country for the many honors it has conferred upon me; still more for the steadfast confidence with which it has supported me, and for the opportunities I have thence enjoyed of manifesting my inviolable attachment by services faithful and persevering, though in usefulness unequal to my zeal. If benefits have resulted to our country from these services, let it always be remembered to your praise and as an instructive example in our annals that under circumstances in which the passions, agitated in every direction, were liable to mislead; amidst appearances sometimes dubious; vicissitudes of fortune often discouraging; in situations in which not unfrequently want of success has countenanced the spirit of criticism, the constancy of your support was the essential prop of the efforts and a guaranty of the plans by which they were effected. Profoundly penetrated with this idea, I shall carry it with me to my grave as a strong incitement to unceasing vows that Heaven may continue to you the choicest tokens of its beneficence; that your union and brotherly affection may be perpetual; that the free Constitution which is the work of your hands may be sacredly maintained; that its administration in every department may be

stamped with wisdom and virtue; that, in fine, the happiness of the people of these States, under the auspices of liberty, may be made complete by so careful a preservation and so prudent a use of this blessing as will acquire to them the glory of recommending it to the applause, the affection, and adoption of every nation which is yet a stranger to it.

Here, perhaps, I ought to stop. But a solicitude for your welfare which can not end but with my life, and the apprehension of danger natural to that solicitude, urge me on an occasion like the present to offer to your solemn contemplation and to recommend to your frequent review some sentiments which are the result of much reflection, of no inconsiderable observation, and which appear to me all important to the permanency of your felicity as a people. These will be offered to you with the more freedom as you can only see in them the disinterested warnings of a parting friend, who can possibly have no personal motive to bias his counsel. Nor can I forget as an encouragement to it your indulgent reception of my sentiments on a former and not dissimilar occasion.

Interwoven as is the love of liberty with every ligament of your hearts, no recommendation of mine is necessary to fortify or confirm the attachment.

The unity of government which constitutes you one people is also now dear to you. It is justly so, for it is a main pillar in the edifice of your real independence, the support of your tranquillity at home, your peace abroad, of your safety, of your prosperity, of that very liberty which you so highly prize. But as it is easy to foresee that from different causes and from different quarters much pains will be taken, many artifices employed, to weaken in your minds the conviction of this truth, as this is the point in your political fortress against which the batteries of internal and external enemies will be most constantly and actively (though often covertly and insidiously) directed, it is of infinite moment that you should properly estimate the immense value of your national union to your collective and individual happiness; that you should cherish a cordial, habitual, and immovable attachment to it; accustoming yourselves to think and speak of it as of the palladium of your political safety and prosperity; watching for its preservation with jealous anxiety; discountenancing whatever may suggest even a suspicion that it can in any event be abandoned, and indignantly frowning upon the first dawning of every attempt to alienate any portion of

our country from the rest or to enfeeble the sacred ties which now link together the various parts.

For this you have every inducement of sympathy and interest. Citizens by birth or choice of a common country, that country has a right to concentrate your affections. The name of American, which belongs to you in your national capacity, must always exalt the just pride of patriotism more than any appellation derived from local discriminations. With slight shades of difference, you have the same religion, manners, habits, and political principles. You have in a common cause fought and triumphed together. The independence and liberty you possess are the work of joint councils and joint efforts, of common dangers, sufferings, and successes.

But these considerations, however powerfully they address themselves to your sensibility, are greatly outweighed by those which apply more immediately to your interest. Here every portion of our country finds the most commanding motives for carefully guarding and preserving the union of the whole.

The *North*, in an unrestrained intercourse with the *South*, protected by the equal laws of a common government, finds in the productions of the latter great additional resources of maritime and commercial enterprise and precious materials of manufacturing industry. The *South*, in the same intercourse, benefiting by the same agency of the *North*, sees its agriculture grow and its commerce expand. Turning partly into its own channels the seamen of the *North*, it finds its particular navigation invigorated; and while it contributes in different ways to nourish and increase the general mass of the national navigation, it looks forward to the protection of a maritime strength to which itself is unequally adapted. The *East*, in a like intercourse with the *West*, already finds, and in the progressive improvement of interior communications by land and water will more and more find, a valuable vent for the commodities which it brings from abroad or manufactures at home. The *West* derives from the *East* supplies requisite to its growth and comfort, and what is perhaps of still greater consequence, it must of necessity owe the *secure* enjoyment of indispensable *outlets* for its own productions to the weight, influence, and the future maritime strength of the Atlantic side of the Union, directed by an indissoluble community of interest as *one nation*. Any other tenure by which the *West* can hold this essential advantage,

whether derived from its own separate strength or from an apostate and unnatural connection with any foreign power, must be intrinsically precarious.

While, then, every part of our country thus feels an immediate and particular interest in union, all the parts combined can not fail to find in the united mass of means and efforts greater strength, greater resource, proportionably greater security from external danger, a less frequent interruption of their peace by foreign nations, and what is of inestimable value, they must derive from union an exemption from those broils and wars between themselves which so frequently afflict neighboring countries not tied together by the same governments, which their own rivalships alone would be sufficient to produce, but which opposite foreign alliances, attachments, and intrigues would stimulate and embitter. Hence, likewise, they will avoid the necessity of those overgrown military establishments which, under any form of government, are inauspicious to liberty, and which are to be regarded as particularly hostile to republican liberty. In this sense it is that your union ought to be considered as a main prop of your liberty, and that the love of the one ought to endear to you the preservation of the other.

These considerations speak a persuasive language to every reflecting and virtuous mind, and exhibit the continuance of the union as a primary object of patriotic desire. Is there a doubt whether a common government can embrace so large a sphere? Let experience solve it. To listen to mere speculation in such a case were criminal. We are authorized to hope that a proper organization of the whole, with the auxiliary agency of governments for the respective subdivisions, will afford a happy issue to the experiment. It is well worth a fair and full experiment. With such powerful and obvious motives to union affecting all parts of our country, while experience shall not have demonstrated its impracticability, there will always be reason to distrust the patriotism of those who in any quarter may endeavor to weaken its bands.

In contemplating the causes which may disturb our union it occurs as matter of serious concern that any ground should have been furnished for characterizing parties by *geographical* discriminations—*Northern* and *Southern*, *Atlantic* and *Western*—whence designing men may endeavor to

excite a belief that there is a real difference of local interests and views, One of the expedients of party to acquire influence within particular districts is to misrepresent the opinions and aims of other districts. You can not shield yourselves too much against the jealousies and heartburnings which spring from these misrepresentations; they tend to render alien to each other those who ought to be bound together by fraternal affection. The inhabitants of our Western country have lately had a useful lesson on this head. They have seen in the negotiation by the Executive and in the unanimous ratification by the Senate of the treaty with Spain, and in the universal satisfaction at that event throughout the United States, a decisive proof how unfounded were the suspicions propagated among them of a policy in the General Government and in the Atlantic States unfriendly to their interests in regard to the Mississippi. They have been witnesses to the formation of two treaties—that with Great Britain and that with Spain—which secure to them everything they could desire in respect to our foreign relations toward confirming their prosperity. Will it not be their wisdom to rely for the preservation of these advantages on the union by which they were procured? Will they not henceforth be deaf to those advisers, if such there are, who would sever them from their brethren and connect them with aliens?

To the efficacy and permanency of your union a government for the whole is indispensable. No alliances, however strict, between the parts can be an adequate substitute. They must inevitably experience the infractions and interruptions which all alliances in all times have experienced. Sensible of this momentous truth, you have improved upon your first essay by the adoption of a Constitution of Government better calculated than your former for an intimate union and for the efficacious management of your common concerns. This Government, the offspring of our own choice, uninfluenced and unawed, adopted upon full investigation and mature deliberation, completely free in its principles, in the distribution of its powers, uniting security with energy, and containing within itself a provision for its own amendment, has a just claim to your confidence and your support. Respect for its authority, compliance with its laws, acquiescence in its measures, are duties enjoined by the fundamental maxims of true liberty. The basis of our political systems is the right of the people to make and to alter their constitutions of government. But the

constitution which at any time exists till changed by an explicit and authentic act of the whole people is sacredly obligatory upon all. The very idea of the power and the right of the people to establish government presupposes the duty of every individual to obey the established government.

All obstructions to the execution of the laws, all combinations and associations, under whatever plausible character, with the real design to direct, control, counteract, or awe the regular deliberation and action of the constituted authorities, are destructive of this fundamental principle and of fatal tendency. They serve to organize faction; to give it an artificial and extraordinary force; to put in the place of the delegated will of the nation the will of a party, often a small but artful and enterprising minority of the community, and, according to the alternate triumphs of different parties, to make the public administration the mirror of the ill-concerted and incongruous projects of faction rather than the organ of consistent and wholesome plans, digested by common counsels and modified by mutual interests.

However combinations or associations of the above description may now and then answer popular ends, they are likely in the course of time and things to become potent engines by which cunning, ambitious, and unprincipled men will be enabled to subvert the power of the people, and to usurp for themselves the reins of government, destroying afterwards the very engines which have lifted them to unjust dominion.

Toward the preservation of your Government and the permanency of your present happy state, it is requisite not only that you steadily discountenance irregular oppositions to its acknowledged authority, but also that you resist with care the spirit of innovation upon its principles, however specious the pretexts. One method of assault may be to effect in the forms of the Constitution alterations which will impair the energy of the system, and thus to undermine what can not be directly overthrown. In all the changes to which you may be invited remember that time and habit are at least as necessary to fix the true character of governments as of other human institutions; that experience is the surest standard by which to test the real tendency of the existing constitution of a country; that facility in changes upon the credit of mere hypothesis and opinion exposes to

perpetual change, from the endless variety of hypothesis and opinion; and remember especially that for the efficient management of your common interests in a country so extensive as ours a government of as much vigor as is consistent with the perfect security of liberty is indispensable. Liberty itself will find in such a government, with powers properly distributed and adjusted, its surest guardian. It is, indeed, little else than a name where the government is too feeble to withstand the enterprises of faction, to confine each member of the society within the limits prescribed by the laws, and to maintain all in the secure and tranquil enjoyment of the rights of person and property. I have already intimated to you the danger of parties in the State, with particular reference to the founding of them on geographical discriminations. Let me now take a more comprehensive view, and warn you in the most solemn manner against the baneful effects of the spirit of party generally.

This spirit, unfortunately, is inseparable from our nature, having its root in the strongest passions of the human mind. It exists under different shapes in all governments, more or less stifled, controlled, or repressed; but in those of the popular form it is seen in its greatest rankness and is truly their worst enemy.

The alternate domination of one faction over another, sharpened by the spirit of revenge natural to party dissension, which in different ages and countries has perpetrated the most horrid enormities, is itself a frightful despotism. But this leads at length to a more formal and permanent despotism. The disorders and miseries which result gradually incline the minds of men to seek security and repose in the absolute power of an individual, and sooner or later the chief of some prevailing faction, more able or more fortunate than his competitors, turns this disposition to the purposes of his own elevation on the ruins of public liberty.

Without looking forward to an extremity of this kind (which nevertheless ought not to be entirely out of sight), the common and continual mischiefs of the spirit of party are sufficient to make it the interest and duty of a wise people to discourage and restrain it.

It serves always to distract the public councils and enfeeble the public administration. It agitates the community with ill-founded jealousies and

false alarms; kindles the animosity of one part against another; foment occasionally riot and insurrection. It opens the door to foreign influence and corruption, which find a facilitated access to the government itself through the channels of party passion. Thus the policy and the will of one country are subjected to the policy and will of another.

There is an opinion that parties in free countries are useful checks upon the administration of the government, and serve to keep alive the spirit of liberty. This within certain limits is probably true; and in governments of a monarchical cast patriotism may look with indulgence, if not with favor, upon the spirit of party. But in those of the popular character, in governments purely elective, it is a spirit not to be encouraged. From their natural tendency it is certain there will always be enough of that spirit for every salutary purpose; and there being constant danger of excess, the effort ought to be by force of public opinion to mitigate and assuage it. A fire not to be quenched, it demands a uniform vigilance to prevent its bursting into a flame, lest, instead of warming, it should consume.

It is important, likewise, that the habits of thinking in a free country should inspire caution in those intrusted with its administration to confine themselves within their respective constitutional spheres, avoiding in the exercise of the powers of one department to encroach upon another. The spirit of encroachment tends to consolidate the powers of all the departments in one, and thus to create, whatever the form of government, a real despotism. A just estimate of that love of power and proneness to abuse it which predominates in the human heart is sufficient to satisfy us of the truth of this position. The necessity of reciprocal checks in the exercise of political power, by dividing and distributing it into different depositories, and constituting each the guardian of the public weal against invasions by the others, has been evinced by experiments ancient and modern, some of them in our country and under our own eyes. To preserve them must be as necessary as to institute them. If in the opinion of the people the distribution or modification of the constitutional powers be in any particular wrong, let it be corrected by an amendment in the way which the Constitution designates. But let there be no change by usurpation; for though this in one instance may be the instrument of good, it is the customary weapon by which free governments are destroyed. The precedent must always greatly

overbalance in permanent evil any partial or transient benefit which the use can at any time yield.

Of all the dispositions and habits which lead to political prosperity, religion and morality are indispensable supports. In vain would that man claim the tribute of patriotism who should labor to subvert these great pillars of human happiness—these firmest props of the duties of men and citizens. The mere politician, equally with the pious man, ought to respect and to cherish them. A volume could not trace all their connections with private and public felicity. Let it simply be asked, Where is the security for property, for reputation, for life, if the sense of religious obligation *desert* the oaths which are the instruments of investigation in courts of justice? And let us with caution indulge the supposition that morality can be maintained without religion. Whatever may be conceded to the influence of refined education on minds of peculiar structure, reason and experience both forbid us to expect that national morality can prevail in exclusion of religious principle.

It is substantially true that virtue or morality is a necessary spring of popular government. The rule indeed extends with more or less force to every species of free government. Who that is a sincere friend to it can look with indifference upon attempts to shake the foundation of the fabric? Promote, then, as an object of primary importance, institutions for the general diffusion of knowledge. In proportion as the structure of a government gives force to public opinion, it is essential that public opinion should be enlightened.

As a very important source of strength and security, cherish public credit. One method of preserving it is to use it as sparingly as possible, avoiding occasions of expense by cultivating peace, but remembering also that timely disbursements to prepare for danger frequently prevent much greater disbursements to repel it; avoiding likewise the accumulation of debt, not only by shunning occasions of expense, but by vigorous exertions in time of peace to discharge the debts which unavoidable wars have occasioned, not ungenerously throwing upon posterity the burthen which we ourselves ought to bear. The execution of these maxims belongs to your representatives; but it is necessary that public opinion should cooperate. To facilitate to them the performance of their duty it is essential that you

should practically bear in mind that toward the payment of debts there must be revenue; that to have revenue there must be taxes; that no taxes can be devised which are not more or less inconvenient and unpleasant; that the intrinsic embarrassment inseparable from the selection of the proper objects (which is always a choice of difficulties), ought to be a decisive motive for a candid construction of the conduct of the Government in making it, and for a spirit of acquiescence in the measures for obtaining revenue which the public exigencies may at any time dictate.

Observe good faith and justice toward all nations. Cultivate peace and harmony with all. Religion and morality enjoin this conduct. And can it be that good policy does not equally enjoin it? It will be worthy of a free, enlightened, and at no distant period a great nation to give to mankind the magnanimous and too novel example of a people always guided by an exalted justice and benevolence. Who can doubt that in the course of time and things the fruits of such a plan would richly repay any temporary advantages which might be lost by a steady adherence to it? Can it be that Providence has not connected the permanent felicity of a nation with its virtue? The experiment, at least, is recommended by every sentiment which ennobles human nature. Alas! is it rendered impossible by its vices?

In the execution of such a plan nothing is more essential than that permanent, inveterate antipathies against particular nations and passionate attachments for others should be excluded, and that in place of them just and amicable feelings toward all should be cultivated. The nation which indulges toward another an habitual hatred or an habitual fondness is in some degree a slave. It is a slave to its animosity or to its affection, either of which is sufficient to lead it astray from its duty and its interest. Antipathy in one nation against another disposes each more readily to offer insult and injury, to lay hold of slight causes of umbrage, and to be haughty and intractable when accidental or trifling occasions of dispute occur.

Hence frequent collisions, obstinate, envenomed, and bloody contests. The nation prompted by ill will and resentment sometimes impels to war the government contrary to the best calculations of policy. The government sometimes participates in the national propensity, and adopts through passion what reason would reject. At other times it makes the animosity of the nation subservient to projects of hostility, instigated by pride, ambition,

and other sinister and pernicious motives. The peace often, sometimes perhaps the liberty, of nations has been the victim.

So, likewise, a passionate attachment of one nation for another produces a variety of evils. Sympathy for the favorite nation, facilitating the illusion of an imaginary common interest in cases where no real common interest exists, and infusing into one the enmities of the other, betrays the former into a participation in the quarrels and wars of the latter without adequate inducement or justification. It leads also to concessions to the favorite nation of privileges denied to others, which is apt doubly to injure the nation making the concessions by unnecessarily parting with what ought to have been retained, and by exciting jealousy, ill will, and a disposition to retaliate in the parties from whom equal privileges are withheld; and it gives to ambitious, corrupted, or deluded citizens (who devote themselves to the favorite nation) facility to betray or sacrifice the interests of their own country without odium, sometimes even with popularity, gilding with the appearances of a virtuous sense of obligation, a commendable deference for public opinion, or a laudable zeal for public good the base or foolish compliances of ambition, corruption, or infatuation.

As avenues to foreign influence in innumerable ways, such attachments are particularly alarming to the truly enlightened and independent patriot. How many opportunities do they afford to tamper with domestic factions, to practice the arts of seduction, to mislead public opinion, to influence or awe the public councils! Such an attachment of a small or weak toward a great and powerful nation dooms the former to be the satellite of the latter. Against the insidious wiles of foreign influence (I conjure you to believe me, fellow-citizens) the jealousy of a free people ought to be *constantly* awake, since history and experience prove that foreign influence is one of the most baneful foes of republican government. But that jealousy, to be useful, must be impartial, else it becomes the instrument of the very influence to be avoided, instead of a defense against it. Excessive partiality for one foreign nation and excessive dislike of another cause those whom they actuate to see danger only on one side, and serve to veil and even second the arts of influence on the other. Real patriots who may resist the intrigues of the favorite are liable to become suspected and odious, while its tools and dupes usurp the applause and confidence of the people to surrender their interests.

The great rule of conduct for us in regard to foreign nations is, in extending our commercial relations to have with them as little *political* connection as possible. So far as we have already formed engagements let them be fulfilled with perfect good faith. Here let us stop.

Europe has a set of primary interests which to us have none or a very remote relation. Hence she must be engaged in frequent controversies, the causes of which are essentially foreign to our concerns. Hence, therefore, it must be unwise in us to implicate ourselves by artificial ties in the ordinary vicissitudes of her politics or the ordinary combinations and collisions of her friendships or enmities.

Our detached, and distant situation invites and enables us to pursue a different course. If we remain one people, under an efficient government, the period is not far off when we may defy material injury from external annoyance; when we may take such an attitude as will cause the neutrality we may at any time resolve upon to be scrupulously respected; when belligerent nations, under the impossibility of making acquisitions upon us, will not lightly hazard the giving us provocation; when we may choose peace or war, as our interest, guided by justice, shall counsel.

Why forego the advantages of so peculiar a situation? Why quit our own to stand upon foreign ground? Why, by interweaving our destiny with that of any part of Europe, entangle our peace and prosperity in the toils of European ambition, rivalship, interest, humor, or caprice?

It is our true policy to steer clear of permanent alliances with any portion of the foreign world, so far, I mean, as we are now at liberty to do it; for let me not be understood as capable of patronizing infidelity to existing engagements. I hold the maxim no less applicable to public than to private affairs that honesty is always the best policy. I repeat, therefore, let those engagements be observed in their genuine sense. But in my opinion it is unnecessary and would be unwise to extend them.

Taking care always to keep ourselves by suitable establishments on a respectable defensive posture, we may safely trust to temporary alliances for extraordinary emergencies.

Harmony, liberal intercourse with all nations are recommended by policy, humanity, and interest. But even our commercial policy should hold an equal and impartial hand, neither seeking nor granting exclusive favors or preferences; consulting the natural course of things; diffusing and diversifying by gentle means the streams of commerce, but forcing nothing; establishing with powers so disposed, in order to give trade a stable course, to define the rights of our merchants, and to enable the Government to support them, conventional rules of intercourse, the best that present circumstances and mutual opinion will permit, but temporary and liable to be from time to time abandoned or varied as experience and circumstances shall dictate; constantly keeping in view that it is folly in one nation to look for disinterested favors from another; that it must pay with a portion of its independence for whatever it may accept under that character; that by such acceptance it may place itself in the condition of having given equivalents for nominal favors, and yet of being reproached with ingratitude for not giving more. There can be no greater error than to expect or calculate upon real favors from nation to nation. It is an illusion which experience must cure, which a just pride ought to discard.

In offering to you, my countrymen, these counsels of an old and affectionate friend I dare not hope they will make the strong and lasting impression I could wish—that they will control the usual current of the passions or prevent our nation from running the course which has hitherto marked the destiny of nations. But if I may even flatter myself that they may be productive of some partial benefit, some occasional good—that they may now and then recur to moderate the fury of party spirit, to warn against the mischiefs of foreign intrigue, to guard against the impostures of pretended patriotism—this hope will be a full recompense for the solicitude for your welfare by which they have been dictated.

How far in the discharge of my official duties I have been guided by the principles which have been delineated the public records and other evidences of my conduct must witness to you and to the world. To myself, the assurance of my own conscience is that I have at least believed myself to be guided by them.

In relation to the still subsisting war in Europe my proclamation of the 22d of April, 1793, is the index to my plan. Sanctioned by your approving

voice and by that of your representatives in both Houses of Congress, the spirit of that measure has continually governed me, uninfluenced by any attempts to deter or divert me from it.

After deliberate examination, with the aid of the best lights I could obtain, I was well satisfied that our country, under all the circumstances of the case, had a right to take, and was bound in duty and interest to take, a neutral position. Having taken it, I determined as far as should depend upon me to maintain it with moderation, perseverance, and firmness.

The considerations which respect the right to hold this conduct it is not necessary on this occasion to detail. I will only observe that, according to my understanding of the matter, that right, so far from being denied by any of the belligerent powers, has been virtually admitted by all.

The duty of holding a neutral conduct may be inferred, without anything more, from the obligation which justice and humanity impose on every nation, in cases in which it is free to act, to maintain inviolate the relations of peace and amity toward other nations.

The inducements of interest for observing that conduct will best be referred to your own reflections and experience. With me a predominant motive has been to endeavor to gain time to our country to settle and mature its yet recent institutions, and to progress without interruption to that degree of strength and consistency which is necessary to give it, humanly speaking, the command of its own fortunes.

Though in reviewing the incidents of my Administration I am unconscious of intentional error, I am nevertheless too sensible of my defects not to think it probable that I may have committed many errors. Whatever they may be, I fervently beseech the Almighty to avert or mitigate the evils to which they may tend. I shall also carry with me the hope that my country will never cease to view them with indulgence, and that, after forty-five years of my life dedicated to its service with an upright zeal, the faults of incompetent abilities will be consigned to oblivion, as myself must soon be to the mansions of rest.

Relying on its kindness in this as in other things, and actuated by that fervent love toward it which is so natural to a man who views in it the

native soil of himself and his progenitors for several generations, I anticipate with pleasing expectation that retreat in which I promise myself to realize without alloy the sweet enjoyment of partaking in the midst of my fellow-citizens the benign influence of good laws under a free government—the ever-favorite object of my heart, and the happy reward, as I trust, of our mutual cares, labors, and dangers.

GEORGE WASHINGTON.

Footnotes

1: For proclamation convening Senate in extraordinary session see p. 587.

*** END OF THE PROJECT GUTENBERG EBOOK A COMPILATION
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